

BLACKWOOD'S EDINBURGH MAGAZINE.

No. CCCCLXXXV.

MARCH, 1856.

VOL. LXXIX.

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LXXIX.

LIDDELL'S HISTORY OF ROME.^[1]

Engraved on certain Syrian or Assyrian rocks lie innumerable inscriptions in an unknown character; the solid rock and an Asiatic climate have preserved them for us: they lie there facing the world, in the broad light of day, but none can read them. A whole mountain-side seems covered with the records of departed greatness. What truths, what historic facts might not these mysterious characters disclose! The scholar cannot sleep for desire to interpret them. At length, by extreme ingenuity and indomitable patience, and those happy sudden incidental revelations which ever reward the persevering man, some clue is put into his hand. He begins to read, he begins to translate. We gather round and listen breathless. "I, Shalmanasser," so runs the inscription, "I assembled a great army—I engaged—I defeated—I slew their sovereigns,—I cast in chains their captains and men of war—I, Shalmanasser, I——" Oh, hold! hold! we exclaim, with thy Shalmanasser! There was no need to decipher the mysterious characters for this. If the rock, with all its inscriptions, can tell us nothing wiser or newer, it is a pity that there were no rains in that climate to wash the surface smooth, and obliterate these boastful records of barbarian cruelty and destruction. Better that the simple weather-stained rock should face the eye of day, oblivious of all but nature's painless and progressive activities.

Some such feeling as this has passed across the minds of most of us, when invited to peruse new histories of the ancient world. They were terrible men, those warriors of olden time. They besieged towns—and so, indeed, do we; but they did more; they put the children to the sword, and carried away the mother into captivity, and those of the men whom they did not chain and enslave, they slew as grateful sacrifices to their gods! Strange and execrable insanity! and yet the religious rite was the legitimate result,

and the clear exponent of their own savage nature. There was no spectacle to them so pleasant as blood that flowed from an enemy. How deny the god who had helped them to win the victory his share in the triumphant slaughter! There have been loathsome and terrible things done upon the earth; let us forget them, as we forget some horrible nightmare. At all events, having known that such men and such times have been, and having gathered what lesson we can from them, let us be spared from the infliction of new Shalmanassers, or from new details of their atrocities. Such feeling of satiety in the old narrative of war and conquest we must confess to participate in, when the narrative relates to some Asiatic monarchy that has appeared and disappeared, leaving no trace of any good result behind it, or which merely lingers on the scene undergoing fruitless and bewildering changes. It is otherwise, however, when we are invited again to peruse the history of Rome, and her conquest of the world, as it has been proudly called. We are reading here the history of European civilisation. The slow, persistent, continuous progress of her consular armies is one of those great indispensable facts, without which the history of humanity could not be written, without which a civilised Christendom could not have existed. It is the conquest of a people, not of a monarch—a people who for many years have to struggle for self-preservation (the secret this of their lasting union and exalted patriotism)—of a people whose pride and ambition undergo the noble discipline of adversity, who, being firmly knit together, proceed steadily to the taming and subjection and settlement of the surrounding nations. It is a conquest the very reverse of those great invasions of Hun or Scythian, where population rolls like an enormous sea from one part of the world to another; it was truly the *settlement*, first of Italy, then of surrounding countries. Nomadic habits were checked. Siculi and Oscans, Sabines, Samnites, and a host of shifting populations too numerous to name, were brought under one government, and moulded into one nation. What the Alps could not do for Italy, was done by the republic of the seven hills. The peninsula was secured from the invasion of the more northern barbarian. The Gaul was first arrested, then subjugated, settled in his own home, civilised and protected. Carthage, who would have conquered or colonised in the interest only of her own commerce, was driven back. Greece, and her arts and her philosophy, were embraced and absorbed in the new empire, which extended over the finest races of men and the most propitious climates of the earth.

It has been well said that the Romans were not the only people who entertained the glorious anticipation of the conquest of the world. There was one other nation that had a still more magnificent conception of its own future destiny, of its own exalted prominence and supremacy. It was impossible for the monotheism of the Jews to attain the elevated character it did, and yet sanction the belief, in any narrow sense, of a national god. The only God of all the world must surely reign over all the world. The universal Monarch must imply a universal monarchy. From this centre of the world,—this holy temple at Jerusalem, and through His chosen and peculiar people, would God govern all the nations of the earth. Such extension of the faith of the Jew to the Gentile was inevitable. All nations would come in, as suppliants and subjects, to the throne of God's elect. And the prophetic inspiration, though not precisely in the sense in which the ancient Hebrew understood it, was destined to be fulfilled. But it was not the sword of Israel, nor of the angels, that Divine Providence employed to establish the supremacy of the great Truth developed in Judea. It was the sword of the legions of Rome. The armies of a Scipio and a Cæsar were gathering the nations together under the one true worship. The spiritual dominion did issue from Judea, but it governed the world from the throne of the Cæsars.

Egypt, Greece, Rome, and Judea,—these are the four great names which occur to one who looks back on the history of European civilisation. To these four powers or nations we owe that status or condition which has enabled us to make such advances as we claim to be peculiarly our own. Indirect contributions are doubtless due to India and to Persia. Babylon is no more; but a people who once sojourned in Babylon may have learnt something there from the Persian, and transmitted it to us in their imperishable records; and Greek philosophy bears impress, in one phase of it, of the teaching of Indian theosophists. But still the four whom we have mentioned would furnish forth all the essential elements which the past has given to our present European culture.

If we look at the map of the world, or turn under our hand a terrestrial globe, we shall be struck with the peculiar adaptation of the banks of the Nile to be an early seat of civilisation. It is not only that the river, by periodically overflowing its banks, produces a spontaneous or unlaboured fertility, but this fertile tract of land is made precious, and the people are bound to it, by the enormous deserts that extend around it. The desert and

the sea imprison the people in their “happy valley,” thus rendering it in all probability one of the earliest abodes of a stationary population. However that may be, it is certain that, whether we appeal to written history or to monumental inscriptions, there is no spot on the earth where the records of the human race extend so far back into antiquity. We must open our history of civilisation with the growth of arts and knowledge in Egypt. From Egypt we proceed to Greece—to Athens, the marvellous, who did so much in so short time, and who accomplished even more for the world at large than for her individual self. She learnt her arts from Egypt; her scientific spirit was her own. What we owe to Judea (which at an early period was not unconnected with Egypt, nor at a later with the mind of Greece) needs not to be here particularised. It was the part of Rome to reduce into order and combine under one sway large tracts of territory and great varieties of people; so that whatever had been given to the Greek, or revealed to the Hebrew, might blend and be diffused over vast portions of the human race. Nor was this office less effectually performed because the empire is seen to break up amidst much temporary confusion, produced by internal corruption and rude invaders. Europe finally assumes a form the most conducive imaginable to progress. It is divided into separate kingdoms, speaking different languages, but possessing a common religion, and many of the same sources of culture. Their similarities, their contrasts, their emulations, form together a condition the most favourable for the excitement and progress of the human intellect.

We can therefore look with complacent admiration, and undecaying interest, upon the wars and victories of ancient Rome. But indeed, such has been the revolution lately brought about in our historical studies, that the mention of a new History of Rome is more likely to call to mind perplexed controversies upon myths and fables, than visions of battles or triumphal processions winding up to the Capitol. Not many years ago, the early periods of Roman history suggested to the imagination the most vivid pictures of war and patriotism; we heard the march of the legions—we followed Cincinnatus from the plough to the camp—we were busied with the most stirring realities and the strongest passions of life. Now these realities have grown dim and disputable, and we are reminded of learned controversies upon poetic legends, or on early forms of the constitution,—we think more of Niebuhr than of Camillus, more of German critics than of the Conscript Fathers. It is not a pleasant exchange, but it is one which must

be submitted to. The first question that every one will ask, who hears that Dr Liddell has told again the history of Rome, is, How has he dealt with the mythical or legendary portions? What degree of credibility has he attached to them? Has he followed the example of Arnold, and reserved for them a peculiar style savouring of antique simplicity; or has he followed the older, and, we think, the wiser course, of Livy, and told them with genuine unaffected eloquence, without either disguising their legendary character, or making the very vain attempt to distinguish the germ or nucleus of real fact from the accretions and embellishments of oral tradition?

Before we answer this question, let us say generally of Dr Liddell's History, that we think the public is indebted to him for a pre-eminently *useful* book. To the youthful student, to the man who cannot read many volumes, we should commend it as the one History which will convey the latest views and most extensive information. The style is simple, clear, explanatory. There are, indeed, certain high qualities of the writer and the thinker which are requisite to complete our ideal of the perfect historian. We are accustomed to require in him something of the imagination of the poet, combined with and subdued by the wide generalising spirit of the philosopher. We do not wish to have it understood that there is a signal deficiency in these qualities, but, whilst acknowledging the utility of Dr Liddell's laborious and learned work, we cannot say that he has given to the literature of England a History of Rome.

Indeed, the author in his preface claims for his work no such high distinction. He describes the origin it had in the desire to supply the more advanced students at public schools with a fit work of instruction, conveying to them "some knowledge of the altered aspect which Roman history has assumed." The work grew upon his hands, "and the character of the book," he continues, "is considerably changed from that which it was originally intended to bear. A History of Rome suited to the wants of general readers of the present day does not in fact exist, and certainly is much wanted. Whether this work will in any way supply the want is for others to say."

We have already intimated our opinion that there is no other work at present existing which so ably supplies this want; and our immediate object in placing it at the head of this paper was to assist in giving notice to all whom it might concern where such a work of instruction was to be found.

The preface then proceeds to touch upon the thorny and perplexing controversies in the early history:—

“The difficulty inseparable from a work of this kind lies in the treatment of the Early History. Since what may be called ‘The Revolution of Niebuhr,’ it has been customary to give an abstract of his conclusions, with little attention to the evidence upon which they rest. But the acute and laborious criticisms of many scholars, chiefly German, have greatly modified the faith which the present generation is disposed to place in Niebuhr’s authoritative dicta; and in some cases there may be observed a disposition to speak lightly of his services. If I may say anything of myself, I still feel that reverence for the great master which I gained in youth, when we, at Oxford, first applied his lamp to illuminate the pages of Livy. No doubt, many of the results which he assumes as positive are little better than arbitrary assertions. But I conceive that his main positions are still unshaken, or rather have been confirmed by examination and attack. If, however, they were all abandoned, it will remain true for ever, that to him is due the new spirit in which Roman history has been studied; that to him must be referred the origin of that new light which has been thrown upon the whole subject by the labours of his successors. In a work like this, dissertation is impossible; and I have endeavoured to state only such results of the new criticism as seem to be established. If the young reader has less of positive set before him to learn, he will at all events find less that he will have to unlearn.

“Far the greater part of this work was printed off before the appearance of Sir George Cornewall Lewis’s *Inquiry into the Credibility of Early Roman History*. Much labour might be saved by adopting his conclusions, that Roman history deserves little or no attention till the age at which we can securely refer to contemporaneous writers, and that this age cannot be carried back further than the times of Pyrrhus. It is impossible to speak too highly of the fulness, the clearness, the patience, the judicial calmness of his elaborate argument. *But while his conclusions may be conceded in full for almost all the wars and foreign transactions of early times*, we must yet claim attention for the civil history of Rome in the first ages of the republic. There is about it a consistency of progress, and a clearness of intelligence, that would make its fabrication more wonderful than its transmission in a half-traditionary form. When tradition rests solely on memory, it is fleeting and uncertain; but when it is connected with customs, laws, and institutions such as those of which Rome was justly proud, and to which the ruling party clung with desperate tenacity, its evidence must doubtless be carefully sifted and duly estimated, but ought not altogether to be set aside.”

The large concession which the work of Sir G. C. Lewis seems to have extorted from Dr Liddell after the writing of his own History, was not present to his mind during its composition. He sometimes gives as historical fact such-and-such a war, and then relates some legend as connected with this war. “With the Volscian wars is inseparably connected the noble legend of Coriolanus.” The story of Coriolanus is marked as legend, the Volscian wars as fact. If we are justified in making the concession marked in italics, the Volscian wars are no more history than the story of Coriolanus.

As to the remark here made on the civil or constitutional history of this period, it would have great weight if there were really presented to us in that history a clear, intelligible, indisputable account of the earlier constitutions or governments of Rome. It happens that it is precisely on this subject there has been so much conjecture, and so much debate. So far as Dr Liddell can really trace in the narrative preceding the time of Pyrrhus, a

manifest, indisputable, *constitutional history*, so far as he can confidently point to that “consistency of progress and clearness of intelligence” of which he speaks, so far he is entitled to claim for the whole narrative our most respectful attention. But the difficulty is notorious of forming a distinct conception of many points in this constitutional history, and this difficulty has given rise to much of our guess-work. We must take care, therefore, and not fall into the logical error, of *first* eliminating some consistent view of the constitutional history by the aid of much ingenious conjecture, and *then* appealing to this consistency in the constitutional history as ground of presumption in favour of the whole narrative.

For our own part, we suspect that there is a greater measure of truth in the legend as it stands than is now generally conceded; and at the same time we have an utter distrust of all the attempts which have been made—laudable and ingenious as they may be—to separate the truth from the fable. We can believe in Tarquin the Proud, in Lucretia, in Coriolanus, much more readily than in any new historical views obtained by a sifting of the narrative which contains these heroic stories. One thing is plain, that no historian of Rome can omit these narratives; and we should much prefer that he would relate them in a natural style—in the style due at least to the noble sentiments they illustrate—than reserve for them (a manner to which Dr Liddell on some occasions leans) a certain bald and ballad simplicity, as if the writer were almost ashamed of having to relate them at all.

It is now generally understood, by all who have paid any attention to the subject, that although the name of Niebuhr is popularly associated with a sceptical and destructive criticism, he is really distinguished by the bold manner in which he has undertaken to construct and restore certain portions of the history. Preceding writers, both ancient and modern, had uttered the word “fable” or “legend;” it was the gathering from the fable some truth indirectly revealed; it was the bold inventive genius, which could recast the old materials into a new form, which characterised his labours. Amongst other things, he fearlessly asserted that a modern critic might obtain a more precise knowledge of the civil history and early constitutions of Rome than Livy or Cicero possessed. Now, these reconstructions of Niebuhr, though received at first with great enthusiasm in many quarters, have not stood their ground against a calm and severe examination; and in this country all such conjectural methods of writing the early history of Rome have lately received a decisive check from the work of Sir George Cornewall Lewis,

On the Credibility of Early Roman History. This is a work which combines the ample and laborious scholarship of the German, with that sound sense which the Englishman lays especial claim to. We can only here incidentally mention it; but it is impossible, and it will be a long time impossible, for any one to touch upon Roman history without alluding to this work. It will be for many years the text-book for the subject of which it treats.

The manner in which a legend, which is itself admitted to be false, may yet convey to us indirectly some important historical truth, admits of easy illustration. Suppose that some chronicler, living in the time of our Henry V., chose to relate a quite fictitious history of Prince Arthur. All his battles, all his victories, his whole kingdom, might be a mere dream; but as the imagination of the writer would have no other types to follow than those which his own times presented to him, he would necessarily convey to us much historical truth touching the reign of Henry V., whilst describing his imaginary Prince Arthur. His inevitable anachronisms would betray him into a species of historical truth. Prince Arthur would assuredly be a valorous knight, and whence would come the ceremony of investiture, and all the moral code of knighthood? Prince Arthur would undoubtedly be a good son of the Church, and from what type would be drawn the picture of the orthodox and pious Christian? If the Prince were to be crowned, whence would come the sceptre and the ball, and the oaths he would take upon his coronation? Prince Arthur would be a knight, a Christian, and a king, after the order of the Plantagenets. It is plain that, in such a fabulous narrative, there would be mingled up much historical matter; it is plain that we, reading such a narrative by the light of knowledge gained from other sources, can detect and discriminate the historic truth: whether, if such a fabulous narrative *stood alone* before us, we could then make the same discrimination, whether we could then take advantage of its involuntary anachronisms, is another question. Imagination must always have its type or starting-place in some reality, but it may deal as freely with one reality as another; it may take as much liberty with religious ceremonies and coronation oaths as with anything else.

Is there not a slight oversight in the following criticism, which Sir G. C. Lewis makes on the method of Niebuhr? At all events, our quotation of the passage from his work, with a solitary remark of our own upon it, will constitute as brief an exposition as any we can give of this branch of the subject. The question is, what can be gathered of the constitution of Rome

under her kings? There is clearly no contemporary history; but *if* a tradition, though of a quite mythical character, could be fairly pronounced to have originated in the regal period, that tradition might indirectly convey to us some knowledge of the regal constitution. Fragments have come down to us through the works of later classical writers, which may convey this sort of traditional knowledge. Let them by all means be rigidly examined, whatever their ultimate value may be found to be.

“One of the passages,” says Sir G. C. Lewis, “which Niebuhr cites from Cicero, relates to the constitutional proceedings upon the election of Numa. Yet Niebuhr holds, not merely that the entire regal period is unhistorical, but that Numa is an unreal and imaginary personage—a name and not a man. Now, what reliance, according to Niebuhr’s own view, is to be placed upon Cicero’s information respecting a man who never lived, and an event which never happened, even if it was derived from some pontifical book, which professed to record old customs?”

Continuing the discussion in a note, Sir G. C. Lewis adds:—

“For Niebuhr’s account of the legend of Numa, see *Hist.*, vol. i. pp. 237–240. Afterwards he says—‘Hence it seems quite evident that the pontiffs themselves distinguished the first two kings from the rest, as belonging to another order of things, and that they separated the accounts of them from those which were to pass for history.... Romulus was the god, the son of a god; Numa a man, but connected with superior beings. If the tradition about them, however, is in all its parts a *poetical fiction*, the fixing the pretended term of their reigns can only be explained by ascribing it rather to mere caprice or to numerical speculations.’—‘With Tullius Hostilius we reach the beginning of a new secle, and of a narrative resting on historical ground of a kind *totally different* from the story of the preceding period.’ Niebuhr considers the mythico-historical age of Roman History to begin with the reign of Tullius Hostilius, and the age of Romulus and Numa to be purely fabulous. Moreover, he commences the second volume of his History with the following sentence—‘It was one of the most important objects of the first volume to prove that the story of Rome under the kings was altogether *without historical foundation*.’ He lays it down likewise that the names of the kings, their number, and the duration and dates of their reigns, are fictitious; yet he cites the proceedings at the election of Numa, and of the subsequent kings, as historical proof of the constitutional practice of that period.”—Vol. i. p. 123.

Niebuhr does not hold that there was no regal period, however fictitious the history of the kings may be. It was to throw light on that regal period in which the myth of Numa is supposed *to have originated* that the passage must have been cited, not certainly on the times of Numa. Whatever, therefore, may be the infinitesimal value of the passage cited which relates to the constitutional proceedings upon the election of Numa, there was no logical inconsistency on the part of Niebuhr in making a reference to it. If the myth of Numa really originated in a regal period, what the pontiff declared about it might indirectly convey some information as to the constitution of that regal period.

Dr Liddell may well speak of the “altered aspect which Roman history has assumed.” We begin our annals with an account of the “religious myth,”

of which, however, the specimens are very few. Romulus is *Strength* and Numa is *Law*; they are godlike persons, or in communication with gods; they together found the city of Rome. Strength and Law assuredly founded the city: it is good philosophy, whatever history it makes; and the pontiffs were fully justified in placing these kings where they did—the first, and presiding, and eternal kings of every commonwealth. From the religious myth we proceed to the “heroic legend.” In this species of fable the veritable man and his real action is extolled—is exaggerated—is multiplied. The hero himself is multiplied, or he is transplanted from one region to another. The story is expanded and enriched by each successive narrative, until a literary age makes its appearance. It then assumes a fixed form, from which any wide deviation is no longer permissible.

In all such heroic legends, when they have been fairly born on the soil on which we find them, and have not been transplanted from a foreign country, there is always some element of historic truth. For what we call invention must start from, or be supplied with, given facts. There is a vague but very prevalent error on the nature and power of *poetical invention*. It is spoken of as something that will account at once for the marvellous narrative. This is supposed to spring forth complete from some poet’s brain. Poetical invention can only take place where there is already some amount and variety of known incidents or traditional stories; these the poet strings together in new combinations. The first writers in metre (as we may see in the earliest ballads of Spain and of other countries) content themselves with a bald narrative of some fact or tradition. Their successors add to this narrative—add a sentiment or a detail; and when the number of such narratives has increased, poetical invention, in its highest form, becomes possible. It has been lately a favourite hypothesis that the earliest literature of Rome consisted of a number of poems or ballads, which supplied the first historians with their materials. It appears to us highly probable that separate legends were shaped into something like completeness of form before any continuous history of the city of Rome was written; but whether such legends were written first in prose or verse is matter of very little moment, and of very great uncertainty.

After expressing the belief that there is a substratum of truth in these heroic legends, it is not very satisfactory to be compelled to add that we cannot distinguish it from the superstructure of fiction. Unfortunately, it is not the marvellous and supernatural—which, indeed, are but sparingly

introduced—which have alone contributed to deprive these legends of their credibility: they have been convicted, in some cases, of historic falsehood. A species of pious fraud has been committed to conceal the defeats of the Romans. Family pride has, in other instances, led to the undue exaltation of individual heroes. We must chiefly honour these legends, after all, as manifestations of the mind and spirit of the Romans, rather than as positive materials of history.

We always revert to this consolation—every literature must be the history of the *thoughts*, if not of the *deeds* of a people; and all our various records are chiefly valuable as they enable us to write the history of the human mind. How pre-eminently this is the case wherever the subject of religion is introduced! Omens, auguries, oracles—what matters whether in this or that case they were really seen or uttered? the great fact is, that they were currently believed in, and acted on. The *belief* here is all that we can possibly be concerned with. Whether Æneas really did see that white sow, with her litter of thirty pigs, which he took for so good an omen of prosperity (it was no bad sign of fertility), may be questioned; but even the invention of such an incident proves that men, and wise men, were supposed to be under the influence of such omens. That an eagle pounced down, and took from the head of Tarquin his cap, and, after wheeling in the air, *put it on again*, is what we do not believe; eagles, neither at Rome or elsewhere, have this habit of restitution. But the frequency of legends of this kind points to a time when men were in the constant expectation of finding their own future destiny prefigured to them in the actions of birds and beasts, or the operations of inanimate nature. What was the precise *degree* of influence which superstitions of this nature exercised on the course of human conduct, must still be problematical. Did any pious general, at the head of the legions at Rome, really determine whether he should give battle or not by the appetite with which the sacred chickens took their food? Did men ever colonise, or build a city, according to the flight of vultures or the perching of an eagle?

But superstition itself, and that in some of its most terrible forms, is animated and dignified by the spirit of Roman patriotism. Read this old story of the self-devotion of Decius, as Dr Liddell tells it to us. It will be an excellent example in which to take our stand, if we would estimate at their full value these old heroic legends. One of those decisive battles is to be fought which is to determine the supremacy of Rome in Italy.

“The Latin army marched hastily southward to protect their Oscan allies, and it was in the plains of Campania that the fate of Rome and Latium was to be decided. (The two consuls, Manlius and Decius, commanded in the Roman camp.)

“When the two armies met under Mount Vesuvius, they lay opposed to one another, neither party choosing to begin the fray. It was almost like a civil war: Romans and Latins spoke the same language; their armies had long fought side by side under common generals; their arms, discipline, and tactics were the same.

“While the armies were thus lying over against each other, the Latin horsemen, conscious of superiority, used every endeavour to provoke the Romans to single combats. The latter, however, were checked by the orders of their generals, till young Manlius, son of the consul, stung to the quick by the taunts of Geminus Metius, a Latin champion, accepted his challenge. The young Roman conquered, and returned to the camp to lay the spoils of the enemy at his father’s feet. But the spirit of Brutus was not dead; and the stern consul, unmindful of his own feelings and the pleading voices of the whole army, condemned his son to death for disobedience to orders. Discipline was thus maintained, but at a sore expense, and the men’s hearts were heavy at this unnatural act.

“In the night before the day on which the consuls resolved to fight, each of them was visited by an ominous dream, by which it was revealed that whichever army first lost its general should prevail; and they agreed that he whose division first gave ground should devote himself to the gods of the lower world.

“In the morning, when the auspices were taken, the liver of the victim offered on the part of Decius was defective, while that of Manlius was perfect. And the event confirmed the omen; for Manlius, who commanded on the right, held his ground, while the legions of Decius on the left gave way.

“Then Decius, mindful of his vow, sent for Valerius, the chief pontiff, to direct him how duly to devote himself. He put on his toga, the robe of peace, after the Sabine fashion, bringing the end or lappet under the right arm, and throwing it over his head; and then, standing on a javelin, he pronounced the solemn form of words prescribed, by which he devoted the army of the enemy along with himself to the gods of death and to the grave. Then, still shrouded in his toga, he leaped upon his horse, and dashing into the enemy’s ranks, was slain.

“Both armies were well aware of the meaning of the act. It depressed the spirits of the Latins as much as it raised those of the Romans. The skill of Manlius finished the work of superstitious awe.... The enemy fled in irretrievable confusion.”

One consul sacrifices his son to the cause of military discipline; the other consul sacrifices himself to the gods, to obtain the destruction of the enemy. We believe in a Decius, in some Decius, at some time, in some battle. Many of the details brought here together were probably added by different narrators. But it may be laid down, we think, as a sound canon of criticism, *that no act of moral greatness was ever invented till the like of it had been really performed*. Imagination of what the human heart is capable of cannot precede the genuine feelings, the genuine heroism of man. The several acts of Manlius and of Decius are Roman deeds, whether they occurred precisely here or not. Then note the traces we have in this legend of the rite of human sacrifice, and the terrible boon extorted by it. Indeed, the whole passage is fertile of suggestions which we will not weaken by attempting to enumerate.

Rome had scarcely obtained the ascendancy over her neighbours when her own destruction was threatened by the Gauls. Yet ultimately this invasion of the Celt, by weakening her enemies more than herself, was not unpropitious to the final predominance of Rome. “The Gauls,” writes Dr Liddell, “burst upon Latium and the adjoining lands with the suddenness of a thunderstorm; and as the storm, with all its fury and destructiveness, yet clears the loaded air, and restores a balance between the disturbed powers of nature, so it was with this Gallic hurricane. It swept over the face of Italy, crushing and destroying. The Etruscans were weakened by it; and if Rome herself was laid prostrate for a season, the Latins also suffered greatly, the Volscians were humbled, and the Æquians so shattered that they never recovered from the blow.”

It was a disastrous day for Rome. A large portion of her army, under her great general Camillus, was absent from the city. What forces she could muster were routed and dispersed. There were not enough men to defend the city; it was given up to the Gauls. The Capitol alone held out. Finally, the Romans were fain to ransom themselves, and to obtain peace, by the payment of one thousand pounds in weight of gold. The popular and legendary history tells us, that whilst this gold was being weighed out—and just as the insolent Gaul had thrown his sword into the scale, bidding them weigh that too, with his “Woe to the conquered!”—the great Camillus returned with his army, marched into the forum, ordered the gold to be returned, declared that it was with *iron* he meant to redeem the city, and forthwith drove out the Gauls, so completely destroying their host that not a man was left to carry home the news of their calamity.

“So ran the legend,” continues Dr Liddell, “embellished by the touch of Livy’s graceful pen. But, unfortunately for Roman pride, here also, as in the tale of Porsenna, traces of true history are preserved, which show how little the Roman annalists regarded truth. Strabo and Diodorus mention stories to the effect that the Gauls carried off the gold without let or hindrance from Camillus, but that they were attacked in Etruria, some said by the Romans themselves, others said by the friendly people of Cæré, and obliged to relinquish their precious booty. But Polybius has left clearer and more positive statements. That grave historian tells us, as if he knew no other story, that the departure of the Gauls was caused by the intelligence that the Venetians, an Illyrian tribe, had invaded their settlements in northern Italy; that, on receiving this intelligence, they proposed to make a treaty; that the treaty was made; that they actually received the gold, and marched off unmolested to their homes.”

Where did Polybius get *his* story? The legend may be false, but where were the materials from which Polybius could have obtained a more historical account? But before again alluding to this subject, we cannot but

pause to take notice that here also is a striking example of the value of the legend as a history of the mind and thoughts of a people, even where it fails us as a history of events. Consider what must have been the religious faith, what the ardent patriotism, that gave birth to this magnificent fable (if fable it is) of the conduct of the Senate, when the army of Rome had been utterly vanquished, and the Gaul, in insolent confidence of victory, was rejoicing and revelling at the gates. Here it is, in the version of Dr Liddell:—

“Meantime the Senate at Rome did what was possible to retrieve their fallen fortunes. With all the men of military age they withdrew into the Capitol, for they had not numbers enough to man the walls of the city. These were mainly Patricians. Many of the Plebeians had fallen in the battle; many had escaped to Veii. The old men of this order, with the women, fled for safety to the same city. The priests and vestal virgins, carrying with them the sacred images and utensils, found refuge at the friendly Etruscan city of Cære. *But the old Senators, who had been Consuls or Censors, and had won triumphs, and grown grey in their country’s service, feeling themselves to be now no longer a succour but a burthen, determined to sacrifice themselves for her; and M. Fabius, the Pontifex, recited the form of words by which they solemnly devoted themselves to the gods below, praying that on their heads only might fall the vengeance and the destruction.* Then as the Gauls approached, they ordered their ivory chairs to be set in the Comitium, before the temples of the gods, and there they took their seats, each man clad in his robes of state, to await the coming of the avenger.

“At length the Gallic host approached the city, and came to the Colline gate. It stood wide open before their astonished gaze, and they advanced slowly, not without suspicion, through deserted streets, unresisted and unchecked. When they reached the Forum, there, within its sacred precincts, they beheld those venerable men sitting like so many gods descended from heaven to protect their own. They gazed with silent awe; till at length a Gaul, hardier than his brethren, ventured to stroke the long beard of M. Papirius. The old hero raised his ivory staff and smote the offender, whereupon the barbarian in wrath slew him; and this first sword-stroke gave the signal for a general slaughter. Then the Romans in the Capitol believed that the gods had accepted the offering which those old men had made, and that the rest would be saved.”

Grander fable never was invented—never grew up out of grander feelings or wilder convictions. How little do we seem to know of the ancient religion of Rome! We listen too exclusively to the poets of the Augustan age. Elegant fictions and placid deities, from whom little was to be hoped or feared, did not constitute the religion of early times. There were terrible gods in those days—without whom, indeed, no religion has existed which has really influenced the conduct of mankind.

The next great event in the history of Rome which arrests our attention is the war with Pyrrhus. Here the Romans come in contact with a literary people. The attention of the Greeks is drawn towards them. Greek historians collect what accounts they can of these new barbarians, who are pronounced to be “not barbarians at least in war.” The first Roman historians wrote in the Greek language. We enter, it is said, into the historic period.

This is a fit place to quote some judicious remarks which Dr Liddell makes on the sources of early Roman history:—

“When the Gaul departed and left Rome in ashes, it was not only the buildings of the city that perished. We are expressly told that all the public records shared in the general destruction—the Fasti, or list of yearly magistrates with their triumphs, the *Annales Pontificum*, and the Linen Rolls (*libri lintei*), which were annual registers or chronicles of events kept by the pontiffs and augurs.

“This took place, we know, about the year 390 B.C.

“Now the first Roman annalists, Fabius Pictor, Cincius Alimentus, Cato the Censor, with the poets Nævius and Ennius, flourished about a century and a half after this date. Whence, then, it is natural to ask, did these writers and their successors find materials for the history of Rome before the burning of the city? What is the authority for the events and actions which are stated to have taken place before the year 390 B.C.?

“The answer to these questions may partly be found in our fifth chapter. The early history of Rome was preserved in old heroic lays or legends, which lived in the memories of men, and were transmitted by word of mouth from one generation to another. The early history of all nations is, as we have said, the same; and even if we had the Fasti and the Annals complete, we should still have to refer to those legendary tales for the substance and colour of the early history. The Fasti, indeed, if they were so utterly destroyed as Livy states, must have been preserved in memory with tolerable accuracy, for we have several lists of the early magistrates which only differ by a few omissions and transpositions. The Annals and Linen Rolls, if we had copies of them, would present little else than dry bones without flesh—mere names with a few naked incidents attached, much of the same character as the famous Anglo-Saxon Chronicle. For narrative we should still have been dependent upon the legends. We might know the exact time at which Coriolanus appeared at the head of the Volscian host, but the story would remain untouched....

“The false statements of the Patrician period are quite different in kind from the greater part of the legendary fictions of Greece or Regal Rome. There we discern no dishonesty of purpose, no intentional fraud; here, much of the baser coin is current. In the legends of Porsenna and Camillus the dishonour of Rome and the triumphs of the invaders are studiously kept out of sight, and glorious deeds are attributed to heroes who are proved to have no claim to such honour.”

If the legends of the Regal period are mythical, and if those of the Patrician period were falsified by bards and minstrels, who made it their vocation to flatter the family pride of the nobles, it is plain there is little of historic narrative relating to these early times which can be depended on. There is no essential difference in the account which Dr Liddell and Sir G. C. Lewis give of the materials of the early history of Rome; but the first of these writers has a far greater faith in that species of constructive or conjectural history, in which Niebuhr was so great an artist, than the second can at all admit. Sir G. C. Lewis contends with great force and clearness that historical evidence does not differ in kind from judicial evidence. They are both founded “on the testimony of credible witnesses.” Unless you can trace your narrative to some contemporary writer who had a fair opportunity of knowing the facts to which he testifies, you have nothing worthy of the name of history. Nor can any ingenuity of reasoning avail if

the materials on which you reason are constantly open to suspicion. In the time of the second Punic war there commences a series of Roman historians or annalists who recorded the events of their own age; their works are lost to us, but they furnished subsequent writers, whose histories remain, with *their* materials. If now, for the years preceding this epoch, you have nothing but a series of meagre official annals, kept by the chief pontiff, some ancient treaties, and a few laws which you can bring into court as historical evidence—if you have nothing but these “dry bones,” there is no help for it; you must be contented with the skeleton. By no means can you, in any legitimate manner, cover these bones. You have no narrative, both lifelike and trustworthy, that extends beyond the age of Pyrrhus. Here the Greek historian steps in. Moreover, the war with Pyrrhus was “not so long prior to the time of Fabius and Cincius (the earliest Roman annalists) as to render it improbable that they and other subsequent writers may have collected some trustworthy notices of it from native tradition and documents.” The speech, too, of Appius the Blind, delivered in the Senate on the occasion of the embassy of Cineas, the minister of Pyrrhus, was extant in the time of Cicero. But beyond this period of the war of Pyrrhus, historic narrative based on acceptable evidence there is none.

Sir G. C. Lewis states the matter, at the opening of his third chapter, in the following lucid manner:—

“In the previous chapter we have followed the stream of Roman contemporary history up to the war of Pyrrhus, but found that at that point the contemporary writers deserted us. There is no trace of any historical account of Roman affairs by a contemporary writer, native or foreign, before that time; nor can it be shown that any Roman literary work, either in verse or prose, was then in existence. But although there was no contemporary history, and no native literature at Rome before the war with Pyrrhus, yet we have a history of Rome for 472 years before that period, handed down to us by ancient classical writers as a credible narrative of events.”

But we must not be seduced further into following the discussions of Sir G. C. Lewis “on the credibility of the early Roman history.” We must not forget that it is Dr Liddell’s History we have at present before us. The wars of Pyrrhus are related by him in a very distinct and spirited manner, and the chivalrous character of the Greek prince—the *Cœur-de-Lion* of his age—stands out before us in very clear relief. The wars, too, of a greater than Pyrrhus—of the Carthaginian general, Hannibal—are told with more perspicuity than will be found, we think, in the pages of any of his predecessors. But for very manifest reasons we must pass over voluminous details of this description.

No portion of the work will be read with more interest and profit than those chapters which give an account of the civil constitution of Rome, such as it existed in the palmy days of the republic. We confess ourselves to be utterly incredulous of the ability of any writer to describe to us what the constitution of Rome was under her kings, or during the earlier periods of the commonwealth. So much the more pleasure do we derive from a view of that constitution when the clouds seem to break away, and it stands revealed to us in the light of history. When he has driven Hannibal out of Italy, conquered Sicily, and imposed those terms on Carthage which ended the second Punic war, Dr Liddell takes the occasion to review the constitution of Rome such as it displayed itself when the republic was in its full vigour. It was during the time of the Punic wars, he tells us, that this most remarkable and most complex system of government under which men ever lived, attained to some completeness of form. Our own British constitution is often cited as a marvel of complexity; incongruous powers and institutions come into collision at this and that point, till a harmonious action is at length produced; and the prerogative of the Crown is seen to be opposed by the privilege of Parliament, in such a manner as rather to represent a contest between rival institutions, than an understood co-operation of great functionaries of state. But the British constitution is a simple and consistent scheme when compared with the constitution of the Roman republic; with its wild right of the Tribune, which at once seems subversive of all law; with its annual elections, and that even of the general at the head of its armies, which seems at once subversive of all military discipline, and an insuperable obstacle to all military success; with its coequal legislative assemblies, which seems to strike at once at the unity of the laws, and to be a provision for the dissolution of the society.

That which explains the mystery, that which accounts for the long duration and signal success of so complicated a system, is to be found in the predominating power of the Senate. And if again we are asked how it happened that the Senate endured so long, and was not sooner dissolved or reduced to subjection by some military chief, we can only refer to the jealousy which the great men of Rome, patrician or plebeian, entertained of each other. Many a patrician would have been king, none would have endured to have a king over him. This determination to bow to no superior, except the law, except the State, is the feeling of every aristocracy which grows up within a city. It is otherwise with a territorial aristocracy. Here

some form of our feudal system invariably presents itself; the common safety requires it. But in a municipal aristocracy, like that of Rome or Venice, the prevailing spirit, the *conservative feeling*, is precisely this determination, that no one member of the body shall obtain predominance over the rest. Looking at the history of Rome and the magnitude of her conquests, we feel that it was inevitable that the Senate should succumb at length to some victorious Cæsar, and we feel that it was equally inevitable that it should deliver its last protest in the daggers of a Brutus and a Cassius.

An extract from this portion of Dr Liddell's work cannot fail to be acceptable to our readers. What precisely was the august Senate of Rome many of us may not distinctly remember, if indeed we have ever been so distinctly told as we are in the pages of this writer. We have no space to enter on the description of the two legislative assemblies, the "Tribe Assembly," and the "Centuriate Assembly," as they are here called, nor of the extraordinary power of the Tribune; we must limit our quotation to that part which rather bears on the ordinary and executive government of Rome.

"To obtain each of these high offices (as those of Quæstor, Ædile, Prætor, Consul, Censor), the Roman was obliged to seek the suffrages of his fellow-citizens. They were all open to the ambition of every one whose name had been entered by the Censors in the Register of Citizens, provided he had reached the required age. No office, except the Censorship, was held for a longer period than twelve months. No officer received any pay or salary for his services. To defray expenses, certain allowances were made from the treasury by order of the Senate. To discharge routine duties and to conduct their correspondence, each magistrate had a certain number of clerks (Scribæ), who formed what we should call the civil service, and who had before this assumed an important position in the State.

"But though the highest offices seemed thus absolutely open to every candidate, they were not so in practice. About the time of the first Punic war an alteration was made, which in effect confined the Curule officers to the wealthy families. The Ædiles were charged with the management of the public games, and for celebrating them with due splendour a liberal allowance had been made from the treasury. At the time just mentioned, this allowance was withdrawn. Yet the Curule Ædiles were still expected to maintain the honour of Rome by costly spectacles at the Great Roman Games, the Megalesian Festival, and others of less consequence. A great change was wrought by this law, which, under a popular aspect, limited the choice of the people to those who could buy their favour. None could become Ædile who had not the command of money, or at least of credit.

"That which strikes the mind as most remarkable in the executive government of Rome, is the short period for which each magistrate held his office, and the seeming danger of leaving appointments so important to the suffrages of the people at large; and this is still more striking when we remember that the same system was extended to the army itself, as well as to its generals. The Romans had no standing army. Every Roman citizen between the complete ages of seventeen and forty-five, and possessing property worth at least 4000 lb. of copper, was placed on the military roll. From this roll four legions, two for each Consul, were enlisted every year; and in cases of necessity additional legions were raised. But at the close of the year's campaign these legionary soldiers had a right to return home and be relieved by others. Nor were there any fixed officers. Each legion had six

tribunes and sixty centurions; but these were appointed, like the consuls and soldiers, fresh every year. The majority of the tribunes were now elected by the people at the Comitia of the tribes, and the remainder were nominated by the consuls of the year; the only limitation to such choice being, that those elected or nominated should have served in the legions at least five campaigns. The Centurions were then nominated by the Tribunes, subject to the approval of the Consuls. No doubt the Tribunes or Consuls, for their own sake, would nominate effective men; and therefore we should conclude, what we find to be the fact, that the Roman armies depended much on their Centurions, and on those Tribunes who were nominated by the Consuls."

Everything hitherto seems to be in a state of perpetual change and disorganisation. If a consul were pursuing his operations ever so successfully, he was liable to be superseded at the close of the year by his successor in the consulship; and this successor brought with him new soldiers and new officers. This inconvenience was so great that the constitutional usages were necessarily broken through: the same men were re-elected to the consulship notwithstanding the law that no one should hold the office a second time except after the lapse of a certain interval. Impolitic laws, and these frequently suspended, present us with a poor guarantee for the permanence of the republic.

"But though the chief officers, both in state and army, were continually changing at the popular will, there was a mighty power behind them, on which they were all dependent, which did not change. This was the SENATE.

"The importance of this body can hardly be overstated. All the acts of the Roman Republic ran in the name of the Senate and People, as if the Senate were half the State, though its number seems still to have been limited to three hundred members.

"The Senate of Rome was perhaps the most remarkable assembly that the world has ever seen. Its members held their seats for life. Once senators, always senators, unless they were degraded for some dishonourable cause. But the Senatorial peerage was not hereditary; no father could transmit the honour to his son. Each man must win it for himself.

"The manner in which seats in the Senate were obtained is tolerably well ascertained. Many persons will be surprised to learn that the members of this august body, all, or nearly all, owed their places to the votes of the people. In theory, indeed, the Censors still possessed the power really exercised by the kings and early Consuls, of choosing the Senators at their own will and pleasure. But official powers, however arbitrary, are always limited in practice—and the Censors followed rules established by ancient precedent. A notable example of the rule by which the list of the Senate was made occurs at a period when, if ever, there was wide room for the exercise of discretion. After the fatal days of Trasimene and Cannæ, it was found that, to complete the just number of Senators, no less than one hundred and seventy were wanting. Two years were yet to pass before new Censors would be in office; and to provide an extraordinary remedy for an extraordinary case, M. Fabius Buteo, an old Senator of high character, was named Dictator, for the sole purpose of recruiting the vacant ranks of his order. He thus discharged his duty: after reciting the names of all surviving Senators, he chose as new members, first, those who had held Curule offices since the last censorship, according to the order of their election; then those who had served as Ædiles, Tribunes, or Quæstors; then of those who had not held office, such as had decorated their houses with spoils taken from the enemy, or with crowns bestowed for saving the lives of fellow-citizens!

“The first qualification for a seat in the Senate then was that of office. It is probable that to the qualification of office there was added a second, property; a third limitation, that of age, followed from the rule that the Senate was recruited from the lists of official persons. No one could be a Senator till he was about thirty years of age.

“The power of the Senate was equal to its dignity. It absorbed into its ranks a large proportion of the practical ability of the community. It was a standing council, where all official functions were annual. And thus, it is but natural that it should engross the chief business of the State.”

This body of ex-consuls, ex-prætors, and the like (we need hardly say that the distinction between Patrician and Plebeian had been early erased) might well justify the figure of speech which the minister of Pyrrhus used when he called the Roman Senate an assembly of kings. “Many of its members had exercised sovereign power; many were preparing to exercise it.”

The Senate had the absolute control of foreign affairs, except that, in declaring war and concluding treaties of peace, the people were consulted. The conduct of the war, and all diplomatic negotiations, were in their hands. The Consul was the servant of the Senate; the sacred pontiffs took their orders from the Senate. And, what was of no less importance, “all the financial arrangements of the State were left to their discretion.” In times of difficulty, as is well known, they had the power of suspending all rules of law by the appointment of a dictator.

“They prolonged the command of a general or suspended him at pleasure. They estimated the sums necessary for the military chest; nor could a sesterce be paid to the general without their order. If a Consul proved refractory, they could transfer his power for a time to a dictator. All disputes in Italy or beyond seas were referred to their sovereign arbitrement.... They might also resolve themselves into a High Court of Justice for the trial of extraordinary offences.”

Nor was this great Executive Council without participation in, or control over, the function of the legislative assemblies; for, as a general rule, no law could be proposed which had not already received the sanction of the Senate. This body may be well described as having been for many years “the main-spring of the Roman constitution.”

Next to the wars with Hannibal follow those with Philip, and Antiochus, and Perseus, all of which Dr Liddell relates with singular perspicuity. It is sad to notice how soon after the report of victories and extended empire is heard the complaint of corrupted manners, of a Senate greedy of gold, of a people following the war for plunder, making of arms a trade and profession. It was at the end of the second Punic war that we were called upon to take a survey of republican institutions, and republican simplicity of manners—of a people rude and warlike indeed, but agricultural,

domestic, where divorce was unknown, faithful and pious,—and the third and last Punic war does not break out before we hear of the city being startled and alarmed at the report of wives poisoning their husbands, and at the discovery of secret associations of men and women where some new and licentious worship of Bacchus was introduced. The disease first manifests itself in the rude efforts to check it, and one of the earliest symptoms of corruption is the appearance on the stage of Cato the Censor.

Of Cato the Censor Dr Liddell gives us the outlines of a very vigorous portrait. “More familiar to us,” he says, “than almost any of the great men of Rome, we see him, with his keen grey eyes and red hair, his harsh features and spare athletic frame, strong by natural constitution and hardened by exercise, clad even at Rome in the coarsest rustic garb, attacking with plain but nervous eloquence the luxury and corruption of the nobles.” This type of a whole class of men, more honest than enlightened, stands out to us in still more distinct relief from his opposition to his great contemporary Scipio, the proud and the reflective, whom he chose to fasten upon as his antagonist. Cato had rushed to the conclusion that the wickedness of Rome was traceable to the arts and philosophy of Greece. He ought to have directed his scrutiny to the cupidity and ambition of Rome. It was wealth and power, not art and philosophy, that were corrupting his fellow-citizens. He should have done his utmost to check their spirit of pillage and of conquest. Instead of which, he joins in the war-cry of the people, and directs his hostility against Scipio, the introducer of Greek literature. Another motive also is assigned for this hostility, which is of a still more commonplace character: there were political parties in Rome as elsewhere, and Cato had attached himself to the party of Fabius, which was opposed to the Scipios.

Born at the provincial town of Tusculum, and inheriting some patrimony, lands and slaves, in the Sabine territory, near the spot once occupied by the great Curius Dentatus, the future Censor of Rome had early adopted a quite rustic mode of life. The young Cato, we are told, looked with reverence on the hearth at which Curius had been roasting his radishes when he rejected the Samnite gold, and resolved to make a model of that rude and simple patriot. He used to work with his slaves, wearing the same coarse dress, and partaking of the same fare. But conscious, nevertheless, of superior powers, and fond, we may be sure, of seeing justice done amongst his neighbours, he would resort occasionally to the nearer courts of law, to plead the cause

of some client. His shrewd sayings and caustic eloquence attracted the attention especially of one Valerius Flaccus, “a young nobleman of the neighbourhood, himself a determined friend of the ancient Roman manners.” Flaccus persuaded him to leave his farm, and enter public life at Rome. There he rose, step by step, through the several offices of state, till he reached the highest honour, that of the Censorship.

“Cato was now in full possession of the immense arbitrary powers wielded by the Censor, and determined not to act, as most Censors had acted, merely as the minister of the Senate, but to put down luxury with a strong hand. He had thundered against the repeal of the Oppian law,^[2] during his consulship, but in vain,—the ladies were too strong for him. But now it was his turn. Hitherto no property had been included in the Censor’s register, except land and houses. Cato ordered all valuable slaves to be rated at three times the amount of other property, and laid a heavy tax on the dress and equipages of the women, if they exceeded a certain sum. He struck seven Senators off the list, some for paltry causes. Manilius was degraded for kissing his wife in public; another for an unseasonable jest; but all honest men must have applauded when L. Flaminius was at length punished for his atrocious barbarity.^[3] It savoured of personal bitterness when, at the grand review of the knights, he deprived L. Scipio Asiaticus of his horse.

“In the management of public works Cato showed judgment equal to his vigour. He provided for the repair of the aqueducts and reservoirs, and took great pains to amend the drainage of the city. He encouraged a fair and open competition for the contracts of tax-collection, and so much offended the powerful companies of Publicani, that, after he had laid down his office, he was prosecuted, and compelled to pay a fine of 12,000 ases.”

That fine of 12,000 ases we are disposed to reckon amongst his highest titles to honour. Restricted in his notions, the Censor still claims our esteem for the genuine sturdy independence which accompanies him throughout his life, and in the presence alike of the Senate and the people. He is no craven demagogue. “You are like a parcel of sheep,” he tells the people on one occasion, “which follow their leader, they care not whither.” He interferes to prevent a gratuitous distribution of corn, which he foresaw would encourage the growth of a lazy mob in the metropolis; and on this occasion he begins his oration thus, “It is a hard thing, Romans, to speak to the belly, for it has no ears.” He was a hard-headed, self-sufficient man, not too humane, since he could recommend, in his book on agriculture, the selling off of old slaves as a useless lumber, and by no means disposed to act with clemency or justice towards foreign nations. In his old age, when he numbered eighty-four years, he led the party which clamoured for the destruction of Carthage. The old Sabine farmer appeared in the Senate, and unfolding his gown, produced some giant figs, which he held up and said, “These figs grow but three days’ sail from Rome.” He then repeated the oft-reiterated and fatal sentence, “Carthage must be destroyed!—*delenda est Carthago!*”

The morality between nation and nation always has been, and still is, execrable. Indeed, there can be no international morality until men have learned that the interest of one people is bound up with the interest of others; till, just as individuals learn that their welfare is inseparable from the welfare of some community of individuals, so nations shall learn that their own wellbeing and prosperity is inseparable from the wellbeing of some community of nations. The early policy of Rome in the treatment of the Italian cities which were compelled to acknowledge her supremacy, has often been praised; it could not have been very censurable, since at the period of Hannibal's greatest success there were so few defections. Probably the value of some large Italian confederacy had begun to be generally appreciated; and as there was little to pillage from each other, there was the less room for injustice. When the government extended beyond Italy, over rich and conquered provinces, the historian has no longer any commendation to bestow.

"It was a general rule that all Italian land was tax-free, and that all provincial land, except such as was specified in treaties or decrees of the Senate, was subject to tax. This rule was so absolute that the exemption of land from taxation was known by the technical name of *Jus Italicum*, or the Right of Italy.

"This last distinction implies that the imperial revenues were raised chiefly from the provinces. In the course of little more than thirty years from the close of the Hannibalic war, this was the case, not chiefly, but absolutely. The world was taxed for the benefit of Rome and her citizens....

"It was as if England were to defray the expenses of her own administration from the proceeds of a tax levied on her Indian empire. The evil was aggravated by the way in which the taxes were collected. This was done by contract. From time to time the taxes of each province were put up to public auction by the Prætor or Proconsul; and the company of contractors which outbade the rest received the contract and farmed the taxes of the province. The members of these companies were called *Publicani*. It is manifest that this system offered a premium on extortion.

"The Proconsuls and Prætors exercised an authority virtually despotic. They were Senators, and responsible to the Senate alone. It may too surely be anticipated what degree of severity a corporation like the Senate would exercise towards its own members in times when communication with the provinces was uncertain and difficult, when no one cared for the fate of foreigners, when there was no press to give tongue to public opinion, and indeed no force of public opinion at all. Very soon the Senatorial Proconsuls found it their interest to support the tax-gatherers in their extortions, on condition of sharing in the plunder. The provincial government of the republic became in practice an organised system of oppression, calculated to enrich fortunate Senators, and to provide them with the means of buying the suffrages of the people, or of discharging the debts incurred in buying them. The name of Proconsul became identified with tyranny and greed."

We would gladly accompany Dr Liddell farther down the stream of history, but the stream widens as we proceed. The events increase in magnitude, and the territory over which they extend expands before us; we

have not “ample room or verge enough” for such themes as the names of Sylla, Pompey, Cæsar, suggest.

One subject we cannot help glancing at. The battles and conquests of Rome led to the making of innumerable slaves; and nowhere is more plainly illustrated the great truth, that injustice works evil—that wrong, or the recklessness of other men’s wellbeing, will bring with it a penalty of some kind, on some head,—for her slave-system was the curse of Rome, and the chief cause of her ruin and downfall.

Unfortunately for any distinctness of view on this subject, the same name slavery is applied to very different institutions, to very different relations between man and man, to very different rights and conduct of him who calls himself master or owner. All systems of slave-labour are no more alike than all systems of monarchy. In some cases the institution we call slavery is the only possible system that could have been adopted. But amongst the Romans slavery exhibited itself in its harshest features; here, it in part superseded and thrust aside the labour of the free peasant: in Italy it drove the native agriculturist from the soil, and converted cornfields which had been cultivated by hardy yeomen, into wild pastures, where the cattle were watched by slaves. In the city, it retarded or prevented the growth of a free industrious middle class; even what we call liberal professions suffered a certain social degradation from being thrown into the hands of slaves or freedmen. The Romans were always a harsh people, and a system which put unlimited power of life and limb into their hands, and supplied the circus with gladiatorial combats, was not likely to improve their humanity.

They were always a harsh and severe people; it is suspected that some unrecorded conquest and subjugation was the origin of the distinction between patrician and client, and that the history of the city ought really to commence with the invasion and domination of a conquering *caste* or race. Be that as it may, one of the first laws we hear of is of so severe and cruel a character—a law of debtor and creditor of so atrocious a description—that it is almost as incredible as any of the wildest legends of that early time. We can scarcely believe that a people who had advanced to the making any laws at all, could have made one in which it was provided that “the creditor might arrest the person of his debtor, load him with chains, and feed him on bread and water for thirty days, and then, if the money still remained unpaid, he might put him to death, or sell him as a slave to the highest

bidder; or, if there were several creditors, they might hew his body in pieces and divide it”—with a saving clause that, “if a man cut more or less than his due, he should incur no penalty.”—Vol. i. p. 100. Possibly this last provision was a mere threat, and to be sold as a beast of burden was the heaviest penalty that a patrician creditor ever inflicted on his debtor. It is plain, however, that when a multitude of slaves fell into the hands of the Romans, they fell into the hands of men who were not disposed to use their power leniently. They were men of blunt sensibilities. One who visited a Roman senator in the time of the Scipios might have had his ears assailed by the sharp cry of pain from a beaten slave, and certainly the first object that would have greeted his vision would have been a slave chained like a dog to the door—the “hall-porter” of those days. In subsequent times the more refined Roman could not have endured such sounds and sights in his own presence or neighbourhood; but what went on in the “*ergastula*” upon his estate, he probably never cared to inquire.

Our readers will perhaps prefer here a brief extract from Dr Liddell to any general statements of our own. He says:—

“A few examples will show the prodigious number of slaves that must have been thrown into the market in the career of conquest on which the republic entered after the Hannibalic war. To punish the Bruttians for the fidelity with which they adhered to the cause of the great Carthaginian, the whole nation were made slaves; no less than 150,000 Epirotes were sold by Æmilius Paulus; 50,000 were sent home by Scipio from Carthage. These numbers are accidentally preserved; and if, according to this scale, we calculate the hosts of unhappy men sold in slavery during the Syrian, Macedonian, Illyrian, Grecian, and Spanish wars, we shall be prepared to hear that slaves fit only for unskilled labour were plentiful and cheap.

“It is evident that hosts of slaves lately free men, and many of them soldiers, must become dangerous to the owners. Nor was their treatment such as to conciliate. They were turned out upon the hills, made responsible for the safety of the cattle put under their charge, and compelled to provide themselves with the common necessities of life. A body of these wretched men asked their master for clothing: ‘What!’ he asked, ‘are there no travellers with clothes on?’ The atrocious hint was soon taken: the shepherd-slaves of lower Italy became banditti, and to travel through Apulia without an armed retinue was a perilous adventure. From assailing travellers the marauders began to plunder the smaller country-houses; and all but the rich were obliged to desert the country, and flock into the towns. When they were not employed upon the hills, they were shut up in large prison-like buildings (*ergastula*), where they talked over their wrongs, and formed schemes of vengeance.”

No wonder we hear of Sicilian slave-wars. Nor can we wonder, after this, at the statement sometimes made, that Roman civilisation never extended beyond the cities—that the *country* of such provinces of Gaul and Spain was still barbarian—that there was no civilisation or humanity *here* for Goth or German to destroy. We cannot wonder, at all events, that there was no patriotism to withstand their invasion. Their invasion was a restoration

of the *country*, if it was a temporary destruction of the *town*. And even in the large towns, while the system of slavery endured, the industrial arts, and even studious and liberal professions, never received their due honour and due encouragement. Wealth and military and civil appointments were the only valid or generally recognised claims to social distinction.

We must take our leave of Dr Liddell's book, again commending it to the student. In a passage we quoted from the preface, the author says that if less of positive history is laid before the reader than in some older books, "he will, at all events, find less that he will have to unlearn." We venture to think that there is still a good deal set down here as history which the student will have to unlearn. But we make no objection to the work on this account; for every student must be solicitous to know what is the last hypothesis of eminently learned men. There has been an overflow, in our own times, of conjectural history. As it chiefly concerned the dry details of civil government, and the development of constitutional laws, the free employment of a conjectural method was disguised: this flood, we may venture confidently to say, is now receding.

Additions of this kind, made by one able man, will be destroyed by another; but it does not follow on this account that there has not been a real progress made in the study of Roman history. This progress chiefly consists in the discrimination made in the comparative value of the materials which have come down to us. "In the first two centuries after the invention of printing," says Sir G. C. Lewis, "the entire history of Rome was in general treated as entitled to implicit belief; all ancient authors were put upon the same footing, and regarded as equally credible; all parts of an author's work were, moreover, supposed to rest upon the same basis. Not only was Livy's authority as high as that of Thucydides or Tacitus, but his account of the kings was considered as credible as that of the wars with Hannibal, Philip, Antiochus, or Perseus; and again, the lives of Romulus, Numa, or Coriolanus by Plutarch, were deemed as veracious as those of Fabius Maximus, Sylla, or Cicero. Machiavel, in his *Discourses on the First Decade of Livy*, takes this view of the early history. The seven kings of Rome are to him not less real than the twelve Cæsars; and the examples which he derives from the early period of the Republic are not less certain and authentic than if they had been selected from the civil wars of Marius and Sylla, or of Cæsar and Pompey." An instance so striking as this of Machiavel ought to give us a double lesson, one of modesty and one of

confidence;—of modesty, because we too may be involved in some general and prevailing error; of confidence, because where the reason of the case is clear, no name or authority, however great, ought to influence our convictions.

MONTEIL.^[4]

To struggle for literary fame—to devote forty years to the composition of an imperishable work—to toil amid pain and sickness, and the growing infirmities of age—never to be appreciated during all the period of that laborious existence except by the chosen few—and finally to die in poverty, perhaps in want—and then, when you have long been buried, and your name is nearly forgotten, your work to get slowly but surely into circulation, and to be pronounced a master-piece—this is the fate of few; but it was the fate of Amans Alexis Monteil, author of the *History of the French of Various Conditions*—a book of amazing research, great skill in composition, picturesque, humorous, and characteristic, and now received as the sovereign authority upon all the subjects on which it treats. The author was worthy of the work. Its object is to give a clear description of the French people, as they presented themselves to their contemporaries during the five last centuries. Old cartularies are ransacked, baptismal registers consulted, manners and habits inquired into; the private life of the tradesman, of the merchant, of the labourer, earnestly investigated, and brought before us with the distinctness of a picture. And Alexis himself—he was more undecipherable than a charter of the time of Clovis, more dusty, begrimed, and antiquated than the records of a Benedictine monastery: nobody knew him; he breakfasted, dined (when he dined at all), and supped alone. Yet that man of parchment had a heart, loved passionately, mourned deeply, hoped ardently, and had such wit, such observation, such combination! Half of his qualities remind us of Dominie Sampson, and the other half of Sydney Smith. Let us dip into the contents of his volumes and the history of his life; and first of the man.

Poor old Alexis, amid the desolation of his later years, fled for consolation to the past. He revived the scenes of his youth, flew back to his

native town, and gave daguerreotypes, in an autobiography which he never finished, of his father, his mother, his brothers, the people he had known, and the very stones he remembered in the walls. These reminiscences are very minute. Of course they are, for it was the habit of the man's mind to record the smallest particulars. He preferred them indeed to great ones. He would rather know the number of buttons on a general's coat than the battles he had won. So his father is brought before us in his habit as he lived. This worthy man had had losses, like Dogberry, and, like that great functionary, had also held authority in his native town. The town was a very small town, and the authority not great; but it was enough: it gave rank; it gave dignity; and the son records it as evidence that he came of gentle kin.

It was in the small city of Rhodéz, partly situated in Auvergne and partly in Rouergue, that Monsieur Jean Monteil, before the French Revolution, held the office of receiver of fines and forfeits. This does not seem a lofty post, but the worthy holder managed, by a little ingenuity, and a lawsuit which lasted six years, to get it recognised as one of the offices of the crown, inasmuch as the fines were those levied by a royal court; and he was therefore as much a king's servant as the procureur himself. On the strength of this connection with the administration, of justice, Monsieur Monteil wore a hat with a gold band, a gown also with a similar ornament; and on Sundays and fête days he had a right to march to the church, looking the embodiment of a beadle, and of sitting on a raised place near the altar, and being "incensed" by the officiating priests. His son dwells with filial pride on the noble figure his progenitor presented to the eyes of his fellow-townsmen, as he walked along the street with his gold-headed cane, and lifted his three-cornered hat in answer to the salutations of all who saw him. How long this went on we are not told; but one day the alarm-bell frightened the town of Rhodéz from its propriety. The Revolution had found its way to the deepest recesses of Auvergne, and the Reign of Terror began. The guillotine showed its hideous shape in the main street; war was declared against aristocrats; and who could be more clearly proved to belong to that doomed body than the portly gentleman with the gold-laced hat and the gold-handled ivory staff? John Monteil and the Dukes of Montmorency were equally worthy of death. There was no place left for De Grammonts or Monteils, and the servant of the king was no more saluted with respectful bows as he paraded his official costume on the first sound of the bell which called the faithful to church, and was no longer received with

humble obeisances by the priests before the service began. In a short time there were no bells to ring; they were melted down to make sou-pieces by order of the Convention. Then there were no priests; they were all executed or banished, or had enlisted in the armies of the Republic: and finally there was no church; it was turned into a prison for the refractory; and John Monteil laid aside his gilded toga, and his cocked-hat, and his cane, and hid himself as well as he was able in the dark parlour of his house. There he gave himself up to despair. And no wonder; the blow had fallen so unexpectedly, and death was on every side. He only waited till his turn should come; and at last it came. In the days of his grandeur he had taken into his service two of the boys of Rhodéz—one Jerome Delpech, who seems to have had no family tree at all, and Jules Bauleze, the son of a poor sempstress. They had acted as his clerks, and were grateful to their old employer. They were now engaged in the public offices, and saw the whole tragedy as it went on. From time to time they slipt into the darkened parlour, and said, “Be on your guard”—“Fly”—“Save yourself.” But John Monteil did not know whither to fly. All France was nothing but a scaffold, so he staid at home.

The two clerks came near him no more. They were suspected. Jerome Delpech died of the jail fever, waited on in his illness by his old master; and Jules Bauleze, the son of the sempstress, he was accused of being an aristocrat: the fact could not be denied, and he was executed in front of the town-hall. Then the Committee of Public Safety began to tremble for the liberty and equality of the nation if such a very exalted personage as Monsieur Monteil were suffered to live. So the *ci-devant* beadle is dragged to prison—to the very church, the scene of his weekly glories—where he sat on the front bench, and white-robed choristers swung censers under his nose till he was nearly suffocated with perfume (and smoke); and here, at the eastern end of the melancholy ruin (for the windows were taken out, and the ornamental work all carried away) he saw the sempstress Bauleze kneeling in an agony of silent grief at the remains of the broken altar. She had been thrown into confinement as the mother of an aristocrat, and would probably on the following day be his companion on the scaffold. But before the following day, Robespierre’s reign was over, and the two representatives of the aristocracy of Rhodéz were saved. What now is Monsieur Jean Monteil to do? He is nothing if not magisterial. Rob him of his robes, and what is he? A poor man indeed, more sinned against than sinning, reduced

to leave the splendours of his native city, and, like Diocletian, plant cabbages in retirement. He occupied a cottage, and cultivated a few fields. But there was still left to him, companion and soother of his griefs, the gentle Marie Mazet, whom he had married when they were both in the sunshine of prosperity—both distinguished for birth and station; for she was the daughter of a mercer who sold the finest cloths in the town, and claimed some sort of unknown kindred with the Bandinellis of Italy and the Maffettes of France. But this lofty genealogy was due to the antiquarian zeal of her husband. She herself only knew that Italy was a long way off, and that the Bandinellis and the Maffettes were probably no better than they should be. So she did not keep her head an inch higher on account of her noble origin, but was the most sedate, quiet, economical, pains-taking manager of a household that Rhodéz had ever seen. She sang, but only at church, or over the cradles of her children; she walked, but only to mass or vespers; she lived, as was the custom of good housewives then, in the kitchen, presided at table, helping the young ones, cleaning up the dishes, ironing the clothes, arranging, settling, ordering all—a charming picture of a good mother of a family; and no wonder her son dwells with affecting tenderness over the details of his early home. And the vintage! The labours of the whole house were suspended on that blessed occasion. The dry and dusty streets were left behind; old and young took their way rejoicing to the vineyard which Monsieur Monteil possessed a few miles from the town; and even Madame Monteil forgot her cares—forgot her economics, and renewed her youth in the midst of the universal joy. A harvest-home is a delightful sound in English or Scottish ears; it recalls the merry dance, the rustic feast, the games in the barn, the ballad, the smoking bowl,—but what are all these to the vintage? The harvest itself consists in wine. The children of the south kindle with enthusiasm at the very sound of the word; and Bacchus and the ancient gods seem once more to revisit the earth in a visible shape. All Rouergue was in a ferment of enjoyment the moment the grapes were ripe; but even then the mother of the future historian had hours of serious reflection. With her hand clasped in the hand of her silent thoughtful little boy, she looked often, long, and in silence, out of the window of the summer-house, her eyes lifted to the sky, her mouth mantling with a smile, sunk in an ecstasy of holy contemplation, such as we see in Ary Scheffer's noble picture of St Augustin and his Mother. "What are you thinking of, dear wife?" said Monsieur Jean Monteil. "On eternity," she

replied in a soft voice, and gave her little boy's hand a warmer clasp. It must be from the maternal side Alexis derived his quiet strength, and the exquisite feeling of romance which enables him to realise the states of society, the sentiments and family connections so long past away. A mother like this would have been a fatal loss at any time; but happening when it did, the blow was irrecoverable. So good a manager might have restored the family fortunes; so loved a parent might have kept the sons united and respectable; "but she fell into the dust," says Alexis, seventy years after her death, "and our household was ruined for ever." These are strange revelations of the interior economy of an obscure family, in one of the most obscure of the provinces of France, before and during the Revolution: and the curtain rises and falls upon all the sons; for Alexis survived his brothers, and traces them with a light and graceful hand from the cradle to the grave. The eldest was old enough to know the distinction of his position as heir of the family name, when the Revolution broke out, and buried Jean Baptiste Jacques under the ruins of the feudal system. He had studied for the law—he had, in fact, had the honour of being called to the bar, and, by his great eloquence and knowledge, of getting his client—the only one he had—condemned to the galleys for life. But he, like his father, was forced to put off the gown, and, unlike his father, who stayed to brave the tempest at home, he fled. Meanly, ignominiously he fled, and hid himself amid the retired valleys of the Gevaudan, where he thought nobody would find him out, and where he might boast of his loyalty and sufferings without danger. But his boastings brought dangers from which greatness could not be exempt. A certain loyalist of the name of Charrie—a peasant who thought that a few of his fellow-labourers could restore the *fleur-de-lis* on the points of their pitchforks and other agricultural implements with which they armed themselves—heard of the exiled magnate who made the echoes of the Gevaudan vocal with his lamentations and cries for vengeance, and came to the gownless advocate and made him colonel of the ragged regiment on the spot! Here was a choice of evils. If he refused the colonelcy, he would in a few minutes be cut into many hundred pieces by the scythes of the furious Legitimists; if he accepted, he was certain in a few weeks to be guillotined for rebellion against the Republic. But as weeks are better than minutes, he accepted the honourable rank, and Colonel Jean Baptiste showed himself at the head of his troops, and armed himself with a reaping-hook, which looked like a Turkish scimitar with the bend the wrong way. He armed

himself also with a white cockade, which had the remarkable property of presenting the tricolor when turned inside out; and, prepared for either fortune, retained, as it were, on both sides, the colonel-advocate considered himself secure whatever might happen. But Charrie was not so blind as was thought. The trick was found out, and the colonel fled: he ran, he climbed, he struggled over walls, he staggered across gardens,—the scythemen, the pitchforkmen, the reaping-hookmen, the flailmen after him; and by dint of quick running, and artful turnings, and scientific doubles he might have been safe; but a dreadful outcry in an outhouse, the infuriate babblings of turkey-cocks, the hissing of geese, the quacking of ducks, betrayed him. He had concealed himself in a hen-roost, and the denizens of the poultry-yard had regarded neither the tricolor nor the white cockade. In spite of his duplicity and cowardice, he got off. Happier than Charrie, who paid for his brief authority with his head, the eldest hope of the Monteils lived in peaceful obscurity, cultivating potatoes, both red and white, and brewing the best wine of the district, till having planted and brewed all through the first wars of the Empire, he died at sixty, forgetful alike of his legal studies and military adventures, and only doubtful as to the superiority of the long kidney or the pink-eyed rounds.

The next was a wit—a *roué* to the extent of a few rows on the street, and a poet to the extent of a few lampoons on the respectable dignitaries of Rhodéz. He tore off the knockers of the street-doors, changed the sign-boards of different tradesmen, and went through the usual stages of a fast young gent's career. He proceeded to Paris, determining to be chancellor; he moderated his desires in a few years, and would have been satisfied to be a peer of France; he sank lower still, and would have accepted anything he could get, but he could get nothing, so he became a land-measurer of the humblest kind, retained his gaiety to the last, sang his own little songs and repeated his own little epigrams, and died of corpulence and laziness at the age of eighty-two, as happy, perhaps, as if his dreams of ambition had been fulfilled. The third and last brother was the black sheep of the flock. He enlisted in the hopeful time for any one who had courage and a sword, in 1793, and might have been a Soult, or a Ney, or a Murat. Instead of that, he was an idle, dissipated dog, who sank from vice to vice, till, having some musical talent and great strength of wrist, which obtained him the situation of drummer in the regiment, he behaved so ill that some brother of the trade was employed to drum him out of the army, and he returned to his home,

living at his impoverished father's expense—getting a dinner where he could—drinking when he could obtain wine—gambling when he could borrow a button to toss with—useless, shameless, heartless; and when the old man died, and the cottage passed to strangers, and his contemporaries had perished, and the new generation knew him no more, he found his way to Paris, wandered through the streets in search of an hospital, was so thin and worn and broken down that he was admitted without certificate, and lay down on a crib in the charitable ward and died: and this the result of the education and the example given by Monsieur Jean Monteil of Rhodéz, and the gentle Marie Mazet! Was it for this they were so strict in honour, so pure in heart, so tender in affection, only to produce a coward, an idler, and a beggar? The fate of families well and carefully brought up, circled round “by father's blessing, mother's prayer,” during all their youth, and giving way at once to the excesses of vice, and sinking into the abysses of shame, is one of the most curious of our everyday experiences. Are we to blame the parents? They have done the best they could; but Tom gets a commission, and is cashiered; Billy gets into a bank, and forges a draft; Harry goes to the bar, and drinks himself to death at the cider-cellar; and the proud and chivalrous old father, the soft and affectionate mother, after mourning for a few years in the small lodging to which the extravagance of their family has reduced them, die of broken hearts. But in the case of the Monteils there was one redeeming point: one son was all they could wish in the way of affection, of uprightness, of quietness, and devotion to his books. There was Amans Alexis studying from morn to night—very shy—very awkward—very queer—caring nothing for society—knowing little of anything that had occurred since the battle of Pavia—insatiate in his hunger after old scraps of manuscript—starting off, stick in hand, bread in pocket, if he heard that in some miserable valley among the hills there had been a demolition going on of a monastery, or rotten old chest discovered among the rat-holes of some tatterdemalion town-hall. The odd-looking youth, tired and travel-stained, saw at a glance if the muniment-chest was old and useless enough to be of any value; he opened the moth-eaten lid, and saw a file of moth-eaten papers. In a moment he ran over the hieroglyphics they contained. The language they were written in, though Latin in name, would have puzzled Cicero and the College of Augurs to interpret a syllable. Alexis read them off like round-hand, and bought them—sixpence—ninepence—a franc—and the treasure was his. He turned his heels on the monastery or the

town-hall, and pursued his way to Paris. He goes to the Depository of the Archives of France. "Do you want an original charter granted by Louis le Hutin to the Abbey of St Bernard de Romans in Dauphiny?" "Certainly. It is worth its weight in gold;" and it is now a valued article in the Bibliothèque Impériale.

But old charters are not to be found every day, even if monasteries—which is greatly to be wished—were every day demolished; and yet the daily bread is to be procured. Buonaparte is in the first dash of youthful power. Nothing escapes him; no amount of bushels can hide any candles which can light his way to empire. The laborious student, the groper among old documents, the retiring antiquary is discovered, and is installed Professor of History at the Military School. No man in France knew more of history than Amans Alexis Monteil; but it was the history of the citizen, not of the soldier. He knew what was the position of the grocer, of the shoe-black, of the petty tradesman, since grocers and shoe-blacks and petty tradesmen were created. He dwelt on the family circle gathered round the cottage-fire in the year 1450. He could tell of every article of furniture in the castle of the noble, and also all the circumstances of the carpenters who made them. He knew the habits of the scholars of Amboise or of Paris in the days of Joan of Arc; but the wars of Frederick of Prussia, the wars of Charles the Twelfth of Sweden! he hated wars; he was the biographer of the people, and did not concern himself much about the great ones of the earth. So his pupils were rather inattentive; they did not care much for the simple annals of workmen and labourers who had been dead four hundred years; and, besides, they were listening for the guns which were thundering all over the world. How could they hear a dissertation on the quarrels of the Benedictines and the Cordeliers, when they were in momentary expectation of a bulletin from the Army of Italy? How could they listen to a description of the agricultural labourers of Provence on the day after the news of Marengo? They went off and were killed, or rose to be generals, governors, marshals. And Alexis plodded on. He gathered materials in all directions for the great work that was never absent from his thoughts—pondered—inquired—compared, and finally completed the most marvellous reproduction of the past which any country possesses. It is, in fact, a minute detail of the humble ranks in France, the inhabitants of obscure towns and farms and hamlets. What Monfaucon is to the nobility, with his fourteen folio volumes of emblazoned arms, and vivid representation of the life in

hall and palace, the glitter of the tilt-yard, the mustering of knights and squires for battle, the gentle Alexis is for the peasant, for the roturier, the bourgeois, and the serf. He erects his tent in the market, in front of the monastery, at the great gate of the chateau, or in the fair, where he is surrounded by mountebanks and ballad-singers and jugglers, and writes down exactly what he sees. He sees a leper sitting at the gate, veiled and guarded. He meets a funeral—he meets a wedding; he accompanies the corpse to the church, and the bride to her chamber. He omits nothing; and he supports every statement by the most amazing array of documents. There are writings and inscriptions, and medals of brass, and carved pieces of stone, and fragments of chests of drawers, all giving confirmation strong to whatever fact he states. And this minute supervision he extends over four centuries. The tradesman is followed from the time of the domination of the English to the time of the domination of Louis the Fourteenth. The noble is seen, over all that lapse of time, governing, quarrelling, trampling, oppressing; and you soon see that the Revolution of 1789 was a great revenge for centuries of wrong; that the guillotine of 1793 was built out of timber planted by feudal barons, when Francis the First was king; and you wonder no longer at the inhuman ferocity of a peasantry and a middle class, equally despised and equally hated by the spurred and feathered oligarchy who ground them to the dust, and insulted them in their dearest relations. Happily for us, feudalism died a natural death, or was put an end to like a gentleman in fair fight at Naseby and elsewhere, or scientifically bled into its grave by acts of Parliament, or John Bull would have torn it in pieces like a tiger; for the *History of the French of Various Conditions* would apply equally well during the first century of the record (the fourteenth) to our English trades. But in the sixteenth the divergence is complete. Nobles in England are tyrants no more, nor the lower classes slaves. When Leicester was entertaining Elizabeth at Kenilworth, an Englishman's house was his castle. When Sully was raising adherents for Henry the Fourth, the French peasant had no property and no rights. Leicester would have been tried for robbery if he had taken forcible possession of John Smith's ox or cow. Sully would have passed scot-free if he had burned Jacques Bonhomme's cottage about his ears, and tossed that starveling individual into the flames on the point of his lance. There is such an impression of truth and reality about these revelations of Monteil, that we never have a doubt on the smallest incident of his details. If for a moment we pause in our perusal, and say,

“Can this possibly be correct? Can such things be?” What is the use of farther hesitation? You turn to the note at the end of the volume. You find voucher after voucher, from all manner of people—priests, lawyers, and judges. You might as well doubt your own marriage, with the certificate of that stupendous fact before your eyes, signed by parson and clerk, two bridesmaids, and the Best Man. It is better to read on with unhesitating belief. You will only get into a cloud of witnesses which will throw you positively into the dark ages, as if you had been a spectator of the scene. And the author all this time—is he a mere machine—a mill for the grinding of old facts into new and contemporary pieces of knowledge, as an old bronze statue may be coined into current money? Alexis is married; Alexis has a child—such a wife and such a child no man was ever blessed with before. His father, our deceased acquaintance, the former aristocrat of Rhodéz, Monsieur Jean Monteil, married his student son, shortly after the tempest burst out upon the throne and nobility of France, to a charming creature, young, innocent, and an heiress, daughter of a gentleman who, long before this, had retired to enjoy his fortune with dignity—a Monsieur Rivié, a little man, but strong—strong as a blacksmith. And this was lucky, for he was a blacksmith by trade. Not a common blacksmith, be it understood, but so clever, so sharp, so knowing, and withal such a dreadfully hard hitter, that he was a very uncommon blacksmith indeed. Little Rivié was the name he was known by all over the part of the country where his anvil rung. But little Rivié rose to be great Rivié before long. He shod horses for great men; he shod a war-horse for the Prince of Conti; he shod a charger for Marshal Saxe; he shod a lame horse so skilfully for a certain colonel that the colonel got him the contract for supplying the regiment with its remounts. He bought lame horses, of course, cured them, and sent them capering and caracolling to the barracks. It was the best-horsed regiment at Dettingen, and ran away at the first fire. So the smith grew rich, and married, and retired, as was said above, to show his well-earned wealth and his delightful family to his admiring townsfolk. As he rattled through the street, he became so inflated with pride and happiness that the axle of his carriage broke, and he was forced to alight. Luckily the accident happened just opposite a smithy. The mulciber was an old fellow-apprentice, but could not recognise his ancient comrade in the person of the great seignor who had crushed his axle-tree by the mere weight of his importance. He also could not mend the fracture. In a moment the noble

stranger pulled off his embroidered coat, tucked up his fine-linen sleeves, seized the sledge, and, O heavens! wasn't there a din?—a hail of blows?—a storm of sparkles?—a rat-a-tat on the end, on the side, on the middle, and still the twelve-pound hammer went on. "By St Eloi!" said the owner of the instrument, "you are either the d—l himself or little Rivié." And little Rivié it was. And little Rivié he continued to the end, for all his grandeur disappeared. That dreadful Revolution meets us at every turn. It broke the axle-tree of Monsieur Rivié's carriage, beyond the power of Vulcan himself to mend—it took off his embroidered coat, which nobody could ever restore—it tucked up his fine-linen shirt-sleeves, and nothing could ever bring them down again. In the days of his prosperity he had given his eldest daughter (and a dowry) to the Marquis de Lusignan—a nobleman who advanced claims to the island of Cyprus and the kingdom of Jerusalem, but was delighted to accept a few thousand francs as "tocher" with the daughter of a contractor. He borrowed a few thousands more on the income of the baronial estates of the Lusignans, besides a collateral security on the revenues of the Holy City when it was restored to its legitimate king. This mortgage was settled as the marriage fortune of the younger daughter, the sweet and excellent Annette. But the barony of Lusignan followed the example of Cyprus and Jerusalem, and vanished into thin air at a twist of the necromantic wand of Danton and Robespierre. Little Rivié was too old to resume the hammer. He retired, with his sons and daughters, to a small farm in the neighbourhood of Rhodéz; and the ex-beadle and the ex-blacksmith arranged a marriage between the historian of the trades and the sister of the Queen of Cyprus. Her majesty had died, and her royal lord was flourishing a pair of scissors, and occasionally a razor, in the Burlington Arcade. Did the gentle Annette repine at her change of fortune? Did she mourn over the days of her father's grandeur, and despise the queer, learned, modest, loving being she had enriched with her first affection? Ah! never for an hour. They sometimes had a dinner, sometimes not; but always mutual trust, always perfect love. Occasionally, when fortune smiled more than usual, Alexis would address a letter to her as "Her Royal Highness the Princess of Lusignan, in her patrimonial Realm of Cyprus;" but this was only when a manuscript had put them in funds. At other times they were sad enough. With the amount of their united fortunes they had bought a small cottage and garden near Fontainebleau. Here he resided, walking every day six miles to his class and six miles back. Annette regularly met him, on his

return, a mile or two from home, and arm-in-arm they re-entered their own domain. But the class disappeared, the chair of history was suppressed, and the house was offered for sale. A purchaser appeared, and Alexis, in the interest of some future antiquarian of two thousand three hundred and nine, preserved the "Agreement to buy." It was between "Dame Monteil and his majesty Napoleon the Great, Emperor of the French, King of Italy, and Protector of the Confederation of the Rhine." It is a pity that the sum agreed on was not so magnificent as the titles of the buyer. It was only two hundred pounds—"a small price," says Alexis, with a sigh, "out of the contributions of all Europe." They now removed into a garret in a suburb of Paris, and day by day the husband put on his hat and traversed the great dark streets in search of something to do, but got no comfort from the interminable lines of narrow-windowed houses; for not a door was opened, not an offer was made, and, weary and disheartened, he found his way back to his attic, to the suffering smile of Annette, and the playful caresses of his boy. His Alexis was now two years old, and with these two the heart of the simple student was completely filled. There never had been such a child before, except among the cherubs of Murillo. He would make him such a scholar! such a Christian! such a man!—but in the mean time their two hundred pounds (diminished by the expenses of the sale) were rapidly disappearing. The time of the green leaves was coming on. They heard birds whistling in the dusty trees on the road before their windows—they thought of the chestnuts, and limes, and hedgerows of Rouergue. "Come," said Alexis, "Paris has no need of such a useless fellow as I am. Let us go home." Annette packed up her small possessions, took the young Alexis in her arms, and away they go in the first sunny days of the month of May. Away they go on foot, Alexis generally bestriding his father's shoulders as if he felt Bucephalus beneath him, and through the smiling plains: through Nemours, Montargis, Cosne, Pouilly, lies their course, and Paris gradually is forgotten. They walked at a good pace, for they liked to have an hour or two to spare when they came to a shady place and a spring. Then they undid the knapsack, and bread soaked in the fountain became ambrosia, and they did not envy the gods. Through Moulins, Clermont, Issoire, on they go, talking, arranging, hoping. And at last they see the chestnut trees, the limes, the hedgerows—they are in the paradise of their youth: they know the names of every field—they are beloved by all that see them—and they live on sixty francs (two pounds eight and fourpence) a-month. The vegetables

are delightful, the milk plentiful, the loaf abundant, and they never think of meat. Amans Alexis writes—writes—writes. Annette sits beside him, and listens with entranced ears as he reads to her, chapter by chapter, the history of her countrymen who lived, and worked, and hungered so long ago. His great book is now begun, and his life is happy. Scraps of paper with perfectly illegible lines furnish him with a hint, which he works up into a statement. The statement grows a story, the story grows a picture, and we become as familiarly acquainted with Friar John, Cordelier of Tours, and Friar Andrew, Cordelier of Thoulouse, as with any of our friends. And such a correspondent as Friar John of Tours has seldom been met with since he started on his memorable journey to Paris in the year 1340. Then all the personages introduced are as real as a lord mayor. Where Alexis got his knowledge of character, his sly observation, his exquisite touches of humour, is a puzzle to those who know his story. But it was not in Stratford that Shakespeare got his knowledge of the tortures of a successful usurper like Macbeth; nor in London that he repeated at second hand the wit of Benedict or Mercutio. Alexis found the grave dignity of the Sire de Montbason, the ill-repressed ardour of the soldier-monk Friar William, and the noble lessons in chivalry given by the Commander of Rhodes, in the same wonderful reservoir of unacted experience in which Shakespeare found the jealousy of the Moor and the philosophic wanderings of Hamlet. The family group in the Castle of Montbason is worthy of Sterne, and the warrior-colouring of Scott.

The book grows—it takes shape—visions of wealth and honour look out in every page; and again to Paris must they go. They go—and the same wretched life comes upon them again. They are again in a garret. Again Alexis walks through desolate streets; again his misery is cheered by his wife and the prattle of his son: but he does not see a hectic colour on Annette's cheek, or hear a cough which shakes her frame. She never mentions how weak she is growing—till at last concealment is impossible. She languishes in the town air, and pants once more for the fields and gardens. She sees, when lying on her sleepless bed, the whole district rise before her as if she were there. She sees the church—the farm—the cottage where they were so happy. Nothing will keep her in Paris; she must die in her native village. Alexis is broken-hearted. It is impossible for them all to travel so far; the journey by coach is too expensive, on foot too far; but

Annette must be gratified in all. It seems a small favour to give to so good a wife—the choice of a place to die in.

“There are three spots,” says Alexis, “which I never pass without thinking of Annette—the Rue de Seine, at the corner of the Rue de Tournon. It was there that she all of a sudden began to limp, attacked by rheumatism. ‘Ah!’ she cried, ‘’tis the last of my happy walks.’ Another time, on the Pont Royal, a band of music passed, followed by the Imperial Guards. Annette said to me, ‘I scarcely see them; there is a cloud before my eyes.’ Alas, alas! my last recollection of her is at the coach-office, where I saw her take her departure. ‘Adieu, adieu!’ she said to me over and over with her sweet voice—and I was never to see her again!” Alexis took no warning from the limping in the Rue de Seine, or the blindness on the Pont Royal. She stayed with him, cheering him, soothing him, sustaining him to the last; and then, when she could only be a burden and a care to him, she unfolded her wings like a dove, and flew away and was at rest.

Alexis was very desolate now, but he laboured on; he lavished on his son all the affection that formerly was spread over two. He educated him himself—made him the sharer of his studies, the partner of his pursuits. Brought up in such poverty, and accustomed only to his parents, he never was a child. At thirteen he was grave, thoughtful, laborious, and had the feelings of a man of middle age. The government did not altogether pass over the claims to compensation for the suppression of the Historic Chair which Alexis now advanced. He was made a sub-librarian at the school of St Cyr, and ate his bread in faith; and he published his volume, but got nothing for all his toil. It was in a style so new, and on a subject so generally neglected, that it had a small circulation, though highly esteemed by all who had the power to appreciate the skill of the workman and the value of the work. Still he toiled on, for he had his son to provide for; and the boy was now grown up—a fine stately young man, reminding Alexis of his mother by the sweetness of his temper and the beauty of his features. There were other points of resemblance which he did not perceive. The youth was his father’s only companion, the father was the youth’s only friend; and great was the pride of Alexis when he was told that his comrade was in love, was loved, and was soon about to marry. A bright prospect for poor old Monteil! who saw a renewal of his own youth, and the tenderness of Annette, in the happiness of his son and the attentions of his daughter-in-law. The son was admitted as clerk of the historical archives of France, and

his salary was enough for his wants. The audience, fit, though few, which approved of the father's volumes, encouraged him to proceed. There was at last a prospect of a brilliant fame and a comfortable income. They could buy a small house at Fontainebleau; they would all live together: when children came, there would be new editions of the Fourteenth Century, to be a portion for the girl; the Fifteenth Century should educate the boy; the Sixteenth should go into a fund for saving; and the other centuries could surely be a provision for the author's old age. Could anything be more delightful or more true? But young Monteil grew weak, no one knew why. He walked home in the rain one evening, and dried himself at the stove: he shivered as he stood before it, and then went to bed—and then was in a fever—and in three days he died!

"I lost him," says Alexis, "on the 21st September 1833, at eleven o'clock at night. I closed his eyes. Oh, misery! Oh, my child!—my second self! Hearest thou the cries and sobs of the wretched being who was once thy father? Dost thou recognise the voice of the poor old man whom thou so lovedst—who loved thee so? Thou leavest him alone upon the earth, and his hair is now white, and his arms empty!"

And his house was empty, and his purse, but not his cup of suffering. Away went all his dreams of buying the little villa at Fontainebleau, with its garden and paddock, its cow-shed and hen-roost. A vault was now to be purchased, and Monteil had not the necessary sum. But was his son, the hope of his old age, the tenderest and most affectionate of children, to be committed to the common grave, tossed in without a name, without a headstone, without a flower above his head? No! he would beg, he would pray—he would implore as a favour that a little spot of earth should be given him to be the resting-place of his boy till he joined him in the tomb—together the loving two, in death as in life. He wrote to the prefecture of the Seine with his simple request; but not a clerk in all that establishment had heard of his book. He got no answer. Still he did not despair. He left the corpse for an hour—he walked to the prefect—he saw him, he said to him, bare-headed, broken-voiced, "Monsieur, I am Monteil;" but a look at the dignitary's face showed him that there was no response to the announcement. "Perhaps," he said, "you never heard my name?" And it was too true. He turned away, staggered blindly down the stair, with his hand before his eyes. And he saw his son cast carelessly, disdainfully, into the vast ditch—into which the penniless are thrown.

Amans Alexis Monteil wrote at his great work no more. Fortune so far smiled on him that he succeeded to a sum of £300. With this he bought a cottage at Cely, a pretty village near Fontainebleau, and lived on hermit's fare. He wandered and mused in the Bois de Boulogne; he sat on the stone seats of the gardens of the Luxembourg; but he saw no one at home, visited no one abroad. He had ventured all the happiness of his life on two frail barks, and both had foundered. Annette and Alexis, both had gone, and why should he labour more? The villagers saluted him as he passed, out of respect to age and sorrow, and he repaid them after his kind. He traced up their genealogies—discovered for them where their ancestors had come from, and finished by composing a veritable History of the hamlet where he lived. The historian of the commons of France became also historian of Cely, and more—he became its benefactor and friend. Just before his death, he founded recompenses for good conduct. He consented to the sale of a certain portion of his domain, and with the interest of the money so raised he ordered medals of honour—silver, with an inscription—to be given annually to the man who should drain a marshy piece of ground—to him who should plant the finest vine round his cottage—to the best labourer—to the village crone or washerwoman who should amuse her circle of listeners with the most entertaining (and innocent) stories—and to the shepherd who should show the kindest treatment of his flock, *remembering that all have the same Creator*. And thus mindful of his poorer neighbours, and just and benevolent to the end, Amans Alexis Monteil closed his honourable life. His work has been twice crowned by the Institute of France; it is in its fourth edition; it has been eulogised by Guizot—it will be the delight of many generations. But what cares Amans Alexis for favour that comes so late? Sufficient for him is the neglected turf grave in the churchyard of Cely, with the short inscription of his name and the record of his seventy-five years of pain. “Requiescat in pace.”

The *History of the French of Various Conditions* extends over the five last centuries, and the plan of each century differs. The Fourteenth is painted in a series of letters, as we have said, from a certain Friar John, a Cordelier of Tours, to a brother of his rule residing at Toulouse. The character of the worthy letter-writer is charmingly sustained. Keen, cautious, observant, and yet with the simplicity natural to the inmate of a

cloister, he gives a clear description to his friend of everything he sees, every conversation he hears, every place he visits. He enters the huts where poor men lie, and we learn the state of the labourer; he enters the dungeon, and reveals the secrets of the prison-house; he goes to the Fair of Montrichard, and we walk about among the booths. He gives the minutest details of the royal court—and, in short, manages to lift the reader completely back into the days of rich monasteries and private wars, and tournaments and duels. He has no antiquarian disquisitions or tiresome catalogues of furniture or dress; we rely on the faithfulness of the loquacious and gentlemanly Friar, and feel certain they are real letters written at the dates assigned. The fifteenth century is presented with the same marvellous freshness of detail, but without the individuality of the inimitable Friar John. It is a pity that excellent special correspondent did not turn out to be the Wandering Jew, and traverse all the centuries from first to last. We must suppose he died full of years and honours—let us hope, as head of some noble abbey—before the fifteenth century began. His place, however, is admirably supplied. We perceive a change taking place in the relations of the different classes of society, and the change is traceable in still stronger colours when, in the sixteenth century, we come to the impression produced by his visit to France on a clear-headed unprejudiced Spaniard. His glance is as penetrating, and his inquiries as minute, as those of Friar John and the other; but the same may be said of all the supposed observers. They are all mere secretaries of Monteil, and write the same pure idiomatic and characteristic style. The laughing eyes and scornful lips of the Cordelier of Tours, the Hermit of Cely, come out through all disguise; and the Spaniard of the sixteenth century, and “Memoirist” of the seventeenth, are only admirable continuers of the correspondence commenced between the priests. It will, therefore, be like mounting to the fountain-head if we go back to the fourteenth century, and read the account of Friar John’s visit to the great Castle of Montbason—a perfect representative of a feudal residence just before feudalism began to fall into decay. A dreadful event has happened in the chateau. While the Sire de Montbason is absent at the head of his vassals assisting the king, he left everything in charge of the grand huntsman. The grand huntsman, in pursuing a peasant who had offended him, knocks out his brains on the arch of a gateway, and is found dead on the road. The peasant, as if he had been guilty of murder, is immediately tied up to a gallows and hanged. During the preparations the

wife and children of the wretched man stood at the foot of the wall crying “Mercy, mercy!” but the representatives of the grand huntsman are inexorable. The peasant swings off, and the cries of the widow and orphan ascend to Heaven for vengeance. The Curé of the parish hears of the transaction, and excommunicates the revengeful sons of the grand huntsman. The Sire de Montbason returns and compensates the peasant’s family, and founds a perpetual mass for the poor man’s soul. But nothing will do; noises are heard in the castle, furniture moves about, chains rattle; the house is haunted, and the spirits resist the exorcisms of the Curé, and kick up wilder confusion than ever. The Sire sends to the monastery of the Cordeliers at Tours, and Friar John is fixed upon by the prior. There could not have been a better choice. He goes and prays, and burns incense, and lights candles, and the supernatural noises are heard no more. He remains at the chateau an honoured guest, and the almoner even resigns to him the privilege of saying grace before and after meat. John is overwhelmed with the honour, but accepts the duty; and, we doubt not, was the pleasantest ghost-layer the Sire de Montbason had ever seen. His nineteenth letter to Friar Andrew is all about the house he is in:—

“Montbason is one of the finest chateaus in France. Fancy to yourself a superb position—a steep hill rugged with rocks, and indented with deep ravines and precipices. On the ascent is the castle. The little houses at its feet increase its apparent size. The Indre seems to retire respectfully from the walls, and forms a semicircle round its front. You should see it at sunrise, when its outside galleries glitter with the arms and accoutrements of the guard, and its towers are shining in the light. The gate, flanked with little towers, and surmounted by a lofty guard-house, is covered all over with heads of wolves and wild boars. Enter, and you have three enclosures, three ditches, three drawbridges to cross. You find yourself in the great quadrangle where the cisterns are placed, and on right and left the stables, the hen-roosts, the dovecots, the coach-houses. Underground are the cellars, the vaults, the prisons. Above are the living-rooms, and above them the magazines, the larders, the armoury. The roofs are surrounded with parapets and watch-towers. In the middle of the yard is the donjon, which contains the archives and the treasure. It has a deep ditch all round it, and cannot be approached except by a bridge, which is almost always raised. Though the walls, like those of the castle, are six feet thick, it has an external covering of solid hewn stone up to the half of its height.

“The castle has been lately repaired. There is something light and elegant about it which was wanting in the chateaus of old. You may well believe it is finished in the most modern style: great vaulted rooms with arched windows filled with painted glass; large halls paved in squares of different colours; handsome furniture of all kinds; solid stands with bas-reliefs, representing hell or purgatory; presses carved like church-windows; great caskets; immense leather trunks, mounted in iron; great red boxes; mirrors of glass, at least a foot in width, and some of metal of the same size; great sofas with arms, covered with tapestry and ornamented with fringes; benches with trellis-work backs; others, twenty feet long, with hanging covers, or stuffed cushions, embroidered with coats-of-arms. I must tell you, however, that the beds do not seem at all proportioned to the rank of the owner. They are not above ten or eleven feet wide; I have seen much larger in houses of less pretence. But as to the decoration of the apartments, nothing can be more sumptuous. There are show-rooms and chambers of state, which are named from the colour or subjects of the hangings with which they are covered. There are some where the great pillars that support the beams of the ceiling are ornamented with ribbons and flowers in tin. There are some where figures of life-size, painted on the walls, carry in their hands, or projecting from their mouths, scrolls on which texts are written, pleasant to read, and most excellent for the morals of the beholders.

“As to the mode of life, it is pleasant enough, except that we do not dine till nearly twelve o’clock, and never sup till after sunset—which appears to me a little too late. The day, in other respects, is agreeably varied. In the morning the courtyard is filled with squires, huntsmen, and pages, who make their horses go through their evolutions. Then they divide into parties, and defend and attack some staked-off piece of ground with amazing strength and activity, amid the applause of all the spectators. After dinner there is leaping at the bar, quoit-throwing, ninepins, and other games. In addition to all this we have the parrots and monkeys. We have also the old female jester of the late Sire de Montbason and the young fool of the present lord. He is so gay, and so full of tricks and nonsense, that in rainy days he is the life of the whole house.

“The almoner has charge of the evening’s entertainments. He has seen the world, and recounts agreeably; but, as he has never gone on pilgrimage, and has not lived either in convents or monasteries, he cannot give us above three stories in a night, for fear of repeating himself. But, fortunately, we

have an ancient Commander of Rhodes, who has visited the Holy Land, and has travelled in the three parts of the world. He is an uncle of the Sire de Montbason. He relates his adventures delightfully. It is only a pity his bad health makes him go to bed so soon. Frequently, also, we have jugglers and vaulters; wandering musicians sometimes come, and we have concerts on the trumpet and flute and tambourine; harps and lutes, cymbals and rebecs. This very day we had a visit from a man who played on the viol, and never could get the strings in harmony. And no wonder; for it was found out that some of the chords were of the gut of a sheep, and others of the gut of a wolf. How could they agree? But he was paid as liberally as the rest.

“Life in these castles would be almost too happy if it were not mixed, like every other, with anxieties and alarms. Sometimes when we least expect it—in the middle of dinner or when we are sound asleep—the alarm-bell is rung. In a moment everything is astir—the bridges are raised—the portcullis falls, the gates are closed—everybody starts up from table or bed, and runs to the turrets, to the machicoulis, to the loopholes, to the barbicans. A few days ago I was witness to one of these “alertes,” and during the space of forty-eight hours nobody was allowed to close an eye but the almoner and me. Every one was kept to his post—but nothing came of it. It was a Vidame of the neighbourhood, who had thought that the Sire de Montbason was levying his retainers, and preparing to attack his chateau; and so, without sending letters of defiance, he had taken the field against us with three hundred men. There were parleyings and explanations on both sides, and everything was arranged. On this subject the Dowager-Lady of Montbason tells us that these private wars are not so frequent as they used to be. She remembers that, in the week of her marriage, there was such a fierce and long-continued attack upon the castle, that not a soul went to bed for eight days.”

This letter is dated the fifteenth day of February; and other experiences are recorded during almost every week of his five months’ residence in the chateau of Montbason. He describes the kitchens, the grates, the cooking apparatus, and all the feeding appliances required for the army which garrisons the castle. In a day or two he is summoned to visit a prisoner in the *souterrain* or cave, to which he descends, like a pitcher into a well, suspended by a rope; and, by the light of the lantern he carries, he recognises the wretched captive on his handful of straw, with the pan of water near him in which the untasted crust is soaked. He has been

condemned to this wretched dungeon for neglect of certain duties; and what they are we learn from the eloquent pleading of Friar John, who intercedes for the unhappy man with the Sire de Montbason. "My lord," he says, "I come to implore your pardon and compassion for one of your men. It is not true that he has refused to have his wheat ground at your mill, or his meat baked at your ovens; that he cut his hay or his crops, or gathered his grapes, before the publication of your 'ban;' that he had his ploughshare sharpened without obtaining your permission and paying you the fee. He can prove all this by a hundred witnesses. He can prove, also, that he has regularly laboured and reaped your lands, and always paid the rates and rent of his holding; that he has carried the wood and water and provisions up to the chateau; that he has never chased upon your grounds, and has always fed your dogs." These, and many other denials urged by the good-hearted Friar, are nearly losing their effect by the opposition offered to his entreaties by the Commander of Rhodes. That sturdy old knight pertinaciously stands up for the rights of his order, and on all occasions is for the exercise of power. "To the gallows! to the gallows!" he cries; and points to that instrument of paternal government, which consists of two tall uprights before the window. But eloquence has its reward. "The Sire de Montbason," says Friar John, "has pardoned his unfortunate retainer, and he is now in the midst of his children. That old Commander," he adds, "his long exercise of authority sometimes makes him harsh, and turns his heart as hard as the steel that covers it."

But a field-day is at hand, in the description of which there is condensed a whole history of a feudal baron's relations with his tenants. It is the day when the Sire de Montbason holds his court baron, and a tremendous time it must have been for the holders of his fiefs.

"To-day the Sire de Montbason left the chateau, attended by all his suite. He was mounted on a white horse, with a hawk on his wrist, in robe of state, with armorial bearings on his coat, which was one-half red and the other blue. On arriving at the place called the 'Stone Table,' he took his seat. All his household, dressed in cloth liveries, ranged themselves behind his chair. A gentleman whose lands are held under Montbason presented himself bare-headed, without spur or sword, and knelt at the Sire de Montbason's feet, who, having taken his hands in his, said to him, 'You avow yourself my liegeman in right of your castle, and swear to me, on the faith of your body, that you will serve me as such against all who may live

or die, except our lord the king.' The gentleman having replied, 'I swear,' the Sire de Montbason kissed him on the mouth, and ordered the act of homage to be registered.

"There next came forward a gentleman of the neighbourhood and his son, who demanded the right of lower justice over the western half of their great hall, because on the eastern side their manorial rights extended a full league. The Sire de Montbason consented with a good grace to this abridgment of his fief. Scarcely had this gentleman and his son concluded their thanks for this favour, when another gentleman advanced, and said a few words in the Sire de Montbason's ear, touching the ground with his knee several times while he spoke. 'I consent,' said the Sire de Montbason. 'Since you find your residence too small, I permit you to build a stronghold, with curtains, turrets, and ditch; but no weathercock, no towers, and, above all, no donjon.'

"Meanwhile the Sire de Montbason beckoned a crowd of villagers to approach, who had stood respectfully at a distance, all loaded with provisions and goods of different kinds. Immediately the ground at his feet was covered with wheat, with birds, hams, butter, eggs, wax, honey, vegetables, fruits, cakes, bouquets of flowers, and chaplets of roses. They were instantly carried away by the people of the chateau, and several tenants came forward into the empty space, some making grimaces, and some going through strange contortions of body. Others came, some to kiss the bolt of the principal gate of the dominant fief, some to sing a ludicrous song, and some to have their ears and noses slightly pulled by the *maître d'hôtel*, who also bestowed a few smacks on the right and left cheeks. The Sire de Montbason ordered legal quittance to be given to all. The assembly then formed a circle round him, and the Sire de Montbason spoke. 'My friends,' he said, 'I have received too much money of you this year, to my great regret; the forfeitures for thefts, quarrels, wounds, blows, and bad language, have never come to so much before. I have hitherto remitted the fines for improper conduct and indecency, but I will remit them no more. Ask Friar John if I can conscientiously do so.' Everybody's eyes were turned upon me at once; I made a sign of strong negation with a shake of my head. The Sire de Montbason went on. 'I am very well satisfied with the way in which the statute-labour has been done, but there are still some suits of page's livery not delivered; a good many boots are required for my people, and a still greater quantity, I hear, need to be mended.' 'My lord,'

replied a poor man named Simon, ‘the artisans of your lands, the tailors, shoemakers, and cobblers, have all worked the full week they owe you, and you cannot call upon us for more.’ ‘Ah! very well,’ said the Sire, and cried to a labourer he recognised far off in the crowd, ‘Come on, Jacques, I see you there; advance! I found the south door of my castle of Veigné in a very bad state. You know very well that, according to your tenure, your family is bound to keep it in repair; and besides it is as much your affair as mine, for if the enemy takes the field, as may very likely happen, what will be the use of your right to refuge in a stronghold, if its gates are bad?’ He next addressed a woman who stood near him. ‘Widow Martin, you keep poor guard in my castle of Sorigni. I am told you often sleep instead of watching. You don’t sleep when you have to come for the corn you receive, according to old agreements, for this very duty.’ He then spoke to the whole assembly again. ‘I have further to complain of you, that you are not active in taking arms when my trumpets make proclamation of war; and, moreover, that your weapons are not good. When I make an attack with fire and sword, you enter into arrangements with your friends and relations who occupy the lands of the lords I am at feud with. They are not so complaisant on my grounds, and that is the reason I have so often to build you new houses, or pay you compensation. I have to complain, also, that those who have heritages in other manors go and live on them. Methinks you are well enough treated here, to be content to keep the fire alive. You also let your lands lie fallow for more than three years. I have the right to cultivate them for my own use, and I will exercise it. I blame you further for refusing my purveyors credit for fifty days, as you are bound to do. My good friends, I am bound, indeed, to give you my favour and protection, but you are bound no less to show your affection for me.’

“The tenants now made way for the serfs, and I remarked more familiarity and kindness between them and the Sire de Montbason than I had seen with the others. To all their requests, he answered, ‘With pleasure—with great pleasure: what you lack in the house, you shall find in the castle.’ The Sire de Montbason retired. Scarcely had he gone, when there rushed in a man—fat, breathless, red-faced, with perspiration oozing at every pore. This was the courier of the manor, an office he inherited from his great-grandfather, who had been an active, strong-limbed man, and one of the swiftest runners of his time.” The plethoric Mercury came to render homage for his fief, and would not have had breath to utter his oath even if

he had not been too late. The day concludes with the extraordinary performances of the villagers in clearing the moat of Montbason of frogs—a service they are bound to render when the voice of the animals hindered the inhabitants of the castle from repose.

How superior this method of giving a view of some of the peculiarities of feudalism is to the common dissertations we meet with, will be acknowledged by any one who prefers a chapter of *Ivanhoe* to an explanation by Ducange. We are tempted to make quotation from the conversations between the worthy Friar John and the Commander of Rhodes, in one of which the veteran soldier fights nobly in defence of the right of private war; and there are other incidents in which the two men are brought out with a freshness and individuality not at all to be expected in the lucubrations of the chief of the French Dryasdusts; but we must content ourselves with the last glimpse of knight-errantry. Ill fares it with a period when it can be truly said its days of chivalry are past. But chivalry was a thing and a principle, and knight-errantry a pretence. There is the same difference between them as between the quiet benevolent practice of a physician, and the noisy operations of a quack doctor at a fair. How, in the midst of all that ignorance, and that rough handling of sword and spear, arose the poetic idealisation of personal honour and respect for woman, it is impossible to say. The fact is all we can answer for, and the result. At first the ennobling pictures of unselfishness and courtesy and generosity were viewed by the portly baron, the rough, gruff old head-breaker on the dais, as they were meant to be viewed; namely, as altogether fictitious and imaginary representations of a state of manners which never had real existence. But the young squire his son, the long-haired maiden his daughter, who sat on the tabouret at his feet; the pages who stood open-mouthed behind his chair—were of a very different opinion. They believed in King Arthur, and in Amadis, and in Gualior, and in the peerless damosel who cheered him with such loving caress and such purity of heart; and, in the next generation, they resolved to form themselves on the model set before them in the achievements of these heroes and princesses. And if the state of their quarrels did not allow them to carry out all the refinements practised in those romances—if they were still forced to carry battle into their neighbour's manor, and carry off their neighbour's daughter, they did so "with a difference;" they doffed their plumed helmet when they received their vanquished enemy's sword; they bent knee to ground when they

locked the captive maiden into her bower. Chivalry was a recognised fact, and was at all events a standard by which to measure their actions, if not always a barrier against the actions themselves. But its truest merit is the effect it undoubtedly produced on the civilisation of Europe. It supplied the place of religion itself, when religion was either locked up entirely in an unknown tongue, or enveloped in manifold additions which concealed it like the ceremonies of an Egyptian mummy. The code of honour gradually exerted its sway where civil laws were ineffectual. There were virtues inculcated, and vices condemned by it, which criminal courts could neither reward nor punish. Truth, generosity, temperance, purity, defence of innocent weakness, resistance to strong injustice—these formed the true knights' system of laws. The opposite evils were forbidden on pain of general censure. And the final effect has been this—that no nation which has not gone through the period of chivalry can give its true and full meaning to the great word "Gentleman." India, China, Russia, never felt its force; they have, therefore, no civil freedom, no personal self-respect. A system which has given rise to all the gentlemen of Europe should never lightly be talked of; and Amans Alexis in his garret had as high an appreciation of gallant knight and fair lady as if he had been present, when

"High in the breathless hall the minstrel sate,"

and charmed young and old with the music of harp and song. But knight-errantry—a running to and fro in search of adventures!—a travelling attorney in pursuit of practice in the courts of Honour!—it scarcely needed the genius of Cervantes to bring this extravagance into ridicule; for even the commander of the fourteenth century, himself vowed to the protection of injured innocence, laughs at the pre-Quixotic absurdity as if he had had the knight of La Mancha before his eyes. A specimen of the genus even then was looked on as our naturalists would now look upon a dodo. "I must tell you a curious thing that lately occurred here. A knight-errant is not often seen nowadays, though the genus is not extinct. One came here and wound the horn which hangs before the great gate of the chateau. No trumpet having sounded in reply, as is the rule on these occasions, he turned his horse and rode away. The pages ran after him, and after many excuses for their want of skill on the trumpet, they persuaded him to come back. Meanwhile the ladies had dressed to receive him, and taken their places in state, holding embroidery-frames in their hands. The Lady of Montbason

was attired in a robe stiffened with gold, which had been in the house for more than a century. The dowager covered her head with a fur cap according to the fashion of her youth, and loaded herself with ermine. The knight comes in along with his squire, both covered all over with dangling plates of brass, making as much noise as a mule when loaded with copper pots and pans ill packed. The knight having ordered his squire to take off his helmet, revealed a head nearly bald, and fringed with long white hair. His left eye was tied up with a piece of green cloth, of the same colour as his coat. He had made a vow, he said, not to see with his left eye, nor eat with the right side of his mouth, till he had accomplished his enterprise. The ladies offered him refreshment. He replied by throwing himself at their feet, and swearing eternal love to old and young, saying, that though his armour was of truest steel, it could not defend him against their arrows; that he should die of the wounds they inflicted—that he felt himself expiring—and a hundred other follies of the same kind. As he persisted in this style, particularly in his address to the lady of Montbason, whose hand he frequently kissed, I became impatient; the Commander perceived my annoyance. ‘Good!’ he said: ‘these old fools have their set words and phrases like a village lawyer. But keep your temper; perhaps he won’t stay the day.’ And in fact in a few hours he departed. Such are the ridiculous remains of that ancient chivalry which at one time ennobled humanity with so many virtues and so much glory.”

Poor old frivolous knight-errant! away he goes for ever out of human ken, with both eyes bandaged now, and all his enterprises accomplished; and, at the same time with him, dies off also another form of resistance to oppression, where the performer was of far humbler rank, and came in aid of justice in a much more legitimate way. There seems to have been no town in France of sufficient importance to have a court of civil or criminal process, which did not maintain a champion as one of the chief officers of its administration. The duty of this distinguished functionary was to supply any lack of evidence which might occur in the course of a trial; and as it was generally necessary to obtain the assistance of two witnesses in the conviction of a culprit, the champion watched over the cause, and when only one witness was producible, threw his sword into the scale which he believed to be just, and did battle with any one who would take up arms on behalf of the other side. All through the early centuries, the office of town or precinct champion was as well recognised, and considered as

indispensable, as that of notary or judge. But some terrible things happened in the fifteenth century, which put the arbitrement of the sword into disrepute. Printing and gunpowder, when they came to maturity, were fatal to many a stout-armed gentleman, who had been installed in his honourable post of champion of the town, and had brought up his children with the honourable ambition of handling his sword and stepping into his shoes. How many Oxford coachmen and Cheltenham “whips,” in the same way, had to descend from the box, and turn their energies into other channels, on the first whistle of the railway engine!

It happened one day, says Alexis, in the first page of the second volume (which is equivalent to the middle or latter end of the fifteenth century), that a good many people were collected in the great chamber of the town-hall of Troyes, along with the mayor and bailiffs, when a curious question arose, as to which of all the trades and conditions were the worst. Everybody, as might be expected, laid claim to that bad eminence on behalf of his own. But at last it was arranged, that on that evening, and at their succeeding meetings, the question should be thoroughly gone into, and every man give some account of the evils he complained of, so that the company might decide after a full hearing of the evidence. On this hint the different personages speak. There is a beggar who paints a wretched picture of the state of his fraternity, even in those days of meritorious alms and food at the monastery gates.

“Who denies,” he cries, “that the beggar’s state is the most miserable of all?—who? Why, the bad Christians, the hard-hearted rich; and they are so plentiful now! How often have I heard it said in the days of my prosperity, that the poor were in the happiest state; that their revenues were secured on the charity of the public; and that they lived without care, with nothing to do but say their paternosters, and hold out their hands! Alas, alas! nobody thought of adding how often their hands remained empty—how often they had to submit in patience to the hunger of many days, to the cold of many months.”

Then come the farmer, the messenger, the comedian, and many more; but after the noble (for even he has discomforts to complain of), the tale is taken up by a person who is minutely described and introduced by the name of Vieuxbois.

Vieuxbois, who remembers the time when he was champion of the city, and believes that he is so still, though there is now neither champion nor lists, generally sits near the chimney. He is always dressed in an old suit of clothes, very tidy and clean, and always carries a long iron sword suspended by a sash of red silk. His face is so haggard and thin that it is nothing but bone. People call him more than a hundred years old, but he has the vanity of being thought young, and only confesses to ninety. This evening he rose from his chair, and having saluted the company several times with his sword, he resumed his chair, and thus began:—

“Gentlemen, you are all complaining of your callings, which proves, at least, that callings are still left you; but for us miserable champions—for us, the most miserable of you all—there is no calling left except in name. Oh! the long past, happy, blessed days of France! days, above all, of the fourteenth, thirteenth, twelfth centuries!—why can’t I prolong them into the present time! Then the sword of the champion was honoured—it decided where the judge was puzzled. Then the champion, the lists, the trumpet, the charge in every doubtful case: but now there is so much knowledge! there is so much learning! no more doubts—no more puzzled judges—and the champion’s occupation’s gone! But oh! little did my grandfather, the Champion of Chalons—he was hanged in that office—foresee this wretched time. Just before he was turned off, he summoned my father, who had fled from the scene in tears, and said, ‘Champion, my son, weep not: it does not become a champion to weep: the cause I supported was just. I die because I did not parry in carte. Study the carte, my son; it is the best of the thrusts: you must deliver it free—you must have your wrist well placed. My adversary made a movement—it was against all the rules—but it deceived me. Champion, my son, attend to your trade—it is a good one; and above all, I beseech you, do not neglect the carte.’ But the people became impatient, and cried out for his execution; they were enraged because he had undertaken the defence of a wretch whom they considered guilty; and disdaining to reason with his inferiors, my grandfather shrugged his shoulders two or three times in sign of contempt, and died like a true and noble champion.

“My father also was hanged. You are astonished, gentlemen; that is because you did not know the good old times, when, the moment a champion was vanquished, he was dragged from the lists, and hoisted on the gallows. After having been victorious a great number of times, he died

at last, not from want of courage or address, but because he slept. He died, recommending me always to wear sharp-headed nails in my shoes. I can declare that his fate was much regretted by the people, while the person for whom he fought, and who was going to be hanged along with him, had the bad taste to find fault with him in coarse insulting language. He was an advocate, and always an uncivil sort of man. My father was a man of fine manners and excellent temper. 'Master Martean,' he said, 'neither you nor any of your craft are able to give me lessons in the management of my sword. I shall speak to you no more.' He kept his word; the next moment they were run up. My mother brought me my father's sword: and though it was at that time a little taller than myself, I managed to draw it from the sheath and swing it at arm's-length. This was thought a good augury, and great expectations were entertained of me when I should be old enough to be champion. When I was twenty, my active life began. Two men of distinction, each above sixty years of age, had accused each other without sufficient proofs. The judicial duel was ordered, of course. A beautiful closed ring raised on the banks of the Marne was crowded on the following day with all the rank and fashion of Champagne—for such sights were already become rare. The combat was on the point of beginning. I was at the summit of felicity. My eyes flashed brighter than my arms. The party for whom the opposite champion was engaged, perhaps perceived this, for offers of accommodation were made, and the duel was at an end. The disappointment of the spectators was immense. The authorities feared an uproar, and to quiet the populace, it was proposed by the mayor and magistrates that I should marry the daughter of my adversary, and that a fête should be given in honour of the event. Her name was Championnette: she was beautiful as the day—she was just sixteen; and you may imagine I offered no opposition to the match. The wedding rejoicings commenced at once, and the enclosure where the combat was to have taken place, could scarcely contain the dancers. Next day there were joustings with sword and lance. The trumpets of the town-hall had never ceased their music, and at night there were bonfires and illuminations."

After his marriage with Championnette, it was impossible for him to be the hostile champion to his father-in-law; and his travels in search of occupation take him through several districts in France. In all he finds the dignity of the office decaying, its privileges denied, and its income annihilated. He goes from place to place, but the scales of justice were now

getting so evenly balanced that he seldom required the sword to adjust the weight. He comes, among other places, to Lyons. "What do you take us for?" says the bailiff. "Perhaps you think Lyons a Gothic town of the fourteenth century. Lyons is a polished city, enlightened and civilised, where everybody knows how to write. Nobody, therefore, can now deny his signature. Go rather to some out-of-the-way valley in the Jura or the Vosges. It is possible a champion may still be useful among the savages there." It is impossible to describe the indignation of the gallant Vieuxbois on this insulting speech. However, he restrains his wrath, and passes on, but no better reception awaits him wherever he goes. At last there is a glimpse of prosperity and a chance of work when he gets to the valley of the Aspe, among the Pyrenees. The magistracy of that small republic receive him courteously, but even here he finds he comes too late. "'We might have sent you,' said the rulers of the republic, 'into the valley of Lavedan, but it has no intention now of seeking a champion to resist our claims.' 'And why did the valley wish to fight you?' I inquired. 'It was because their little abbé, St Sevin, irritated against the valley of the Aspe, uttered his curse upon it. Whereupon every year we were visited with great storms and tempests, and sometimes for months the hail fell upon our republic, but we were miraculously avenged. The earth, and all the inhabitants, and all the cattle, great and small, were struck with sterility throughout the Lavedan. To get remission of this dreadful plague, they came and begged for mercy on the valley of the Aspe. Peace was made between the two valleys, and Lavedan was absolved from the sin of its old abbé. During the eighty years of this treaty, the conditions have several times been broken. Our republic demanded satisfaction. The valley of Lavedan wished to defend itself by a champion, but has not been able to find one. We therefore have no occasion for your services, but if a few acres of ground, a few sheep and oxen, a cottage such as you see——'

"Thanks, gentlemen of the republic of the Aspe," says Vieuxbois, "my fathers were gentlemen, and lived by the sword. I am not yet so fallen as to maintain myself by flocks and herds." But years pass on, and no doubt he looked back on the offers he had rejected with useless regret. Meanwhile his family becomes numerous, but they are victims of the advancing arts and sciences. One is a transcriber of manuscripts, and the press throws his pen out of work. Another illuminates old books, and engraving upsets his colours. Another is a maker of bows and arrows, and arbalists and other

engines of war, but gunpowder and cannon unstring all his bows, and knock his ballistas in pieces. A grandson is sedulously educated for the profession of a fool; but as a profession it falls into disrepute, and the jester unlearns his quiddities, keeps his features at rest like other people, and starves as becomes a reasonable man. The only happy one of the family is another grandson, who is blessed with such a tremendous eruption on his face that he has got admission to a leprosy-house, where he is wonderfully fed and kindly treated. The eruption is not leprosy; but, in the alarming scarcity of real sufferers by that malady, the office-bearers of the houses of retreat, who derive great salaries for their posts (which they execute by deputy), are glad to accept a pensioner with so near a resemblance to the true disease; for what would they do if leprosy disappeared altogether? The story of the old champion comes to an end, and it is difficult to imagine that any of the other complainants can give a more wretched account of their position. But misery is, in fact, in that century, the characteristic of all conditions of life. As the ages move on, men get better; their places become more defined.—The remaining volumes of the work are occupied with the progress of the people, and their gradual elevation into civil consideration and political power. We may return to the same portrait-gallery for pictures of the innkeepers, the fishermen, the town-criers, the merchants, the nurses, the lawyers, and the artists of the different periods. They are all drawn from the life, and are warranted likenesses. But at present we have said enough.

BIOGRAPHY GONE MAD.

At certain intervals, ever since the days of Solomon, it has been found necessary, as a matter of sheer duty, to lift the voice of warning against that much study which wearies the flesh, and the making many books of which there is no end. It is now several years since a strong protest was raised in this Magazine against the too common and most reprehensible practice of raking among dead men's ashes, and violating the confidences of the living, for no higher purpose than the gratification of biographic weakness and vulgar curiosity. Man is indeed, as Goethe has said, ever interesting to man, and no species of bookmaking finds readier excuses than biography. But man ought also to be sacred to man; and of all the injuries that can be inflicted on a dead man's memory, none is more cruel than the act of the friendly ghoul who unnecessarily recalls him from the silence of the grave. *Corruptio optimi est pessissima*. Biography, well done, is one of the most instructive and interesting kinds of composition; ill done, it is about the worst. We call it ill done, either when a good subject is marred in the handling, or when the choice is an unworthy one. The number of men whose lives are worthy to be recorded for an ensample to mankind is really small. In saying so we are far from meaning to express a contemptuous opinion of human nature. Some of the best men that ever lived were those whose lives had fewest incidents, and offered the scantiest materials for the ingenuity of the bookmaker. Happy, it is said, is the nation whose annals are dull—happy also the man whose life escapes the chronicler, who passes at the end of his day's work into the silent land, to enjoy "No biography, and the privilege of all the weary."

A stupid biography of an interesting person is indeed a very lamentable thing; and not only so, but a grave injustice alike to the dead and to the living. Since the protest alluded to was uttered, there has been no lack of

this sad work. The most conspicuous recent examples that occur to us are the Lives of Thomas Moore and of Lady Blessington. But though the life of a man of genius, served up in the form of hodge-podge, is rather a melancholy repast, there are biographic nuisances less tolerable still. The features of a Jupiter or an Apollo may be hard to recognise in the plaster of an incompetent dabbler; but if the model were really a noble one, something of the god will break through to edify the spectator. It is different, however, with the rude idol of the savage. The biography of a respectable mediocrity is, it may be safely said, among the least interesting or useful of literary performances. Minerva Press novels are bad enough (those who think the species is extinct are greatly mistaken); spasmodic poems are anything but enlivening; and numismatic treatises are not ambrosial fare; but against any of these we would back for true invincible unreadableness the Memoir and Remains, we will suppose, of the Rev. Jabez Jones, D.D., late pastor of Ramoth-Gilead Chapel, Battersea. We select our instance from the class of religious biographies, because it is by far the most numerous, and the most distinctly chargeable with the sin of bookmaking. Jabez, we have no doubt, was in his day and generation an excellent man, though given, as his Memoirs of course will amply testify, to unnecessary groaning. But why his life should have been written, is a mystery to be solved only by the astute publisher, who calculates on a sale of several hundred copies among the bereaved congregation of Ramoth-Gilead. The sorrowful biographer, whose name on the title-page plainly marks him as an eligible candidate for the degree of D.D., will inform us in a “sweet” preface that the materials of the present work were put into his hands, &c.; that, painfully conscious of his own inability, he had long, &c.; but that a perusal of the documents had so deeply impressed him with the importance of giving the world, &c.; that such as it is, in short, he commits it—and then is pretty certain to follow a piece of nauseous blasphemy as to the nature of the patronage to which the pious speculation is held entitled.^[5] The number is perfectly sickening of bereaved husbands, sons, and fathers, who practise this strange alchemy on the penitential tears and devout breathings, the sick-bed utterances and dying ejaculations of sainted wives, mothers, and babes.

But bad as it is causelessly to exhume the poor victim of mortality in order to make him sit for his likeness, the posthumous method of biography is the natural and becoming one. Only when a man has finished his work, and escaped beyond the reach of human passions and cares, is it fitting to

delineate his character and trace the story of his devious path through life. The practice of biographising living men, however, has now become very common. The publication of éloges used formerly to be reserved as a posthumous honour, but this generation is wiser, and writes the éloge while the subject of it can himself enjoy its perusal in the land of the living and the place of hope. One would think it a curious evidence of regard, independently of the question of delicacy, to adopt so suggestive a method of reminding a man that he is due to posterity. But tastes differ, and some men are not averse to the Charles V. method of trying on their shrouds, to see, as the old woman said, what “a bonnie corpse” they will make. With us in Britain this practice of spiritual vivisection, or *ante-mortem* inquests, has been confined for the most part to short sketches, pretentiously critical in general, and very seldom of any value. Fundamentally gossiping in its character, this school of literary sketchers (what may be called the Biographical Life Academy) has appealed mainly to the weak curiosity that hungers after any small scraps of information regarding the private life and habits of living notorieties. Such curiosity is no doubt extremely natural, but the men who have undertaken the function of gratifying it, have, as might be supposed, been distinguished by no qualities less than by discernment and good taste, correctness of outline being with them a small consideration compared to abundance and strength of colour. This vulgar species of authorship, the servants’-hall gossip of the literary family, has, we hope, seen its palmy days.

On the other side of the Atlantic, however, the business seems to flourish, like all other business, with great briskness. Our American friends, excellent people as they are in so many respects, have long been known to us as pre-eminent in the gossiping line; one of the chief characteristics of the Anglo-American race being intense curiosity—an admirable principle, as every one knows, when subordinate to a high end, a decided weakness when not. To say that the American people universally are influenced by the spirit of vulgar curiosity, would be as unjust as it would be to charge the whole British nation with foulness of taste because the *Mysteries of London* has found myriads of readers. But that the fashion has been exemplified very extensively by Americans of making the public familiar with the insides of private drawing-rooms, and telling the world how popular poets and historians handle a tea-pot or blow their noses, is a fact not to be denied. Among a people recognising, or professing to recognise, as the fundamental

principle of government and society, the Irishman's profound axiom, that "one man is as good as another—faith, and a great dale bettther too!" it is not indeed surprising that in the sphere of literature, as well as in others, they should make more free with the characters and habits of private life than is by us old-fashioned Britons considered tasteful and becoming. Having now, however, passed their infancy, and in literature as well as in social development "progressed" towards manhood, it is high time that they should put away childish things. It has always grieved us to see citizens of the great Republic betray so weak-minded a delight in scrutinising the costume and domesticities of English aristocrats, or the private life and fixings of American democrats.

In the department of contemporary biography, it must be confessed our energetic cousins have fairly got the start of us. It seems, in fact, to have attained the rank of an "institution" among the other beautiful machinery of their political life. When Jullien visits the provinces, he heralds his coming by means of a set of fascinating portraits, which announce from every print and music shop window that the great Conductor is at hand. Somewhat similar, but more intellectual and elaborate, is the proceeding of the American "coming man." No aspiring senator now thinks of trying for the Presidency without securing in good time the services of a competent biographer to relate the heroic story of his life, and make his transcendent merits known to all whom it may concern. Even a meditative Hawthorne turns his vision-weaving pen to such service, and considers it no way unworthy of his genius to polish off an electioneering biography of General Franklin Pierce. So deeply do politics mingle in the current of American life; so sweet to the aspiring statesman are the uses of biography!

But if the lives of politicians be written for the admiration of mankind and the good of the State, should the lives of the mightier men who make and unmake presidents and governments be esteemed less worthy of that honour? Assuredly not. At it then, ye diligent Yankee scribes, and hasten to convert into obsolete absurdity the oft-quoted line of the dull old fellow who sang—

"The world knows little of its greatest men."

Let it not henceforth be said, to the reproach of civilisation, that the world was ignorant during their lives of the birth and genealogy, the schoolboy adventures and manly freaks, the trials and the triumphs of such

men as Horace Greeley and James Gordon Bennett. Be careful to inform us, ye veracious cinder-gatherers—for posterity will not pardon the omission—the length, breadth, and weight of these remarkable men,—their complete phrenological development (so far as the addition of abnormal bumps by hostile shillelahs can permit accuracy),—the kind of clothes they wear—the kind of pens they write with, whether quill, iron, or brass—the ink they use, whether common blue-black or sometimes black-and-blue, or perhaps a cunning distillation of ditch-water—the attitude in which they sit when discharging their thunder at the heads of kings and cabinets, or composing their delicate invectives at one another;—in short, let us have perfect daguerreotypes of these supremely interesting and estimable men.

Behold! the thing is done, the good work has actually been commenced. There, lying before us, in all the square-rigged ugliness of New York upgetting, are the first-fruits of this new field of biographic enterprise—the lives, in two stout volumes, of the “two noble kinsmen,” the two great Arcadians whose names we have above mentioned. Many of our readers, perhaps not grossly illiterate persons either, will look up and ask, Who are Horace Greeley and James Gordon Bennett? While duly pitying the limitation of culture implied in such a query, we cannot be too hard on these poor ignoramuses, as we must plead guilty to having been ourselves frequently staggered, in reading American books, by meeting names associated with those of Milton and Aristides, as utterly new to us as was, till recently, that of his Majesty Kamehameha III., Dei gratiâ king of the Sandwich Islands. These two men, then, let all such ignoramuses know, are the editors of two widely circulated New York papers—the two most widely circulated, we believe, of any in America.^[6] What other claims they have to the honours of biography and the remembrance of posterity, we shall consider by-and-by. Meantime we have to say of the books that they are the most unique things in the way of biography, or indeed of literature, that have come in our way since America, about a year ago, furnished us with the autobiography of one of her smartest citizens. They are of very different character—as different as the men whose lives they profess to record—but in both the biographic muse appears in a state of decided inebriety, highly unbecoming the ancient dignity of her vocation. In the work of Mr Parton she is what is called half-seas over, unsteadily hilarious, and amusingly absurd, hiccuping out smart things now and then in a way that is irresistible, then suddenly looking grave and uttering sublimities that are still more

outrageously laughable. In the anonymous companion-volume she is far gone towards mortal insensibility; she might be said, in fact, to be in *delirium tremens*, but that there is not a single flash of the wild energy that diversifies the symptoms of that shocking malady. It is pure dazed stupidity and double-vision from beginning to end. We have met nothing comparable to it in all our experience of biographies.

The sole ground on which these volumes claim any notice, contemptible as they both are (though not in equal degree) in matter and treatment, is that which gave some importance to the infamous revelations of Barnum. They are in some degree typical; their subjects at least are so in a very considerable degree—"representative men" of their kind, and so far important. A newspaper editor is in all civilised countries an important personage. We are not going here to enter on an elaborate consideration of the functions and influence of the press—so let nobody dread a homily. The subject has been often enough handled well and ill, and lately we have heard a good deal about it. We are nowadays rather given to flourishing about the "Fourth Estate." There is a tendency towards cant on this as on all other interesting subjects. The Fourth Estate is a grand fact, but let those who have any pretensions to connection with it rather strive to keep it so than talk magniloquently about it. As for those who have not, let them take care that it does its duty, and does not go beyond it. Newspaper editors, we say, are important personages; but they are like other human beings, some of them eminent for intellect and virtue, many of them highly respectable for both, others of them dignified by neither. The anomalous and fluctuating conditions of newspaper life make it inevitable that men should sometimes attain high influence in virtue of connection with the press, whom neither nature nor education has eminently qualified for the guidance of their fellow-men. This applies, of course, peculiarly (though not exclusively) to America, where, on the admirable Irishman's maxim above quoted, everybody is equally fit for everything—faith, and a great deal fitter too! where toll-keepers and publicans are colonels in the army, and the man who fails as a ratcatcher turns his hand to preaching, and, if that fail also, straightway sets up a newspaper. But though applying peculiarly to the American press, our statement is not exclusive of Britain. Journalism is becoming, indeed, with us more and more of a recognised profession—a profession, too, calling for special gifts and training—gifts and training, higher and more liberal, to those who think rightly of their vocation, than do

any of the three hitherto exclusively entitled “learned.” The press is no more with us, if ever it has been, a kind of literary Diggings, where the outcasts and desperadoes, the halt, the maimed, and the blind, of every other calling, may find a precarious refuge and irregular adventurer-work, from forging of thunderbolts to winnowing of ash-buckets. But it is true, nevertheless, that the fundamental conditions of success in this career are compatible with a moral and intellectual standard by no means exalted. It is a common mistake, that high literary ability is the first requisite for editorial success. The fact is nearly the other way. The first requisite is knowledge of men, the second confidence, and the third perseverance. Let a man possess the concentrated gifts of a whole academy of *belles lettres*, and be deficient in shrewd practical discernment of what suits the public, he may pipe ever so melodiously, but he will get few subscribers to dance. Let him know, or imagine that he knows, ever so well what suits the public, if he have not a quick eye to see what other men are fit for, and how far they can be trusted to do his work, he may shut his shop and retire. Let him possess encyclopædic knowledge, and the readiest flow of winged words, but if he be not a man of hard-working, dogged persistence, he might as well sow the great Sahara as undertake to conduct a newspaper. A paper once fairly established may, indeed, conduct itself successfully, despite an unpractical and easy editor; for good machinery compels even inert matter into activity and order. But to rear a paper into vigorous existence amid a host of competitors—to make bricks without straw, and snatch the bread of victory out of the jaws of famine—the editor or conductor must be, in the first place, a man of business—it is of very subordinate importance that he be a man of letters. Hence it is sometimes objected, that newspapers, being in so many cases merely commercial speculations, must necessarily subordinate principle to profit. The objection is neither sound in logic, nor, in this country at least, true in fact. The manufacturer of shawls and blankets is not the less an honest man and estimable citizen because his primary object is not the good of the community but his own private advantage. His shawls and blankets are not the less excellent and indispensable because he converts them into pelf. If the shawl-manufacturer indeed become a power in the State, and begin to arrogate high virtue to himself for his services to the public, and to dictate laws in virtue of the prosperity of his business, it is reasonable that we should apply to him something analogous to the question, “Doth Job fear God for nought?” Applying this test to the press of

our own country, we arrive, on the whole, at satisfactory conclusions. If we do not see so much as we could wish of a grave sense of responsibility, and a careful weighing of facts and motives, we know how much is due to the terrible exigencies of time. This we are assured of, that in no other profession or occupation is there more of manliness and fair play; in none other is the professional honour so untarnished by the contact of lucre; and, so far as chastity of sentiment and expression is concerned, “the freest press in Europe (Mr Macaulay might have said, in the world) is also the most prudish.” Occasional examples of recklessness and violence, of meanness and bad taste, invalidate in no wise the force of this general assertion. Newspaper editors and writers are, we repeat, human like others. To expect that they should in every case display faultless wisdom and virtue is a devout imagination, but an extremely vain and irrational one. As to the paltry £. s. d. considerations, we have, for our own part, often admired, as a striking example of the innate virtue of human nature, despite its depravity, the magnanimous zeal which sustains so many newspaper proprietors in the task of instructing the public at a very swinging loss to themselves!

The power of the press is greatly aided, as every one knows, by the mystery which shrouds the writer, merging all personality of the individual in the mysterious plurality of the organ through which he speaks. It is not John or Thomas that proclaims the danger of the nation, the incapacity of a Minister, the justice or injustice of a deed. It is an unknown voice, uttered out of darkness, and therefore formidable—the voice not of one, but of many, and therefore claiming respect. The voice of a Greek tragedian sounded through his mask more awful than it really was; and the majestic buskin raised a very ordinary figure to the kingly height of Agamemnon. The “we” of John or Thomas, through the speaking-trumpet of the *Times*, becomes a very different pronoun from the “I” of these gentlemen uttered through their individual windpipes. If any argument were necessary to prove that this formidable anonymousness is not only essential to the liberty of the press, but the true safeguard of its health and honesty, we might point for proof to the Press of those States, whether despotic or free, where it is not tolerated. In the United States, for example, there is almost as little anonymous writing as in Paris or Vienna. There is no statute on the subject, and no legal censorship exists, but the state of public feeling makes it almost impossible for a man to conceal his personality. The writer may not put his name to his articles, but if he does not, it is only because he finds it

unnecessary. Is the press there more honest, more discreet, more tender of individual character than in Britain? No candid American will answer that question with an affirmative. The press of America is not the less formidable, not the more honest and scrupulous, that its principal writers are known or notorious men.

The character of the two nations is illustrated by some of their distinctive peculiarities in this respect. With us the tendency is to merge the individual in the body—with them the notion of liberty is associated with the clear recognition of individual independence. Here the newspaper editor is generally the invisible head of an association—there he is a right-well-known entity of flesh and blood, as cowhide and rattan applications have too often most strikingly demonstrated. There the journal is generally his, and his name figures conspicuously at the head of its columns—here he belongs more frequently to the journal, and, while wielding a great power in the community, his personal existence is a kind of myth, and his name may never have been heard by the great majority of his readers. The American editor, on the contrary, must make himself known, or he will not be listened to. All pugnacious republicans must have the means of knowing who it is that abuses them. The occupant of the White House must be made familiar with the name of the man who attacks or defends his policy, whose mouth may be silenced, or whose fidelity rewarded by a due share of the federal dollars. Let it not be imagined that any uncomplimentary remarks we make on the American press are intended to apply universally. So speaking, we should convict ourselves at once of ignorance and dishonesty. There are American newspapers and editors of high and unblemished character, as there are American politicians worthy of a better fate than to be kept waiting three months for the election of a Speaker. But of the American press generally the criticism still holds good, that, while boasting to be the freest in the world, it is in practical thralldom to an inextricably tangled system of democratic terrorism. Improvement there has been, we delight to think, within the last dozen years—so much so, that even papers which were the very offscourings of journalism, have become, in their European editions at least, fit for decent mortals to read. Out of a total of nearly three thousand papers, circulating among so mixed and changeful a population, it is little wonder, also, that there should be a large class of papers at which a cultivated man of any nation must look with contempt and sorrow. We know too well, from examples in our own colonies—as in India and

Australia—how, in heterogeneous and young communities, where men of high talent and education seldom resort except in the established paths to success, newspapers are apt to fall into the hands either of government agents or of reckless adventurers, with the natural result, in the one case, of insolence and servility, in the other, of indecent violence and gossiping personality. That, therefore, in a country like the United States, where men of intelligence and enterprise are never at a loss for profitable occupation, the press should be left in a great measure to those who can get nothing better to do, need not surprise us; nor, as the necessary result, that its moral and intellectual standard should hitherto have been such as a civilised and educated nation would, if it were not too busy, and too jealous of foreign criticism, have viewed with consternation as a professed mirror of itself.

While willingly granting thus much, the painful fact remains, that the papers which have all along enjoyed the largest share of public countenance in the United States, are those whose conductors have most openly set at defiance every sentiment of justice, decency, and good taste. The mere circulation of a journal is not, indeed, a conclusive test of its importance as an organ of public opinion, but it clearly enough points out what way the taste of the majority lies, and in a land of universal suffrage it gauges exactly the amount of its political influence. Our *Weekly Dispatch* has perhaps twenty readers for the *Spectator*'s one, but the one reader probably has more power in the commonwealth than the twenty. In a commonwealth, on the other hand, where all men are equally good, a hundred thousand Barnums are as good as a thousand centuries of Washington—faith, and in American politics, “a great dale betther too!” Thus it is that the most widely circulated paper becomes the greatest power in the State, and a power to which, even while loathing it, presidents and politicians are forced to bow the knee. Unwilling as we are that Mr James Gordon Bennett should lose any of the benefit accruing to him from these remarks (which, of course, he will turn duly to account),^[7] we have no hesitation in saying that they are intended to apply *par excellence* to the organ which, under his consummate management, has resolved one of the most singular problems of modern times. That problem may be stated thus: Given the minimum of literary ability, and the maximum of moral worthlessness—to educe out of their combination a machinery which shall control the political action of a Great Republic, and attain a leading place among the recognised mouthpieces of twenty million English-speaking freemen. There is a question of maxima

and minima over which Dr Whewell might puzzle his knowing head till doomsday, if he omitted to take into his calculations an element or two of the plus description! What these elements are, we must, however, leave for after consideration. In the mean time we propose to treat our readers to a few of the biographic delicacies furnished by the considerate Mr J. Parton. We consider his volume in every way entitled to the precedence. It was the first published, and evidently suggested the rival performance. It has all the marks of honesty about it, and, compared with the Life of Bennett, is a perfect *chef-d'œuvre* of ability. Its subject, in like manner, if considerably removed from our idea of a hero or a gentleman, is, compared with the editor of the *New York Herald*, a very Bayard in chivalry, a Job in uprightness.

Mr Parton sets about his work in a very thorough-going manner. The industry with which he has raked together all the information that could possibly be gathered regarding not only Horace Greeley, but Horace's ancestors to the third and fourth generation, is quite inconceivable; and his own ingenuous account of his preliminary labours is well calculated to awaken, if not the admiration, at least the astonishment of the reader. The style of procedure is exquisitely characteristic; and, as he himself phrases it, "the reader has a right to know the manner" thereof. Let us thank heaven that the promulgation of the recipe is not likely here to instigate imitation. First of all, the ingenious youth procures, "from various sources, a list of Mr Greeley's early friends, partners, and relations; also a list of the places at which he had resided." The young bloodhound! This done, "all those places I visited; with as many of those persons as I could find I conversed, and endeavoured to extract from them all that they knew of the early life of my hero." From these veracious sources this high-minded young scribbler compiled the narrative of the great man's early years, not disdaining even to accost drunken "old soakers" on the highway who might "hiccough out" a little tale about Greeley; and where he could not ferret out information on the spot, applying for it *by letter*. But this was a small portion of the self-imposed labour, which included a diligent inspection of the complete files of the "*New Yorker*, *Log Cabin*, *Jeffersonian*, *American Laborer*, *Whig Almanac*, and *Tribune*," nearly every number of which, "more than five thousand in all," he carefully examined. After such a course of reading, our wonder is, not that the biographic muse is slightly maudlin, but that she survived to put two sentences together!

We are treated to a preliminary sketch of the history of Londonderry (not omitting the siege), and the Scoto-Irish colony who thence emigrated to New England. To the hasty reader all this may seem highly unnecessary, but to those who are desirous deeply to penetrate into a “nature” so uncommon as that of Horace Greeley, it is supremely important, as we are told that “from his maternal ancestors he derived much that distinguishes him from men in general.” Another chapter is devoted to the paternal ancestors, regarding one of whom it is interesting to learn that he was a “cross old dog,” “as cunning as Lucifer,” and that he died at the age of sixty-five, with “all his teeth sound!” At length, at page 33, we come to the great fact of Horace’s birth. As has been the case with many great men, it was attended with some remarkable circumstances. To these our biographer does full justice. His account of the interesting scene is too fine to be omitted:—

“The mode of his entrance upon the stage of the world was, to say the least of it, unusual. The effort was almost too much for him, and, to use the language of one who was present, ‘he came into the world as black as a chimney.’ There was no sign of life. He uttered no cry; he made no motion; he did not breathe. But the little discolored stranger had articles to write, and was not permitted to escape his destiny. In this alarming crisis of his existence, a kind-hearted and experienced aunt came to his rescue, and by arts, which to kind-hearted and experienced aunts are well known, but of which the present chronicler remains in ignorance, the boy was brought to life. He soon began to breathe; then he began to blush; and by the time he had attained the age of twenty minutes, lay on his mother’s arm, a red and smiling infant.”

If the reader does not grant that to be one of the most graceful climaxes in biographic literature, we shall not write another word. Presuming on a general unanimity on this point, we proceed. The red and smiling infant in due time of course turned out a prodigy; “he took to learning with the promptitude and instinctive irrepressible love with which a duck is said to take to the water,” and was able to read “before he had learned to talk.” In spelling he soon became pre-eminent; and great marvels are recorded of his orthographic prowess. Unfortunately he was less distinguished by those virtues which we usually desiderate in boys. Though never afraid of ghosts, or overawed by superiority of rank or knowledge, he was eminently deficient in physical courage. “When attacked, he would neither fight nor run away, but ‘stand still and take it;’” the report of a gun “would almost throw him into convulsions.” Fishing and bee-hunting were the only sports he cared for, “but his love of fishing did not originate in what the Germans call the ‘sport impulse.’ Other boys fished for sport; Horace fished for *fish*.” Bee-hunting, again, “was profitable sport, and Horace liked it amazingly. His share of honey generally found its way to the store.” His passion for

books was generally attributed to indolence, and it was often predicted that Horace would never “get on.” Superficial idea! Even in very early life, says Mr Parton complacently, he gave proof “that the Yankee element was strong within him. In the first place, he was always *doing* something; and in the second, he had always something to *sell*.”

Notwithstanding Horace’s remarkable cleverness, we are told that he was sometimes taken for an idiot—a stranger having once inquired, on his entering a “store” in a brown study, “what darn fool is that?” Even his own father declared that the boy would “never know more than enough to come in when it rains.” These pleasing anecdotes are given on the authority of a bibulous old wretch, whom the indefatigable Mr Parton encountered and cross-questioned on the highway. He was quite drunk at the time, but “as the tribute of a sot to the champion of the Maine Law, the old man’s harangue was highly interesting.” Mr Parton sets it down to the praise of his hero, that though brought up in the bosom of New England orthodoxy, “from the age of twelve he began to doubt,” and “from the age of fourteen he was known, wherever he lived, as the champion of Universalism.” Here the biographer indulges in what he considers appropriate reflections, and points out to his readers the valuable effects of youthful infidelity. “The boy,” he coolly observes, “seems to have shed his orthodoxy easily.”^[8] Horace Greeley was in a fair way of training for his editorship.

The juvenile Universalist had long been ambitious of becoming a printer, and at last obtained a vacant apprenticeship in the office of Mr Amos Bliss, proprietor of the *Northern Spectator*. The great event is described with elaborate circumstantiality. The young “tow-head” proved a first-rate workman, and presently tried his hand at composition. “The injurious practice of writing ‘compositions,’” says his biographer, “was not among the exercises of any of the schools which he had attended.” Considering the general literary character of editorial writing in the United States, we are not surprised to find an American pronounce the early practice of composition *injurious*; the sentiment evidently is not peculiar to Mr Parton. Early attention to style might of course tend to weaken that native force in the use of epithets which apparently conduces so much to editorial success. Horace also joined a debating society, where he proved himself a perfect “giant.” His manners were entirely free from aristocratic taint, or any weak tendency to politeness. “He stood on no ceremony at the table; he *fell to* without waiting to be asked or helped, devoured everything right and left,

stopped as suddenly as he had begun, and vanished instantly.” Again, “when any topic of interest was started at the table, he joined in it with the utmost confidence, and maintained his opinion against anybody.” He never went to tea-parties, never joined in an excursion, and “seldom went to church.” A most interesting young man, on the whole, was Horace Greeley.

At length the *Northern Spectator* broke down, and the apprentice was left to shift for himself. His departure is described in quite a choice Minerva-Press style. “It was a fine cool breezy morning in the month of June 1830; Nature had assumed those robes of brilliant green which she wears only in June, and welcomed the wanderer forth with that heavenly smile which plays upon her changeful countenance *only when she is attired in her best*. Deceptive smile!” &c. &c. Horace at length determined to try his fortune in New York, and with ten dollars in his pocket, a shabby suit on his back, and a small bundle on his stick, landed “at sunrise, on Friday the 18th of August 1831,” near the Battery. The biographer, as in duty bound, comes out strong, and Benjamin Franklin, with his penny roll, appears in the proper place to garnish the story. “The princes of the mind,” says he, waxing sublime, “always remain incog. till they come to the throne.” Poor Horace’s appearance “was all against him.” Certainly, if the vignette representation of the youth with which Mr Parton has adorned his volume conveys any adequate idea of his aspect that morning, the statement is emphatically true. The prince of the mind was incog. with a vengeance—a more calculating and skinny-looking young Yankee it would be difficult to imagine. To the portrait on the opposite page, of the adult Horace in his white greatcoat—bought from an Irish emigrant!—we must, however, give the palm as a thoroughly characteristic representation of a full-blown Yankee Wilkes-Bentham Socialist, Maine Law champion, Vegetarian, Spirit-rappist, and we don’t know what else. The following bit of information is important:—

“The gentleman to whose intercession Horace Greeley owed his first employment in New York, is now known to all the dentists in the Union as the leading member of a firm which manufactures annually twelve thousand artificial teeth. He has made a fortune, the reader will be glad to learn, and lives in a mansion up town.”

To the event which gave Horace his “First Lift” in the world, the biographer devotes a whole chapter. That event was the establishment of the first Penny Paper. The idea originated in the head of an unfortunate medical student afflicted by Providence with ready cash to the amount of fifteen hundred dollars. Horatio David Sheppard, unwisely neglecting his pestle

and scalpel, took to dabbling in newspapers and magazines, and in due time found himself *minus* his dollars. Speculatively musing as he passed through Chatham Street, a great mart of penny wares, he was struck with the rapid sales effected by the energetic stall-keepers and itinerant venders of shoe-laces. Parting with an odd cent or penny seemed so natural and easy a proceeding that the offer of any article for that sum seemed irresistible. Might not a newspaper be produced at one cent with certain success? The idea, it must be admitted, was a happy one. As might have been expected, however, the proposal at first excited unbounded ridicule, and for eighteen months Dr Sheppard could not get “one man” to believe in its feasibility. At last, on New Year’s Day, 1833, appeared the *Morning Post*, published by “Greeley and Story,” price two cents. It lived only twenty-one days, dying from pure want of funds. The idea was soon after successfully realised by other speculators, and in a few years the penny press was able to take society by the throat. Its first reception is thus described:—

“When the respectable New Yorker first saw a penny paper, he gazed at it (I saw him) with a feeling similar to that with which an ill-natured man may be supposed to regard General Tom Thumb, a feeling of mingled curiosity and contempt; he put the ridiculous little thing into his waistcoat pocket to carry home for the amusement of his family; and he wondered what nonsense would be perpetrated *next*.”

If such was the reception of the cheap press among the go-ahead New Yorkers, it need not surprise us that in our own steady-going community it should have been still less favourable. The experience of the last few months, however, has pretty well demonstrated the absurdity of the principal objections. The anticipated peril to the health of society has, as every believer in the national good sense well knew, proved a chimera. British intellect and morals fortunately are not dependent on taxes and high price; and the gradual removal of all restrictions on the freedom of the press has only shown more signally that this people needs no legal bridling to keep on the path of decency and order. The number of cheap papers has indeed proved much smaller than was anticipated, few people seeming to have been aware how much energy and capital are required for the establishment of a paying penny paper—a fact which was alone sufficient to answer the fears of those who looked in June 1855 for the coming of the Deluge. In New York the case unfortunately was far otherwise. The Father of the American Penny Press, if to any one man that title is due, must be regarded as having treated his country in a way the reverse of what St Patrick did for Ireland—as a male Pandora, in fact, who opened the lid that

shut in a countless brood of very hideous creatures. The thing will end well, we hope, as we hope for a millennium; and improvement, as we have admitted, there already is. But that the birth of the cheap press in America was followed by a deluge of quackery, virulence, and indecency which has not yet entirely subsided, is a fact written in disgraceful characters on pages innumerable, and legible on the skins of men now living, had they not been tougher than bison's hide. That such should have been the result of cheapening the favourite stimulant of the American rabble was perfectly inevitable, and that the new development of journalism was accompanied by marked features of superiority is undeniable. The increase of violence and slander was itself a point of superiority in the eyes of the vulgar herd,—for coarseness passed for strength, and scurrility for smartness, the American's "darling attribute." But, among a people of intense activity and inquisitiveness, the increased energy in the procuring of news (whether true or false) must be looked upon as the chief cause of the immense popularity attained in so few years by the principal American journals. To this source, rather than to any general predilection for the vile and malicious, would we seek to attribute the extraordinary success of papers in which libel and indecency constituted a regular stock in trade. This is certainly no excuse for the patronage so bestowed, but it at least helps to explain it in a way not utterly destructive of our respect for a whole community.

And now, to return to our Horace. Of his dignified manners towards his workmen the following may suffice as an example. It is interesting, moreover, as showing that the extraordinary voracity of his early years had given place to utter indifference to considerations so low as the eating of dinner:—

"There was not even the show or pretence of discipline in the office. One of the journeymen made an outrageous caricature of his employer, and showed it to him one day as he came from dinner. 'Who's that?' asked the man. 'That's me,' said the master, with a smile, and passed into his work: The men made a point of appearing to differ in opinion from him on every subject, because they liked to hear him talk; and, one day, after a long debate, he exclaimed, 'Why, men, if I were to say that that black man there was black, you'd all swear he was white.' He worked with all his former intensity and absorption. Often such conversations as these took place in the office about the middle of the day:—

"(H. G., looking up from his work)—Jonas, have I been to dinner?

"(Mr Winchester)—You ought to know best. I don't know.

"(H. G.)—John, have I been to dinner?

"(John)—I believe not. Has he, Tom?

“To which Tom would reply ‘no,’ or ‘yes,’ according to his own recollection or John’s wink; and if the office generally concurred in Tom’s decision, Horace would either go to dinner or resume his work, in unsuspecting accordance therewith.”

With that interesting proneness to heresy of all kinds which distinguishes Mr Greeley, he soon after adopted the semi-vegetarian principles of a certain Rev. Dr Graham, who, says the biographer, “was a *discoverer* of the facts, that most of us are sick, and that none of us need be; that disease is impious and *disgraceful*, the result in almost every instance of folly or crime.” The italics are Mr Parton’s, whose digestion, it is to be hoped, is unexceptionable.

At length, early in 1834, Horace, with two partners, started the *New Yorker*, a weekly paper, “incomparably the best of its kind that had ever been published in this country;” so good, in fact, that after seven years of hard struggle it gave up the ghost. We would rather believe that its want of success was due to the incompetency of its management; but if the editor was in the habit of uttering such unpalatable truths as is contained in the following specimen, we are afraid it must be conceded with the biographer that the *New Yorker* was not half enough spicy, or fawning:—

“The great pervading evil of our social condition is the worship and the bigotry of Opinion. While the theory of our political institutions asserts or implies the absolute freedom of the human mind—the right not only of free thought and discussion, but of the most unrestrained action thereon within the wide boundaries prescribed by the laws of the land, yet the *practical commentary* upon this noble text is as discordant as imagination can conceive. Beneath the thin veil of a democracy more free than that of Athens in her glory, we cloak a despotism more pernicious and revolting than that of Turkey or China. It is the despotism of Opinion.”

The *New Yorker* having never, during its whole term of existence, reached the paying point, the poor editor was obliged to keep the pot boiling by other means. In 1838 he undertook the sole charge of the *Jeffersonian*, a paper of a class peculiar to America, and denominated “Campaign Papers.” The noble purpose of the *Jeffersonian* is thus described by Greeley himself: “It was established on the impulse of the Whig tornado of 1837, to secure a like result in 1838, so as to give the Whig party a Governor, Lieutenant-governor, Senate, Assembly, United States Senator, Congressmen, and all the vast executive patronage of the State, then amounting to millions of dollars a year.”

The *Jeffersonian* existed only one year, having served its end. The labours of the editor were enormous; “no one but a Greeley” could have endured it all. In 1840 he started another “Campaign Paper,” in the interest of General Harrison. The absorption of the editorial mind during this

exciting season is illustrated by another of those graceful anecdotes, in which our biographer delights—relating how Mr Greeley arrives late at a political tea-party (Sunday evening), and straightway plunges into a conversation on the currency; how the worthy landlady asks him in vain to take tea; how she begs him to “try a cruller anyhow,” and is rudely repulsed; how she places a large basket of these unknown delicacies on his knees, and he mechanically devours every morsel; how, fearing the consequences, she substitutes for the “cruller” basket a great heap of cheese; how the remarkable boa-constrictor gobbles it all up; and how, finally, he was *none the worse* of it all. “Anecdotes,” says Mr P., are “precious for biographical purposes.”

The *Log Cabin* had a circulation of from 80,000 to 90,000, and yet such was the easy virtue of the subscribers that the proprietor made nothing by it, and the last number contained a moving appeal “to the friends who owe us.” Such, also, is political gratitude, that Mr Greeley did not even receive the offer of an office in acknowledgment of his valuable services, at which his biographer is duly disgusted. He adds the following significant anecdote:—

“Mr Fry (W. H.) made a speech one evening at a political meeting in Philadelphia. The next morning a committee waited upon him to know for what office he intended to become an applicant. ‘Office?’ said the astonished composer—no office.’ ‘Why, then,’ said the committee, ‘*what the h—ll did you speak last night for?*’ Mr Greeley had not even the honour of a visit from a committee of this kind.”

Mr Greeley at length ventured on the bold experiment of starting a new daily paper. There were already eleven in New York; but a cheap Whig paper^[9] was wanted, and accordingly, on the 10th April 1841, appeared the *New York Tribune*, price one cent. It began with only six hundred subscribers, and encountered much opposition, but was “from its inception very successful.” The *Tribune*, says Mr Parton, was “a live paper,” and it prospered by opposition. “FIGHT was the word with it from the start—FIGHT has been the word ever since—FIGHT is the word this day.” One thing was wanting to success—an efficient business-partner. Such a man was found in the person of Mr Thomas M’Elrath. The biographer shouts and rubs his hands with ecstasy at such a combination of excellence as was now realised. Hear him:

“Roll Horace Greeley and Thomas M’Elrath into one, and the result would be, a very respectable approximation to a Perfect Man. The Two, united in partnership, have been able to produce a very respectable approximation to a perfect newspaper. As Damon and Pythias are the types of perfect friendship, so may Greeley and M’Elrath be of a perfect partnership; and one may say, with a sigh at

the many discordant unions the world presents, Oh! that every Greeley could find his M'Elrath! and blessed is the M'Elrath that finds his Greeley!"

And woe to the Greeley that finds his Parton!

For a complete history of this respectable approximation to perfection, says Mr Parton, "ten octavo volumes would be required, and most interesting volumes they would be." Mr Parton gives us instead the small dose of "over" 200 octavo pages, and we are bound to say that it is at least 190 too many. In these weary sheets the curious will find a full account of Mr Greeley's exertions in defence of Fourierism, Whiggism, Teetotalism, Anti-Slavery, Woman's Rights, and Irish Rebellion, his libels on Fenimore Cooper, his motions in Congress, his lectures, his European travels, his personal appearance, his private habits, &c. &c.

"For Irish Repeal," among other good causes, the *Tribune* "fought like a tiger," the magnanimous editor accepting a place in the Directory of the Friends of Ireland, "to the funds of which he contributed liberally." Mr Greeley is not a warlike man, as his boyish experiences have indicated, but incendiarism and bloodshed in British territory are things for which he willingly sacrifices a few dollars. Our readers are aware that the publication of the wildest fictions, pleasantly denominated "hoaxes," constitutes an attractive element in American journalism. In August 1848, New York red-republicanism was "on the tiptoe of expectation for important news of the Irish rebellion." The fortunate *Tribune* obtained exclusive intelligence, and hastened to publish, "with due glorification," a flaming account of the great battle of Slievenamon (afterwards known as "Slievegammon,") in which 6000 British troops were killed and wounded. "For a day or two the Irish and the friends of Ireland exulted; but when the truth became known, their note was sadly changed." The editor, we learn, was absent at the time, but there is no doubt he would have exulted as much as any man to hear of the "stench" of a three-mile shambles of British soldiers. His tone on the subject of the Russian war has betrayed no weak sympathy with the Western combatants; and doubtless he takes a brotherly interest in the insane and detestable conspiracies now or lately hatching among the unhappy exiles of Erin.

In November of that year, Mr Greeley was elected to a seat in Congress, by a machinery the corruption of which is testified by no less a person than himself. He was very active as a member, and soon made himself prominently obnoxious by exposing various legislative jobs. Some of the

lively scenes that occurred are described at immense length. Mr Parton draws no flattering conclusion from the reception of his hero in the House of Representatives. Let our American friends console themselves with the assurance that his testimony is not decisive.

“An honest man in the House of Representatives of the United States seemed to be a foreign element, a fly in its cup, an ingredient that would not mix, a novelty that disturbed its peace. It struggled hard to find a pretext for the expulsion of the offensive person; but not finding one, the next best thing was to endeavour to show the country that Horace Greeley was, after all, no better than members of Congress generally.”

In 1849, the *Tribune*, with its habitual predilection for the fanatical and revolutionary, or, as Mr Parton loftily phrases the thing, “true to its instinct of giving hospitality to every new or revived idea,” devoted large space to the promulgation of Proudhon’s delightful ideas on the subject of Property. Among other things also, says our chronicler, it began a rejoinder to the *Evening Post* in the following spirited manner,—the only specimen we choose to quote of Mr Greeley’s vituperative abilities:—

“You lie, villain! wilfully, wickedly, basely lie!”

This observation, placidly remarks the historian, “called forth much remark at the time.” The person to whom it was addressed was WILLIAM CULLEN BRYANT. With the same instinctive hospitality towards every form of delusion, the *Tribune* opened its accommodating columns to the Spirit-Rappers, who, notwithstanding a few hundred cases of insanity and other small evils, have, in Mr Parton’s opinion, done much good. About the same time it took up the Woman’s Rights humbug, acknowledging that the ladies are perhaps unwise in making the demand, but maintaining that no sincere republican can give any adequate reason for refusing them “an equal participation with men in political rights.” A whole chapter is devoted to Mr Greeley’s platform exhibitions, which it seems are very frequent and edifying—Horace having, as Mr Parton tells us, a benevolent appreciation of the delight it gives “to see the man whose writings have charmed and moved and formed us.” Not only does he lecture as often as possible, but

“At public meetings and public dinners Mr Greeley is a frequent speaker. His name usually comes at the end of the report, introduced with ‘Horace Greeley being loudly called for, made a few remarks to the following purport.’ The call is never declined; nor does he ever speak without saying something; and when he has said it, he resumes his seat.”

The remarkable man!

In 1851, Horace went to see the World’s Fair in Hyde Park. No foolish curiosity or sentimentality instigated the philosophic editor; his main object,

as announced (the American editor keeps his readers regularly informed on all his movements) in the *Tribune*, being to inspect “*the improvements recently made, or now being made, in the modes of dressing flax and hemp, and preparing them to be spun and woven by steam or water power.*”

The departure and passage are carefully described; Mr Parton having apparently paid a steward to note, watch in hand, all the phenomena of Horace’s sea-sickness. Nothing that he saw in this effete country seems to have in the least impressed his great mind. The royal procession would have faded before “a parade of the New York Firemen or Odd Fellows.” The Queen he patronisingly noticed, and was even “glad to see,” though “he could not but feel that her *vocation* was behind the intelligence of the age, and likely to go out of fashion at no distant day;” but not, poor thing! “through *her* fault.” The posts of honour nearest her person should have been confided, he thought, to “the descendants of Watt and Arkwright;” the foreign ambassadors should have been “the sons of Fitch, Fulton, Whitney, Daguerre, and Morse,” &c. &c. Hampton Court he thought “larger than the Astor House, but less lofty, and containing fewer rooms.” Westminster Abbey was “a mere barbaric profusion of lofty ceilings, stained windows, carving, graining, and all manner of contrivances for absorbing labour and money;” less adapted for public worship “than a fifty thousand dollar church in New York.” He gives credit to the English for many good qualities, but thinks them “a most *un-ideal* people,”—he, the romantic Greeley! “He liked the amiable women of England, so excellent at the fireside, so tame in the drawing-room; but he doubts whether they could so much as *comprehend* the ideas which underlie the woman’s rights movement.” (The amiable women of England may well console themselves under a doubt so complimentary to their common sense.) In Paris the great man was apparently in better humour, devoting two days to the Louvre—a wonderful fact. His great political sagacity shines forth in his estimate of French affairs in June 1851. France he found as “tranquil and prosperous as England herself;” as for fear from Louis Napoleon, he “marvels at the *obliquity of vision* whereby any one is enabled, standing in this metropolis, to anticipate the subversion of the Republic.” In Italy his first remark was, that he had never seen a region so much in want of “*a few subsoil ploughs.*” Edinburgh, it seems, was honoured, before his return to New York, by a visit from this great unknown; and we are proud to learn that it “surpassed his expectations.”

“In the composition of this work,” says our judicious biographer, “I have, as a rule, abstained from the impertinence of panegyric.” When, therefore, he tells us that the rolling together of Greeley and M’Elrath, after the manner of a dumpling, would result in something like perfection; that Greeley is “too much in earnest to be a perfect editor;” that “he is a BORN LEGISLATOR,” and “could save a nation, but never learn to tie a cravat;” that he is “New York’s most distinguished citizen, the Country’s most influential man,” and editor of the best paper in existence; that, in short, he is “the Franklin of this generation—Franklin liberalised and enlightened,”—we are to take these statements as the sober expression of bare hard fact; and the reader is left to conclude from them how much might have been said by a more partial and weak-minded biographer—his imagination is left to fill up the outline of a Greeley’s perfections!

But does the reader wish to see the man himself—to know his height and weight, not metaphorically, but actually, in British feet and inches, and in pounds avoirdupois? So pleasant and laudable a desire the amiable Parton is far from disappointing; for does not the great man say that “there’s no use in any man’s writing a biography unless he can tell what no one else can tell.” Here, then, reader, you have it, what no one else assuredly could, would, or should dream of telling you but the inimitable, the unapproachable Parton:—

“Horace Greeley stands five feet ten and a half inches, in his stockings. He weighs one hundred and forty-five pounds. Since his return from Europe in 1851, he has increased in weight, and promises to attain, in due time, something of the dignity which belongs to amplitude of person. He stoops considerably, not from age, but from a constitutional pliancy of the back-bone, aided by his early habit of incessant reading. In walking, he swings or sways from side to side. Seen from behind, he looks, as he walks with head depressed, bended back, and swaying gait, like an old man; an illusion which is heightened if a stray lock of white hair escapes from under his hat. But the expression of his face is singularly and engagingly youthful. His complexion is extremely fair, and a smile plays ever upon his countenance. His head, measured round the organs of Individuality and Philoprogenitiveness, is twenty-three and a half inches in circumference, which is considerably larger than the average. His forehead is round and full, and rises into a high and ample dome. The hair is white, inclining to red at the ends, and thinly scattered over the head. Seated in company, with his hat off, he looks not unlike the ‘Philosopher’ he is often called; no one could take him for a common man.”

Now, then, reader, if you do not give us credit for introducing you to the acme of modern biography, we pronounce you the most ungrateful and least discriminating of human beings. “If Horace Greeley were a flower,” says J. P., “botanists would call him single, and examine him with interest.” “He is what the Germans sometimes style ‘a nature.’” And if J. P. also were a

flower, botanists would inevitably pronounce him “a tulip.” He is what in Scotland we sometimes call “a natural”—otherwise known as “a halfling;” or, in vernacular English, a born fool. Horace Greeley is not, to our mind, a person very agreeable or very venerable; but intensely as we dislike his bad qualities, and those of his paper (in some respects a good one—very attentive, in its own peculiar way, to literature, and excellently printed^[10]), his dreary fanaticism and vulgarity, his bigoted Yankeeism, his strong anti-British feeling—much as we dislike all this, we do not like to see him made absolutely ridiculous, had he no other good quality than the pleasure he takes in farming. We are not surprised, however, to learn that he has few friends, “and no cronies.” His biographer, at least, is not among the former; for any man would accept his chance against a Kentucky rifle sooner than a biography at the hands of Mr J. Parton. There is this comfort, at least, that Horace Greeley “has no pleasures, so called, and suffers little pain,” otherwise, we imagine, the admiring scribbler would not, with such inconceivable indelicacy, have opened the doors of his closet, and exhibited him *in puris naturalibus* to the gaze of the world.

Turn we now to the veracious record of the Life and Adventures of the Jack Ketch of editors, the redoubtable and happily unparalleled James Gordon Bennett, with whom, for several reasons, we must be brief. The author has of course sought no counsel from “Mr Bennett, nor any one connected with him.” The work is a pure labour of love, “a spontaneous act of literary justice” to the character of a noble and much maligned man. The former statement we perfectly believe, as we imagine the consultation would naturally proceed *from* and not *to* the subject of the memoir. As to the spontaneity, there can be little doubt that the work was prompted by the dumpy and infatuated volume of which we have attempted faintly to shadow forth the beauties,—as to “justice,” no man is more dreadfully in earnest for justice than when he defends himself. The motto prefixed from Dr Johnson is admirable: “*History, which draws a portrait of living manners, may perhaps be made of greater use than the solemnities of professed morality, and convey the knowledge of vice and virtue with more efficacy than axioms and definitions.*” Which being applied to the present case, may be interpreted to signify that the life of a notorious blackguard is more eloquent than a sermon of Dr Blair, and conveys the knowledge of virtue, through the exhibition of its contrary, with more impressiveness than all the proverbs of Solomon! In this sense the Life of Mr James Gordon

Bennett might, in faithful and competent hands, do as much good as the *Newgate Calendar*, or Defoe's *Autobiography of an Unfortunate Female*,—it might carry along with it, as this preface says, “not a few valuable lessons.” Unhappily, however, the genius of this biographer is utterly unequal to the subject, and instead of a lifelike and instructive portraiture, he has produced a senseless and incredible daub. More speaking by far is the portrait which fronts the title-page. It represents in sharp outline the face of a hard-headed, heavy-browed, obstinate man; vulpine sagacity in the wrinkles of the mouth and the corners of the eyes; long upper-lip and heavy under-jaw, and bold vulturine nose seeming to scent carrion from afar. The eyes are upturned in sculptured lifelessness—in artistic justice, we presume, to that unfortunate ophthalmic defect known as a diabolical squint. The portrait, we say, is better than the book, and tells, though probably a flattering likeness, a clearer and more honest story.

“Is it not,” inquired Mr Dickens in New York, “a very disgraceful circumstance that such a man as So-and-so should be acquiring a large property by the most infamous and odious means, and, notwithstanding all the crimes of which he has been guilty, should be tolerated and abetted by your citizens? He is a public nuisance, is he not?—Yes, sir. A convicted liar?—Yes, sir. He has been kicked, and cuffed, and caned?—Yes, sir. And he is utterly dishonourable, debased, and profligate?—Yes, sir. In the name of wonder, then, what is his merit?—*Well, sir, he is a smart man!*” Such is the satisfactory solution of the problem to which we have already alluded, the solution of the Barnum phenomenon, and with it of all analogous phenomena. Similar is the testimony of the smart young man whom we have just parted with. “Every race,” he says, “has its own ideas respecting what is best in the character of a man.... When a Yankee would bestow his most special commendation upon another, he says, ‘That is a man, sir, who generally *succeeds* in what he undertakes.’” Let no delicate and high-minded person, therefore, be astonished that such a man as James Gordon Bennett, whom the respectability of New York has for twenty years loathingly patronised, should have attained a commanding position among the spiritual powers of the American Republic. He is a man of undeniable “smartness”—not in our sense, indeed, for we have never seen a line of his composition that exhibited anything above what could be called third-rate mediocrity of thought and style, but in the sense of keen appreciation of means and ends, audacious scheming, impenetrability to shame, and

invincible endurance of chastisement. His inflictions in this respect, both moral and physical, he has uniformly turned to the best account: in a sense different from that of the Psalmist, he can say that it was good for him to be afflicted. No man probably ever made more dollars by the proclamation of his own disgrace. A mere catalogue of the horse-whippings he has undergone during his long career of ingloriousness, would astonish the nerves of our readers.^[11] Each new infliction has been prominently blazoned in the columns of the *Herald*, and the attractive words “COW-HIDED AGAIN!!!” have been duly followed by a rush of buyers and a cheering flow of cents into the pockets of the complacent victim! On this subject his own testimony and that of his biographer are singularly frank and decided:—

“Since I knew myself, all the real approbation I sought for was my own. If my conscience was satisfied on the score of morals, and my ambition on the matter of talent, I always felt easy. On this principle I have acted from my youth up, and on this principle I mean to die. Nothing can disturb my equanimity. I know myself—so does the Almighty. Is not that enough?”

“This,” says the biographer, “*is not the language and spirit of a common mind*. It is the essence of a philosophy which has not deserted a man who has never failed to republish every slander against himself, and who has been conscious always that calumnies cannot outlive and overshadow truth.”

A man whose conscience seems never to have given him much trouble, and whose ambition has been satisfied with the acquisition of wealth and political power, may well feel easy under the whips and scorns of a whole universe! This is assuredly, and we rejoice to think so, not the language and spirit of the majority of mankind. Those only despise the approbation of their fellows who have shaken off the attributes of humanity, and accept the reverse of the proverb, that “a good name is rather to be chosen than great riches.” The impious allusion to the Almighty is worthy of a Couthon or a Marat.^[12]

The success of such a journal as the *New York Herald* is an undeniable blot on the community on whose follies and vices it battered into prosperity. The damning fact cannot be denied, that it was not in spite but *on account* of their scandalous character that such journals first attracted public attention and secured a hearing. While, therefore, we diminish not a jot our abhorrence of the men who reared these monuments of their own infamy, we are bound to regard them as but the concentrated type of the character that pervaded their constituency. If the *New York Herald* was

unprincipled and obscene, the readers of the *New York Herald* must have shared in these qualities. Its conductor may have been a scoundrel, but he certainly was no fool; he fed his readers with such food as suited their taste. Had that taste been purer, he was knowing enough to have provided cleaner fare: in a grave and religious community he would probably have preached with unctuous decorum. Already the taste of that community has improved (no thanks, assuredly, to him); the deluge of vituperation and indecency has subsided, and the *New York Herald* has followed the temper of the time. It may not, as the helpless biographer tells us it is, be “a familiar journal at every court throughout the world, and in all intelligent communities,” but, compared with its former self, it is positively respectable.

Granting, therefore, that James Gordon Bennett was as disreputable an editor as Dr Faust’s great patron ever let loose upon mankind, it is both philosophically and historically just that we should regard him, as Germans would say, not as an isolated phenomenon, but as a highly-remarkable-and-in-itself-much-embracing-development of social existence. The half-apologetic statements on this subject by the biographer, who is in general so preposterous in his partiality and admiration as to be utterly beyond criticism, are among the most curious things in the book. After describing the state of society and of journalism previous to 1833, he says:—

“A more fortunate position of circumstances cannot be imagined than that which presented itself for Mr Bennett’s talents at this period. He had been moulded by events and experience to take a part in the change which the Press was about to undergo....

“Mr Bennett was prepared in every way for the occasion. He had been just so far injured as to urge him to take hold of the world with but little mercy for its foibles, and with so little regard to its opinions that he could distinguish himself by an original course in Journalism. He felt as Byron did after the Scotch Reviewers had embittered his soul by their harsh treatment of his ‘Hours of Idleness.’ This was a mood highly favourable to the production of a rare effect. The dormant spirit of the people could only be awakened by something startling and novel, and circumstances had produced a man for the times.”

The early numbers of the *Herald*, we are told, were “agreeable, pleasantly written, and comparatively prudish.” The habits of the editor were “exemplary.” Finding that this sort of thing was “no go,” the astute adventurer took a bolder course, and flung aside those trammels of decency and moderation which would have impeded or ruined the prospects of a weaker and less original mind. The biographer admits that his hero behaved somewhat grossly, but argues, as one might plead in defence of a vampire or a cobra-de-capello, that he merely used the weapons which nature had given him, and that at any rate he was no worse than his neighbours.

“The improved taste of the present hour will not sanction the mode in which Mr Bennett at first undertook to be the censor of society: but *a philosophical analysis of the means which were used in his peculiar and eccentric course (!)* exhibits motives as the springs of action, which do not necessarily indicate a callous heart or a bad temper.... That Mr Bennett had been provoked to use any and all power at his command, to overturn the wanton assailants of his character, cannot be denied. *He had but armed himself with the best instruments heaven had bestowed upon him*, and his mode of warfare was quite as dignified as that which had been resorted to, and adopted for fifteen or twenty years before, by the Press generally.”

If instead of the blasphemous word “Heaven” we substitute another more congruous to the nature of the subject, the above may be taken as a sufficiently “philosophical” view of the point at issue. A little farther on there is a still clearer admission. After telling us that the public did not care for political articles in such small sheets as the *Herald*, the biographer shows how it became *necessary* for Mr Bennett to fill his paper with falsehood and obscenity:—

“It would have been folly, therefore, to have attempted to make a daily offering to the public of a newspaper, such as is accepted even at the present hour. Mr Bennett saw this—he felt it. He wrote to create an interest for himself and the *Herald*. In this he was pecuniarily wise, for had he taken a more dignified course, and thus have produced only such studied articles as he had contributed to the *Courier and Enquirer*, from 1829 to 1832, the *Herald* would not have existed for a single month, unless sustained by a sacrifice of capital which it was not in the power of Mr Bennett to command. All of his success depended upon his making a journal wholly different from any one that was in existence.”

And in that attempt the enterprising editor succeeded to a miracle, for certainly anything approaching to the *Herald* in its “peculiar” character, the literature of civilisation had not seen!

That there may be no mistake on the matter, the biographer, in summing up the transcendent merits of Mr Bennett near the close of the volume, assures us that the course pursued was perfectly deliberate:—

“On the 5th of May 1835, he commenced *his work of regeneration* by publishing the first number of the *New York Herald*, which, till it was established, was conducted with such peculiarities as secured it attention—*peculiarities which seemed to have sprung from a mind resolved to carry out certain broad personal characteristics*, which in themselves furnish the bitterest satire upon the true nature of political and social life known to the literature of any age or country. *The course adopted was not based on impulse. There is no excuse for it on that ground. It was the fruit of the most careful reflection, as is proved by the fact that the original prospectus has not been departed from in any point whatever during a period of twenty years.* The original design was to establish a journal which should be independent of all parties, and *the influence of which should be grounded upon its devotion to the popular will*—a plan which has found numerous imitators, and which is the only one suited to satisfy the demands of the public.”

Mr Bennett, who of course “endorses” these sentiments, is thus, it is evident, as much at ease in his “conscience” with regard to his past conduct as ever, and would, if the thing were to be done over again, do it *con amore*

again. The *popular will*—not Truth or Righteousness; the most sweet voices of the rabble, not the still small voice of the man within the breast—that, then, is the creed of this “regenerator” of journalism—*Apaga Satana*.

The best type of Scottish character is eminently distinguished by force and earnestness; but as a Scotchman, when he is good, is intensely so—a Scotchman, when he sells himself to Clooty, is perhaps of all human beings the most devoted servant of that personage. Scotland, which has produced such eminent examples of genius and nobleness in this century as Thomas Chalmers and John Wilson, had the misfortune to give birth also to James Gordon Bennett. Let her not grieve, for the same England that gave birth to John Milton, was the mother likewise of Titus Oates.

THE GREEK CHURCH.

There can be no question with the philosopher, that war is one of the great sources of change in the movement of the world. Whether its purpose be conquest or defence, or its stimulant ambition or restlessness, or its immediate impulse the genius of some great leader, urging the rapacity of a people, the changes which it makes in the general mass of society are always more remarkable than those of any other instrument of human impression. Wars are the moral thunderstorms, which either cover the face of society with havoc, or purify its atmosphere. War is the shifting of the channel in which the great stream of society has hitherto flowed on, and the formation of the new course which fertilises a new region, while it leaves the old one barren; or, is like the power of steam, a pressure in its nature explosive, and marking its power only in its ruin, but capable of being guided into a general benefactor of man, and originating effects large and general beyond the means of any other mover.

To the reader of the Scriptures, the question is decided at once. War is constantly held forth as the instrument of Divine action—sometimes as punishment, sometimes as restoration, but always as subservient to a great providential intention. A voice of more than man calls Cyrus from the sands of Persia, at once to smite the pride of Babylon, and to break the chains of the Jew. The same voice summons Alexander from the hills of Macedonia to subvert Persepolis, and be the protector of the chosen people. We have the distinct declaration from the highest of all sources, that the Roman war which closed the national existence of that unhappy but memorable people, was the direct performance of the Divine will by the instrumentality of the heathen sword.

It is true, that in later history we have not the same power of ascertaining the distinct purposes of Providence. We “see through a glass darkly,”

through the dimmed medium of human knowledge, through the comparison of things imperfectly shown, and the misty conjectures of man. Yet still it is a study honourable to human intelligence, and we are sometimes enabled, even by flashes and fragments of evidence, to trace without superstition or exaggeration the ways of that great Disposer, who balances the fates of nations, and whose vigilance is as sleepless as His power is immeasurable. No man conversant with modern history can doubt, that the war of the German princes in the sixteenth century sheltered the cradle of the Reformation, until the mighty infant was enabled to quit that cradle and assume maturity; or that the war with Spain and the destruction of the Armada gave English Protestantism an embodying of strength in England, and a renown abroad, which secured it from all assault either at home or abroad; or that the wars of William III., in Ireland and on the Continent, were the virtual throwing of a shield over Protestantism in England, and extinguishing by the sword in France the power which had pledged itself to the extermination of French Protestantism; or that the French revolutionary war, however originating in the national vices, had, in its conquest of the three Capitals of Austria, Prussia, and Russia, a direct connection with the vengeance of insulted justice, and the retribution of outraged humanity on the royal spoilers of unhappy Poland.

Nothing among the phases of human affairs has been a matter of older or more frequent wonder to both the philosopher and the Christian, than the condition of the country ranging along the eastern shore of the Mediterranean. That, within the perpetual hearing, and almost within sight of the civilisation of Europe, with the sounds of its moral revolutions, progress, and discoveries in its ears, it has never exhibited an inclination to try the strength of its own frame in any of the exercises of self-government; that, with a population highly gifted by nature, acute, adroit, and even warlike, fifty-fold more numerous than the Turk; that, with the finest climate of the globe, the richest soil, the noblest historic recollections, the whole region, from Egypt to the Euphrates, should have exhibited its bravery in nothing but the exploits of banditti, its intelligence in nothing but the craft of the trafficker, and its philosophy in nothing but the submission of the slave, seems unaccountable.

Yet especially that Palestine, the land of which we can never speak the name, or remember the afflictions, or revolve the history, without homage, sorrow, and hope; that the soil, with every hill and valley and sea-shore

sacred to the Christian heart, and the object of promises, on which we fully rely, yet which transcend all that earth has seen of blessing, power, and splendour,—the land of which Inspiration has pronounced: “Thy sun shall no more go down; neither shall thy moon withdraw itself: for the Lord shall be thine everlasting light, and the days of thy mourning shall be ended. Thy people also shall be all righteous: they shall inherit the land for ever, the branch of my planting, the work of my hands, that I may be glorified. A little one shall become a thousand, and a small one a strong nation: I the Lord will hasten it in his time” (Isaiah, lx. 20); that Palestine, towards which every man, Christian or Jew, looks, as the prophet in the days of the captivity looked in his prayer, should be still desolate; that even Jerusalem, whose very dust is dear to us, should be known as scarcely more than the haunt of obscure superstition, and the squabbles of Greek and Latin monks,—is among the most surprising facts of human annals.

We are by no means sanguine as to the *effect* of the war, into which Russia has provoked the Powers of Europe. It is an impulse which may pass away—a “wind which bloweth where it listeth, and we hear but the sound thereof”—a form of ambitious frenzy, starting up from the imperial couch, and, in the first moment of exhaustion, sinking back within its curtains. But, notwithstanding all those possibilities, to chide the eagerness of human anticipation, nothing is more evident than that the war has some features which distinguish it from all the wars since the fall of the Greek Empire. It is remarkable that its first quarrel was in Jerusalem, and the express contest was for the possession of the most venerated spot in Jerusalem, the Holy Sepulchre. Whether this quarrel was sincere or a pretence—whether to restore injured rights or to cover a determination of wrongs—is a matter of no moment in presence of the fact that thus began the Russian war. Another obvious fact is, that though there have been expeditions to the Levant within the century, as the march of Napoleon into Syria, and the later assaults on Acre, this is the first war, since the Crusades, which ever poured the weight of the great armies and navies of England and France on the East, which ever planted a solid step on the lands under the Mahommedan rule, which ever exhibited European strength, arts, discipline, and treasure, in their actual and distinct character, to the eye of the Mahommedan. If the European forces should be withdrawn to-morrow, there can be no doubt of their having thrown a new light on the mind of the Mahommedan world. The old generation must soon pass away, and a large portion of its

prejudices must pass away with it. The new generation may respect its memory, and act as the pallbearers in its obsequies, but they will not go down into its grave. Already the Turk is becoming associated with the Englishman and the Frenchman; the English discipline of the Contingent must leave its impressions, even when the Contingent shall be broken up. The pay, the punctuality, the good order, and the gallantry of the service, cannot be forgotten; and the man will be cast into a mould, manlier and more capable of progress than any Turk, since the tribe, with the “black banner” before them, descended from the slopes of the Himalaya. The Christians of the Ottoman Empire have obtained new privileges already by this war. Measures are on foot for making their testimony available in the courts of justice. They are to have the right of bearing arms in the Ottoman service—a highly important innovation, and leading to every privilege; and there can be no doubt that the Ottoman government must acknowledge its old power of oppression to be at an end, or that any attempt at persecution or violence to its Christian subjects would be under penalty of provoking resistance from its Christian allies. All those results have their origin in the war, and those are in their nature progressive. Privilege begets privilege, and the next quarter of a century, whether in the struggles of war or the activity of peace, will place the Christians of the East in a position higher than their most sanguine speculation could have contemplated before the war on the Euxine.

Views of this order give additional value to that interesting subject, the character of the Christian Church in the East. It becomes important to know how far that Church is capable of assisting the progress, aiding the energies, or even conforming to the character of a people on the eve of renovation; whether it is to continue the swamp that it has been for the four centuries since the capture of Constantinople, or to be the fount flowing with the waters of national life; whether it is to be regarded as a monument of dreary ceremonial, encumbering the soil with its weight, and of doctrines incompatible with the gospel, or as only waiting to be freed from the barbarian accumulations of antiquity, to show the world an architecture worthy of its apostolic founders, and fit for the reception of enlightened mankind.

The Greek Church has, beyond all question, high claims to the consideration of Christendom as the mother of all the churches,—founded by the Apostles, governed by the last of the Apostles,—the Church of the

first Christian empire, and for the first four centuries exhibiting the most illustrious examples of virtue and ability, of patience under trial, and of piety in the propagation of the faith. In the Church of proconsular Asia was the arena in which the strength of revelation was first tried against all the power of imperial heathenism, the severer combats than against the lions of Numidia. To that province was sent the message to the “Angels of the Seven Churches;” in its neighbouring Byzantium was erected the central Church, the spiritual sun, which spread its light through the East and West, through the shores and forests of the North, and through the mountains and wildernesses of the South,—the Church which, resisting the image-worship of the Western nations, and the mysterious mythology of the East, continued for fifteen hundred years the Ark of Christianity.

The subject has been frequently touched on in the rapid publications of our time, but with an inaccuracy of detail, and an obscurity of view, which fully justifies the attempt to rectify the one, and to clear up the other.

From the fourth century, the subtle spirit of the Greeks began to exercise itself in those questions of Scripture, which, being confessedly above the range of the human faculties, are to be received on the authority of Scripture alone, as the objects of faith, and not of experience. The Arian, Nestorian, and Eutychian heresies began to disturb the world. The great Council of Nice (A.D. 325), an assemblage of 318 bishops, declared the voice of the Church against the doctrine of Arius; yet the heresy continued for some ages to distract the empire. When these disputes had worn themselves out, another source of disturbance exhibited itself in the Civil claims of the rival Sees of Rome and Constantinople. The Bishop of Rome demanded the Supremacy for the sitter in the ancient capital of empire; the Bishop of Constantinople demanded it for the sitter in the capital of the actual empire. But the contest was unequal. The Bishop of the West had no imperial figure to thwart his authority; the Bishop of the East stood directly under the shadow of the imperial figure. The former was the lord of the faith to the half-civilised and superstitious millions of the barbarian settlers in Europe; the latter was surrounded with as many heresies as episcopates, with keen inquiries and doubtful fidelity, with philosophy envenomed into scepticism, and with four Patriarchs, sometimes denying his doctrine, and always envying his authority.

The contest continued through two centuries, treated by the warlike emperors with contempt, and regarded by the feeble emperors with alarm. At length it was decided by Justinian, one of those characters who form epochs in history. It is only by such epochs that we can mark the progress of those unvarying years and casual trains of events which form the stream of Time. Remote history is like the remote landscape; we judge of the country only by its mountain-tops. History has done but narrow justice to this restorer of the Roman empire. It has measured his imperial strength on the scale of his personal weakness; but the true estimate of the governor of kingdoms is by what he has done on the throne. Monarchs are *actors*, with their kingdom for a stage, and the world for their audience. When they throw off the royal robe and the buskin, they are but men; but who has a right to follow them behind the scenes? In the reign of Justinian was reunited the dislocated empire. Italy and Northern Africa were conjoined. The barbarian kingdoms of Europe were reduced into submission, the celebrated Code was established which formed the body of law to Europe for nearly ten centuries, and which exists as the civil law to this day. The noblest temple of Europe (until the sixteenth century), the Santa Sophia, was built by him, and he held the sceptre with undiminished authority to the end of a reign of thirty-nine years, and a life of eighty-three!

The sole imperial weakness of Justinian was his theology; he loved to mingle in the turbid discussions of the time. In one of those discussions, to conciliate the verdict of the Roman bishop, he conferred on him the title of “Head of the Universal Church,”—a title which no man could be guiltless in either bestowing or accepting, the title belonging to Him alone who earned it on Calvary; the bestowal was a usurpation, and the adoption a crime. From this transaction, and from the year 533, the Papacy dates its assumed supremacy over the Universal Church.

The separation of the Greek and the Latin Churches was near at hand. In the seventh century Rome had adopted image-worship. In the eighth century the Emperor Leo proclaimed it an abomination, and ordered that all images should be taken from the altars. The Pope (Gregory II.) answered the command by a challenge. His answer was an Anathema. “You accuse,” said his letter, “the Catholics of idolatry: in this you betray your own impiety. You assault us, tyrant, with a carnal and military hand; we can only implore Christ that he will *send you a devil* for the destruction of your body and the salvation of your soul. Are you ignorant that the Popes are the bands

of union, the mediators of peace between the East and the West? The eyes of the nations are fixed on our humility, and they *revere as a God on earth* the Apostle St Peter, whose image you threaten to destroy. The remote kingdoms of the earth present their homage to Christ *and His viceregent.*” A war followed; Gregory sent out his “pastoral letters” through the West. The imperial troops were beaten in Italy by the peasant insurrection. A battle was fought on the banks of the Po, with such slaughter of the Greeks, that for a succession of years the people refused to eat of the fish. Rome was broken off from the empire. The imperial sovereignty of the West was at an end, after a dominion of seven centuries; and image-worship was established as the religion of the Popedom.

The schism of the churches was now begun. But the question had changed from doctrine, which the growing ignorance of the age was unable to discuss, to jurisdiction, a discussion which at once excited the ambition and fed the animosity of a time of *darkness*. The bitterness of the contest was increased in the ninth century by the elevation of Photius to the see of Constantinople.

This remarkable man was the solitary light of his age in the East. He was a layman, who had passed through the highest offices of the State, and a scholar who has left the monument of his scholarship to posterity in his celebrated *Bibliotheca*. To place him in the bishopric, the emperor deposed its former possessor, who appealed to Rome. The pope ordered his restoration; the emperor repeated his refusal.

It would be as idle to trace, as it would be difficult to disentangle, the perplexities of a quarrel which continued for centuries. But the consummation was now at hand. The Pope (Leo IX.), and the Patriarch, Cerularius, had excommunicated each other. A conference of pretended conciliation was held in Constantinople with the papal legates. It ended in new claims, met by new resistance: the legates, at last, went solemnly to the church of Santa Sophia, publicly read the letters of excommunication, placed the document of anathema on the high altar, and then departed from Constantinople! Thus in 1054 was completed the Schism, which had been commenced in arrogant ambition, and continued in priestly rancour; which had scandalised Christendom, and libelled Christianity; and which, in Asia, was punished by the conquests and conversions of Mahomedanism, and

in Europe by the increased power, the darker superstition, and the sterner severities of Rome.

From this period we may state the doctrines and practices of the Greek Church, as an independent community.

The doctrine of the Holy Trinity is established. But the Holy Spirit is assumed to *proceed* from the Father only; in this point differing from the Popish and the Protestant Churches. This difference was the subject of long controversy between the East and the West, but, with the usual fate of ancient disputation, leaving both parties more confident in their own opinions.

On the doctrine of Redemption, its language is that of Scripture; Christ is acknowledged to be the Regenerator of our fallen nature. Justification by Faith includes the works which prove the sincerity of the faith, without which “faith is dead.”

Regeneration is regarded as *essential*, but this Church admits of no *Indulgences*; on this point differing totally from the practices of Rome.

The Church acknowledges no *purgatory*. But it holds an “intermediate state of the departed;” the spirits of the wicked remaining in a place of sorrow and comparative suffering, and those of the virtuous in a place of rest and comparative happiness; and both thus remaining until the Resurrection. But it admits “prayer for the dead;” not for the redemption of the spirit from a place of *purification* or partial penalty, but from a consideration of the Divine mercy. In those doctrines it makes some approach to Protestantism, though in praying for the dead it obviously goes beyond the only authority to which we can look for the condition of man after death—namely, Scripture.

In its ritual, the Church more nearly approaches Rome. It acknowledges as Sacraments, Marriage, Confirmation, Extreme Unction, Ordination, and Penance, in addition to Baptism and the Lord’s Supper.

Baptism is administered by trine immersion.

Infants are baptised on the eighth day.

Chrism, or anointing with holy oil, which is regarded as confirmation, is administered soon after baptism.

The Lord’s Supper is administered under both forms, the bread and the wine, to both priest and laity. But the Church holds transubstantiation, or, in

the words of the Confession, “when the priest consecrates the elements, the very substance of the bread and wine is transformed into the substance of the true body and blood of Christ.”

The ceremonial of the consecration is worth remarking, as it seems to have been taken in some degree as the model for the modern innovations in the English Ritual. The elements are first carried round the church *on the head of the deacon*; then the priest prays that the Almighty may convert them into the substance of the body and blood. He then prays to the Holy Spirit for His gift. He then prays to Jesus Christ, as sitting on the right hand of the Father, and yet invisibly present, to impart to the receivers “His immaculate body and precious blood.” Still, there are some distinctions in the Eastern and Western practice. The *same* degree of worship is not offered to the Host as in the Romish Church. It is not carried in procession, nor is it offered to public adoration, nor is there any festival in its honour. It is carried to the sick, but the priests do not prostrate themselves before it. All this ceremonial the Eastern Church pretends to justify on the ground of antiquity, where it was not to be found in the purest and most primitive centuries. The Protestant looks to the original solemnisation, and takes his practice from Scripture. What common sense can believe that Jesus of Nazareth gave His actual body to be eaten before His eyes, or that the Apostles, while at supper, believed that they were eating flesh and drinking blood, and this without a sign of repulsion and reluctance, or without even a remonstrance or an inquiry? The words, “This do in *remembrance* of me,” are a sufficient declaration that neither His flesh nor His blood was to remain on *earth*; for remembrance implied departure. And that the *remembrance* was the express purpose, is distinctly declared in the words, “As oft as ye eat this *bread* and drink this *cup*, ye do show the Lord’s death *till He come*;”—thus extinguishing at once transubstantiation, and the more diluted doctrine of the “Real presence.” St Paul (A.D. 59) describes the Sacrament as still the *bread* and the *cup* (1st Corinthians, xi. 26), the popular dishonour of which would involve dishonour to the body and blood of which they were the *representatives*. And he further states, that when the “Real presence” shall have come, the representation shall pass away; as in the instance of the Jewish sacrifices, which represented the offering of Christ, but when the *real offering* was come, the representation naturally passed away, the Temple was overthrown, and sacrifice was no more. And this was the language of the great Apostle of the Gentiles upwards of a

quarter of a century *after* the Crucifixion. If St Paul believed in Transubstantiation, it is impossible to doubt that he would have scrupulously avoided any mention of the “bread and the cup,” particularly on an occasion when he was warning the dissolute and disputatious Corinthians of the danger of *disrespect* to the Sacrament.

The Greek Church holds the doctrine of Penance, Absolution by the priest, and Auricular Confession, as a consequence of the doctrine of Absolution, “the priest not knowing *what* to absolve until he knows the state of the penitent.” Absolution and Confession are held to be of the highest importance, and of the most general application. They have been termed “the axle on which the globe of ecclesiastical polity turns;” and beyond question they have been the most extensive sources of power and revenue to both the Greek faith and the Roman.

CEREMONIAL.

The Ritual of the Eastern Church is even more laborious than that of the Roman, both churches in this point straying from the simplicity of Scripture. The elaborate ritual of the Jewish dispensation was for a Divine purpose—the separation of the people from Heathenism; but when that purpose ceased with the cessation of the national privileges and the coming of Christianity, ceremonial perished, as being unnecessary to a religion whose laws were to be “written in the heart,” and as inconsistent with the nature of a religion which was yet to be *universal*. Christ came to redeem mankind, not only from the yoke of sin, but the yoke of ceremonial. “Come unto me, all ye that labour and are heavy laden,” was the language, not merely of help to human nature, but of relief from the weight of ordinances. Christianity has *no ceremonial*, and but two rites, Baptism and the Lord’s Supper. It has *forms*, for forms are essential to *order*, but it prescribes no *system* of worship, no locality, and no *labour* of devotion.

The Greek Church abounds in Fastings, and those of the severest order. Besides the Lent of the Western Church, it has three seasons of public abstinence within the year—one from St Whitsuntide to St Peter’s Day, one from the 6th to the 15th of August, and one during the *forty days* before Christmas. In the monasteries, to this number is superadded one for the first fourteen days of September, in honour of the “Exaltation of the Holy Cross;” and those unnatural and unnecessary abstinences are practised, in general, with extreme severity, even to the rejection of all fish. On the other hand, the festivals of their saints are literally *feasts*; thus producing, in the one instance, hazard to health, and in the other, hazard to morals. These feasts, however, and their attendant levities, have the presumed character of religion; and the saint of the day is especially invoked as an intercessor, equally in contradiction to common sense and the Gospel,—the first telling us the folly of appealing to beings of whom we cannot possibly know whether they can hear or answer prayer, and the second, declaring that there is but one intercessor between God and man, Jesus Christ.

Image-worship is held in abhorrence by the Eastern Church, yet it pays the same species of adoration to pictures; on the idea, that while images represent the inventions of man, pictures represent some real existence; or

that, in the words of St Paul, “An idol is nothing in the world” (1st Corinthians, viii. 4), while a picture is the *adumbration* of some true transaction,—as the existence of Christ, the Virgin Mary, the saints, &c. But, for the purpose of preserving their devotion as pure as possible, they make those pictures generally the most unattractive possible. With the higher orders the picture may serve only as a stimulant to devotion, but, with the peasantry, the adoration is probably complete.

The Greek priests of the higher order generally exhibit a reluctance to acknowledge the reality of this worship, this “pinakolatria,” if we must coin a word for it. They acknowledge the popular homage, but excuse it on the ground of respect for memorable names; as in common life we preserve the pictures of memorable persons, and value those of our departed friends. But the Eastern homage goes wholly beyond this grateful observance. *We* do not make genuflections to the pictures of our great men, nor pray to those of our friends, nor send those pictures to assist women in the sufferings of childbirth, nor place them on the beds of the dying, nor believe them to work miracles.

In fact, this worship of resemblances, whether pictures or images, is one of the most general, and yet most *improbable*, delusions in the world. To imagine that the statue which we carve, or the picture which we paint, the actual work of our hands, is gifted with powers above the man who has made it; or can have a holiness which he has not, or faculties of which he is unconscious, or a *spirit* which he can approach only with homage,—is an absurdity which tasks the utmost credulity of man. Or if he be willing to try the effect of this contempt, he may fling the statue from its pedestal, or take down the picture from its shrine, with the most perfect impunity. And yet, what millions have worshipped the statue and the picture, and worship them still!

In the first ages of Christianity, worship was exclusively given to the God of the Gospel; the objects of heathen adoration were an abhorrence, and the ceremonial of the temples a theme of perpetual scorn. At length, however, the influence of heathenism returned; Christian corruption adopted its emblems, and the images of Christ and the Virgin were surrounded by the sicklier devotees or more fanatical formalists of the Church. Then came miracles. The perils of the Greek Empire required supernatural protectors; and the Greek, unused to arms, and trembling at Saracen invasion, gladly

committed the hazardous trust of defending his battlements to the saint in his hands. The city of Edessa was thus *saved!* by the sight of a napkin, marked with the face of Jesus. These cheap defences finally failed, and Mahomet was lord of the Empire; but the passion for the picture still lived among the serfs of the Caliph; and while Europe, looking on the remote danger with secure contempt, multiplied her idols, Greece, under her Arab scourge, cherished her pictures as the source of her consolation.

The chief treasure of her mythology, the Veron Eikon, or true resemblance, was a picture of our Lord, supposed to bear His impression from having wiped His face on Calvary. This He gave to a woman, who gave it to the Emperor Tiberius, whom it cured of the gout! But as the napkin was triple-folded, it carried *three* impressions, which were impartially divided among the faithful; one being sent to Constantinople, another to Paris, and the third being already in the hands of that rather hazardous guardian of relics, Tiberius. The Veron Eikon has seen a great deal of service since, and its last exploit was its attempt to rout the French column advancing to Rome in 1796, an attempt in which it unhappily failed. Such is the history of the most authentic, renowned, and sacred relic of the Greek and Popish world. The historian^[13] gives the hymn of Byzantium to the Veronica (for they changed it into a female, and the female into a saint) in the sixth century. “How can we with mortal eyes contemplate this image, whose celestial splendour the host of heaven presumes not to behold? He who dwells in heaven condescends this day to visit us by His venerable image. He who is seated on the Cherubim visits us this day by a picture; which the FATHER has delineated with His immaculate hand, which He has formed in an ineffable manner, and which we sanctify by adoring it with faith and love.” Such is idolatry everywhere at this hour!

The “*sign* of the Cross” is universal, and almost perpetual. The Cross itself is frequently addressed in prayer, and in language applicable only to the Divine Being. A quotation from Stourdza, a man of intelligence and learning, in his defence of the Greek Church, will show to what an extent this mysticism can be carried.

“The Cross is the representative of the structure of man. It seems to have been formed expressly for man, and its punishment explicitly to serve as the emblem of his misery and his grandeur. Standing erect, looking down on all surrounding things, the arms extended as if to embrace the immense space

of which it appears the King; the feet fixed in this valley of tears, the brow crowned with thorns, signs of the cares which surround man even to the tomb. Behold the Man! *Ecce homo*—behold the adorable attitude of the God-man upon the earth. The more we contemplate, the more we must feel that it is only by the punishment of the Cross that Jesus Christ could express in Himself all the woes and all the transgressions of man, expiate them, ransom them, and exhibit collectively the human race under one form alone.”

The use of tapers and torches in daylight services is defended, not on the Popish principle of emblematising the Holy Spirit, but on the more plausible ground of imitating the primitive ages, when the Christians met only before daylight and in caverns. Both are equally presumptuous, as unauthorised by Scripture; and both equally profane, as palpably adopted from heathenism.

The services of the Greek Church are wearisomely long; they are in *Hellenic*, and therefore almost wholly unintelligible to the people, and they are intolerably laborious to the priest; the whole body of the services occupying twenty folio volumes, with an additional volume of directions!—a study to which the time of the priest is almost wholly confined, not for its knowledge, but for its manipulation; the selection of the services appropriate to the day, which change every day, and even in the course of the day. The Liturgy, so called, is limited to a small portion of those labours, namely, the Communion.

Ambition in a priesthood and ignorance in a people always produce superstition; the priest eager to extend his authority, and the people unable to detect the imposture. The natural results are, the Legend and the pretended Miracle. These practices in the Greek Church take a colouring from the picturesque region and the romantic fancy of the people. Every island, and perhaps every hill and valley, has its sacred spot, to which the population approach in long processions on any remarkable public circumstance, whether of Nature or the Calendar. To appease an epidemic, to still an earthquake, to make the skies propitious after a drought, or to call down the peculiar aid of the Virgin, who usurps, in the Greek mind, the whole power of *intercession*, and thus effectively possesses the sceptre of Omnipotence, summons the multitude in all their pageantry.

The services of the Church being performed in a tongue comparatively obsolete, and being recited by the priest habitually in a tone of mystery, which renders them scarcely audible, if they were understood, leave the people in almost total ignorance of their meaning, and of course indifferent to all but the forms of devotion. Like the priest of Rome, the Greek priest is the presumed *mediator*, not the leader of the popular devotion; his prayers are *for*, not *with*, the people. Thus his performance of the service is supposed to answer its purpose, whether audible or whispered. One portion of his duty, however, addresses itself to the general ear,—the reading of the “Lives of the Saints,” entitled “The Tablet of the United Worthies,” a record of 365 lives; all equal to gorge the most ravenous credulity. Greece, once the land of invention, is now the land of imposture; the original talent of the soil is now exhausted on dreary fiction. Still believing in magic, charms, the influence of dreams, and the inspiration of the “genius loci,” they are prepared to welcome every folly of fanaticism, and submit to every artifice of superstition.

GOVERNMENT.

The four Patriarchs, of Constantinople, Jerusalem, Antioch, and Alexandria, are the religious rulers of the Greek Church; the three latter being, in a certain degree, subordinate to the Patriarch of Constantinople, without whose consent nothing of general importance can be effected. This Patriarch is elected by the votes of the neighbouring bishops; but he must be presented to the Sultan for institution; and as nothing is done in Turkey without a present, the fee on this occasion amounts to 20,000 or 30,000 dollars, the Sultan still retaining the power of deposition, banishment, or even of death. The Patriarch possesses the considerable privilege of naming his brother patriarchs, but the rescript of the Sultan is still necessary for their confirmation, and even to that of every bishop who may be appointed by the Patriarch. Thus the Greek Church exhibits none of the “supremacy” of the Roman. It has since the reign of Constantine claimed no “temporal sovereignty,” and it has thus in some measure been freed from the intrigues, violences, and crimes, which form so large a part of the history of priestly ambition.

Another important prevention of those evils was the marriage of the parochial priesthood. In the earlier periods of this Church, marriage was *commanded* to the priest, and was considered so necessary to his office that on the death of his wife he must give up his parish. Even now, notwithstanding the example of Rome, the *secular* clergy are permitted to marry, though only once. The *regular* clergy (monks) are not permitted to marry, on the absurd principle that their lives are an offering for the popular sins, and that celibacy belongs to holiness. The marriage of the priesthood had the natural effect of rendering them loyal, by the connection of their children with the country, of preventing the irregularities to which constrained celibacy inevitably gives rise, and of preventing that ambition for the influence of their class which naturally exhibits itself in great bodies who have no tie but to the head of their order. *Constrained* celibacy is, in fact, a conspiracy against human nature, which always transpires in a conspiracy against human Allegiance.

Monasticism forms a prominent feature of the system. The Greek convents are numerous, powerful, and in some instances opulent. Their

inhabitants are divided into Caloyers (monks) and lay brethren. The lives of the former are comparatively indolent; of the latter, comparatively laborious. But the Caloyer has his peculiar round of irksome occupations. Matins begin at four in the morning, and last until dawn. The performance of the Liturgy is followed by reciting the life of some saint, and that is followed again by nine hymns, six of which are to the Virgin, and three to the saint of the day. In Lent, his task is wearisome: he must go through the whole Psalter every day, and perform the Metania, which consists in kissing the ground *three hundred* times in the twenty-four hours. To this employment four hours of the night, of which two are immediately after midnight, are devoted. How any human understanding can conceive that this drudgery is connected with virtue, is productive of good to man, or is acceptable to his Creator, must be left to the reveries of the monk, and the recorded absurdities of human nature.

The lay brothers are the farmers, the shepherds, the tillers, and the traders of the convent. They are industrious, and so far they remove the stigma from the general uselessness of conventual life. Some of those communities are largely endowed. The monks of the well-known brotherhood of Mount Athos have twenty convents, and possess extensive lands. Their Turkish taxation is generally moderate, and indolence never had an easier form than in the shape of the Caloyer.

The state of the Russian Church would lead us too far into inquiry; but it has a history of its own, some remarkable peculiarities, and some prospects well worthy of examination. Those who feel an interest in the subject may be referred to Stourdza, *Considerations sur la Doctrine*, to King *On the Russian Church*, and to the brief but exact *Treatise on the Greek Church* by the present learned Dean of Durham. The subject may well interest us, when it involves the religious welfare of the millions inhabiting the Eastern provinces of Europe, the Danubian provinces, the length of Asia Minor, a portion of Syria, Assyria, and Africa, and the sixty millions of Russia—an immense extent of human existence, which a few years may open to a purer faith, and which is already qualifying, by the effects of knowledge, suffering, and war, for the GOSPEL.

NICARAGUA AND THE FILIBUSTERS.

It is a fixed idea with the American people, that in due course of time they are to have the control of all the North American continent, and of the Island of Cuba; they consider this their “manifest destiny,” and any movement in that direction is looked on by them as a matter of course, and deserving of encouragement.

The popular name for the agency by which such a state of things is to be brought about is “filibusterism.” The word “filibuster” is a French and Spanish corruption of the English word freebooter, an appellation which, in former days, from its being frequently assumed by a certain class of men, who disliked the harsher name of pirate, became familiar to the inhabitants of the West India Islands and Central America; but as filibusterism is now used, it expresses the action of the American people, or a portion of the people, in the acquisition of territory which does not belong to them, unrestrained by the responsibilities of the American Government.

The sovereign people of the United States, and the United States Government, are two distinct bodies, influenced by different motives. The Government is obliged to maintain the appearance of keeping faith with other friendly powers, but at the same time is so anxious to gain popularity at home, that it does not take really effectual measures to check any popular movement, however illegal it may be, if favoured by the majority of the people.

The manner in which the State of Nicaragua has been reduced, or, it should rather be said, raised to her present position, by being occupied and governed by a large body of Americans, affords an instance of the truth of this statement.

For the last two years the American and English Governments have been exchanging diplomatic letters, arguing at great length on the abstract

meaning of certain words of a treaty, by which either power was equally bound not to occupy, fortify, colonise, or take possession of, any part of Central America. In the mean time a party of American citizens, under command of a certain Colonel Walker, have virtually taken possession of, and do now govern the State of Nicaragua, one of the States specially mentioned in the treaty. When they first landed in Nicaragua, not ten months ago, they numbered only fifty-six men; but in as far as they had the good-will of the majority of the American people, they represented the nation as truly as General Pierce and his Cabinet. Colonel Walker was merely the practical exponent of a popular theory, and his success has been so rapid and decisive, and such is the position he now holds in Nicaragua, strengthened by daily accessions to his force from California and from the United States, that the Americanisation of Nicaragua may be almost considered an established fact.

Should the Americans in that country be able to maintain their position, of which, at present, there seems to be every probability, the successful filibustering of Nicaragua will be but the beginning; the end will be the occupation, by Americans, of all the Central American States, and, in due course of time, of Mexico and Cuba.

In order to show why the filibustering energies of the Americans have been specially directed to Nicaragua, and how it is that so small a party of them have so quickly got control of that State, and also to appreciate fully the position which their leaders occupy as members of the newly-formed government, it is necessary to give some information on the political condition of the country, and on recent events there, which the writer, while a resident in the country during the greater part of the revolution, had good opportunity of acquiring.

On the discovery of gold in California in 1848, when there was such a rush of gold-hunters to that land of promise both from the Old and the New World, the route generally followed was that by Panama, as the most expeditious—lines of steamers being established by American companies from New York and New Orleans to Chagres, and from Panama to San Francisco.

The supply of steamers, however, was never sufficient for the accommodation of the crowds of eager emigrants; the profits of the

steamship companies were enormous, and American enterprise was not long in discovering and opening a new, and in many respects superior, route to the golden regions of the Pacific.

The new route lay through the State of Nicaragua, one of the five States into which the Central American Confederation was dissolved in the year 1831.

It was to the advantages offered by its geographical position that Nicaragua owed its distinction. The Lake of Nicaragua, a splendid sheet of water ninety miles long by about fifty broad, lies within the State. Its most western extremity is only twelve miles from the Pacific, and at its eastern extremity about one hundred and fifty miles from the Atlantic: it empties itself into that ocean through the river San Juan, which is navigable all the distance for small vessels, and forms at its mouth the harbour of Greytown or San Juan del Norte. An inter-oceanic canal was first talked of, but it was found that it would take all the gold in California to construct it; so that idea was for the time abandoned, and a New York company, styled the Accessory Transit Company of Nicaragua, got a charter from the State, granting them for considerations the exclusive privilege of steam-navigation of the river San Juan, and of the Lake Nicaragua, for a period of ninety-nine years.

Steamboats of various capacities, to suit the navigation of the river and of the lake, were sent out—a road over the twelve miles of land, between the lake and the harbour of San Juan del Sur on the Pacific, was commenced—steamships were put on between that port and San Francisco, and between New York and Greytown, and a large share of the Californian emigration began to stream through the country.

The difficulties of the route were at first considerable, owing to the number of rapids in the River San Juan requiring boats of peculiar construction for their navigation, and from the fact of the country through which lies the road to the Pacific being a mountainous wilderness, the greater part covered by a dense tropical forest.

In the rainy season, which lasts for about five months, the road was so bad that a mule would sink to his belly at every step; the twelve miles were not unfrequently a two days' journey, and many a poor mule, after vainly struggling to extricate himself, succumbed to his fate, and was absorbed in the mud, leaving his rider to fight his own way through, which he generally

did without much trouble. Such little difficulties were not thought much of by Californian emigrants in those days.

The Company, however, soon completed the road, and so far perfected their arrangements that the passage from ocean to ocean is performed in two days.

The travel to and fro between California and the Atlantic States is not confined to any particular class of the community. Capitalists, merchants, professional men, mechanics, labourers,—in fact, people of all classes, are constantly going and coming. For the last five years an average of two thousand Americans per month have passed to and fro by this route, and, during the few days occupied in transit, have had ample time to admire and covet the splendid country through which they passed, to look with utter contempt on the natives, and to speculate on what a country it would be if it were only under the Stars and Stripes.

The country, its climate, its advantages, resources, and social and political condition, have thus been gradually made familiar to a constantly increasing proportion of the people of the United States and of California.

It is in natural consequence of all this, and of the apparent hopelessness of immediate success in Cuba, that the attention of the filibustering portion of the American community has been gradually directed to the State of Nicaragua, and the late civil war in that country offered too favourable an opportunity to be lost for making a beginning in furtherance of the cherished idea.

The constitution of Nicaragua, like that of all the Spanish-American States, is republican—that is to say, in name; in effect it approaches more nearly to a despotism, a mode of government much better adapted to a people the majority of whom are quite incompetent to form any idea on the subject of self-government.

Since the dissolution of the Central American Confederation the country has been in a constant state of revolution. Two years is about the longest period of peace which has intervened. The people are wantonly destructive and cruel in their civil warfare; and having been so actively employed for nearly twenty years in cutting each other's throats, battering down each other's cities, spending their money in gunpowder, and ruining all producing interests by taking the labourers from the field to serve as soldiers, they had managed to reduce themselves and their country to such a

wretched state of misery, that it really appeared to be the duty of some civilised nation to step in and keep them all in order.

In passing through the country, one cannot but be struck with the ruin and desolation everywhere apparent, and with the remains of bygone wealth and grandeur, but little in accordance with the poverty and listless indolence in which the inhabitants are now contented to live.

Their cities are half in ruins, and the churches, which, in their mode of warfare, they use as fortresses, have come in for their full share of destruction. Those which remain are peppered all over with cannon balls. The ruins on the old indigo and cotton estates give one an idea of the different way in which the people once employed themselves; but now, in a country capable of producing in the greatest abundance indigo, cotton, sugar, rice, coffee, tobacco, and nearly every other tropical production, little else is to be seen but plantains and Indian corn, the two great staple articles of food. The tobacco grown in the country is good; the people, men, women, and children, are inveterate smokers, but they do not even raise sufficient tobacco for their own consumption. The “cacao,” or chocolate, raised in the neighbourhood of the town of Rivas, is the finest in the world: it is a national beverage, and the greater part of the crop is consumed in the country; a small quantity is exported to the neighbouring States; but with the exception of a few bullock hides and deerskins, which are sent to New York, the country cannot be said to have any exports.

The climate generally is by no means unhealthy. It varies very much throughout the State, being in some parts much tempered by a constant breeze off the lake, while in the high lands of Segovia and Matagalpa, the temperature is so moderate that most of the grains and fruits of the north can be raised in great perfection.

The rainy season commences about the end of July, and continues till November or December. During this season it rains in torrents for days at a time, and the roads become almost impassable. The most sickly periods of the year are the beginning and the end of this season; fever and ague are then very prevalent, but the natives suffer more than foreigners, chiefly owing to the wretched way in which they live, the habitations of the lower orders affording generally but poor protection against the weather.

In the mountains of the district of Matagalpa, which form part of the great range which traverses all the North American continent, are mines of

gold and silver. They have hitherto only been worked by the Indians in a very rude manner, but sufficient has been done to prove that they are rich: if scientifically worked, they will no doubt prove very productive.

The forests abound in rosewood, mahogany, and other beautiful woods, and throughout the State many valuable medicinal gums and plants are found.

The scenery is varied and very beautiful; at certain seasons the trees are completely covered with flowers, and the forests are a confused mass of luxuriant vegetation.

There are several volcanic mountains in the country, all of great similarity of appearance: the finest is Ometepe, which rises out of the lake, in the shape of a perfect cone, to the height of many thousand feet.

The people are very deficient in ambition and energy, and have a very decided objection to labour. As long as a man has sufficient to supply his immediate wants, he cannot be induced to work, but will devote himself to the passive enjoyment of swinging in his hammock, and smoking a cigar. In this way they pass the greater part of their time, as very little labour is requisite to provide plantains, beans, and Indian corn, which are the principal articles of food.

Gambling is a prevailing vice, cards and dice being chiefly played. Cockfighting, however, is the great national sport, and at this the most money is staked. The fight is never of very long duration, being generally nothing more than a flutter of wings for a moment, when one cock crows over the other lying dead at his feet, nearly cut in two by the long sharp knives with which their heels are armed.

They have celebrated breeds of chickens, on which they pride themselves, and in almost every house in the country may be seen one or more gamecocks tied by the leg in a corner. The owner is always ready to fight a cock on any occasion, but Sunday afternoon is the time generally devoted to this amusement, which is patronised by all classes.

The people possess a great deal of natural grace, and are extremely polite and formal in their manners; even the lower orders are remarkable for their gracefulness of gesture, and for their courteous phraseology.

The principal cities of Nicaragua are Granada, on the northern shore of the lake, and Leon, about a hundred and fifty miles to the north, and not far

from the Pacific coast. They are both fine cities, built in the usual Spanish-American style, with narrow streets, and large houses of a single storey, covering an immense area, and built in the form of a square, the centre being an open space, generally planted with trees and flowers, and all round which is a wide open corridor. The houses are very spacious and lofty, and admirably adapted to the climate.

The population of Granada is about 15,000, that of Leon is rather more. Between the inhabitants of these two cities there has always existed a bitter feeling of jealousy and enmity, and in most of their revolutions the opposing factions have been the Granadinos against the Leoneses. So it was in the revolution which is only now terminated, and which commenced in May 1854.

The government at that time was in the hands of the Granada party. The president, the late Don Fruto Chamorro, was a man of great energy and determination, but unfortunately also of most stubborn obstinacy. He would listen to advice from no one, but blindly insisted on carrying out his own ideas. After being a little more than a year in power, and becoming more despotic every day, he issued a decree, declaring himself president for four years more than the usual term.

The Leon party of course immediately got up a revolution, of which the leaders were a few prominent men, whom Chamorro had a few months before banished from the State, on suspicion of their being engaged in a conspiracy against the government. At the head of them was Francisco Castillon, a man of superior education, and with much more liberal and enlightened views than most of his countrymen, having spent some years in England as minister for Nicaragua. The object of the revolution was to place Castillon in power, and the party professed to entertain liberal ideas, and styled themselves the Democratic Party. They commenced their operations at Realejo, a small port on the Pacific, at the northern extremity of the State, where, with a small force, they surprised the few soldiers of the garrison. They proceeded to Chinandega, a considerable town about six miles on the way to Leon. Here they met but slight resistance, the majority of the people being favourable to them; and with a large addition to their force, they marched towards Leon, distant about thirty miles, where they established their head-quarters, after fighting one battle in the neighbourhood with the government forces under Chamorro in person, who

was defeated, and retired to Granada. In Leon they remained some time recruiting their forces, before venturing to attack Granada, which is the great stronghold of the government party.

The system adopted of recruiting is very simple indeed. A few soldiers with fixed bayonets are sent out to bring in fresh men, or, to use their own expressive term, to “catch” men. When the unfortunate recruit is “caught,” a musket is put in his hands, and he becomes a soldier. Soldiering is by no means a popular occupation: during a revolution, at the approach of forces of either party, the peace-loving natives, in order to escape being “caught,” and forced into the service, will remain hidden in the woods till they are nearly starved. The lower orders take but little interest in the revolutions, or in politics, and from troops raised in this way, of course very valorous deeds are not to be expected. They generally desert on the first opportunity; but, if they do not take their muskets with them, it is of little consequence, as other men are soon caught, and made to carry them. Sometimes, however, men become scarce, the able-bodied having emigrated to some more peaceful locality; in such a case one-half of a garrison is placed to keep guard over the other half, to prevent their running away.

There is consequently no mutual feeling of confidence between officers and men. During impending danger of an attack, the officers will keep their horses saddled all night, and sleep with their spurs on, ready to cut and run at a moment’s notice, and leave their men to take care of themselves. The men, in their turn, when led into battle, will turn round and desert their officers at the most critical moment. There are exceptions, of course; and during the late revolution, many, both officers and men, fought well and bravely; none more so than the late President Chamorro.

While the Democrats were recruiting in Leon, Chamorro was busy collecting his forces in Granada, and preparing to stand a siege.

In all these Spanish towns is a large public square called the Plaza, in which are generally the principal church, the barracks, and other public buildings. The Plaza, in case of war, becomes the citadel, the streets leading into it being all barricaded, and cannon planted so as to command the approaches. Chamorro enclosed within his barricades the Plaza, and a considerable portion of the city immediately surrounding it. The streets being narrow, barricades were soon made of logs of wood and “adobes,” a sort of sun-dried bricks, of which the houses are built.

Double and triple barricades of this sort, eight or ten feet high, presented a very effectual resistance to anything which the enemy had to bring against them. The Democrats soon made their appearance, and taking possession of all that part of the city not enclosed in the barricades, they fixed their headquarters in an elevated situation, from which they could pop their cannon balls into any part of the Plaza.

Neither party were well provided with artillery. They had each three or four guns, twelve and twenty-four pounders, with which they blazed away at each other for nearly a year, and between them managed to lay about three-fourths of the city in ruins.

The city was never completely invested, and occasional skirmishes between small parties of the opposing forces took place outside the town, but nothing worthy the name of an assault was ever attempted. The Democrats soon became masters of the entire country, with the exception of the besieged portion of the city of Granada occupied by Chamorro and his party, the Legitimists, as they called themselves.

When a small detachment of the Democratic army marched upon Rivas, the only town of importance in the part of the country through which the Transit road passes, the inhabitants, being mostly in favour of the Chamorro government, fled *en masse*, taking with them all their valuables and movable property, to the neighbouring state of Costa Rica, the frontier of which is within twenty miles.

The few who had the courage to remain were not molested, but the Democrats appropriated to their own use as barracks, &c., whatever private houses suited their convenience, and commenced levying contributions on the inhabitants; but as they had fled, and were not present to respond to the call, their property was advertised for sale, their stores broken open, their goods sold, and sundry other forcible measures taken to raise funds.

The mode of financing in time of revolution is equally simple with that of recruiting.

When a contribution, as they call it, is levied on a town, the principal inhabitants are assessed arbitrarily by the officers in command for as much as each is supposed to be able to pay. The unfortunate victims have then to fork out the dollars; there is no help for them. If they refuse, or plead poverty, they are perhaps imprisoned and kept on low diet: a few days of this treatment has a wonderful effect on the memory, and frequently enables

a man to remember where he has buried his cash, or to discover some means of raising the needful, to be handed over for the support of the party, to which probably he may be opposed. When his own party come in to power again, they will make him disgorge to double the amount by way of punishment. For these forced loans he may get some sort of debenture, worth about as much as the paper it is written on. In such times the people are afraid to let it be supposed that they have any money at all; they feign poverty, burying their money secretly, and the houses of foreign residents are lumbered up with all sorts of chests and boxes, sent there stealthily by the unfortunate natives, in order to keep them safe from the rapacity of their countrymen.

The Democrats from the first were eager to obtain the good-will of the American residents; and as they professed to be fighting in the cause of liberty and progress, against tyranny and old-fogeyism, they succeeded in enlisting a dozen or so of Americans in San Juan del Sur and Virgin Bay. The latter place is a small village on the lake, where the passengers by the Transit route embark on the steamers. They paid these men about a hundred dollars per month, gave them commissions as colonels and captains, and sent them to Granada to pepper the Chamorro party with their rifles.

With the aid of some Americans, they also took possession of San Carlos, which is an old fort situated at the point where the lake debouches into the river San Juan. It is a position of great importance, as it commands the entrance into the lake, by which is the only communication between the interior of the country and the Atlantic. They also occupied an old Spanish fort about fifty miles down the river, called Castillo, where there are a few hotels kept by Americans for the accommodation of passengers by the Transit route.

In Leon, the head-quarters of the Democrats, they proclaimed their government, declaring Castillon president. They appointed all the necessary government functionaries throughout the State, and in fact were the virtual government of the country.

The Legitimists remained in a state of siege in Granada, and would have had to surrender for want of ammunition, had they not succeeded in retaking San Carlos from the Democrats, and thereby opening their communication with the Atlantic; they then procured a large supply of powder and shot from Jamaica.

During the siege the besieging army of Democrats numbered about fifteen hundred, while the Legitimists did not number more than a thousand.

The Democrats were assisted by the state of Honduras to the extent of two hundred men; and the Legitimists were long in negotiation with the government of Guatemala, which was favourable to their cause, but they did not succeed in getting any material aid from that State.

After ten months' vain endeavour to take the Plaza of Granada, the Democrats, last February, broke up their camp, and retired to Leon. At a town called Masaya, about half-way from Granada, they were overtaken and attacked by the opposite party. A bloody fight ensued—the thickest of it took place in the church, in which some three hundred men were killed.

The Granada party now regained possession of the southern part of the State, while the Democrats continued to hold Leon and all the northern portion.

During the time that the Transit route had been held by the Democrats, they had been most active in their endeavours to enlist Americans in their cause. Cash was scarce, but their offers of lands to those who would join them were very liberal; and it soon became known, both in Nicaragua and in California, that a negotiation had been concluded between Colonel Walker in San Francisco, through his agent in Nicaragua, and the Democratic government, whereby large tracts of land were granted to him, and other privileges guaranteed to him, on condition of his coming down with a certain number of men to serve in the Democratic army.

This Colonel Walker had already distinguished himself as the most daring filibuster of the day. In the month of October 1853, he was the leader of an expedition which sailed from San Francisco, with the intention of taking possession of Sonora, a northern state of Mexico, adjoining California. He landed at a small place on the coast, with some fifty or sixty men, where he met but little resistance. He proclaimed himself president, and appointed each one of his party to some high office of state. He very soon, however, had to evacuate the premises, and escaped to California, with but a small portion of his original band; and on his arrival in San Francisco, was tried for a violation of the neutrality laws: he conducted his own defence, and of course was acquitted. The people of California are not disposed to judge very harshly of such an enterprise, and from the larger portion of the community he met with more sympathy than condemnation.

It was so publicly known in San Francisco that Walker was fitting out his Nicaraguan expedition, that the authorities were of course compelled to interfere. Their endeavours to stop the sailing of his brig, however, were not very effectual, as Walker, having embarked all his small party of fifty-six men, managed to get under weigh during the night.

In the month of May they arrived in the port of Realejo, and marched to Leon to join the head-quarters of the Democratic army.

The Legitimists were now in a perpetual state of consternation: during the siege of Granada they had learned to appreciate the efficacy of an American rifle in American hands; and in their frightened imaginations, Walker's modest force of fifty-six men was augmented to 500. They made active preparations, however, to give him a warm reception: proclamations were issued with the object of rousing the patriotism of the people, calling on all to be ready to take up arms to save the independence of the country, and ordering all the inhabitants, on the approach of Walker, to retire to the nearest garrison. However, excepting among the political leaders of the party, and those compromised with them in the revolution, the prospect of Americans gaining the ascendancy in the country seemed to be regarded with indifference. Indeed, many of the upper classes, tired of their constant revolutions, and the ruin and misery attendant upon them, longed secretly for the presence of any foreign influence which should guarantee peace in the country.

The first active service in which Walker and his men were engaged was in an expedition which was formed by the Democrats to recapture the town of Rivas. About the end of June, the expeditionary force, consisting of Walker's party, and two hundred native troops under the immediate command of their own officers, embarked at Realejo in two or three small vessels, and landing in the neighbourhood of San Juan del Sur, marched across the country upon the town of Rivas, distant about twenty-five miles.

The people of Rivas, when the Legitimists retook the town in February, had returned from their voluntary exile in Costa Rica; and feeling, no doubt, ashamed of the inglorious way in which, a year before, they abandoned their town to the Democrats without ever firing a shot, they roused themselves now to make a stout resistance, their spies having given them ample warning of the enemy's approach.

When the Democrats arrived, and the fight began, Walker was most shamefully deserted by the whole of the native troops, and he found himself, with his fifty-six Americans, opposed to a force of about four hundred.

His party, however, had taken up their position in a house, from which their rifles dealt sudden death most profusely—all the natives killed were hit in the head; but at last they expended their ammunition, and the Legitimists setting fire to the house, they were obliged to cut their way through them, and retired to San Juan del Sur, which place they reached unmolested, the natives not caring to follow them.

The loss on Walker's side, in this affair, was six men killed; while the Legitimists lost about seventy.

At San Juan del Sur they found a small schooner to take them back to Realejo; and before sailing, Walker performed an act of summary justice, which raised him highly in the opinion of many people in the country. He and his men had all embarked quietly in the evening on board the schooner, which was lying in the harbour, and were waiting till morning for a breeze, when, about midnight, two Americans, who did not belong to Walker's party, and were well known to be bad and desperate characters, set fire to a large wooden building which was used as a barrack: their object was to burn the town, and take the opportunity of the confusion to rob and plunder the inhabitants, expecting, no doubt, that Walker's party would join them.

They made a great mistake, however; for, on going on board Walker's vessel, and boasting of what they had done, he immediately arrested them, and as there were no authorities ashore to whom he could hand them over, he had them tried by a court-martial at once, by which they were sentenced to be shot. One was shot while endeavouring to make his escape in a boat; the other was taken ashore to be shot, where, in the darkness of the night, he managed to escape from his guards.

About a month before this time General Chamorro died of an illness, under which he had been for some months gradually sinking. He was succeeded as General-in-chief of the Legitimist party by General Corral, who had already been actually in command for some time.

Walker did not attempt another descent on that part of the country till the month of August, when he landed at San Juan del Sur with about seventy-five Americans and two hundred native troops. There he met with no

opposition, the forces of the Legitimists being all concentrated in the town of Rivas. He shortly marched to the village of Virgin Bay on the Lake: while there he was attacked by a vastly superior force of Legitimists under General Guardiola. The fight lasted several hours, but Walker succeeded in driving them back to Rivas with considerable loss. The casualties on his side were, two Americans wounded and half-a-dozen natives killed. After this he again returned to San Juan del Sur, where he remained quietly receiving reinforcements from California, and enlisting from the passengers passing through the country.

Virgin Bay and San Juan del Sur are two small villages, called into existence by the establishment of the Transit route. They form the termini of the land travel, and are composed principally of American hotels for the accommodation of passengers; the requirements of the Transit route also furnish employment to a small number of Americans at these two points.

About the middle of October, Walker—now holding a regular commission as Commander-in-chief of the Democratic army, and having gradually augmented the number of Americans under his command to two hundred, and having a force of two hundred and fifty native troops—proceeded to Virgin Bay, and, taking possession of one of the Transit Company's steamers, he embarked his whole force. After a few hours' passage he landed his troops about two miles from Granada, and marched directly on that stronghold of the Legitimists. General Corral, the Commander-in-chief, was in Rivas with the greater part of his forces, expecting that Walker would make that the first point of attack. The garrison in Granada were completely taken by surprise, and, after firing but a few shots, Walker had full possession of the city. The inhabitants were at first greatly alarmed, expecting that the Democrats would commit all sorts of excesses; but Walker quickly issued a proclamation, promising protection to person and property. As the people found that he maintained such strict discipline among his troops as to be able to keep his word, tranquillity was soon restored; and no doubt favourable comparisons were drawn between the order and quiet which prevailed on the taking of their city by the Democrats under Walker, and the scenes of plunder and excess which had ensued on such occasions in their former revolutions.

During the months of July and August, the country had been visited by cholera in its most deadly form. Many small villages, Virgin Bay and San

Juan del Sur among the number, were almost depopulated. In the town of Masaya, with a population of about ten thousand, nearly one-third of the number perished. Castillon, the Democratic president in Leon, fell a victim to the disease; and Walker, being General-in-chief, was now at the head of the party. He was offered the Presidency, which he judiciously declined, retaining his more effective office of General-in-chief.

The Commander-in-chief of the Legitimist party, General Corral, being at Rivas with his forces, it was proposed to offer him terms, as it must have been evident to him that his cause was now hopeless. Colonel Wheeler, the United States Minister resident in Nicaragua, was induced, at the urgent solicitation of the people of Granada, to undertake the duty of negotiating terms, assisted by Don Juan Ruiz, a man of great influence in the Rivas department.

On their arrival in Rivas, in pursuit of their pacific object, Colonel Wheeler very soon found himself a prisoner in the hands of the Legitimists. Some days afterwards, his non-appearance causing alarm to his friends of the other party, a schooner was despatched to make a demonstration before Rivas, which is situated about a mile from the shore of the Lake. After a few guns had been fired, the Legitimists took the hint, and set Colonel Wheeler at liberty.

A negotiation was afterwards entered into, which resulted in a treaty of peace being agreed upon, and signed by Walker and Corral, as the representatives of their respective parties.

By this treaty, which was concluded towards the end of October, it was agreed that the two governments which had existed in the country since the commencement of the revolution, should cease. Don Patricio Rivas was declared provisional President for fourteen months, and General Walker was acknowledged General-in-chief of the army, who, with four ministers to be appointed by the President, were to form the government.

According to the stipulations of the treaty, General Corral, a day or two afterwards, entered the city of Granada with his troops, and was received by Walker. The two generals then went through an imposing ceremony of solemnly ratifying the treaty in church. A Te Deum was sung, the Legitimist troops were joined to the Democrats, and became one army under command of Walker, and the following government was proclaimed:—

DON PATRICIO RIVAS, *President*.

GENERAL WM. WALKER, *Commander-in-Chief*.
GENERAL MAXIMO XERES, *Minister of State*.
GENERAL PONCIANO CORRAL, *Minister of War*.
COL. PARKER H. FRENCH, *Minister of the Hacienda*.
DON FERMIN FERRER, *Minister of Public Credit*.

Although the Democrats had gained the day, the new government was composed of men of both parties.

Rivas the President is a gentleman much esteemed and respected; he is the head of an influential family, who have always been opposed to the Democratic party. For some years he has been collector of customs at San Carlos.

General Walker, commander-in-chief, filled the same office in the Democratic government.

General Maximo Xeres, minister of state, was Walker's predecessor in command of the Democratic army, he and Corral, the new minister of war, having been the generals of the two hostile armies during the greater part of the revolution.

Colonel Parker H. French, minister of the Hacienda, is an American who distinguished himself some years ago in the intestine wars in Mexico, and has latterly been conducting a newspaper in California.

Don Fermin Ferrer, minister of public credit, is a wealthy citizen of Granada, who took no active part in the late revolution.

A very few days after General Corral had so solemnly ratified the treaty, letters were intercepted, written by him to some other leaders of the old Legitimist party, from which it was evident that he was conspiring with them to upset the government, of which he had just become a member. He was immediately tried by court-martial for treason; and being found guilty, he was sentenced to be shot next day. With his party he was immensely popular, and during the revolution had displayed great ability as a military leader; but the evidences of his treachery admitted of no doubt, and he was shot according to his sentence, in the Plaza of Granada, in presence of the whole army. His summary execution will no doubt have a beneficial influence on the people, by inculcating on them the necessity of acting with sincerity, in whatever obligations they come under.

The new government was now formally acknowledged by Colonel Wheeler, the American minister, the only foreign minister resident in the

State. The president was also visited by the captain of the United States sloop of war Massachusetts, then lying in the harbour of San Juan del Sur.

The natural consequences of a restoration of peace, after a year and a half of revolution, were soon manifested in the return of many of the inhabitants, who had absented themselves, to avoid the horrors of civil war, and in the impulse given to all peaceful pursuits.

The power of the press is such an acknowledged fact in the United States, and the establishment of a newspaper follows so closely on the advance of civilisation, that wherever half-a-dozen Americans are settled together in the backwoods, one of them is sure to publish a newspaper for the edification of the rest.

So in Granada one of the first things the Americans did was to bring out a weekly paper, called "*El Nicaraguense*"—"the Nicaraguan," half English, half Spanish. It is a very respectable sheet, with a good deal of its space devoted to the enlightenment of the public regarding the natural advantages of the country, its fertility, its delightful climate and great mineral wealth. The only thing in the shape of a newspaper hitherto known in Nicaragua, had been a mere Government Gazette, published once a-month or so.

The State of Costa Rica, adjoining Nicaragua on the south, is the most flourishing of all the Central American States. It has been for many years free from revolution, and the people are comparatively thrifty and industrious. The finances of the State are in a good condition, and in military matters it is far in advance of Nicaragua, having a well-organised militia of 4000 or 5000 men. A certain proportion of the troops are armed with the Minié rifle, and they are well provided with artillery. There are great numbers of Germans in the country, many of them in the employment of Government, and it is to them that the people are indebted for the effective state of their army. The principal production of the country is coffee, of which the export is large, the greater part being sent to England. The Government were in great consternation at the success of the Walker party in Nicaragua, thinking, no doubt, that their turn would soon come. They made active preparations to resist invasion, but it is not likely that they will attempt to act on the offensive.

Honduras, which adjoins Nicaragua on the north, was favourable to the Democratic party, and has acknowledged the Americo-Nicaraguan Government. The president of that State lately visited Walker in Granada;

and as Honduras is threatened with a renewal of hostilities by Guatemala, Walker is about to assist the former State with a portion of his American forces. The fact of Walker taking half of his force from Nicaragua to the assistance of a neighbouring State, is a convincing proof of his confidence in the security of the position which he has attained. In Honduras, of course, the same game will be played as in Nicaragua. In fighting for the people, the Americans will gain the ascendancy over them, and will keep it.

Guatemala, which lies to the north of Honduras, is the largest and most important of the Central American States, and is also the most hostile to American influence.

But whatever be the feelings of the other States towards Americans, it is not to be supposed that, having gained the foothold they have in Central America, they can be restrained by the weak and indolent people by which they are surrounded from extending their dominion. In whatever way they may come into contact, whether in war, diplomacy, or peaceful competition in mercantile and industrial pursuits, the superior boldness, energy, and perseverance of the Anglo-Saxon character is sure to assert its supremacy.

The spirit of filibusterism is not confined to any particular class of the American community. Among the small party with which Walker originally sailed from San Francisco were several lawyers and doctors, and others holding a respectable position. General Walker himself is of a respectable family in Alabama. He is about forty years of age, and is a man of superior education, the greater part of which he received in Europe. He originally studied medicine, but afterwards became a member of the legal profession. For some years he conducted a newspaper in New Orleans; but when the California excitement broke out, he went to that country, and for some time edited a journal in San Francisco, and has latterly been practising his profession in Marysville, a city of some importance in the northern part of California.

In personal appearance he is not at all what one would suppose such a daring and successful filibuster to be, being an exceedingly quiet man, with a mild expression of face, and very decidedly Saxon features. His followers hold him in the utmost esteem and admiration; and his conduct, since his accession to power in Nicaragua, has been such as to inspire with confidence in his judgment and abilities many influential theoretical

filibusters in California, who are not likely to allow the present flattering prospect of the realisation of their ideas to be lost for want of support.

He has been receiving continual accessions to his force, and now the Americans in Nicaragua under his command amount to upwards of 900 men.

The following article from the *San Francisco Herald* of the 6th October gives a very good idea of the popular feeling in favour of Walker, even before the achievement of his success in Granada had become known. The inefficiency of the executive to repress such a wholesale shipment of recruits and arms is also remarkable:—

“THE DEPARTURE OF THE WALKER REINFORCEMENTS FROM SAN FRANCISCO.

“Exciting Scenes along the Wharves—Ineffectual Attempt of a Party to board the Steamer in a Sailing Vessel—Three Hundred Stand of Arms for Walker’s Army—Proceeding in the Twelfth District Court—The Sheriff’s Party too late—Incidents, &c.

“The current rumours of the past week relative to the number of adventurers who intended to embark on the steamer Uncle Sam, to join Walker at Nicaragua, served to attract a large crowd in the vicinity of the steamer on the occasion of her departure yesterday. The vessel was advertised to sail at 9 o’clock A. M., and long before that hour Jackson Street wharf was filled with spectators and those interested in the embarkation of the Expeditionists. It is stated that nearly four hundred through passage tickets were sold before the appointed sailing hour, but, as will be seen, various circumstances compelled the agent of the line to postpone the steamer’s departure until four o’clock P. M. Officers were stationed in every part of the vessel, with positive orders to allow no one on board unless provided with a passage ticket. There seemed to be no disposition to infringe this order, and everything went on quietly until about noon, when it was discovered that some of the passengers were in possession of arms belonging to the ‘San Francisco Blues’ military corps. A search-warrant was immediately procured, and twenty-nine muskets, identified by members of the company named, were recovered. The warrant was executed by a single officer of the police, who received no molestation, but was permitted to make a thorough search of every quarter of the vessel. During this investigation two large crockery crates, full of arms, were discovered, but as the officer had no authority to seize upon these, they were left undisturbed, although information of the fact was immediately given to the Quartermaster, General Kibbe of the State militia, who soon after ascertained, by means of the telegraph wires, that the armoury of the Sacramento rifle company had been entirely divested of every weapon and round of ammunition. General Kibbe at once commenced suit in the Twelfth District Court to recover the arms belonging to the State, on board the Uncle Sam. The business of the suit was despatched with all possible haste; but before the necessary documents could be procured and placed in the hands of the sheriff, the hour had arrived for the sailing of the steamer. As the lines holding the vessel to the wharf were cast adrift, there was some indication of trouble between the officers of the vessel and those on the wharf anxious to obtain passage. The wharf was densely packed with men, and at the first move of the steamer’s paddles, a general rush was made to board her. The officers of the boat resisted, and the body of the crowd was driven back, at the imminent risk of their being crushed between the vessel and the wharf, or launched overboard. The scene was frightful, indeed; but fortunately, and singularly enough, no one sustained serious injury, as far as could be ascertained. About fifteen or twenty succeeded in getting on board, and the vessel shot out into the stream, where she came to, evidently with the view of compelling those to return on shore who had succeeded in boarding the vessel by force. By this time the expeditionists, to

the number of three hundred, had chartered a large schooner lying convenient to the wharf. This movement was seen on board the steamer, and as the schooner spread her canvass, the steamer's paddles were again put in motion; but she had not proceeded far when she again lay-to. The schooner was now under full headway with a fine breeze, and tacking quickly, she came up under the lee of the steamer, when she was ordered to keep off, and at the same time the steamer commenced moving ahead. It was now beyond the power of the schooner to work up to the position of the steamer until the latter would have sufficient time to send the intruders ashore and get under way again. Still the schooner persevered, and stood off for another tack. In the meantime a posse of Sheriff's officers, headed by Mr Dowdigan, with the writ of restitution, had procured a rowboat for the purpose of boarding the steamer. This they were unable to accomplish, as the steamer got under way just as the Sheriff's boat reached her side. The schooner was at this time within a few cables' length of the steamer, but, coming up under the lee of Telegraph Hill, the breeze died away, and all thought of boarding was at once abandoned, as the steamer was by this time under a full head of steam, with her bows directed seaward. The schooner landed the disappointed expeditionists at Jackson Street wharf; and a large number of ships' launches and other small craft filled with men who evidently intended to take the first opportunity to board the steamer, put back to the shore. It would be useless to attempt a description of the scenes along the wharves. From Jackson Street to North Point, every place of observation was crowded with eager spectators of the movements of the two vessels. It seemed to be the universal impression that the schooner load would be permitted to board, as it was rumoured that they had obtained passage tickets by some means just as the steamer left the wharf. No foundation for this rumour could be ascertained, and it was undoubtedly erroneous. The city Marshal, with several policemen, remained on the steamer until she was fully under way. Among the number who attempted to board in small boats, was a man named Henry Gray, who strenuously persisted in his endeavours to board the steamer, although forcibly resisted by officer Connelly. At last Gray drew a revolver and pointed it at the officer, who also drew his pistol, when the boatmen in the boat with Gray covered his person with their own. Gray was subsequently arrested by the police and placed in confinement. It is generally believed that the Uncle Sam carried away about three hundred stand of arms for the use of Walker's army. It is known that a large quantity of arms and ammunition had been purchased in this city to be sent to San Juan by this steamer. Just previous to the sailing of the steamer it was ascertained that a number of percussion lock muskets, belonging to the Manhattan Fire Company of this city, were taken from the engine-house during the night. The rifles taken from the Sacramento military company are said to be excellent weapons, and they will, undoubtedly, be a valuable acquisition to the armament of the Nicaragua republican troops. Many of those who failed to procure passage on the steamer yesterday had placed their baggage on board. This baggage will unquestionably be landed at San Juan, and kept for them by their more fortunate comrades until such time as they shall be successful in their endeavours to join Walker."—*San Francisco Herald*, Oct. 6.

This is the way they do things in California, affording a striking contrast to the very imposing demonstration made in New York about two months ago in support of the neutrality laws.

Shortly after the formation of the Walker government in Granada, a decree was issued, granting two hundred and fifty acres of land to every emigrant who would come and settle on and improve his grant; and in consequence of advertisements to that effect, inserted by the Nicaraguan government in the New York papers, great numbers of men intended sailing for that country in the regular steamer of the Nicaragua Transit Company.

Proclamations were issued by President Pierce, warning the citizens not to violate the neutrality laws; and when the steamer was on the point of leaving the wharf, the government officers made an attempt to arrest her. The captain, however, disregarded them, and got under way, but was brought up, while steaming down the harbour, by two or three shots from a man-of-war. The steamer was searched, but no evidence of the violation of the laws was found on board of her. The company, however, requested the assistance of the government officers in putting ashore about two hundred men who had not paid their passage. This was done, and the steamer went on her way, carrying two or three officers of government to see whether, on using up the coal, some cannon might not be found at the bottom of the coal-bunkers.

At this time, also, Colonel French, who had resigned his seat in the Walker cabinet as minister of the Hacienda, presented himself at Washington as minister-plenipotentiary from the State of Nicaragua; but the American Government refused to receive him. Colonel Wheeler, the American minister in Nicaragua, had already formally acknowledged the Walker government immediately on its formation, and as he visited Washington in the month of July, it is hardly to be supposed that he returned to his duties in Nicaragua, without acquainting himself with the views of his Government on the course to be pursued in event of the success of the Americans in that State. But Colonel Walker had already so firmly established himself in Nicaragua that any want of countenance from the American government could not weaken his position; the President's message also was soon about to appear, and too cordial an acknowledgment of the Americans in Nicaragua would not have been consistent with the tone observed in that document in regard to the enforcement of the Clayton-Bulwer treaty.

The Mosquito protectorate question is being practically settled by the Mosquitians themselves. Mosquitia is a strip of land on the Atlantic coast, part of which has always been claimed by Nicaragua, and which, from its geographical position, seems naturally to belong to her. Since the establishment of peace in that country, the government have sent commissioners among the Mosquito Indians in the neighbouring parts of Mosquitia. The natives are reported to have expressed great dissatisfaction at the exactions of the king, and to have declared their readiness to come

under Nicaragua. So the Mosquito kingdom seems likely to revert to Nicaragua, the State to which it originally belonged.

The success which has attended Walker's enterprise offers a strong contrast to the failure of that which, for the attainment of a similar end, was originated in New York towards the end of the year 1854.

A company was started under the name of the Central American Land Colonisation Company, or some such name. The ostensible object was the colonisation and cultivation of the Mosquito territory, more especially a certain portion known as the "Sheppard Grant," a large tract of land acquired by a Mr Sheppard from the King of Mosquitia. A certain Colonel Kinney took a prominent part in the organisation of the Company, which was supported by many capitalists in New York and other cities of the Union. The government also professed to be favourable to the scheme, and preparations were commenced on a large scale for carrying it out. A great deal was said about the promotion of agriculture on the Mosquito coast; but it was pretty generally understood by the public, that the real object in view was to filibuster the State of Nicaragua, or at all events to establish a depôt in that part of the world, from which, when all should be ready, a descent upon Cuba might be conveniently made.

At the remonstrances of the Nicaraguan minister in Washington, the administration were compelled to open their eyes to the true nature of the expedition.

A great fuss was then made; proclamations were issued, warning the people not to take part in the hostile invasion of a friendly State; a large steamer, chartered by Colonel Kinney, and all ready to take down several hundred agriculturists to cultivate the pestiferous swamps of the King of Mosquitia, was seized by the authorities; several men of war were stationed in New York harbour to watch her, and Colonel Kinney himself was arrested and held to bail.

Many of the supporters of the enterprise now withdrew; but Kinney was not to be deterred; and as he could not go in his steamer with several hundred followers, he modestly started, about the month of May, in a small schooner, with a couple of dozen men. He was wrecked somewhere about the West Indies, and was finally brought into Greytown, his original destination, by an English brig, which had picked him and his party off the rocks.

About this time the Accessory Transit Company of Nicaragua raised a little army in New York, on their own account, of fifty men, principally French and German. These they sent down in one of their steamers to Nicaragua, and stationed at Castillo, on the San Juan River, there to stop the advance of foreign invaders. This is the French legion referred to in the treaty of peace.

It was given out that Kinney and his small party were only the pioneers; that reinforcements were coming from New Orleans and other ports, but they have never yet made their appearance; and Kinney and his men still remain in Greytown, where, with the exception of starting a newspaper, they have as yet done nothing.

This Walker business in Nicaragua has been much more cleverly managed. The Americans in that country appear in the light of men who have gone there at the request of a party which constituted the majority of the people. They became citizens of the State, fought for it, and have risen to power.

The United States have themselves been to a certain extent filibustered in the same way. The Irish party has of late become so formidable, that the native Americans have had to form a league to counteract the Irish influence; and even if the American Government were opposed to the present movement in Nicaragua, they cannot prevent individual citizens from emigrating to, and becoming citizens of, that State.

It cannot be doubted that the advantages to Nicaragua, in consequence of the introduction of American influence, will be very great.

The constant fear of revolution being removed, the people will have more confidence in carrying on agricultural and commercial undertakings. The Americans will do away with all the antiquated absurdities of Spanish law, and amend a ridiculous old tariff, whereby many of the commonest articles of civilised life have been virtually prohibited; foreign capital will be freely employed in the cultivation of sugar, rice, tobacco, indigo, and other valuable crops, in the production of which Nicaragua can compete with any country in the world; and the resources of the mining districts will be developed by energetic and experienced miners from California.

THE SCOTTISH FISHERIES.^[14]

The Fisheries of Scotland constitute her most valuable and important interests, and form, in some of their features, the only really *national* undertaking in which our people are engaged. Of the benefits arising from agriculture and manufactures, we have, of course, our share; although our colder climate, and less affluent natural resources, make our merit all the greater in reaping in both of those departments such redundant harvests. But what is often wanting on the surface of our sterile land, is compensated by the products of the exhaustless deep. A hardy and athletic race is thus maintained in useful independence—a race for whom, but for this so frequent occupation in the great waters, nothing would now remain save expatriation or the poor's-roll.

When mention is made of the vast importance of our fisheries, and of their increasing prosperity, it must, however, be in no spirit of boastfulness, nor with any very buoyant feelings of continuous and assured success. The fisherman's vocation is at the best one not only of perpetual toil, but of frequent peril; and truly, while engaged in it, no man knows what even an hour may bring forth. The brightest day, with its calmly glittering sea, and sky as clear in its cerulean depth as ever fondly brooded over the "cloudless Parthenope," may be followed by the thick darkness of a night of storm and terror; and instead of another gladsome sunrise, with hopeful mothers and happy children scattered in expectant groups along some sheltered semicircular shore, the wild waves are coursing tumultuously over the lifeless forms of many whose places will henceforward know them no more for ever. Let any kindly and considerate person pass even an hour or two in one of our fishing-villages, and converse with the inhabitants, whether old or young. Strong stalwart men of iron mould, enduring and unbending as the gnarled oak, and in no way given to that sickly sentimentalism which

we sometimes meet with elsewhere, become softened and subdued when the dark remembrance of some great bereavement comes back in bitterness upon them,—in earlier life the loss of fathers and elder brothers,—in later years that of sons and helpmates, fellow-workmen in the world of waters. How many hearths are cold or cheerless, how many homes desolate, or the forlorn dwellings of the widow and the fatherless! Women may be seen seemingly intent upon the preparation of hooks and lines; but there is not one among them that cannot tell some heart-rending tale of sudden and unlooked-for death; and as they cast their melancholy eyes over the then gently heaving sea, they never cease to feel, because they too sadly know, how wrathful and ruthless is the power of that dread destroyer.

A seafaring people are proverbially subject to calamities of the most fatal and almost irremediable kind, such as no exercise of skill or caution on their own part can possibly provide against, and which befall no class of artisans or agricultural labourers. The sea, like the land, has also its barren and unproductive places; and even its richer fields are not seldom those of death and desolation. Therefore, whatever tends to ameliorate the condition of such of our people as are engaged in the fisheries should be carefully encouraged, and any sudden, especially if doubtful, changes in their relationship to the rest of the world, considered with the greater caution, even although certain existing conditions should not altogether conform to those general principles of political economy which it might otherwise be prudent to apply.

“The weary ploughman plods his homeward way,”

but seldom fails to find it. The

“Swinked hedger at his supper sits,”

and soft is the mossy bank beneath him, and sweet the air around, redolent with the balmy breath of flowers, and filled with the melody of birds singing their evening hymn. How rarely does the extinction of life from other than natural causes overtake these dwellers on the land, compared with the frequent fate of those who do business in the great waters! How astounded would be the natives of our inland vales, and the shepherds on a thousand hills, if ever and anon their hitherto steadfast and enduring boundaries were rent by earthquakes, and, literally “adding field to field,” one fine piece of pasture was lifted up and laid upon another, entombing for

ever alike the corn and its cultivators, the shepherds and their sheep. No very pleasant greetings in the market-place would ensue among the grain-merchants, wool-growers, and cattle-dealers, when the morning's news might chance to be—that the Lammermoors had subsided 1500 feet, and were entirely under water; that “Eildon's triple height” had been turned over, peaks downmost; that the debris of Penicuik was scattered over the vestiges of Peebles; and that the good town of Dalkeith was lying (its fine body of militiamen fast fossilising) at the bottom of a coal-pit. Yet equally disastrous, though not quite similar, calamities not unfrequently befall those whose precarious lot it is to cultivate the sea.

The formation of more commodious harbours, and of substantial and efficient piers, and whatever other accommodation may be most required, along our rock-bound shores, may therefore surely be regarded as emphatically a work both of necessity and mercy, without which the bountiful gifts of nature are either useless, or obtained at such fatal sacrifice of life and property as it would be painful to contemplate. It has been sometimes said, that as the coast proprietors are benefited by an increased success of the fisheries, the duty of erecting harbours or other shore-works is chiefly incumbent upon themselves. It is true that, when a proprietor builds a farm-steading or a porter's lodge, he is bound to pay for it, as he may be presumed to reap the chief advantage, and, at all events, is entitled to debar others from any participation of profits. But a building which abuts into the region of the sea-shore is so far public property, is under certain Admiralty supervision and control, and cannot be used exclusively for individual interests, although a reasonable power of regulation, in the way of imposing harbour-dues, may very properly be agreed upon as between proprietors and the public. The existence or non-existence of such works is often as the difference betwixt life and death to those who seek some shelter from the sea. Their construction is a great and indispensable public benefit, and therefore necessity; and a proprietor need no more be grudged the individual advantage which undoubtedly, and we think fortunately, accrues to him, than he can be grudged the corresponding advantage (which he shares with the general community) of those public roads and bridges which intersect or span the more inland portions of his property. It is, therefore, a very narrow and unpatriotic view which would saddle the expense of sea-works, of whatever kind, upon the immediate local owners of the land. Let them bear their share, as they are assuredly much benefited by the increase

of fishing or other commercial intercourse, both as direct advantages, and as almost necessarily leading to the improvement of property and a rise of rents; but considering the wild and unstable nature of the elements with which we have to deal, and the almost incalculable general benefits which result from all such works, when skilfully planned and substantially executed, let the public also largely and ungrudgingly join in the required expenditure.

As Captain Washington has well observed, it is not one or more great harbours of refuge on our north-eastern shores that is now required. The Bay of Cromarty, the *Portus Salutis* of the ancients, one of the finest and most secure harbours in the known world, lies not more than fifty miles to the southward of Wick, while the safe anchorage of Long Hope, in the Orkneys, is only twenty miles to the northward of that great fishing capital of Caithness. These are accessible at all times to every kind of shipping. But it is not so much shelter for the general trade, as security for fishing-boats, and coasting vessels connected with the fisheries, that is so imperatively needed. In proof of this we shall here briefly record the great catastrophe which befell a portion of our fishing population of the north-east coast of Scotland in the autumn of 1848. It is known that at this time upwards of 800 boats, manned by 3500 men, were engaged in the fishery from the Wick district alone. On the afternoon of Friday the 18th of August of that year, the majority of these fishing-boats (all open ones) left Pulteneytown harbour soon after high water, and remained in the Bay of Wick. Towards evening they stood out to sea, and when about ten miles off the land, as usual, shot their nets. The afternoon was fine, though the evening had somewhat of a threatening aspect, yet not such as to deter a fisherman from the pursuit of his accustomed calling. At midnight, much wind and sea having risen, many of the boats ran for the harbour, and got safely in about high water, which occurred at half-past one o'clock. By three in the morning the wind had increased to a gale from the south-east, with heavy rain. Most of the remaining boats then bore up for the Bay, which they reached between four and five o'clock; but by this time the tide had fallen one-half, and therefore there was not more than five feet depth of water at the entrance of the harbour, so that, with such a sea running, no loaded boat could enter. Some, however, made the attempt, and were either thrown up at the back of the north quay, or wrecked on the south pier, or swamped upon the bar. In this disastrous way 25 men perished, besides 12 others whose

boats were swamped at sea; thus, in the brief period of about three hours, occasioning a loss of 37 men drowned, leaving 17 widows and 60 children utterly destitute. There was a destruction of property in boats and nets of about £1600.

Dunbeath lies some sixteen or eighteen miles to the south-west of Wick. It is a favourite fishing-station, and much resorted to, having about 106 boats and 410 men. Its creek is slightly protected on the east by a promontory, and some detached rocks, which partially throw off the sea, and direct it into the west side of the bay; but it is much exposed to the south-west and southerly winds, and the fishermen have twice built up a breakwater of loose stones on the south side, near the burn-mouth. Not only is the violence of the waves to be dreaded, but after much rain in the interior, heavy fresh-water *spates* descend suddenly, and cause great destruction among such boats as have not been hauled up to a place of safety. Thus in the storm referred to, 18 boats were drifted out of the harbour by the river flood, and were smashed upon the beach. Still more unfortunately, a Lybster boat, while making for the harbour, was upset, and three men drowned.

Helmsdale, in Sutherlandshire, is fifteen miles farther to the south-west. It has made wonderful progress within comparatively recent years—is in a very thriving condition, and possesses some of the best curing establishments in all Scotland. But there is great want of accommodation both for men and boats, and the crowded state of the river is disadvantageous. There is also a bar at its mouth, and the harbourage, moreover, suffers much from the inland spates. During the autumn of 1848 there were 177 boats fishing from Helmsdale. Of these, 130 put to sea on the evening of the 18th of August. In the disastrous gale of the ensuing morning, two boats were upset while running over the bar for the harbour, and four men were drowned. Two other boats were either run down or foundered at sea, when 5 men perished, and another man was washed overboard while endeavouring to haul his nets,—making a loss of 10 lives.

On the southern side of the Moray Firth, Buckie is known as a most important, though exposed and almost shelterless station. It puts out about 160 boats, and its fishermen are noted as among the most daring as well as industrious on our coasts. They pursue the deep-sea fishing, and so labour not during the herring harvest alone, but all the year round. In the gale of

the 19th of August, 12 of its boats were wrecked off Peterhead, 8 were sorely damaged, and their nets carried away, while 11 men were drowned. Port Gordon, Portessie, and Findochtie belong to the same quarter. They lost among them 5 boats wrecked, and 10 men drowned—making a total loss, for that limited district, of 17 boats and 21 men.

Peterhead occupies a commanding and well-known position on a projecting and very exposed portion of our coast, and the stations included as in the same district, extend southwards as far as Aberdeen. It has about 60 boats of its own, while those of the entire district amount to 262, with 920 men and boys. But while these are the numbers belonging to the district, the actual amount at work within it, during the season of 1848, was 437 boats, employing 2185 men. Peterhead has the advantage of both a north and south harbour, each of considerable extent. The south harbour is dry at low water, but the outer portion of the northern has from six to seven feet at low water of spring-tides, and eighteen feet at high water. During the gale of the 18th and 19th of August, the boats began to run for shelter about eleven o'clock at night, and continued to do so until half-past three o'clock in the morning, at which time it was high water. But while endeavouring to make the harbour, 30 boats were totally lost, 33 were damaged and stranded, and 31 men were drowned.

Stonehaven is the principal station of the next and more southern district, which extends for about fifty-five miles from Girdleness to Broughty Ferry on the Tay. This district furnishes 306 boats, manned by 1160 fishermen. Of its 23 fishing stations 17 have no piers. Findon, so celebrated for its smoked haddocks, has 14 boats, but no pier. Portlethen, somewhat sheltered by a ledge of rocks, has 20 boats, but no pier. Cowie, under a similar precarious shelter, has 18 boats, but no pier. Auchmithie, with 37 boats, and Johnshaven with 10, have nothing like a pier. In many of these places the shore is steep and rough, with loose though heavy shingle. The boats, when they get in safely, must often be hauled well up for a continuance of protection. This, with relaunching, is most laborious and exhausting work. The women labour in and out of water, whether deep or shallow, as well as, sometimes even more assiduously than, the men. They carry the wet nets up the steep banks to be spread and dried, and they are not seldom seen bearing the wearied men out of the boats upon their backs, and landing them, high and dry, upon the beach. But these are savage customs, and lead to or perpetuate an uncouth and indurated, if not savage life. Yet before we can

“excavate the heathens,” and ameliorate their manners, we must excavate their beach, and build them substantial piers of stone and lime. On the miserable morning of the 19th of August, 6 boats belonging to this district were totally lost, and 19 men drowned.

The following is a brief summary of the loss of life and property which was suffered in the course of a very few hours during this disastrous gale:—

District.	Number of boats lost or damaged.	Value of boats and nets lost.	Number of men drowned.
Wick,	41	£1621	37
Lybster,		320	
Helmsdale,	24	800	13
Peterhead,	51	3820	31
Stonehaven,	8	450	19
Total loss, [15]	124	£7011	100

A calamity so great and sudden forcibly drew the public attention to the subject, and the Lords of the Admiralty were induced ere long to depute Captain Washington to inquire into and report regarding it. His report was printed by order of the House of Commons, and contains many most valuable observations and suggestions.^{[\[16\]](#)} We cannot here enter into technical details, but may quote one of his concluding paragraphs.

“In reviewing the evidence adduced on the present inquiry, it cannot fail to strike the most cursory reader that the want of good harbours, accessible at all times, is the grand cause of the loss of life and property, and the increased risk connected with our fisheries. It is not the construction of two or more large central harbours (as has been suggested) that is wanted, but a general deepening and improvement of all the existing harbours and rivers along the whole eastern coast of Scotland. Nor would the improvement of these harbours be attended with any very considerable outlay. *It is scarcely credible that the small sum of £2500 a-year, which Parliament has devoted* [through the Board of Fisheries] *to building harbours and piers in Scotland for the last few years, should have given so great a stimulus to important local improvements as those grants are found to have done.* But they are quite inadequate to grapple in earnest with the want which exists: four times their amount, or £10,000 a-year for a few years, steadily laid out on piers and harbours, would do much to remedy the want, and to place the fishermen of the east of Scotland on a par with those of more favoured coasts. It would be an act of mercy to a race of hardy, industrious, frugal men—to 10,000 fishermen of one of the poorest and most unproductive districts of Scotland, who are not at sea as occasional passers-by, but are constantly hovering off the coast in pursuit of their calling for three months together, exposed to the suddenness and violence of north-east gales—such as that of August 1845, and again in August 1848—without the common shelter that all mariners are entitled to look for in the hour of need.”—*Report*, p. xvii.

Here we seem to have a distinct statement of what is most required,—an equally distinct recognition of the great benefits which have already resulted from small means,—and a strong recommendation of a large

increase of those means, to be administered, we may presume, through the same medium and machinery as heretofore employed, and of which Captain Washington so much approves.

The harbour of Lybster lies in a sheltered situation, about half-way between Wick and Helmsdale. The best localities for the herring fishery are only a few miles off; and it had thus risen from a creek, scarcely navigable by small boats, to a fishing-station of very considerable importance. More than twenty years ago, Mr Sinclair, the proprietor, erected a pier on the west side of the harbour, at an expense of about £7000. Above 100 herring-boats were in use to frequent it during the season; many coasting vessels entered in; the quay-dues produced a revenue of £130, and a large and thriving village became established. All this time the harbour accommodation was limited and incommodious, consisting only of the channel of the river; and its increase of trade cannot be explained in any other way than by the safety experienced by boats in consequence of the entrance being well protected from the worst and most prevailing winds. Such being the case, Capt. Washington thought it highly desirable to profit by the advantages which nature had bestowed upon this creek; “or rather,” he observes, “it becomes an imperative duty to do so, when we consider the number of lives endangered, and the value of the property at stake, on the sudden springing up of an easterly gale, such as that of August 1845, and again in August 1848, which strewed the coast of Caithness with wrecks.” We may add, that the Lybster district comprises also Occumster, Clyth, Latheronwheel, Forse, &c., and that these places yielded, during the few weeks’ continuance of the fishing of 1854, as many as 41,550 barrels of herrings. In consequence of Captain Washington’s recommendation, and other patriotic influences, the Treasury advised a grant of £6000 for the improvement of the harbour of Lybster. The sum was voted by Parliament, and has since been successfully administered under the superintendence of the Board of Fisheries. The advantageous effects of this well-managed grant are manifest from the following facts. The number of boats that fished from the old harbour of Lybster in 1850 was 97, but the number that has fished from it since the basin was enlarged, is 174 boats in 1853, and 171 boats in 1854. But the difference in mere numbers of these two years, as compared with 1850, does not exhibit the actual alteration and improvement; for since the disastrous gale of 1848, the boats have almost every year been of larger build—so much so, that the fishermen consider that the old harbour would

not have held above 80 boats of the existing size, and that 180 of these boats are now harboured in greater safety than 80 could have formerly been. The amount of fishermen employed in 1848 was 418; during the past season (1855) it was 920. Had this increased accommodation existed in 1848, there is no saying what saving of life and property might have been accomplished. During the gale so frequently referred to, of the 34 boats which fished from Forse, 9 were totally lost, with all their nets, and 11 were severely damaged. Some of those Forse boats did, however, run for Lybster, and were saved; and all would have done so, but from the fear of want of room. It was this fear, unfortunately, that induced one of the Lybster boats, as already mentioned, to run for Dunbeath, where she was totally wrecked, and three of her crew drowned.

Our notices have hitherto been of a very casual kind, drawn out by the sympathy which cannot but be felt for the disastrous death of intrepid men and the destruction of property, which inevitably leads to such severe and long-continued suffering on the part of the survivors, haply but little thought of during the first wild wailings of the widow and the fatherless. But poverty sorely embitters grief; and the amount of prolonged misery involved by destitution so often consequent on death, can be in no way conveyed by the mere recital of the facts, however harrowing these may be. But it is cheering to know that the occasional disbursement of sums, which, to the greatest maritime nation that ever existed on earth, or made its undisputed home upon the deep, are only as a few grains of sand to the shores of the immeasurable sea, may produce the most obvious, immediate, and permanent advantage, and actually go far to convert a life of danger and difficulty into one of comparative security and ease. In reference to this view of the subject Captain Washington has well observed:—

“Besides the invaluable boon on this (the Caithness) coast of a harbour that might be fearlessly run for at all times of tide, and within which the fisherman might land his cargo immediately on his arrival, and rest quietly at his home until the moment of sailing arrives (instead of the anxious hours now often spent off a harbour’s mouth, waiting for the rise of tide), such a harbour would probably lead to a larger and safer class of fishing-boats (those now in use being adapted to a shallow dry harbour), and induce the fishermen to follow the deep-sea fishing all the year round, instead of merely the herring fishery for the season; and thus cultivate habits of steady industry and occupation, which could not but be beneficial to himself, his family, and the community.”—*Report*, p. viii.

“Nor could such an outlay,” he afterwards adds, “be considered in any other light than as sound economy. By the exertions of the British Fisheries Society, and of individuals, a vast public interest has been created on this coast within the last half-century. A fishing village has been raised into a comparatively opulent town, wealth has been diffused, and civilisation has followed in its wake. The example here set has had a most beneficial influence on a large portion of the Highlands and islands

of Scotland, and habits of industry and the best mode of fishing have been taught to the Highlander. The large amount of 126,000 barrels of herrings, or one-fifth of the whole produce of the Scottish fisheries, was cured at Wick during the past year, in addition to 12,000 barrels otherwise consumed. [17] The total value of the boats, nets, and lines employed exceeded £61,000, while the catching and curing the fish occupied 5600 persons; and the carrying of salt, and the export of the fish to Ireland and the European markets, gave occupation to 16,700 tons of shipping. *These are great public interests, which are entitled to be considered.* They are the results of spirited enterprise that may fairly claim to be encouraged, not by bounties and protection duties, but by placing these industrious and hardy Caithness fishermen, as far as possible, on a level with those of more favoured coasts, by the construction of a low-water harbour, to which they may confidently resort in the hour of need.”—*Ibid.* p. ix.

There can be no doubt that the formation of a capacious, easily accessible, and well-sheltered low-water harbour, in a central portion of the great fishing district of the north-east of Scotland would be of infinite advantage; but it is equally certain (and Captain Washington, as we have already shown, is likewise of that opinion) that the improvement and increase of the smaller, even the creek harbours, and the precarious piers of such as have any such erections, would be of incalculable service. It is a well-known fact, and one worthy of being held in remembrance, that during the lamentable gale of the 19th of August 1848, thirty boats ran for Keiss Bay, where there is a harbourage built or enlarged by the Board of Fisheries, and were saved. We may here add, what is well known, that where there are no harbours, the boats must be drawn up and beached in creeks and bays. Their size, therefore, in these cases, corresponds not to the wilderness of waves which they have to encounter, but to the nature of the situation on which they can be drawn up and placed in safety. We thus frequently find a great contrast between the size of boats where harbours or other sheltering fabrics have been built, and those frequenting places where there are none. It is also well known that the boats engaged in the cod and ling fisheries, &c., now require to proceed farther out to sea than formerly; and as they are necessarily constructed of a larger size, and so draw more water, they also need deeper harbourage than of old.

We may now briefly notice the commercial value of our fisheries. The capital embarked in the trade is not less than *two millions seven hundred and thirty thousand pounds*. It is chiefly distributed among a people inhabiting wild and barren districts of the country, where the climate is cold and moist, employment precarious, labour poorly paid, and all creature-comforts few and far between. Their real resources lie in the sea, the products of which, unlike the *cereals*, are fortunately not very materially affected by a somewhat cloudy and uncomfortable climate. Many years ago,

views of this kind were propounded by a Scotchman, Mr David Loch, the father, we believe, of the late lamented M.P. for the Wick burghs. He writes rather critically regarding the natives of the *Western Highlands*:—

“I am sorry to observe that the fishing is greatly neglected at this and the harvest seasons, as most of the people are farmers as well as fishermen; so that their time being divided between the two branches, the great object, fishing, has not that time and attention paid to it which is absolutely necessary. It is true that the country is not unfavourable to the breeding of sheep, not only on account of the pasture in general, but also as the snow never remains long on the ground; and as the farmers, very judiciously, use no tar, they sell their wool at 14s. the stone. The fisheries, however, should be their first care; and I declare, from my own knowledge, that a few boats’ crews of our east-country fishers would make rich here, and realise more money than half the farmers in this quarter. What a pity it is the inhabitants should be so blind to their own interest, and neglect to avail themselves of the advantages which their local situation offers to them! A boat’s crew of six men would make more money in one month than any farmer here can off the produce of a hundred acres of his best arable land, after deducting the value of the seed and the expenses attending its culture; and the former could, from the proceeds of their fish, furnish themselves with meal, flour, malt, barley, and vivers of every kind, on easier and much better terms than the latter can possibly raise and supply themselves with from their own farms. *Fish* is the natural produce of their seas, with which they abound, and to which they are contiguous; and *grass*, for pasturing sheep and black cattle, the natural produce of their lands. Nature, in denying them the means (of grain culture), has given them the fisheries, which is their natural staple, and is more than an equivalent for the deprivation of the other.”^[18]

A higher and more recent authority, Sir John M’Neill, G.C.B., Chief Commissioner of the Poor Law Board for Scotland, has borne corresponding testimony to the value of our fisheries, and their great advance during our own days. In reference to the county of Caithness, he observes:—

“Nearly the whole sea-coast of the county, including the towns of Thurso and Wick, is inhabited by persons more or less directly dependent upon the fisheries. In the rural parts, the fishermen have generally attached to their dwellings small farms or lots as they are called, varying in extent from two to ten acres of arable land. These, however, do not afford them the chief part of their subsistence. They rely upon the fisheries, and regard the cultivation of their lots as a secondary and comparatively unimportant part of their business.

“At the end of the last century, the value of the cured fish annually exported from Caithness did not exceed £13,000, and it then consisted almost exclusively of salmon. The cured herring, cod, and ling, exported from Wick and Lybster for the last ten years, gives an average annual value of not less than £130,000, according to the Returns of the Board of Fisheries. The annual value of the whole land in the county was returned in 1843 at £66,000. The population in 1841 was 36,343.

“The Caithness fisheries have thus not only become a source of prosperity to the county, but have also become an object of national importance; and their further extension appears to be in a great measure dependent upon the increase of suitable harbour accommodation for the boats engaged in them. Harbours, more or less secure, have been formed from time to time at different creeks along the coast, from Wick southward, and the number of boats appears to have increased in the ratio of the accommodation provided for them. There is no reason to believe that the limit has yet been reached, or that, if the harbour accommodation were increased, the fisheries, more especially of herring, would not receive a corresponding development. But even now the population of the county is not nearly sufficient to supply the demand for hands during the fishing season, and some thousands of

men from the west coast, find in Caithness, during that season, employment and wages, without which they could not subsist. The increase of harbour accommodation in Caithness, besides increasing the general amount of production, would thus afford additional employment to the inhabitants of the West Coast and Islands of Inverness, Ross, and Sutherland, who frequent the east coast fisheries because they cannot find sufficient employment at home.”^[19]

We may add in connection with the above, that about 10,000 Highlanders pass across from west to east during the continuance of the autumnal fishery, in which they find, for the time being, their sole refuge from destitution. It is estimated that from 7000 to 10,000 Highland women of the poorest class, and otherwise most forlorn condition, are likewise beneficially employed in gutting and packing herrings.

Great improvement and increased activity have been manifested in the fisheries of late years, and the facilities afforded by steam-navigation and the formation of railways have no doubt given a decided impulse to that department, as to so many other branches of commercial occupation. The value of our *materials* alone, in the way of boats, netting, and lines, now amounts to upwards of £580,000, minutely portioned out as the property, we need scarcely say in many cases the sole property, of a very poor though industrious part of the population.^[20] There are nearly 11,000 boats employed in the Scotch fisheries (including a few hundred from the Isle of Man), giving permanent employment to about 40,000 fishermen, besides occupying, as coopers, gutters, and labourers, towards 30,000 other persons. Of the higher class of merchants or fish-curers, there are considerably above 1100 engaged in the trade.^[21]

In estimating the money-value of the products of the Scotch fisheries, each barrel of cured herrings may be regarded as equivalent to £1, 1s. The price is sometimes higher, as in 1854, when it often reached to £1, 4s.; but it is also occasionally lower, when there is a large stock in hand, and the foreign markets are sluggish. The fishing trade is more than most others liable to fluctuations,—the supply itself varying from glut to scarcity. Thus the average profits are probably very moderate to all concerned. But taking the sum first mentioned as a fair price, it has been ascertained, that, upon the most moderate computation, the herring fishery of 1855 will produce—

Of cured herrings,	£700,000
Of fresh herrings,	150,000
	£850,000

The price, however, of cured fish being actually up, and as the returns of fresh fish are always much below the mark, we are informed, on the best authority, that the real value of the preceding season's capture will exceed *one million* sterling. This is a great thing for so poor a country, and especially for the poorer classes of that country. That our wealthier neighbours over the Border are made large partakers in our scaly spoils, is obvious from what appears to us to be a remarkable though distinctly ascertained fact, that in the course of a few weeks of last season, *5053 tons of fresh herrings* were transmitted, chiefly southwards, from the Dunbar district, by the North British Railway alone. The *take* of herrings in 1849, for Scotland and the Isle of Man, was 942,617 barrels. The season of 1853 was also very productive, yielding, exclusive of the English stations, 908,800 barrels.

Of the cured fish a very considerable portion is exported to Ireland and the Continental kingdoms. Thus during the immediately preceding season (fishing of 1855), it is estimated that out of a total cure of 705,109 barrels, 100,000 barrels were sent to Ireland, and 338,360 barrels to the Continent. To Stettin alone we have this year exported close upon 155,000 barrels, almost all guaranteed as in prime condition, and skilfully cured, by means of the Fishery crown brand impressed by burning on the staves. This process of branding is regarded as of great importance by the foreign merchants, more especially by such as have afterwards occasion to consign their stock to others for inland transportation. The crown brand is our Government official mark, and testifies that the contents have been carefully examined and approved of by the appointed Fishery officer of the district where the fish were caught and cured; and so great is the confidence now placed in the skill and integrity of these experienced and faithful functionaries, that barrels so marked pass from hand to hand, without examination, into the very heart of Europe, and onwards to the shores of the Black Sea. We need scarcely say how deteriorated the contents would be if the barrels were opened and the fish inspected, as they passed from country

to country, or from one purchaser to another. By the present practice this loss is avoided, and great advantage gained.

A single sentence may suffice for cod and ling. Stornoway in Lewis, and the Orkney and Shetland Islands, are the chief stations for these fine fish. In 1854 the amount cured at these and the other places in the north was 115,850 *hundredweight*. Besides these, there were caught and disposed of *fresh*, 58,042 hundredweight. The quantity of individual fish of the cod and ling kind, killed in the north of Scotland during the season of 1854, was *three million five hundred and twenty-three thousand two hundred and sixty-nine*. Of these, 1,385,699 were caught off the Shetland Islands. What a boon to a people who can scarcely grow grain, and cannot live on grass!

The preceding facts seem, on the whole, to indicate a rather pleasant and prosperous condition of affairs, for which we ought to be unfeignedly thankful, and with which it might not be deemed advisable to intermeddle, at least in the way of sudden and unsought-for change.

Our fishery affairs, we may now observe, are at present managed, so far as legal rules and regulations are concerned, by a certain number of Commissioners, who constitute the “Board of Fisheries.”^[22] The functions of that Board are chiefly as follows: To obtain for Parliament accurate statistical returns of the cod and herring fisheries,—of the seafaring and other persons employed in those occupations,—of the number, computed tonnage, value, &c., of the boats and other vessels engaged, and to give clearances for the same. In the herring fishery, to see that the measures for the delivery of fresh herrings, as between purchaser and seller, are of the legal standard size; and when the fish are cured, to ascertain that the barrels in which they are packed are of the full dimensions, and not fraudulently made, and to apply the official mark, called the Crown Brand, to whatever barrels contain herrings so cured and packed, and of such superior quality as to entitle them to receive it; to enforce the fishery convention between Great Britain and foreign countries, and guard the coast of Scotland against the intrusion of foreigners during the fishing season; to act likewise as a home police among the multitudinous masses of fishermen and other natives collected for the herring fishery along the coast, or in the numerous narrow firths and sea-lochs of our country, where there is often scarcely room to hold them; and to see that the boats in all such cases take up their proper stations, so as to prevent fouling of gear, and unseemly, sometimes

dangerous, brawls; finally, to erect piers and quays, and to make and maintain harbours on the coasts with aid from the proprietors and fishermen, with whom the Commissioners are in frequent communication, and to protect the boats and property in those harbours.

Of course these important and multifarious duties cannot be performed but at some expense; yet when we consider the deep interests involved, the vast capital embarked, the steady and increasing occupation of a remunerative kind afforded to so great a mass of our poorer population, and the difficulties and dangers which naturally beset this adventurous calling, we think the sum is very small compared with the advantages which its expenditure insures. The police department, especially on the western shores and islands, is chiefly maintained by the Princess Royal cutter, of about 103 tons burden, and a crew of 20 men and boys, including an experienced commander, and mate. This vessel is under the exclusive control of the Board. During the height of the fishing season, one or more small steam-vessels are placed by the Admiralty under the direction of the Board, and one of these vessels is usually continued in the Firth of Forth, for the protection of the winter fishing, so frequent there. The entire coast is divided into districts amounting, with the Orkney and Shetland Islands, to 22 in number, managed by a general Inspector, and 25 resident officers, whose sole occupation consists in the direction and encouragement of whatever may tend to the improvement and increase of the fisheries, and their products. It is imperative that these men should themselves have served for three years in the practical performance of the cooper's art. They are selected on account of their probity, sobriety, assiduity, and intelligence, and they are not raised to be the responsible officers of a district till they have acquired the requisite knowledge, and given proof of their capability, as assistants and nominees, for the higher situations. They reside among, and habitually mingle with the people of the fishing stations, and keep up a friendly and uninterrupted intercourse with them. That they skilfully and faithfully fulfil their functions, may be inferred from the very few instances in which, during a long continuous course of years, and almost countless series of transactions, any complaint of defective cure in any barrel bearing the brand has ever been presented to the Board.

The mere bestowal of the brand is, however, by no means the sole, though it is the final act of those officials. They are on the alert wherever fish are landed from the exhaustless deep. They encourage and hasten the

immediate application of the most approved modes of handling, assorting, gutting, rousing, salting, re-pickling, packing, filling up after sinking, and so on, and are thus actively engaged among all the various classes of people, whether of the sea or shore, explaining what is right, and checking what is wrong, from the first moment that the fish are landed from the boats, like glittering and gorgeous heaps of silver, till the full barrels are finally fixed down, and the brand applied. They also ascertain that the measures used as between the fishermen and the curers, and between the curers and the public, are properly constructed, and of just dimensions. To do this effectively, in a station such as that of Wick, where many hundred large boats are discharging their almost living freight nearly at the same time, it is obvious that energy, activity, and considerable sharp-sightedness, are indispensable to see that all is open and above board among such an innumerable and multifarious crew from all quarters,—counting among them, no doubt, as in all other trades, those who are not so scrupulous as to debar their being somewhat greedy of gain. We have been told, from the highest source, of how many evils that fatal though frequent passion is the root.

The expenses of the Board, as above constituted, are the following. There is a special grant of £3000 (by Act of Parliament) for the erection of piers and quays, or other harbour-work. There is a further sum granted, by the annual votes of supply, of £11,000 for the general expenses of the Board, their head office in Edinburgh, their establishment of district officers throughout the country, the general superintendence of the fisheries, and the maintenance of the cutter and her crew. The Commissioners of the Board act gratuitously. We presume that the functionaries last alluded to, although unpaid, assiduously perform the duties required of them, and to which they are pledged. The following is Mr John Shaw Lefevre's testimony in their favour, as well as in advocacy of the continuance both of the brand and Board:—

“Having arrived at the conviction of the necessity of maintaining at present the system of branding herrings, it appears to me that this would of itself require the continuance of the Fishery Board, independently of the question of the general utility of that establishment. I conceive that the superintendence of that system, and of the officers conducting it, could not be better or more satisfactorily executed than by that Board, which is thoroughly conversant with the subject, as respects the Scotch fisheries, to which the branding system is practically limited, and far more conveniently situated than any Central Board in London.

“Having had the opportunity of inspecting the correspondence and proceedings of this Board, it would be unjust not to take this opportunity of adverting to the important services which the

Commissioners, acting themselves gratuitously, and with a moderate establishment, have rendered to the public in assisting for a long period of years in the development of this branch of national industry, and of expressing my belief, that, in the present condition of the poorer classes in Scotland, the question of the continuance of the Board of Fisheries is not merely to be regarded in reference to measures of economy,—that it is impossible to doubt the social and moral advantages which may and do result to this class of the population, from the attention bestowed upon their welfare by a body of eminent persons, distinguished by their rank, position, and knowledge, and who are constantly endeavouring to obtain and disseminate information useful to those employed in the fisheries, to encourage their enterprise, to stimulate their industry, and to promote their physical and moral welfare.”

We quite agree with Mr Lefevre in the opinion expressed above, and especially in his belief that a Scotch Board, necessarily conversant with the subject of the Scotch fisheries, will exercise a more effective and satisfactory superintendence, and perform its functions much more conveniently and economically, than could any board in London, so far removed from the scene of action.

The general importance of our present subject is too obvious and admitted to be argumentatively insisted on. If we have writ our annals true, it cannot be doubted that the British fisheries, as the great nursery for seamen of habitual hardihood, and fearless of “the lightning, the fierce winds, the trampling waves,” are altogether invaluable, and, in a national point of view, far transcend the mere direct pecuniary advantages, however great, which may so easily be shown to spring from them. It is long since Sir Henry Wotton maintained that there was something even in the capture of fish, viewed simply as a trade, which tended to improve the moral, if not the intellectual character of men, and to bring them up for the most part a humane as well as hardy race; and more recently, Baron Cuvier, so well acquainted with both man and beast, and every other thing that dwells on this terraqueous globe, has recorded his opinion, that all nations possessed of any sea-coast where the herring occurs, have given great encouragement to its capture, wisely regarding that occupation as the most natural nursery for the bringing up of robust men, intrepid sailors, and skilful navigators, and so of the highest importance in the establishment of maritime greatness. Lacepede goes so far as to regard the herring as “une de ces productions dont l’emploi décide de la destinée des empires.” We know that during the palmiest days of the States-General, out of a population of 2,400,000 persons, 450,000 were either fishermen, or connected with the building and equipment of ships and boats pertaining to the fisheries; and so the Pensionary De Witt was not far wrong when he stated that every fifth man

in Holland earned his subsistence by the sea, and that the herring fishery might be regarded as the right hand of the republic. Indeed, the Dutch nation, so wary, considerate, and persevering, have always admitted that their wealth and strength resulted from the sea; and hence the old saying still in use among them, that the “foundation of Amsterdam was laid on herring-bones.”

Seeing, then, that we are surrounded by so great a mass of witnesses, testifying to the importance of this trade, and knowing to what height, after so many years of toil and trouble, we have now attained, ought we to put in peril our present most advantageous position, by venturing upon any fanciful alteration of that familiar machinery which has hitherto worked so well?

It is, however, rumoured that Government proposes, we presume by way of mending these matters, to abolish the Board of Fisheries, collect the statistics, and exercise the superintendence, after some other fashion, cast the brand into oblivion, withdraw the grant for the building of piers and quays, and so dispense, *in toto*, with the advice, assistance, or intervention of the old and experienced authorities. This proposal, of course, proceeds upon the assumption that the brand may now be advantageously done away with, and the principle adopted which has so long been applied to the linen and woollen manufactures, which are not now stamped officially, but depend for preference on the character and merits of each particular maker. We understand it to be alleged, that this so-called sounder system should be applied to the Scotch fisheries, with a view to assimilate them, so far, to those of Ireland. We shall now consider this proposal, which, we need scarcely say, has sorely perplexed and alarmed the people of our coasts. They almost feel as if the fate foretold by the Prophet Isaiah was now in store for them, and that the time is at hand, when “the fishers also shall mourn, ... and they that spread nets upon the waters shall languish.”—Isa. xix. 8.

We shall now, as briefly as we can, take up the subject under the different heads into which it naturally divides itself.

In the first place, we can bear testimony, from personal knowledge, to the fact, that great importance is attached by our fishing population to the existence of the Board. They view it as a body to whom they can have easy access, through the resident Fishery officers at the various stations. Their

impression is that their interests are cared for by it, and hence their willingness, in cases of difference or dispute, to be regulated by the friendly interposition of the official superintendents. Innumerable cases might be cited of aid afforded by the captain and crew of the Princess Royal fishery cutter, as well as by the effective influence and authority of the naval superintendent, with his Queen's ship. But the great advantage of the former vessel is, that she is under the entire control of the Board for the whole year, whereas the war-steamer is only given for a time, and is of course always under Admiralty orders. There is also additional benefit found to flow to the Highland population of our insular and other western shores, from the easy intercourse they can have with the Gaelic-speaking boats' crew of the cutter, compared with the utter and irremediable absence of all intelligible intercourse, which not unfrequently occurs, between that population and the unalloyed Saxons of a steamship from the south.

We doubt not that the Board of Fisheries believes itself, and on good ground, to be, from the very nature of its constitution, in a more favourable position than any other body of men can be, to ascertain and judge of the local requirements of parties applying for additional accommodation in the way of piers and quays. Their accurate statistical returns enable them to know whether a given station is on the increase or otherwise, and their local officers having necessarily an intimate acquaintance with the character of the fishing population of each district, can testify to their activity and success. They can thus give information which it would be extremely difficult to obtain in any other way, but without which the propriety of erecting, or repairing and extending, any of these shore-works, could not be so satisfactorily determined.

In respect to the proposal to assimilate the Scotch to the *Irish* fisheries, we believe the fact to be, that the Irish *Herring* Fishery has actually no existence as a national undertaking. Let any one read over the *Reports* of the Irish Commissioners, and he will perceive at once that their functions are confined almost exclusively to the regulation and improvement of the *Inland Fisheries*; that is, those of salmon and white trout. Any mention of herrings is, in truth, of the most casual and unimportant kind. There is, no doubt, a somewhat regular herring fishery off a portion of the eastern coast of Ireland, the boats sailing, for the time being, to and from the harbour of Howth. But it is very well known to every person in any way conversant with the subject, that these boats consist of about 140 from St Ives, in

Cornwall, of towards 100 from the Isle of Man, and of some 20 from Campbeltown in the west of Scotland. Scarcely any native Irish boats frequent that fishery. We believe that a few come off from Arklow,—we presume very few, as they are not enumerated by the Irish Commissioners. These Commissioners, however, state, that of all the boats above mentioned, the Scotch “are invariably the most successful,” owing to the superior nature of their nets, and no doubt more skilful mode of management. So backward, in truth, is the condition of the Irish herring fishery, and those connected with it, compared with the Scotch and its conductors, that a very few seasons ago a set of cooper’s tools for the manufacture of barrels could not be found at any curing-station in all Ireland, and there had to be sent over from Scotland, at the request of Mr Ffennel, one of the Irish Inspecting Commissioners, a few skilled artisans, with the necessary implements, to instruct the establishments of the sister isle, and aid those concerned in their pursuit of knowledge under difficulties. Now, we should certainly be very sorry to be assimilated to anything of that kind, although we can easily conceive that the assimilation of the Irish fisheries to those of Scotland would be of great advantage to the former.

We are willing to make every allowance for the difference in the character and disposition of the Scotch and Irish (although the majority of the one, so far as *fishers* are concerned, are as *Celtic* as the other), and for many disturbing elements in the Green Isle which do not so deeply and fatally pervade the social state of our own people; but still, where we find, on the one hand, a most important branch of commerce long established and maintained in security, and now on the increase from year to year, and on the other a desponding if not decreasing condition of affairs, carried on with little energy and no success,—there seems nothing unreasonable in the supposition, that management and methodical regulation, a long-continued course of instruction, an unceasing supervision, and encouragement both by precept and example, to work up and attain to a higher standard of excellence than heretofore, may have produced the most beneficial effect in the former case; while the absence of such ameliorating causes, and of all counteractions of apathy and ignorance, may have been injurious in the latter. The Scotch fishermen and fish-curers have experienced, and still enjoy, the advantages referred to,—the Irish have not been deprived of them, because they never had them in possession. The Scotch herring

fishery is by far the greatest and most successful in the world,—the Irish is unfortunately the smallest and least prosperous on the waters of the known earth; and why should we seek to assimilate the two by adding much to nothing, rather than by endeavouring to create something out of nothing, and thus increasing the previously existing stores of national wealth? Of course, we know not with certainty what effect would follow the formation along the still unproductive Irish shores of a machinery in accordance with the system which has proved so signally successful along the wild coasts of much more barren and ungenial Scotland; but we think it would surely be a wiser and more generous policy to try the experiment of assimilation, rather by endeavouring to raise up Ireland to what it ought to be, than run the risk of bringing the two countries into somewhat similar condition, by sacrificing any of the few advantages which Scotland now enjoys.

If the accurate ascertainment of the statistics of the land is now deemed of such vital importance, surely that of the sea, to this great maritime and commercial nation, is no way less so. This brings us to the consideration of the performance of another important duty of the Board, the advantages of which we should of course lose on its abolition. Our marine and fishery statistics have been hitherto collected with great fulness and accuracy by the officers of the Board, and annually reported to Parliament. On the demolition of the Board, who are to perform the same functions in time to come? If the coast-guard is to be so employed, as it is in Ireland, let us briefly inquire into the well-doing of that system there.

In reference to the marine statistics of the sister isle, as collected and transmitted by the coast-guard, the Irish Fishery Commissioners report as follows:—

“The doubts which we have expressed in former reports of the accuracy of the tabular returns, which are founded upon information furnished by the coast-guard department, are, we regret to state, undiminished. Several cases in which we have endeavoured to test their correctness, have convinced us that *not even an approximate estimate* can be formed of the actual extent and state of the fishing establishment on the coast. From any sources within our reach, unaided by anything like a responsible staff, *we are unable to obtain the necessary information*, or to effect that perfect organisation of the coast which would tend to the promotion of the fisheries and the preservation of order—an object of vital importance to the well-working of the fisheries, as well as to the peace of the country.

“We have in our department but one clerk, whose duties are sometimes necessarily extended to visiting distant stations for the promulgation of by-laws, or for other purposes; and on such occasions we have required of him to furnish us with a statement of his progress. His reports prove how exceedingly valuable the services of qualified persons would be, instead of the desultory and unsatisfactory information which we are enabled to procure from irresponsible persons, who are

bound to make our business quite subordinate to their more important duties. We subjoin a copy of the circular and queries which we issue annually to the coast-guard department; and in most cases we find that five out of the seven questions asked are either not answered at all, or in a manner not calculated to afford much information.”^[23]

In a subsequent report the Inspecting Commissioners state, in relation to the Belmullet district, which extends from Duna Head to Butter Point, that the diminution in the number of boats and hands is so great as to seem quite incredible. They attribute this not so much to the actual decrease, as to the erroneous and exaggerated information formerly received. “There are no first-class boats, and only 190 second class, with 676 men and boys, instead of the former establishment, which was stated to have been 962 vessels, with 3376 men and boys. This clearly proves the great inaccuracy of former returns.”^[24]

In the most recent report of the Irish Commissioners the following is the conclusion come to:—

“We cannot conclude this report on the coast fisheries of Ireland without expressing our deep regret that we are not furnished with data which would enable us to supply accurate statistical information as to the physical resources which may be found upon our shores for purposes of national defence. The encouragement of our coast fisheries used in former times to be considered the most effectual and legitimate means of providing for our navy.... In France we are told that the whole commercial navy—masters, mates, sailors, and shipboys—are under the eye and jurisdiction of the Minister of Marine;—nay, every fisherman, waterman, ferryman, oyster-dredger, and boat-builder is registered. We very much wish that we had been enabled to establish even a less perfect system of organisation, but we find ourselves more deficient in means of obtaining accurate information every succeeding year; and we entertain little hopes that, until the present plan of registry is much improved, we can ever attempt to present returns the accuracy of which we could vouch for.”^[25]

We do not think that the preceding extracts are encouraging, or hold out any great inducement to assimilate our established mode of marine statistical collection to that of Ireland. Far better to abide as we are, and “let well alone.” It may also be borne in mind, that so far as the north-west portions of Scotland, with their numerous and deeply-indented fishing-bays, are concerned, there is actually no coast-guard in existence.

A single paragraph may suffice in regard to the general marine superintendence, or police duties, as exercised by the Board of Fisheries. These duties are chiefly performed by boats’ crews from the Princess Royal fishery cutter. We may refer to the fact that the Chamber of Commerce of Wick apply each season to the Board for a boat’s crew to be stationed at Wick, for the purpose of preserving order in the fleet of fishing-boats assembled in that overcrowded mart; and that the results are invariably so successful and satisfactory, that no complaints of brawling or contention are

ever made. On the contrary, the Chamber of Commerce seems annually to express and record its grateful acknowledgments to the Board for its efficient services in this particular matter of the preservation of the peace. The following, however, is of a somewhat different complexion, in the last Report of the Irish Commissioners, regarding the state of matters in the Green Isle:—

“The fishers and buyers complain greatly of the absence of some regulations for the preservation of order among the multitude of boats and people that are often assembled; and still more of the absence of any summary jurisdiction for enforcing regulations and settling disputes between the boatmen themselves, and between them and the purchasers; and have agreed upon a memorial to the Lord-Lieutenant upon the subject, which, doubtless, will come before the Board in due time.”^[26]
“The inspecting commander at Donaghadee complains that the people do not conform to the laws with regard to the size of the meshes; and that with poke nets, used in Lough Strangford, great quantities of fry of cod, whiting, pollock, blocken, sythes, salmon-trout, turbot, golpens, and smelts, from two to three inches long, are destroyed.”^[27]

We may now say a few words regarding the somewhat disputed subject of the *brand*. Many of our readers are, no doubt, so innocent as not to know very precisely what this mysterious symbol indicates. The mark called the *Full crown Brand* merely means, that the herrings contained in the barrel which bears it have been regularly selected and assorted from the first, as of full size, good quality, and fresh condition; that they have been gutted and salted immediately after capture; have gone through various intermediate curative processes not needful to be here detailed; have lain at least ten days in pickle since their first presentment in the market-place; and having been then carefully inspected by the fishery officer of the station, and found in every way excellent and in sound order, have had the heads and girdings of their barrels firmly and finally fixed down by the cooper, and so being entitled to the Government Brand, have accordingly had that distinction impressed upon them by means of a hot iron which “the likeness of a queenly crown has on.”

Now, it has been argued by some, who, like Campbell’s sable chieftain of the Indian forest,—

“Scorning to wield the hatchet for a bribe,
'Gainst Brand himself have gone in battle forth,”

that this is an interference with the freedom of trade, which should be left open to all competitors, without fear or favour. They maintain that although it may be convenient and advantageous to dealers, it practically tends to confine improvement in the mode of cure within the limits just necessary to

secure the brand, and that there is thus no inducement held out to a fish-curer to surpass his fellows,—the Government brand, as it were, equalising the value of the article, although one set of barrels may be much better than another. It is also asserted that the brand creates an artificial system inconsistent with proper and prevailing principles, and that the sounder system now applied to the linen and woollen trade (from both of which the Government mark has been for some time removed), and all along to the fisheries of Ireland, should be put in force.

In reply to these objections, it may be mentioned that herrings are of a very different nature from linen or woollen fabrics, and after being packed for exportation, cannot have their character and condition ascertained by either touch or eye-sight, without injury to their future state. The brand is *not compulsory*, and can scarcely present any barrier to improvement in the cure of herrings, because if any curer, more skilful than his neighbours, can find out and put in practice any better method than that now in use, he is entirely free to do so, and may thus establish his name, and trust to it, independent of the brand. Moreover, whatever may be the philosophical value of the principle in political economy pointed out as deserving of a preference in the abstract, it must practically (and the gutting and curing of herrings are very practical operations in their way) be borne in mind, that our fisheries have grown up rapidly under the present system, which was found necessary to enable us to compete with the Dutch, whom we have thereby driven out of whatever markets are open to us without disadvantageous differential duties, and that our now prosperous practice is sunk into the very foundations of our foreign trade, affecting the wellbeing of almost countless thousands, from the forlorn fisherman to the wealthiest capitalist, or most aspiring speculator.

It is assuredly a strong fact, that the foreign merchants themselves are unanimous in favour of the continuance of the present system, as enabling them to transmit their barrels, on the faith of the brand, into far inland countries, where the names of our native curers, however familiar to many of ourselves, are necessarily quite unknown, but where the acknowledged *crown brand*, by its simplicity and certainty, suffices for every purpose of an agreed-on guarantee. Great derangement of the foreign trade, and consequent disadvantage, are naturally apprehended from any sudden departure from the existing long-established system. The trouble and expense which, in absence of the brand, necessarily follow the practice of

braken (that is, inspection by opening) would inevitably decrease the profits of both the fishermen and curers in our own country; because as each party through whose hands the fish pass from their first capture to their final consumption must reap some share of profit, whatever increases the difficulties of the intermediate stages, tends to lower prices in this country. The duties paid abroad, both of import and transit, and other unavoidable charges, prevent the exaction of any higher prices in the foreign market, because any considerable increase would be tantamount to prohibition, and would thus debar any sales whatever. As the price, then, must remain the same, or nearly so, to the foreign consumer, a large proportion of the loss occasioned by increased expense would unavoidably fall upon our own people. Now, it is well known that, in consequence of the perilous and uncertain nature of a fisherman's vocation, and the peculiarities of the curing trade, the profits to those concerned can in no way stand reduction, however much they may require increase.

The opinion of the foreign merchants on this matter has been manifested many times. On the 7th of March 1844, Messrs Robinow & Sons, and Hudtwalcker & Co., of Hamburg, write as follows:—

“We believe ourselves entitled to state that we are not merely expressing our own individual sentiments, but, at the same time, those of the public in general interested in the herring trade of the Continent. The official interference of the Board will prove a great benefit to the Scotch herring trade. It will, on the one hand, prove to the buyers on the Continent that the Board of Fisheries is desirous to do all in its power to justify the renowned fame of its brands, and in this way give more confidence to the trade. On the other hand, the curers of Scotland will be influenced by such steps to pay as much attention to the curing and packing as possible, and thus increasing confidence on the part of consumers, and increasing vigilance, with a view to improve the cure, on the part of the curers and officers, will conjointly contribute to increase the consumption of Scotch herrings on the Continent, and consequently to increase the exportation.”

Mr Wellmann, of Stettin, a very extensive foreign purchaser of the Caithness branded herrings, in a letter to Mr George Traill, M.P. for the county, wrote thus on the 8th of February 1851:—

“Scotch herrings are only sold in small quantities in this market and the neighbourhood; they are chiefly sent great distances of from a hundred to eight hundred miles English, into the interior of Germany and Poland, either by orders or offers, without the assistance of commission merchants, for the great expense of forwarding them does not permit any commission to a third party. The great distance prevents, likewise, dealers from inspecting the herrings on the spot here, who therefore make their purchases solely on their trust in the official brand, knowing that the fish must be selected well, and properly cured,—that the barrels be of legal size,—and that they require to be well and tightly made before the brand can be affixed. These herrings are generally forwarded by crafts, which are often six or eight weeks on their passage, and it frequently happens that a great fall in the market takes place during that time; and should the official brand be removed, dealers in the interior might easily take advantage of such falls, for it would not be difficult to find complaints—such, for

instance, that the fish were not properly selected or well cured—that they had too much or too little salt—or that the barrels were of a smaller size (for no one can there say of what size the barrels require to be); and as most herrings are sold on credit, they would consequently be often stored at the risk and the expense of the shipper, and perhaps in markets where the person who purchased them was the only dealer.... The cheapness and the improved cure have increased the importation of Scotch herrings into our port to a great extent, for there is no port to which more Scotch herrings are shipped than Stettin, whilst the importation of Dutch and Norwegian fish has diminished.”

A body of Hamburg merchants, too numerous to be here named, stated, on the 4th of October 1852, that it is by the careful observance of the regulations established and enforced by the Board of Fisheries, that the Scotch herring trade has attained to its present magnitude:—

“It is by the crown full brand,” they observe, “that we enter into contracts, make sales and deliveries, without examination. Such herrings pass current from hand to hand here, and into the interior, some of them reaching the empire of Austria. The many thousand barrels of full crown branded herrings arrived this season have given entire satisfaction to us and our constituents; but the sale of unbranded herrings is frequently the subject of complaint, and threats made by customers to return the herrings. We are, therefore, compelled to make abatements in the price.”

The partners of four merchant firms of Berlin expressed themselves thus, on the 7th of October 1852:—“We hereby represent our entire confidence in the official brand applied to the Scotch herrings by the officers of the Board of Fisheries, which is our only guarantee for the large capital we embark in this business.” And the heads of six mercantile houses of Magdeburg state, within a few days of that time, in respect to a rumour which had reached them regarding the possible abolition of the brand: “An alteration in this respect would put us to the greatest inconvenience, and compel us to adopt another plan of payment, which in the end would not be agreeable to your merchants and curers.... The opinion of a body of merchants, importing annually 50,000 to 60,000 barrels of Scotch herrings, will be worth some consideration, particularly as the object concerns the interests of both parties.”

Mr Thalberg, another Prussian merchant, has recently (in 1855) written as under:—

“In order to show how the Scotch herrings had risen in the Dantzic market, while in 1841 only from 3000 to 4000 barrels were imported, last year there were 35,000, and Scotch herrings were gradually more and more taken into the interior, while Norwegian herrings have correspondingly decreased. The same was the fact at Königsberg. This he attributed to the brand. Some of the herrings were actually sent to the Black Sea, being bought at Dantzic on the faith of the brand, which was so essential to a continuance and spread of the trade, that he did not believe purchasers from the interior would come such a distance and examine the barrels for themselves, were the brand abolished. Norwegian herrings were sent in small yachts, and each parcel was examined with the greatest minuteness before being purchased.”

These are the opinions of foreign merchants on this important point. The following may be taken as expressing the sentiments of those at home. Mr James Methuen, of Leith, a skilful curer, extensively known as of great experience, and very largely embarked in the export trade, very recently wrote as follows:—

“It is impossible to see each herring in a barrel, therefore inspection of them at the time of curing and packing enables an officer to brand with knowledge of the article, and gives confidence to the purchaser.

“The official brand has proved the means of exchange by bill of lading from hand to hand, and from dealer to dealer, in Scotland,—afloat in the middle of the North Sea,—in the Baltic, or in the rivers of Germany in their river craft, and up the interior of Germany for hundreds of miles,—and been passed and paid for as a good bill of exchange—in some cases through half-a-dozen purchasers.

“I ask those who differ, would it be wise of Parliament to peril the industry of so many thousands of our seafaring and industrious population, for want of the supervision that has wrought so well as to displace the demand for Norwegian and Dutch cured herrings on the continent of Europe, and enhanced the value of the Scotch crown branded herrings, so that they are now bought and sold without inspection by parties who never, and cannot, see them.”^[28]

The important fact previously stated by Mr Wellmann, in regard to the increasing consumption of Scotch herrings in the Baltic, and the consequently decreased importation from other quarters, is well shown by the following table:—

In 1834,	barrels	of Dutch herrings	received at	Stettin,	4,546
„	„	of Norwegian do.,	„	„	53,981
„	„	of Scotch do.,	„	„	19,960
In 1850,	„	of Dutch do.,	„	„	568
„	„	of Norwegian do.,	„	„	12,507
„	„	of Scotch do.,	„	„	116,538

In the year 1849, our exportation to Stettin amounted to 147,103 barrels. That season is well known to have been the most productive of herrings of any ever “recorded in history,” and so gave us the power, while Prussia afforded the opportunity, of this most beneficial exportation. It gives us sincere pleasure to add, that the immediately preceding season of 1855, although by no means the greatest in respect of capture, has exceeded all its predecessors in exportation to the Prussian markets—154,961 barrels having been transmitted to Stettin during the year now closed. Almost the whole of that vast consignment was ordered in consequence of the certain guarantee afforded by the crown brand. Now that peace is ere long, as we

trust, about to be proclaimed, it is pleasant to anticipate the fresh impulse which may be given to the consumption of our native produce in many inland countries of the Continent. The disastrous, though, from the cruel necessities of war, advisable destruction of the great Russian fisheries, will no doubt, for a time, cause additional recourse to our marine resources; but the absence of the well-known and long-trusted brand from our barrels exported to the Baltic, would assuredly tend to check, or render less likely, that desirable increase.^[29]

It is thought by many considerate and well-instructed people, by bankers and men of business, whether merchants or otherwise, that the power of obtaining the brand is of great advantage to young men of small means, and not yet established commercial reputation, who desire to enter into the export herring trade. By attending carefully to the cure of, it may be, only a few hundred barrels, they obtain the brand, and can ship their small stock with as good a prospect of a fair proportional profit as the most wealthy and best-known exporter. This opens a door to rising integrity and intelligence which might otherwise be closed, and it lessens the occasional evils of those engrossing monopolies which the large command of capital or credit is apt to produce, to the disadvantage of the poorer though not less trustworthy trader.

In reference to the next head of our discourse—the small annual grant of £3000 for the erection or enlargement of harbours, piers, and quays,—we think it cannot be doubted that its administration by the Board of Fisheries is necessarily attended by numerous and great advantages. Correspondence and inquiry take place in each particular instance of application for aid; one of the first practical steps being an accurate survey by the Board's engineers, with a report on the practicability and probable expense of the proposed work. The cost of this preliminary investigation is shared, half and half, between the applicant and the Board. The Board, being by this time in possession of all particulars necessary to be known, determines the proportion which the proprietor or fishermen (or both, as the case may be) should be made to bear of the ultimate outlay, while the latter parties also take into consideration how far they are able to make the required contribution; and so the agreement is either completed, or does not take place. Of course, the Board may either reject or entertain an application, while a proprietor (committed to nothing more than his share of the previous survey) may on his part accept or refuse to pledge himself to the

payment of his fixed proportion, according to what he knows of his own ways and means. It is not till these preliminaries have been adjusted that the actual work is mutually agreed upon, and put in operation. We know that many of these undertakings, which on their first proposal seemed almost hopeless of execution, have, by the encouragement and exertion of the Board, been brought to a successful issue, and are not only now in themselves of unspeakable advantage to our fishing population, but, by affording a successful example of the benefits which occur from comparatively small sums judiciously expended, have been the means of conducing directly to the erection of similar undertakings elsewhere, of equal benefit, but not previously taken into contemplation. A great deal more is done by these quiet and considerate means than can possibly be here detailed; but it is self-evident that the constant and unconstrained communication which now and has so long existed between the Commissioners, the great majority of whom are resident in Edinburgh, and the proprietors as well as people of the coast districts, where an increase of boat accommodation is so much required, cannot be otherwise than advantageous.^[30]

Now, if the Board of Fisheries be abolished, how and by whom are these friendly and encouraging communications to be carried on, and who are to pay the preliminary expenses? Through what agency are matters to be put in shape for acceptance by the Treasury, and the recommendation of a special grant by Parliament, in favour of any particular pier, or other work, that may be wanted? These preliminary but unavoidable expenses would in many cases fall upon a body of poor fishermen, who, without any warning voice on the one hand, or word of encouragement on the other, must proceed in doubt and darkness as to the chances of ultimate success with Government; while that Government could not proceed to action in the proposed matter without ordering some inquiry of their own, with a view to confirm or confute the opinion of the applicant, and thus causing, whatever might be the result, *additional if not double expenditure*,—while the object of the abolition of the Board is *to save expense*! A detailed explanation to Parliament regarding the special requirements of each particular case, though safe and salutary in the instance of great public harbour-works, would prove inconvenient, if not inoperative, in the administration of the numerous smaller fishing-pier grants for Scotland, hitherto contributed and administered by the Board. In what way the local though important

circumstances connected with the expenditure of a few hundred pounds for the erection of a slip at the far end of Lewis, at Sandseir in Shetland, or Eday in Orkney, can form the subject of an immediate and judicious parliamentary inquiry, we cannot well conceive. Probably few proprietors would desire to take advantage of a grant for some small but desirable improvement in those wild regions, were all the private and preliminary negotiations subjected to so cumbrous and uncertain a course as a consideration by the House of Commons. The communications now made to the Board of Fisheries by many Highland and other proprietors, are no doubt often to a certain extent of a confidential nature, involving the exposition of pecuniary affairs in connection with the proportional sums which particular proprietors may or may not have it in their power to pay. But when the main point is proved, to the satisfaction of the Board—to wit, that a great and general advantage will assuredly accrue to the people, whether a closely congregated mass, or the forlorn and far-scattered remnants of some dim and distant island of the sea,—then is the grant agreed to, and every effort, consistent with enduring efficiency, made to economise its administration, while every exertion has been previously put forth to obtain the utmost possible aid from proprietors and fishermen. It is obvious, from the annual reports made to Parliament, how much is frequently effected by the Board in this way. Let the following examples suffice for the exposition of this portion of our subject. The harbours after-named have not been built by wealthy proprietors, but by contributions to the Board by working fishermen, out of the hard-earned savings of their precarious life of labour.

For the harbour of Cellar-dyke there was lately paid by fishermen,	£705	18	4
Do. Buckhaven, do.,	3,116	19	9
Do. Coldingham, do.,	571	8	0

The grant to the Board commenced in 1828, but was only £2500 per annum for many years, and often greatly less, the practice appearing to have long been to require from the Treasury only the sum actually wanted for each work; and, from some absence of knowledge among both proprietors and fishermen, and probably inexperience on the part of the Commissioners of the Board, the grant in certain seasons was not obtained at all. It never seems to have reached a regular annual payment of £2500 until the year

1838, nor £3000 until the year 1850. Yet since its institution it has, by means of the negotiations of the Board, drawn out from private parties, for the erection of harbours, the sum of

	£27,455
Of itself, the Board has paid in grants.	59,399
Making a total of	£86,854

expended on the improvement of our coasts. It ought, moreover, to be borne in mind, that although, by the Act of Parliament, not less than one-fourth must be contributed by the private promoters of these shore-works, yet, through the influential management of the Board, this required proportion has in a great many cases been raised to one-third, and in some to one-half, of the estimated sum. So greatly, indeed, have the benefits of these ameliorations attracted the attention of the poor fishermen themselves, that they have not seldom of late come forward with offers of contributions much beyond what could have been anticipated from men of their class. When we consider the other advantages necessarily flowing from the increased prudential habits which must precede this social or domestic saving,—the diminution in the consumption of ardent spirits, and abstinence from other sensuous enjoyments,—it seems impossible to overrate the importance of any existing and well-established condition of affairs, admitted to be directly influential in the production of so beneficial, we may say so blessed, a result.

On the most mature and deliberate consideration of the whole matter now before us, and with large practical experience of the history and habits of our fishermen, and other coast population, we desire to protest against the unpatriotic rumour which has reached our ears, that the Board of Fisheries is about to be abolished, and its beneficial functions performed by—we know not whom.

We have now no longer any space for special observations on the two works of which the titles are given at the foot of the first page of this article. Like all its predecessors, the *Report* by the Commissioners of the Board of Fisheries, for 1854, contains a great deal of valuable statistical and other information, which, if we seek for elsewhere, we shall fail to find. The author of the treatise on “Fisheries,” in the current edition of the

Encyclopædia Britannica, has presented us with an ample and accurate exposition of his subject, with which he is no doubt well acquainted. He appears to us to be rather long-winded on the history and habits of the salmon and its smolts, whether one year old or two; but this is probably one of his hobbies, and as it may be also a favourite topic with a numerous class of curious and inquiring readers, and has recently assumed additional importance in connection with the artificial breeding of the finest of our fresh-water fishes, our ingenious author's time and labour have probably been by no means misbestowed in its elucidation.

SYDNEY SMITH.

The art of criticism is a branch of literature peculiar and separate, rigidly marked out from all the other branches of this gentle craft. An author, like a mother, throws all his personal prestige, all his hope, and all his riches, into that frail rich-freighted argosy, the book, which is doubtless *his*, but yet a separate entity, and by no means *him*; and almost in proportion to the power of his genius, and the elevation of his aim, his book outshines and overtops its maker, and becomes of the two the more real and tangible existence. It is indeed the inevitable tendency of art, in all its loftier labours, to glorify the work rather than the worker. The man perforce moves in a limited circle, the book goes everywhere. It is true that we are all much in the habit of saying that the author is better than the book; but this is an extremely questionable proposition, and one which experience constantly controverts. Also we all make comments—and on what subject have we been so unanimously eloquent?—on the wide reception given to the productions, and the small amount of public acknowledgment bestowed, on the persons, of English men of literature. Yes, they may do those things better in France; but it is not all our English conventionalism, nor is the “stony British stare” with which the man of land petrifies the man of letters in these realms by any means a primary or even a secondary cause of that want of social rank and estimation of which we all complain. Instead of that, it is the normal position of authorhood, the *bonâ fide* and genuine condition of a man who has voluntarily transferred his wealth, his aspirations, and his power, to another existence, even though that existence is a creation of his own. The writer of a great book is an abdicated monarch; out of his cloister, discrowned, but triumphant, he watches the other king whom he has made, going forth gloriously, a youth and a bridegroom, to take the world by storm. There are other modes of fame for him who has a mind to enjoy it in his own person; but it is scarcely to be disputed, to our thinking, that the

very first principle of art is to glorify the book, the picture, or the image, over the mind that brought them forth.

But criticism does what literature proper does not pretend to do. Happy the man who first hit upon the brilliant expedient of reviewing! The works of the critic are of their nature fugitive and ephemeral; but the same nature gives them innumerable advantages—immediate influence, instant superiority, a dazzling and unlaborious reputation. The works are almost nothing in many cases, but the men have leaped upon the popular platform, and mastered the reins of the popular vehicle in the twinkling of an eye. From whence it comes that the greater critics of modern literature are all known to us rather as persons than as writers. The younger generation, to whom the birth-hour of the *Edinburgh*, that Pallas Athene, in her buff and blue, is a remote historic epoch, have known all their lives the names of Jeffrey and of Sydney Smith; but we venture to say that this knowledge, so far from being based upon the actual productions of these distinguished and brilliant writers, would suffer diminution rather than increase from the most careful study of their several books. It is an entire mistake to send back these versatile and animated personages into the obscure of authorship; their reputation stands out a world above and beyond the volumes that bear their names. *They* have made no act of abdication in favour of a book; they are orators, impassioned, eager, partial; they are men, each in his own person, storming at us with individual opinions, laughter, indignation, contemptuousness, making splendid blunders, brilliant successes, and leaving echoes of their own undaunted voices in the common din of every day. Their reputation is immediate, sudden, personal—not the fame of a book, but the renown of a man.

And to this cause we may attribute the very evident fact, that some of the most notable men of the last generation have left little behind them to justify the extraordinary reputation bestowed on them by their contemporaries. Even our own St Christopher, the genial giant of *Maga*, is not sufficiently represented in the world of books—and his brilliant rivals of the opposite party have none of them left a *Noctes*. These men entirely eclipse the published works that bear their name. We know what their opinions were, much more by the primitive vehicle of oral tradition, than by the aid of print or publisher. Their position was that of speakers, not of writers; their periodical address to the public was a personal and direct address, out of a natural pulpit, where the audience saw the orator, as well

as the orator saw the audience, and the immediate response was marvellous. But there is compensation in all things; the author “had up” before this bench of judges, and gloriously cut to pieces to the triumph and admiration of all beholders, has his quiet revenge over his old castigators. The critic, like Dives, has all his good things in his lifetime; it is the nature of his fame to decrease, and fade into a recollection. The man dies; the book lives on.

The writer of the work before us,^[31] brief and modest as is her execution of her labour of love, is diffident of the reception which it may meet with at the hands of the public. Lady Holland’s doubts on this question have been, doubtless, set at rest long ere now; and we are after date in offering her the comfort of our opinion, so far as that may go. Yet we cannot help saying, that with such a man as Sydney Smith, a biography was a necessity—a right belonging to him, and a duty owed to us. During his own time he was—not a moral essayist, though all the world crowded to his lectures—not an Edinburgh Reviewer, though he himself was the Jove from whose brain that armed Minerva sprang—nor, last and not least, a Canon of St Paul’s. He was Sydney Smith—it was enough distinction—official character would not stick to so manful and mirthful a personage; it was not possible to seize upon one part of his sunshiny and genial nature, and make of it a supposititious man. There was no catching him even in profile; wherever he went, he went with his whole breadth in full array of errors and excellences, ampler than his canonicals. It is folly to say that such a life was uneventful, or that such a person was not a fit subject for biography. In fact, he was the fittest of subjects; and as the world never before knew him so well, it is safe to say that, not even in the sudden triumph of his first great enterprise, not in the excitement of the times of Plymley, nor in the fury of American repudiation, was the name of Sydney Smith so distinguished or so popular as now.

This is the doing of his daughter and his wife. Honour to the love which would not be discouraged! The mother has not been permitted to see how thoroughly and cordially the world appreciates that honest and noble Englishman, of whose fame she was the loyal conservator; but to have carried out so well her mother’s purpose, and to have seen how completely the public mind adopts and justifies their own loving estimate of the head of their household, must be, to Lady Holland, sufficient reward.

Sydney Smith was the son of a gentleman, clever enough and rich enough to be a somewhat remarkable and “picturesque” personage, but not, so far as appears, a very influential one, either as regarded the character or fortune of his sons. The boys were clever beyond precedent; so clever, that their schoolfellows made solemn protest against the injustice of being compelled to strive for prizes with “the Smiths,” who were always sure to win. Sydney, the most distinguished of the brotherhood, was captain of the school at Winchester, and, in Oxford, a Fellow of New College. If popular report speaks true, such learned celibates are always lovers of good cheer; and in those days, according to Lady Holland, port wine was the prevailing Helicon; for medievalism had not then come into fashion, and learned leisure hung heavy upon the colleges. In the thronged world of youth and intelligence, within and around these ancient walls, it is easy to suppose how great an influence, had he sought it, must have fallen to such a man as Sydney Smith—not to say that society was his natural element, and conversation his special and remarkable gift. Under these circumstances—at an age in which every one loves to excel, and in a place where he had unusual opportunities of distinguishing himself—the young Fellow, seeking neither pleasure nor influence, stoutly turned his back upon temptation, and lived, like a brave man as he was, upon his hundred pounds a-year. Sydney was of other mettle than those hapless men of genius whose “light from heaven” is a light which leads astray; and it is singular to observe that the prevailing characteristic of this famous wit and man of society, at this most perilous portion of his life, was steadfast, honest, self-denying independence. Such an example is rare; and no one who wishes to form a true estimate of the hero of this story, should omit to note this triumph of his youth.

From New College, by an abrupt transition, the young man falls into his fate. Why the most brilliant of Mr Robert Smith’s four sons should be the sacrifice of the family we are not told; but the elder is destined for the bar, and the younger for India, and to Sydney remains only the Church. He does not feel, nor pretend to feel, that this is his natural vocation; but he feels it “his duty to yield to his father’s wishes, and sacrifice his own.” Indeed, to take him within his own limited standing-ground, the life of Sydney Smith seems nearly a perfect one—duty, frankly accepted and honestly fulfilled, is in every period and change of his history; and so long as we take it for granted that it is only one of the learned professions which this good son

enters in obedience to his father's wishes, we cannot sufficiently admire the fortitude with which he takes up his lot. However, we warn our readers, who may entertain notions, old-fashioned or newfangled, that a clergyman should be something more than a professional man, to discharge all such fancies from their mind while they discuss this history. Sydney Smith is only to be dealt with on his own platform, and by the light of his own motives. For ourselves, we confess that this most honest, kind-hearted, and benevolent divine, is not by any means our *beau ideal* of a clergyman. Granting all his admirable qualities, and with due regard for the "calm dignity of his eye, mien, and voice," his "deep earnest tones," and "solemn impressive manner," and also for the unfailing benevolence and kindness of his dealings with his parishioners—in all which we perfectly believe—we still cannot help feeling that the least satisfactory view which we can have of Sydney Smith is that of his clerical position. He does not belong to it, nor it to him; he is a wit, a scholar, a man of letters, a man of politics, but in no sense, except in the merely arbitrary matter-of-fact one, is he a clergyman. Without entering into the religious question, or throwing any stigma whatever upon a man, in his own way, so honest and so admirable, we are obliged to hold by our opinion,—the common motives of honesty and propriety which govern men in the commonest of occupations, are all that are necessary in his profession of clergyman for a true judgment of Sydney Smith. It is his duty to look after the morals and comforts of his parishioners, and he does his duty; but to require of him the entire devotion of an evangelist, would be to require what he does not pretend to, and indeed disapproves of. To judge him as we judge the primitive apostles of our faith, or even to judge him as we judge an Evangelical incumbent or a Puseyite rector—men who, after their different fashions, live for this laborious business of theirs, and put their whole heart in it—would be idle and useless. He must be looked on in the light of his own motives and his own principles, and not according to any special view of ours.

And in this aspect we can admire the sacrifice which a young man, conscious of his own great powers, and no doubt conscious that in this sphere, of all others, were they least likely to do him service, made "to his father's wishes." He was soon put to a severe practical trial, and with equal fortitude seems to have endured his banishment to the dreary solitude of his first curacy. It was a cruel experiment. "Sydney Smith a curate in the midst of Salisbury Plain!" exclaims his biographer; and certainly the position was

dismal enough. “The village consisted but of a few scattered cottages and farms”—“once a-week a butcher’s cart came over from Salisbury”—and “his only relaxation, not being able to keep a horse, was long walks over these interminable plains.” Under these circumstances one may suppose that a little of the fervour of that Methodism, at which in after days he aimed his least successful arrow, might have been the best amelioration possible to this melancholy state of things; and very sad it is indeed to send a man, with no apostolic vocation whatever, to a place which nothing but the vocation of an apostle could render bearable. Nevertheless Sydney, honest, brave, and manful, did his duty. He remained at his post, though he did not love it, and did what was required of him, if not like an apostle, at least like an honest man.

Let us pause to say that this seems to us the really distinct and predominant feature in the character of Sydney Smith. He is everywhere a full-developed Englishman, making greater account of the manly virtues than of the ethereal ones—disposed to take the plain path before him, and to tread it sturdily—given to discussing everything that comes under his notice, in its actual and practicable reality rather than its remoter essential principles—a man given to *doing* more than to *speculating*—a mind not matter-of-fact, but actual—a soul of hearty and thorough honesty. Honesty is one of the most definite principles of our nature—it leaves no misty debatable land between the false and the true; and a man who says nothing but what he believes true, and does nothing but what he believes right, may be many a time wrong, as human creatures are, yet must always be an estimable man. Sydney Smith is never quixotic—never goes positively out of his way to seek a duty which does not specially call upon him. As long as the bishop is propitious, he is quite content to leave Foston among the Yorkshire clay, without a parish-priest; but as soon as the duty places itself broad and distinct before him, he is down upon it without a moment’s pause, builds the ugly vicarage, takes possession of the unattractive parish, does whatever his hand findeth to do. In this lies the charm and force of his character; in spite of all we say ourselves, and all that other people are pleased to say concerning the sombre and foggy mood of our national mind, we, for our own part, cannot help regarding Sydney Smith as a very type and impersonation of that virtue which has the especial admiration of these islands. For we like tangible worthiness, we British people—we like something to look at, as well as to hear tell of, and rejoice with our whole

hearts over the man who “goes in” at his foes, and overcomes them—who makes light of the infinite “bothers” of life, and bears its serious calamities like a man, and who carries his good cheer and his cordial heart unclouded over all. This is the national standard and type of excellence, let them speak of vapours and moroseness who will.

From the dreary probation of this first charge, Sydney was elevated to a tutorship, and ushered into a new and eventful life. With his pupil, the son of a Squire, to whom belongs the honour of finding out that this curate of Netherhaven was no ordinary personage, the young tutor, by a happy chance, found his way to Edinburgh. War broke out; Germany fell into trouble—well for Sydney!—and so the Jove came to Athens that the Minerva might be born. Does anybody remember how it was in those old, old days? Dearest reader, there was no *Maga*! there were *Gentleman’s Magazines*, and *Scots Magazines*, and other *outré* and antiquated productions. The broad and comprehensive survey of general events to which we are now accustomed, the universal criticism of everything and every person which is common to us all, and the perfect dauntlessness of modern journalism, were unknown to those times. And those were the days when our great men were young—when Youth was abroad in the world, with all his daring and all his eagerness. There is no particular star of youth in the horizon of this second half of the nineteenth century, but this brilliant planet was in the ascendant as the old eighteenth ended its old-fashioned career of dulness. There was Jeffrey, sharp, sparkling, and versatile; there was Brougham, vehement and impetuous; there was Sydney, in his English breadth and all-embracing mirthfulness; and there were others, all young—*young, clever, daring, exuberant, full of that youthful joyous courage which defies the world.* They met, they talked, they argued: strange enough, though there are published *Lives* of most of them, we have no clear account of those conversations—no *Dies* or *Noctes*, disclosing the eager discussions, the boundless animadversions, the satire, the fun, and the laughter of this brilliant fraternity in the high and airy habitations which suited their beginning fortune; but the result we are all very well acquainted with. Something came of the concussion of these young and eager intellects; they were all armed and ready for a grand tilt at things in general—a jubilant attack upon precedent and authority, after the manner of youth. Yes, some of them remain, ancient men—others of them have passed away in ripe old age; yet there they stand, the Revolutionists of Nature, the

universal challengers, the fiery Crusaders of youth. It was not Whiggery, good our reader, though Pallas Athene is buff and blue—it was the genuine natural impulse, common to all young humankind, of pulling down the old and setting up the new.

Perhaps it is because we are better accustomed to good writing and clever speculation in these days—perhaps because there is now a wider freedom of speech and opinion than there used to be; but there is a most distinct and woeful difference, beyond dispute, between the beginning of literary enterprises in this time, and in that brilliant and eventful period when Maga was born and the *Edinburgh* was young. Quarterly Reviews spring up everywhere in these days—grow into little comfortable private circulations—belong to particular “interests”—are read, and influential in their sphere; but who takes note of the day or hour of their appearing, or hails the advent of the new luminary? Then, the young periodical took the world by storm—now, nobody wots of it. The difference is notable; and perhaps, after all, we may be justly doubtful whether it really is better to have a great many people to do a thing indifferently, than to have one or two who can do it well.

Yes, we were enemies at our outset; we wrestled manfully, sometimes for fame, sometimes for principle, sometimes “for love;” yet, being foes, let us rejoice over them, worthy rivals in an honourable field. Jeffrey and Sydney Smith have gone upon the last journey—Christopher North is gathered to his fathers—alas and alas! genius and fame and power are things of a day, as we are; yet it is hard to believe in their decline and decadence, when we look back upon these days of their youth.

The first idea of the *Edinburgh Review* originated with Sydney Smith. His proposal, as he says himself, was received “with acclamation;” and indeed it is easy to understand the exultation with which these daring young men must have anticipated possessing an organ of their own. He himself edited the first number; and though his name is not so entirely identified with this brilliant and successful enterprise as some of his colleagues, to him belongs the glory of the beginning. But his biographer does little justice to this interesting period of his life. We have glimpses of his history in *Edinburgh* only by means of sundry sensible and candid letters written to the father and mother of his pupil, in which, as might be expected, the said pupil, a respectable and mediocre Michael Beach, appears at greater length

than his instructor. There is nothing remarkable in these letters, except the good sense and frankness with which the character of this pupil is exhibited; and this is as creditable to the young man's parents as it is to Sydney: but save for two or three domestic incidents, we see nothing more of the man, nor how he lived during this period which had so important an influence upon all his after life. Even Sydney Smith could not make everywhere such a brilliant little nucleus of society as that which he brightened and cheered in Edinburgh. We would gladly have seen more of the five years of his northern residence, and are much disposed to grudge that Lady Holland should take this time of all others to tell us about his writings, and to make a survey of all the future succession of his articles in the *Edinburgh*. These we can find out for ourselves; but we might surely have had a more articulate sketch of how our hero appeared among his equals at this beginning of his life.

Shortly after the first appearance of the Review, Sydney Smith left Edinburgh, whence, having "finished" his pupil, and finding it necessary to make some more permanent provision for his family, he removed to London, where he seems—no disparagement to his manly and independent character—to have lived for some time upon his wits, making strenuous efforts to improve his condition, and bearing what he could not mend with the gayest and most light-hearted philosophy. During this time he delivered his famous lectures upon moral philosophy—about the earliest example, we suppose, of literary lecturings; a course of popular instruction which found immense favour in the eyes of a curious and discerning public. Audiences, crowded, fashionable, and clever, listened with eagerness to his exposition of the doctrines and history of metaphysics. Into this Scotchest of sciences, Sydney, who was no metaphysician, made a rapid and daring leap. We do not pause to inquire whether his style was the perfect English which some of his friends assert it to be—at least it was luminous, clear, and flowing, full of good sense, and bright with lively sparkles of wit and high intelligence. To these lectures "everybody" went; and very creditable it seems to everybody, that this unbeneficed and unaristocratic clergyman, known solely by his great and fearless talents, and as far removed from a courtier of fashion as it is possible to conceive, should have congregated together so large and so enthusiastic an audience. The manner in which the lecturer himself speaks of this popular course of philosophy, and the

reputation he acquired by it, is amusing enough. Writing to Jeffrey, he says:

“My lectures are just now at such an absurd pitch of celebrity, that I must lose a good deal of reputation before the public settles into a just equilibrium respecting them. I am most heartily ashamed of my own fame, because I am conscious I do not deserve it; and that the moment men of sense are provoked by the clamour to look into my claims, it will be at an end.”

This prediction has not been fulfilled—nor are the lectures themselves of the brilliant, faulty, and dashing description, which from this account one might suppose them to be. They are, in fact, as honest and truthful as everything else which belongs to their author. When we read them *now*, we cannot quite account for the sensation they made *then*; yet we do not throw them into the list of undeserved or fallacious successes. They merited much though not all of their fame; and the social success and reputation of their author seems to have grown and progressed from this time. He was a universal favourite in that mystical region called “Society,” at least in every quarter of it to which his political opinions gave him access; and this public appearance made him henceforth a recognisable personage to the universal public eye. He was still poor and struggling with many difficulties; but he was surrounded with fit companions, and full of exuberant spirits—an admirable example, though unfortunately a rare one, of how well a heart at ease can hold its place against all the cares of life.

Out of this brief but brilliant season of triumph, poverty, and happiness, it was at last the fortune of Sydney Smith to find preferment—which means, in other words, he got a living—an unobtrusive comfortable living, which permitted its incumbent to remain quietly in town, and, having no parsonage to lodge him in, considerately gave him no manner of trouble. But this state of things was much too good to last, and the unfortunate Rector, a year or two after his appointment, was summoned not only to his post, but to the less obvious duty of making that post tenable. We cannot, we are afraid, perceive much hardship in the necessity of residence, even though the parish was a parish of clay, in Yorkshire, and out of the world; but the building of the parsonage was certainly quite a different matter, and a grievous burden upon a man whose hands already were full enough. Yet the story of this settlement at Foston is the pleasantest of stories—the cheeriest, brightest, prettiest picture imaginable of a Crusoe family-scene. For ourselves, we turn from all the other triumphs of his life—and all his triumphs, so joyfully achieved, are exhilarating to hear of—to dwell upon

this delightful conquest of little ills and vulgar difficulties, of brick and timber, architecture and carpentry, slow village minds, and unaccommodating circumstances. Sydney Smith never met his foes vicariously, but with shout and sound of triumph went forth against them, an host in his own person, taking everything at first hand, and trusting to no deputy. The result was, that his work was *done*—briskly, well, and with satisfaction to everybody; though, supposing Sydney's successor in this clayey parish to be a medieval man, to whom gables are a point of doctrine, and Gothic porches a necessity, we fear this square box, ugly and comfortable, must have been the good priest's death. It was a home of the brightest to its builder and his family. We will not quote the quaint history, because everybody has quoted it; but of this we are very sure, that the ugly house at Foston, with all its odd contrivances—its Immortal, its Jack Robinson, its feminine butler twelve years old, its good cheer, its comfort, its fun, and all the hospitalities of "the Rector's Head"—are pleasanter and more lasting memorabilia than scores of Plymley letters. We know no tale of honest, simple, kindly human interest which has attracted us more.

The visitors at "the Rector's Head" were illustrious people—noble Greys, Carlises, and Hollands, and a flood of philosophers and literary folk as notable in their way. In this book, however, there are but slender traces of this memorable "run upon the road." We can perceive the visitor's carriage floundering in the ploughed field, but we do not come to any very distinct perception of the visitor. Let us not grumble; the noble Whigs and the philosophic heroes are misty and illegible; but the setting-out of the family chariot, its freight, harness, and history, is as quaint and clear as anything in the *Vicar of Wakefield*—and, to tell you the truth, by no means unlike the same.

From Foston our hero, now the author of *Peter Plymley's Letters*, comes to greater preferment, and is advanced to Combe Florey, his vale of flowers—strange type of human successes!—at a time when grievous trouble had come upon this happy-hearted man—the loss of his eldest son;—and from this period his course is all prosperous. He does not, it is true, get his bishopric, but he is Canon of St Paul's—is able to spend a good deal of time in his beloved London—keeps up his high reputation in the world of wit and intelligence—and finally grows rich as he grows an old man. Sorrowful is this period of old age; and even the wit of Sydney Smith cannot veil the sadness of that mournful time, when death after death breaks up the original

circle—when children are gone out of the parental house, and friends vanish out of the social world. Strangest of all human desires is that universal desire to live long. How melancholy is the ending of every record of a lengthened life! It is grievous to linger upon the tale of weaknesses and sorrows. Surely this art of biography ought to be one of the weightiest of moral teachers; for even such a joyous heart as this, though everywhere it finds relief and compensation, does not escape from that lengthened sojourn in the valley of the shadow. Earl Grey, his old political leader, was upon *his* last sick-bed when Sydney Smith, too weak to bear even the thanks of a grateful man whom he was not too weak to serve, made an end of his benevolent and upright days; and messages of mutual sympathy and good wishes passed between these two, who had wished each other well in other and more exciting warfares. So, after a long day of manly work and honest exertion, one of the cheeriest and most courageous of lives came to its conclusion. His contemporaries had been falling around him for years—his brother died immediately after—his friend Jeffrey did not long survive him. They are now almost all gone, these old men, who were once such eloquent and daring leaders of the impetuous genius of youth. The *Edinburgh Review* has fallen into respectable matronhood, and no longer shivers a sparkling lance upon the powers that be. So wears the world away.

We cannot venture to stray into those painful and elaborate definitions of wit, which so many people seem constrained to enter upon at the very name of Sydney Smith. To our humble thinking, there is an indiscriminated region of *fun*, a lesser and lower world than that in which Wit and Humour contend for the kingship, to which many of his triumphs belong. We do not disparage his claims as a wit; we do not deny to him that more tender and delicate touch of sentiment and kindness which seems to us the distinguishing characteristic of the humourist; we acknowledge the acute edge of his satire, and the sweeter power of that joyous ridicule which did not aim at giving pain, but dealt with its victim as old Izaak dealt with his frog, “as if he loved it.” But the general atmosphere through which this occasional flash breaks out so brilliantly, is an atmosphere of genial and spontaneous mirth, a universal suffusion of fun and high spirits, bright and natural and unoppressive. After all, many of Sydney Smith’s recorded witticisms are not particularly witty; yet it is perfectly easy to understand how, from his own lips, and in the general current of his own joyous talk, they must once have been irresistible. These felicitous absurdities will not

be judged by the rule and line of criticism; they by no means fit into the regulated proportions of orthodox humour. They are not born of a distinct intellectual faculty, nor do they aim at the perfectness of individual and separate productions. Instead of that, they are the mere natural overflowings of natural character, gaiety, and high spirits. We call them wit because we recognise their author as a man from whom wit is to be expected. But who does not know that wide happy atmosphere of *fun* which brightens many a household circle where nobody pretends to be witty?—who does not know how contagious and irresistible is this humbler influence, and how it catches up and inspires the common talk of all our pleasant meetings, giving to almost every family a little fund of odd or merry sayings—not witty, yet the source of unfailing mirthfulness? An acknowledged wit is a man to be pitied; and there is no more woeful position in society than that of one who, when he opens his lips, be it to speak the most commonplace, sees everybody around him preparing for laughter. We can perceive a little of this dire necessity even in Sydney Smith. No doubt, it was whimsical and odd and pleasant to hear a merry voice giving such a quaint order as that to “glorify the room”—yet we are afraid, by-and-by, when people came to hear it every morning, that some indifferent member of the family circle must have been disposed to shout forth the commonplace injunction, “Draw up the blinds!” to the forestalment of Sydney. But the broad lower atmosphere of fun was full about this genial and gifted man. He speaks nonsense with the most admirable success. Nonsense is a very important ingredient in the conversation of all circles which are, or have a right to be, called brilliant. It is often an appropriate surrounding medium, through which wit may flash and play; but it is not wit, let us name it ever so arbitrarily; and for our own part, we frankly confess that an hour of common and simple fun, with one morsel of genuine wit in it—an unexpected sparkle—is much more pleasant in our eyes than an hour hard pressed with sharp and brilliant witticisms, be they the very perfection of the article—the best that can be made. But we distinctly object to confound together these two separate and differing things. We say this, not in depreciation of the acknowledged wit of our hero, but because his biographer pauses gravely at several periods of this Memoir, to give examples of the “slow perception of humour” evidenced by various people, who did not understand the happy extravagances of Sydney. We do not

always agree with Lady Holland in her estimate of her father's witticisms. Here is one of her instances:—

“Miss —— the other day, walking round the grounds at Combe Florey, exclaimed, ‘Oh! why do you chain up that fine Newfoundland dog, Mr Smith?’ ‘Because it has a passion for breakfasting on parish boys.’ ‘Parish boys!’ she exclaimed; ‘does he really eat boys, Mr Smith?’ ‘Yes, he devours them, buttons and all.’ Her face of horror made me die of laughing.”

Now this is very funny, but everybody must perceive at a glance that it is neither wit nor humour, properly so called; it is pure nonsense, gay and extravagant, and in reality requires a dull understanding, receiving it in the mere literal meaning of the words, to bring out and heighten its effect. The “sayings” of this book, indeed, are by no means up to the reputation of the speaker; they are often heavily told, and sometimes in themselves far from striking. But it does not appear that the wit of Sydney Smith was of a kind to evaporate in sayings; it was not so much a thing as an atmosphere—an envelopment of mirth and sunshine, in which the whole man moved and spoke.

It is not easy to mark out and discriminate the intellectual character of a man like this; for there are few men so undividable—few with whom the ordinary separation of mental and physical is so complete an impossibility. He is one whole individual person, honest and genuine in all his appearances, and entirely transcending as a man, in natural force and influence, anything that can be said of him in any special character as author, politician, or wit. To our own thinking, Sydney Smith is a complete impersonation of English breadth, manliness, and reality. He is no diver into things unseen, nor has he a strong wing skyward; but he walks upon the resounding earth with a sturdy tread, and has the clearest and most healthful perception of all the actual duties and common principles of life. This strong realisation of good and evil, according to the ordinary conditions of humanity—actual, present, visible benefit or disadvantage—seems the most marked feature of at least his political writings. The Plymley Letters, for instance, never touch upon the soul of the question they discuss. So far as they go, they are admirably clear and pointed—a distinct and powerful exposition of all the phases of expediency; but there they pause, and go no farther. The argument touches only things external, inducements and consequences. These are stated so forcibly and clearly that we do not

wonder at their immediate effect and popularity; for the common mind is easily swayed by reasoning of this practical and tangible description, and it is impossible to misunderstand so undeniable a statement of advantage and disadvantage. But the grand principles on either side of the question—the old lofty notion of a Christian nation, and the duty it owed to God, on the one hand, and the rights of conscience and individual belief upon the other—find no place in the plea. Our native Scottish tendency to consider things “in the abstract” was a favourite subject of Sydney’s gleeful and kindly ridicule. It is the last temptation in the world to which he himself was like to yield; and indeed it is remarkable to note his entire want of this northern foible—his strong English bias to the practical and evident. He has no idea of throwing the whole weight of his cause upon a mere theoretic right and wrong. His first step is to intrench and fortify his position—to build himself round with a Torres Vedras of realities, distinct to touch and vision; and while a preacher of another mind solemnly denounces what is *wrong*, it is his business to show you what is foolish—to point out the spot where your enemy can have you at disadvantage—to appeal to your common experience, your knowledge of men and of the world. The strain of his argument throughout hangs upon the external and palpable—the principles of general truth are not in his way. He takes for granted the first elements of the controversy, and hurries on to the practical results of it. Peter Plymley has not much to say upon the Catholic Question; but he has a great deal to say upon the chronic disaffection of Ireland, and the uncomfortable chances of an invasion on a coast which discontented Catholics were not likely to make great efforts to defend. With this view of the subject he is armed and eloquent. But this is not the highest view of the subject, though it may be a popular and telling one. In his own life, Sydney Smith held a nobler creed, and pursued his way with unfailing firmness, though it led him entirely beyond the warm and wealthy regions of ecclesiastical preferment; but in his argument the balance which he makes is always a balance of things positive. Perhaps something of the force and manliness of his style is owing to this practical species of reasoning. We give him credit for his “way of putting a thing”—so at least do Dr Doyle and Lady Holland, without perceiving that the weight and obviousness is in the *thing* rather than the *way*. We are tempted to quote the conversation between the Rev. Romanist and the Rev. Anglican, in illustration of this irresistible style of argument common to Sydney Smith:—

He proposed that Government should pay the Catholic priests. “They would not take it,” said Dr Doyle. “Do you mean to say, that if every priest in Ireland received to-morrow morning a Government letter with a hundred pounds, first quarter of their year’s income, that they would refuse it?” “Ah, Mr Smith,” said Dr Doyle, “you’ve such a way of putting things!”

This is a very good example of his prevailing tendency. The *argumentum ad hominem* is the soul of Sydney’s philosophy. You are sure of a home-thrust, positive and unevadable, when you enter into discussion with this most practical of understandings. Perhaps you do not agree with him; very probably to your thinking there are principles involved of more importance than these obvious safeties or dangers; but the nature of his implements gives him force and precision; he never strikes vaguely; his sword is no visionary sword, but a most English and most evident weapon—sheer steel.

This habit of reasoning had a singular effect upon his papers on religious subjects—we mean especially those articles on Methodism and Missions which appeared many years ago in the *Edinburgh Review*. These extraordinary productions are already altogether out of date, as indeed they must have been behind the time in which they were written, and of right belonged to a less enlightened generation; but it is marvellous to perceive how far so acute and reasonable a man could go in this grand blunder, applying his ordinary and limited rule to the immeasurable principles of truth. It is odd, and it is melancholy; for we confess it gives us little pleasure to prove over again the old truth that the schemes of Christianity are often foolishness to the wise and to the prudent. The paper on Missions is the most wonderful instance of weak argument and inappropriate reasoning. That so clear an eye did not see the wretched logic and poor expediences, the complete begging of the question and strange unworthiness of the argument, is a standing marvel. On any other subject, Sydney Smith could not have gone so far astray. His favourite mode of treatment, however effective in other regions, has no legitimate place in this. We may allow, in spite of our dread of Popery, and conscientious objection to share the powers of government with so absolute and unscrupulous an agency, that an emancipated Catholic is more likely to make a cheerful and patriotic citizen, than a Catholic bound down under penal laws could possibly be. But we are staggered to think of restraining the efforts of the evangelist, in order that we may better secure our supremacy in India over tribes of pagan weaklings, to whom, for our

empire's sake, freedom and the Gospel must remain unknown. This is a startling conclusion when plainly stated; but it is the obvious and unmistakable end of all that this very able writer, a clergyman and a man of enlightened principles, has to say upon so difficult and intricate a question. Had any of his political opponents said it, and had it been Sydney's part to explode the fallacious reasoning, what a flood of ridicule he would have poured upon these self-same sentiments! how triumphantly he must have exposed the tame and unprofitable argument! how clearly proved that the policy of doing nothing was a policy as old as human nature, and needed no advocacy! To leave paganism alone, because caste is the most effectual means which could be invented for keeping a race in bondage—to put an end to all injudicious eagerness for conversions, because these happy idolators are very comfortable as they are, and our benevolence is thrown away,—if Sydney had not made the argument—had it only by good luck come from the other side—how Sydney could have scattered it in pieces!

Perhaps the happiest hit he ever made was that which covered the unhappy State of Pennsylvania with the shame it was worthy of. No one else could have done this so well. His indignation and vehemence—his grief at the disgrace thus brought upon a country where his own opinions were supreme—are pointed, and brought home, by the keen touch of ridicule, with a characteristic force and pungency. He is grieved; but still he has a satisfaction in pulling the stray American to pieces, and making over his jewellery to afflicted bondholders. He is angry; but still he can laugh at his proposed uniform, the S. S. for Solvent States, which he would have the New Yorkers wear upon their collars. We have all a wicked enjoyment of other people's castigation; and we are afraid the public in general—those of them who hold no Pennsylvanian bonds—were amply consoled by Sydney Smith's letters for the sins of their brethren. Lady Holland tells us that the excitement in America was extraordinary, and that shoals of letters, and occasional homely presents, poured upon her father from all quarters. It was a fair blow, downright and unanswerable; and no one could have a better right to assault in full force a public dishonesty than such a man as this, honest to the bottom of his heart.

We cannot undertake to predict whether or not the reputation of Sydney Smith will be a lasting reputation. His published works are not very remarkable, and they refer so entirely—saving the sketches of philosophy—to current books and current events—events and books which, to use his

own phrase, have blown over—that it seems very doubtful if they can last over two or three generations. Admirable good sense, good English, and good morality, even with the zest of wit to heighten them, do not make a man immortal. They have already done their part, and earned their triumph; the future is in other hands. Herein lies the compensating principle of literature. The critic (and there have been critics more brilliant than Sydney) has his day. Yes, there he stands over all our heads, bowling us down like so many ninepins—small matter to him that in this book lies somebody's hopes, and heart, and fortune. Little cares he for the stifled edition, the turned tide of popular favour. He goes about it coolly: it is his business—practising his deathstroke upon palpitating young poets and unhappy novel-writers, as the German executioner practised upon cabbages. We die by the score under this literary Attila. Our poor bits of laurel, our myrtle-sprigs and leaves of bay, are crushed to dust beneath his ruthless footsteps. With a barbarous triumph he rides over us, extinguishes our poor pretensions, puts us down. Never mind, humiliated brother! The critic has his day. By-and-by there will only be a distant *sough* of him in the curious byways of historic lore. But the Book, oh patient Lazarus!—the Book will live out a century of reviewers, and be as young a hundred years hence as it is to-day.

Wherefore we seriously opine that a lasting reputation as a writer is not to be expected for Sydney Smith. As long as the children's children of his contemporaries remain to tell and to remember what they heard in the days of their youth, so long his influence as a man will live among us. Had this biography been less a work of love, and more a work of art, it might have added a longer recollection to this natural memory; for its hero is so true an example of the kind of man whom British men delight to honour, that he might well have been singled out for a popular canonisation. As it is, this simple presentment of Sydney Smith is enough to place him upon his true standing-ground, and recommend him, far above all differences of opinion, or strifes of politics, to the affectionate estimation of every reader. A man honest, courageous, and truthful, struggling bravely through the ordinary trials of everyday existence, bearing poverty and neglect, bearing flattery and favour, coming forth unharmed through more than one fiery ordeal, and with the lightest heart and kindest temper, skilled in that art of ruling himself which is greater than taking a city. A little more sentiment, or a little less practical vigour, might have broken the charm. In his own person, as he lived, he is the very hero of social success and prosperity—for under no

circumstances could he have appeared an unappreciated genius or a disappointed man. We are somewhat scornful in these days of the qualities of success. Indeed, it seems a general opinion, that the higher a man's gifts are, the less are his chances. But many a youth of genius would do well to note the teachings of such a cordial and manly life as this, and mark how the gayest heart, and the most brilliant intelligence, are honoured and exalted by such homely virtues as self-restraint and self-denial. Sydney Smith in Oxford, living upon his hundred pounds a-year; Sydney Smith in Netherhaven, honestly enduring his curacy; taking no excuse from his wit; yielding nothing to his natural love of that society in which he shone; undisheartened by a profession which he did not love, and duties for which he had no distinct vocation; honestly, under all circumstances, maintaining his honour, his independence, and his purity, is a better moral lesson than all the lecturings of all the societies in the world.

We cannot perceive any closer resemblance, for our own part, much as they are named together, between Swift and Sydney Smith, than the merely evident and external one—that both were famous wits, and both somewhat unclerical clergymen. Sydney has the mightiest advantage in moral sunshine and sweetness over the redoubtable Dean. The Canon of St Paul's broke no hearts and injured no reputations. There is not a cloud upon his open and bright horizon, except the passing clouds of Providence, and bitterness was not in his kind and generous heart. There is only one grand blunder in his life, and that is his profession. In such a matter the dutifullest of sons is not excusable in "yielding to his father's wishes." We can appreciate the sacrifice, but we cannot approve it. It was filial, but it was wrong. Sydney Smith is an honest man, a truthful man, and in ordinary life unblamable. We have no right to criticise the piety or religiousness of such a person in any private position, but with a clergyman the circumstances are different—and the veriest sinner requires something more than professional propriety as the motive and inspiration of the teachers of the faith.

So strong and usual is this feeling, that we do not doubt this book must have been an entire revelation to a great majority of its readers. We knew his great reputation; we knew his wit, and the general tenor of his opinions; yet we were shy of a man whose position and fame seemed almost antagonistic, and set up in our own mind a natural opposition between the sermons of the preacher and the *bon mots* of the wit. This biography resolves the puzzle. Full of mirth, spontaneous and unlaboured, full of

honest consistency and good-will, we accept Sydney Smith as he was, and judge of him by his own principles and actions—his own standard of perfection. Who does not lack some crowning charm to add a fuller and a sweeter excellence to all the lesser virtues? This man was distinguished in all social qualities—virtuous, conscientious, incorruptible, doing bravely every duty which he perceived in his way; and we can point to no truer type of an upright and open-hearted Englishman, than the bright portrait of this modest volume, the true monument and effigies of Sydney Smith.

PEERAGES FOR LIFE.

[We rarely have two articles upon one subject in the same Number of the Magazine, but we have no hesitation in publishing the two following short papers upon the unhappy and singularly ill-timed attempt to destroy the hereditary character of one branch of the Legislature. The first paper is by an English, and the second by a Scotch lawyer.]

It is not, we hope, from any party feeling (though party feelings are, as our readers know, entitled, in our view of things, to grave and deep consideration), that we enter our protest against the measure of creating peers for life,—a measure which its authors, unless they are the most shortsighted men that ever presumed to meddle with great questions, must know will end by changing the character of the House of Lords, and which we really believe to be an attempt as rash as it is uncalled for, and as little likely to conciliate the favour of any but those who dislike a government by King, Lords, and Commons, as it is to produce any one solid or permanent advantage. To those who think that the English constitution—a constitution which has floated like an ark over the waves which have swallowed up so many of those baseless fabrics that were hailed by sciolists as the proudest efforts of legislation—should be, we do not say repaired, and improved, and fortified, but *overthrown*, to make room for “some gay creature of the element” to people the sunbeam for a moment and then to disappear—we do not address ourselves; for we could not hope to produce any effect by reasoning upon those on whom the evidence of their senses is thrown away. But we would ask such of our readers as do not belong to the class we have just mentioned, calmly and dispassionately to examine with us this important question—premising only that the Reform Bill was by no means so serious and menacing a change in the constitution of the Lower, as the

creation of peers for life (if that disastrous measure is really to be accomplished), will produce in the Upper House of Parliament. The Reform Bill shuffled the cards; this measure will change the pack. It is at once exotic and obsolete.

The question may be considered in two ways. First, Has the Crown the power to make such a creation? Secondly, Supposing it to possess the power, is such an exercise of it constitutional? With regard to the first question, it is, even on the showing of its supporters, an extremely doubtful one. “*Rectissime illud receptum est, ut leges non solum suffragio legislatoris sed etiam tacito consensu omnium per desuetudinem abrogantur,*” is a maxim embodied in the works of those masters of jurisprudence, to whom alone, to use the words of one of their most illustrious scholars, reason seems to have unveiled her mysteries. Nor is the principle unknown to our municipal jurisprudence. It was a law that every member of a city or borough should be chosen from among the inhabitants of the place which he was selected to represent. This law was abrogated by desuetude only. Many similar instances might probably be found by any one who would examine our ancient statutes. That custom is the best interpreter of written law is an axiom of jurisprudence; and how much more forcibly does the argument apply to unwritten law, to an obsolete prerogative raked from the dust and cobwebs of feudal barbarity, and dragged forth “*in luce asiæ*” into the meridian blaze of civilisation, to act upon the destinies of living men. The revival of obsolete prerogatives was one great and just complaint against the Government of Charles I. Lord Clarendon, his ablest advocate, bewails the injudicious and violent measures that unhappy monarch took in reviving the Forest Laws, and obliging gentlemen of certain incomes to compound for knighthood. Had he attempted to strip the peerage of its hereditary character, the outcry would have been louder and more reasonable; for of course our argument applies only to the case of conferring, by a peerage for life, a voice or seat in Parliament. “The common law of England,” says a great lawyer and a great thinker, “is nothing else but the common custom of the realm, and a custom which has obtained the force of a law is always said to be ‘*Jus non scriptum.*’ ... Being only matter of fact, and consisting in use and practice, it can be RECORDED AND REGISTERED NOWHERE BUT IN THE MEMORY OF THE PEOPLE.” Again the same eloquent writer says:—“A custom takes beginning, and grows to perfection in this manner: When a reasonable act once done is

found to be good and beneficial to the people, and agreeable to their nature and disposition, then do they use and practise it again and again—and so, by often iteration and multiplication of the act it becomes a custom; and being continued without interruption time out of mind, it obtains the force of a law.” This is exactly the basis on which the “*rerum perpetuo similiter judicatarum auctoritas*” must rest, and exactly the reverse of that prerogative, by the sudden exertion of which, after a lapse of four centuries, it is proposed to give to any minister the power of swamping the House of Peers. What would be said now if any one were to attempt to put on “the statute of uses” the meaning which those by whom it was enacted undoubtedly meant that it should have, and which was frustrated by the narrow decision, as Mr Hallam calls it, of the Judges? If any man were insane enough to attempt such an argument, would he not be silenced at once, and forfeit, for the remainder of his life, all claim to the character of a rational being? Would he not be told that, after the current of precedent had run for centuries in one direction, after all the Estates in England had been settled and disposed of on the faith of those precedents, it was mere mischievous pedantry to question the validity of the original interpretation? Now, the last time when the Crown gave the right of voting in the House of Lords to any one who would not transmit the same right to his children, to any one whose blood was not ennobled, was long before the period when the statute of uses passed into a law. The four or five cases cited to justify such a stretch of authority are taken from times when the boundaries of the constitution fluctuated incessantly,—when sometimes the king oppressed the barons, and sometimes the barons destroyed the king,—when one encroached upon the other, as he or they were uppermost in a series of victories and defeats equally oppressive to the people, and equally inconsistent with all regular government,—when the soil of England was drenched with the blood of the yeoman, and the axe of the executioner was red with the blood of the noble,—“in stormy and tempestuous times,” to use the language of a great and upright magistrate, Chief-Justice Crew, “when the government was unsettled, and the kingdom in competition,”—when Bohun, and Mowbray, and Mortimer passed away—nay, when Plantagenet himself became a shadow and a dream. Will any man say that this was a period when our constitution was understood? that this is the time when its parts were adjusted to each other?—when, though the noble outline of it might be discernible, its lineaments were complete? At that time the Crown

granted or withheld writs to boroughs at its pleasure, and so moulded the House of Commons. It summoned a man to take his seat in one Parliament and not in another, and so modelled the House of Lords. But even of these cases, drawn from those times of turbulence and confusion, while the elements of our constitution were at war with each other, predominating or subsiding with every capricious turn of fortune, one only has any bearing on the question. For, as has been said before, the question is not one of compliment or precedence; it does not relate to the power of the sovereign to gratify a morbid and spurious appetite for vulgar notoriety by a mongrel title, or to reward vice by flattering the abject vanity of some frivolous prostitute; it relates to his power of giving a share in the legislation of England without that guarantee for independence which, during four hundred years, has been thought essential to its exercise. Now, in the case of Sir John Cornewall, who was created Lord Fauchope for life, the prerogative was exercised with the assent of the House of Lords. There remains, therefore, the solitary case of Lord Berners, in the reign of Henry VI.—a case that is extremely doubtful—to justify this exercise of the prerogative in the year of grace 1856. If, then, law is to be controlled or modified by usage—if the “*lex et consuetudo Parliamenti*” are not to be put aside—it must be admitted that, even in the absence of any negative argument, the right of the Crown is extremely questionable, in spite of the dictum of Lord Coke, and of the writers by whom he has been copied. Lord Coke, it may be remembered, has fallen into acknowledged errors. He was wrong in asserting that a justice of peace had no power of holding a person accused of felony to bail. He was wrong in asserting that common law ought to prevail against the express words of an Act of Parliament. But there *are* strong negative arguments. In Lord Purbeck’s case, which was argued before the celebrated Lord Shaftesbury, who was certainly not ignorant of the principles of the constitution, it was stated by the Attorney-general that the king could create a peer for life. This doctrine was at once questioned by Lord Shaftesbury; and in that opinion Lord Nottingham, the creator of equity, though differing with him as to the case immediately before him, acquiesced.

It is difficult for any one who weighs these arguments to resist the conclusion at which Lord Lyndhurst and Lord Campbell, Lord St Leonard’s and Lord Brougham—laying by on an occasion of such vast importance all party differences and political hostility—have arrived, that an instrument

made four hundred years ago, before the constitution had been made, before the disposition, occasions, circumstances, the moral, civil, and social habits to which that noble fabric owes its existence had disclosed themselves, cannot in the eye of reason justify a violent change in the long-established, the peculiar, and the distinguishing character of the House of Lords.

There is (*Parl. Hist.*, vol. i. page 890) a remarkable case which has never been cited, we believe, and which shows that the House of Lords exercised the right of excluding an unworthy member from its deliberations. It is the case of Lord De la Ware in the reign of Edward VI. “He had attempted to poison his uncle, and was by an *order of Parliament* excluded from any estate or honour that might come to him after his uncle’s death.” The precedent in favour of the Crown dates from a period far more remote than this. If the Crown quote the fifteenth century, why may not the House of Lords quote the sixteenth? And it should be remarked that this is a prerogative which there must have been constant motives for using, and the non-exertion of which, therefore, furnishes a very cogent argument against its existence. Harrington, in his *Oceana*, particularly censures Richard II. under the name of Adoxus, for creating peers “who had hands to dip in the royal purse, but no shoulders to support the throne.” We know what became of that prince and his newly-made Caryatides. Our peers are not to perform the functions Virgil assigned to our fathers—

“Purpurea intexti tollant aulæa Britanni.”

They are not to be courtiers, or geologists, or engineers, or builders of crystal palaces, or presidents of councils of art, or even judges, but *legislators*, mediators between the Crown and the people—an office that may dignify the greatest abilities, and satisfy the most generous ambition.

We come now to the second branch of the question, how far such a measure can be considered constitutional,—meaning by that, how far it is in conformity with the spirit and genius of that form of government to which we owe, during so many ages, and during so many vicissitudes, the tranquil possession of political freedom. Certainly the time chosen to cut one of the strands of the cable of our anchor is a singular one. Freedom, with the exception of the countries governed by the King of Sardinia, has been overthrown or undermined in every part of the continent of Europe. Nobody can doubt that a main cause to which the present condition of France is to be attributed, is the want of a body of hereditary legislators; the want, that

is, of a powerful aristocracy,—in other words, of a House of Lords. Nobody can doubt that the forlorn troop of servile beggars distinguished throughout Germany by the titles of Earl, and Baron, and Freihern, is a main reason why all attempts to establish constitutional freedom in that country have only served to illustrate the most ludicrous ignorance of human affairs, coupled with the most abject tergiversation, and to drag to light projects, compared with which the principles by which the Caffres are governed may be considered luminous, and the whims of the politicians of Laputa may pass for reasonable. We object to any scheme for Germanising England. We should be sorry to see the influence of the Court, where we now see other hopes and objects. We should be sorry to see the varied elements of our social state crushed into one undistinguished mass of servitude. Our universities have been tampered with; the next attempt is on the House of Lords. It is the fashion to speak lightly of representative government. “A weak man doth not well consider this, and a fool doth not understand it.” The disgust and contempt felt throughout France for the corruption and time-serving of the mongrel House of Peers, consisting of misplaced men of letters, venal courtiers, affected artists, hireling writers in the daily press, shallow coxcombs, and a few besides of illustrious names—the last scattered like the nails in a wall over a wide blank surface—account for the sympathy with which all reasonable men hailed its annihilation. Such an institution as our House of Lords may be destroyed, but cannot be created; and with these examples staring us in the face, and loudly forbidding the attempt, in defiance of reason and of experience, in contradiction to the sound feelings of the nation, an old prerogative that has, “like unscored armour, hung by the wall so long,” that the announcement of its existence may furnish a question perhaps for the amusement of antiquaries of much leisure and little thought, but which, to all real purposes, has become as obsolete as writing pure English—is made the instrument of changing, at the will of the Sovereign, a fundamental part of our constitution. This is done, too, during a war, when great political alterations are usually suspended, as if it were the merest trifle, not worth attention or debate, amounting to nothing more than, and quite as much of course as, the appointment of some commission to recommend the maintenance of all the wretched chicane by which the course of justice in England has been so long impeded. Some knowledge of the constitution which he proposes so presumptuously to violate, some little acquaintance with the great writers

who have dwelt upon its excellences, and held them up to the gratitude of posterity, would be a useful ingredient in the composition of a Chancellor. Some knowledge of history (we mean of course English history) might, on the eve of so perilous an undertaking, be found serviceable to the lawyer who (whatever be the mysterious influence under which he acts, and no doubt in perfect unconsciousness) sets himself to work to pull down in cold blood, and with the blandest countenance, one of the safeguards of our liberties. For, with deference to such authority, we look upon the privileges of the Peers as conferred upon them for the public good. To suppose them given or kept for any other purpose, would be a narrow and unworthy view. If they are inconsistent with that object, they cannot be swept away too soon. If they contribute to it, they cannot be too religiously preserved. For four hundred years, during which the parts of our balanced government have been made to harmonise with and give mutual aid to each other, the deliberate opinion of ages and generations in this country has been in favour of their existence. It is a fair inference that all these writers, historians, and statesmen, have not been wholly destitute of political sagacity, or in a conspiracy to promote abuse. It is a fair inference that a measure which Lord Grey repudiated, which Mr Pitt would not hear of, which Mr Fox would have scouted with every expression of scorn that his vehement nature could have found in his copious vocabulary, is a rash and unconstitutional experiment. But we know what the class (unfortunately it is a numerous one) is who “rush in where angels fear to tread;” we know, too, that the gloom which enveloped these great statesmen has been dissipated by the light which has flashed with such marvellous lustre upon my Lord Cranworth. It is hard upon this land that admitted mediocrity should be no safeguard against reckless extravagance. If, in the days when the wild hurricane of Reform was sweeping over us, some man of an irregular but powerful intellect had, in a moment of irritation and disappointment, suggested such a measure, we should have consoled ourselves by reflecting that inundations atone for the mischief they inflict by the fertility they occasion. We should have accepted the benefit, and been on our guard against the evil. But when a grave commonplace sober gentleman, decent to a fault, by no means of an ardent or romantic disposition, misled by no passions, carried astray by no impetuosity, not intoxicated by learning, carefully and effectually guarded by provident nature against the dangers to which genius is exposed when such a person

reverses the famous line, and in a paroxysm of impotence, raging without strength, and overflowing without fulness—"precipitately dull" and dispassionately mischievous—mimics the freaks and caprices for which inspiration only can atone, Heraclitus might laugh at his distempered activity, and Democritus weep for the fate of the country in which he legislates. The line—

"Ut lethargicus hic, cum fit pugil et medicum urget,"

describes him. There is no hope, says an acute writer, for the lover of an ugly woman. There is as little for those who suffer by the absurdities of a commonplace man. "Whenever you commit an error, Mr Foresight," says the wit in *Love for Love*, "you do it with a great deal of prudence and discretion, and consideration."

It should be recollected that there are many prerogatives of the Crown which, if exercised injudiciously—that is, unconstitutionally—would soon become intolerable. The Crown has the undoubted power of making peace or war; but if Ministers were to agree that York should be occupied by a Russian garrison for ten years, or that we should pay a tribute to Russia for that time, would it be any argument in favour of such clauses that the Crown had only exercised its undoubted prerogative? The Crown has the power of pardoning offenders; would that justify the pardon of every offender as soon as he is convicted? Many persons think that the Crown has never lost the power which it once most unquestionably possessed, of raising the denomination of the coin; is there any maniac, even among the worshippers of Ruskin, who would counsel such an experiment? The prerogatives of the Crown, even when most unquestionable, must be exercised in conformity with the spirit of the constitution. It is the peculiar character of our constitution that it contains within it the three great principles of monarchy, aristocracy, and democracy, blended together so intimately, yet perhaps so inexplicably, that the Crown has no strength, except in connection with the aristocracy and the people: the aristocracy is nothing when opposed to the Crown and the people; and the people have little power, if abandoned by the aristocracy and the Crown. Fortunate indeed have been the circumstances which enabled our fathers to complete this mysterious union. The strength of our system is its harmony. Take away the beauty of its proportions, and its energies are at an end. That amazing system, the work not of giddy choice and tumultuous violence, but of the

“author of authors,” Time, with enough military vigour for war, with enough civil influence to make military power in time of peace impracticable, with the checks apparently so hostile, in reality so much in unison, as to make it the most perfect moral machine that ever was contrived to perpetuate freedom among a people—would be violated and destroyed by any such organic innovation.

What promises can exceed its performance? And it is this which, for the sake of putting a special pleader among the Law Lords, or of satisfying the vulgar ambition of a few discontented men, ignorant of their proper sphere, we are about to put in jeopardy. Does any man think that the power of the Crown is too little in the House of Lords? Is not the reverse notoriously the truth? Is not the influence of the Crown over the Bishops, who are not Peers but Lords of Parliament, matter of just complaint? Would not the power of the Crown be increased by creating Peers for life? Would it not, especially in a country where a vulgar appetite for technical rank is but too conspicuous, increase the number of those who would gain by subserviency to the Crown in that assembly? If you suddenly shift the ballast, your vessel will soon be under water—

*“Quamvis pontica pinus
Sylvæ, filia nobilis
Jactes et genus et nomen inutile.”*

On the other hand, if the creation of life-peers would give too much influence to the Crown, beyond all doubt it would give a most invidious distinction to those already ennobled families, among whom the son of the mechanic may now hope to take his place. It would tend to make them a separate caste, cut off (we speak of what must happen in less than a century) from the sympathies of their fellow-citizens. Such a state of things could not long continue.

It is but too deeply rooted in the nature of man to press social distinctions too far, and insist on them too much. And could anything be devised to swell the pride of a hereditary Peer more effectually than the sight of upstart counterfeits, bearing the same title with himself, but distinguished, nevertheless, by an everlasting badge of inferiority? The classes and professions from which such peers were taken would share in their degradation, and in the hostility which it would inspire—

“Touch them with several fortunes,

The greater scorns the lesser....
Raise me this beggar, and deny't that lord—
The senator shall bear *contempt hereditary*.”

Much, no doubt, may be said about the dangers and evils of unworthy successors to great names. Taken separately, such arguments are powerful; taken with reference to a collective body, they are weak. The question is—on which side does the balance of good preponderate? Along with many evils, and great tendencies to abuse, there are many advantages in hereditary honour. A true natural aristocracy is an essential part of any large body rightly constituted. “It is formed out of a class of legitimate presumptions, which, taken as generalities, must be admitted for actual truths. To be bred in a place of estimation; to see nothing low or sordid from one’s infancy; to be taught to respect one’s self; to be habituated to the censorial inspection of the public eye; to look early to public opinion; to stand upon such elevated ground as to be enabled to take a large view of the widespread and infinitely diversified combinations of men and affairs in a large society; to have leisure to read, to reflect, to converse; to be enabled to draw the court and attention of the wise and learned wherever they are to be found; to be habituated in armies to command and obey; to be taught to despise danger in pursuit of honour and of duty; to be formed to the greater degree of vigilance, foresight, and circumspection in a state of things where no fault is committed with impunity, and the slightest mistakes draw on the most ruinous consequences; to be led to a guarded and regulated conduct from a sense that you are considered an instructor of your fellow-citizens in their highest concerns; to be employed as an administrator of law and justice, and to be thereby among the first benefactors, to mankind;”—such is Mr Burke’s argument in favour of a hereditary aristocracy. As a sole or even a predominating element, it degenerates into an insolent domination; as an ingredient, tempered, controlled, and subdued by others, it has, in our opinion, a dignified and refining influence. And here we may remark, that almost the sole barrier to despotic power in France for many years was the firmness and integrity of its parliaments, which were in fact, though not in name, an hereditary aristocracy. Let any one compare the proceedings of that body with those of Louis Philippe’s peers, and then say on which side the balance of good predominates. The cautious and traditional wisdom of those great bodies interposed often between the people and their oppressors. Machiavelli speaks of them with admiration and respect; and their functions were well expressed by a First President of the parliament of Provence,

when he said to the king, whom he resisted—"Souffrez, sire, qu' avec peine, haine, et envie nous défendions votre autorité." One of the worst acts of a bad reign was to substitute for this great aristocracy, which, with all its faults, had done great services to its country—holding the mean "inter abruptam contumaciam et deforme obsequium" with singular judgment—a set of political adventurers, called the Parliament Maupeou, many of them the mere creatures of the court and Madame Dubarri, and nevertheless welcomed to their new office by the approbation of the shallow conceited writers of the day. The pretext was a better administration of justice—"Le préambule s'exprimait dans un langage que n'eussent pas désavoué les philosophes sur la nécessité de *réformer les abus dans l'administration de la justice*." "Absit omen!" Then purity of justice was the pretext of a tyrant; now it is that of a few sottish and purblind democrats. The result in France is known to every one who has read Beaumarchais, who in his celebrated *Mémoires* branded the turpitude and gross corruption of this newly constituted body with ineffaceable infamy. Then France began to see the difference between the minions of a court and a hereditary assembly, between the d'Aguesseaus, and the Goezmans, who were in their place; and in spite of Voltaire, they agreed with Mabli, that the old parliament was better than the "Parlement Postiche." To this fact we will add the prophetic remark of Montesquieu, "Le pouvoir intermédiaire subordonné le plus naturel est celui de la noblesse; elle entre en quelque façon dans l'essence de la monarchie, dont la maxime fondamentale est, Point de monarque, point de noblesse—point de noblesse, point de monarque—*mais on a un despote!*" Is there no danger that, if the House of Lords is lowered, the House of Commons may ruin itself by its own excessive power?

The question, however, now is, not whether you will establish a hereditary peerage, but whether you will take away from it its stability?—it is not, whether you will abolish the House of Lords, but whether you will run the risk of polluting it by time-servers? Have there been no times in our history when the exercise of such a prerogative as is now claimed for the Crown would have been most dangerous? If James II. had imagined that such authority belonged to him, can any man doubt that he would have filled the House of Lords, as he did the bench of justice, with his Roman Catholic dependants? Is there not reason to believe that, as each party predominates, it will flood the House of Lords with these creatures of a day, to confirm its own ascendancy? Would the minister who created at once

twelve peers to ratify the Peace of Utrecht have been satisfied with so limited a number, if so convenient a method as has now been discovered had presented itself to him? If peerage for life had been created, or even if the Lords had been menaced with such a measure, the motion for taking the Address into consideration, on the 23d Nov. 1685, would never have been carried without a division; nor would the dignified and manly language held in that House have offered so striking a contrast to the pitiful and abject tone and demeanour of the subservient House of Commons. As it was, Lord Sunderland is reported to have said that, to carry the measures of the Court, he would make Lord Churchill's troop of guards peers. But he recoiled, base as he was, from such an attempt; and are we to legislate on the conviction that we shall never again have a bad king and an unscrupulous ministry, and that the firmness and independence of the House of Lords can never again be of any service to the constitution? Can we foretell that there may not be other battles to be fought, and other victories to be won? The attempt to make the hereditary peers a caste by another Lord Sunderland, was baffled in the reign of George the First; we trust that an attempt, which must have the same effect if it succeeds, and which must, moreover, strengthen the influence of the Crown, among a body where it needs no strengthening, will not prosper in the reign of Queen Victoria. To change the relations of the several parts of the constitution to each other, is to make the lessons of history, purchased as they have been with the best blood of our fathers, unavailing. The character of the House of Lords is, that the honours of those who sit and vote in it are hereditary. It is so described by Whigs and Tories, by lawyers and historians. It is in consequence of that character that it has filled a wide space in history, and that it is supported by a thousand time-hallowed associations. Fill it with the nominees of a minister, it will no longer serve to interpose any obstacle to the inconsiderate legislation which an impetuous democracy is sometimes rash enough to insist upon. It may serve to gratify the vanity of women, or of men as little fitted as women to control the destinies of nations; it may provoke hostility by distinctions, invidious when they are manifestly useless; it may even register the edicts which it will be unable to dispute: but its genuine functions will be gone for ever; and if ever the time should come when its energies are required to serve either Crown or people, they will be of as little account as those of the French Chamber of Peers in the hour of trial, and of as little benefit to themselves and to their country.

Why, then, should we unhinge the state, ruin the House of Lords, and pursue confusion, to guard against an evil which, if it exists at all, may be encountered by a far more specific and appropriate remedy? Wise, indeed, should he be who should endeavour to recast a constitution which has defended us alike from the unjust aggression of power, and the capricious tyranny of the multitude. But if our rulers are weak, and our councils infatuated, in the words of an old writer, we can only pray that the Lord will enable us to suffer, what He by miracle only can prevent.

THE WENSLEYDALE CREATION.

At a time when the attention of the nation is almost exclusively directed to the colossal struggle in which Great Britain has taken so conspicuous a part—when the deepest anxiety is felt regarding the issue of the conferences at Paris, which must have the effect either of restoring peace to Europe, or of rendering the contest more desperate in its character than before—we were surely entitled to expect that no attempts would be made, at least by Her Majesty's advisers, to alter or innovate any acknowledged part of the fundamental constitution of the realm. It is with great pain that we feel ourselves called upon to denounce such an attempt, which appears to us not the less dangerous because furtively made, and seemingly insignificant of its kind. All permanent innovations, all great changes and revolutions, may be traced to a very trifling source. The whole constitution of a country may be overthrown in consequence of some narrow departure from its fundamental rules—a departure which possibly may appear at the time too trivial to demand remonstrance, but which, being drawn into a precedent, may, in the course of years, be the means of producing the most serious and disastrous effects. The tree that could have withstood the blast of the wildest hurricane, will become rotten at the core, if the rain can penetrate to its bole, even through a miserable crevice. The dykes of Holland, which defy the winter storms, have, ere now, yielded to the mining of that stealthy engineer, the rat, and provinces have been inundated in consequence. And, therefore, it well becomes us to be jealous of any attempt, however trivial, or however specious—for plausible reasons can always be adduced on behalf of any kind of innovation—to alter the recognised principles of our constitution, or to introduce a totally new element into its framework.

We allude, of course, to the attempt which Her Majesty's advisers have thought proper to make, at altering the hereditary constitution of the House

of Lords, by the introduction of Life-Peers into that body. The question is now being tried in the case of Mr Baron Parke, who has been created Baron Wensleydale, without remainder to heirs; and it is impossible, looking to the attendant circumstances, to avoid the conclusion that this creation has been deliberately made, for the purpose of establishing a precedent for opening the doors of the highest deliberative assembly to a new order of nobles, who are not to have the privilege of transmitting their rank and titles to posterity. For, if the only object had been, as is alleged, to recruit the numbers of life Lords upon whom the task of hearing and deciding appeals from the inferior courts of the country must devolve, there was obviously no necessity, nor even reason in this instance, for departing from the usual conditions of the peerage. Lord Wensleydale (for so we are bound to call him, in virtue of his patent of nobility from the Queen) is a man of advanced years, and has no son. In all human probability, therefore, the title, even though it had been destined to heirs-male, as is the common form, would become extinct at his death. Want of fortune, as the means of sustaining, in the future time, the social position which a peer ought to occupy, has often been alleged, and with reason, as a sufficient obstacle in the way of the elevation of commoners, distinguished for their acquirements and genius, to the Peerage. It has been said, and with great truth, that the present and fleeting gain is more than counterbalanced by the future and permanent disadvantage. For the acquirements and genius of the man so elevated are but personal, and perish with him—the heirs remain as pauper peers, no ornament to their order, and may, for a seemingly inadequate consideration, be willing to surrender their independence, and use their legislative powers at the bidding of an unscrupulous minister. But, in the present case, where the chance of succession was so small, there could be little room for such an objection; perhaps there was none, for the fortune of Lord Wensleydale may be, for anything we know to the contrary, quite adequate to the maintenance of a peerage; therefore we must hold that this case was selected purposely to try the question. Indeed, supposing that Her Majesty's advisers were justified in making the attempt to alter the constitution of the House of Lords by the introduction of Peers for life, they could hardly have selected a better instance. For, if it should be decided or declared that there is a limit to the prerogative of the Crown, and that the creation of a peer for life, like Lord Wensleydale, is simply a personal honour, but does not carry along with it the privilege of a seat in the House

of Lords, all unseemly questions of precedence will be avoided. In that case it is not likely that the experiment will be renewed; for we may safely conclude that the object of Her Majesty's advisers in issuing this singular patent was not to gratify Lord Wensleydale by the gift of a barren honour, but to make him a member of the House of Peers, entitled to speak and to vote; and thereby to establish a precedent for the future creation of a non-hereditary peerage.

Before entering into the questions of privilege and prerogative, it may be as well to consider the reasons founded on expediency which have been advanced in behalf of the creation of peerages for life. Such of her Majesty's ministers as have spoken upon the subject have been exceedingly cautious and guarded in their language. None of them have ventured to assert an opinion that, for the future, it would be advisable to multiply this kind of peerages. Their arguments go little beyond this—that whereas the appellate jurisdiction of the House of Peers renders it necessary that at all times there should be among that body persons intimately acquainted with the law, and qualified to act as judges, it is for the advantage of the country that such creations should be not permanent but temporary, not hereditary but personal. In this there is not only some, but much plausibility. It is of the utmost importance to the country that the highest legal talent should be engaged for the last Court of Appeal; and we are not of the number of those who consider that a court of appeal might be dispensed with. We believe that the consciousness that there exists a tribunal which has the power of reversing or altering their judgments, has conduced more than anything else to stimulate the zeal, activity, and attention of the judges in the ordinary courts of law; and it would be a very hazardous experiment to give an irresponsible character to their decisions. We think also, and we make this admission freely, that some decided steps should be taken for the better regulation of the ultimate Court of Appeal. The House of Peers, as a body, has long since abdicated its right of sitting in judgment, except in some cases peculiar to the peerage. The judicial duties are now invariably devolved upon judicial Peers, that is to say, upon those who have either occupied or occupy the highest judicial offices; and although the form of putting the question to the House, after the opinion of the legal Peers has been delivered, is still observed, no instance of any attempt on the part of other peers to vote, has taken place for a long series of years. Thus the appellate jurisdiction of the House has been confided to a small and

fluctuating committee, on whom attendance at the hearing of causes is not compulsory; and although hitherto, as we verily believe to be the case, the judgments have been such as to give general satisfaction, there is no security for the continuance of a sufficiently qualified number of adequate Judges. We think that some other arrangement for establishing and securing a permanent tribunal of appeals should be adopted; but we demur greatly to the plan now proposed of creating life-peerages for the purpose of keeping the jurisdiction within the House of Lords. Very wisely, we think, has it been provided that Judges shall not be eligible to sit in the House of Commons. Their functions being of the utmost importance to the wellbeing and safety of the community, it is above all things desirable that they should not be allowed to mingle actively in that strife of parties, which must, to a certain extent, in very many cases, warp the judgment, or at least give a strong political bias. The judicial atmosphere ought to be not only pure but calm, for so constituted are the human frame and mind, that excitement of any kind is apt to disturb the equilibrium of the judgment, and often suggests hasty views, which will not bear the test of severe and dispassionate investigation. Neither should the attention of a Judge be too much directed to objects alien to his function. Undoubtedly there are minds so active and capacious that they rebel against any restriction of their powers, and go beyond their proper sphere, led away by a craving for intellectual exercise, or under the influence of overpowering ambition. But these constitute the exception, not the rule; and we humbly venture to think that the best judges are to be found among the men who deviate least from the tenor of their way, and who do not devote themselves ardently to other occupations or pursuits. Therefore we have great doubts as to the propriety of the system which would necessarily, to some extent, expose the judge to the influences of the politician, or, at any rate, distract his attention from what is or ought to be the main object and purpose of his life. Besides this, it is not convenient or decorous that there should be anywhere an unpaid tribunal upon which such serious responsibilities devolve. Judges receive salaries in order that they may be compelled to do their work, and overcome that tendency towards indolence from which very few of the human race are altogether free. The salaried Judge must act: he must attend to every case which is brought before him, unless he can allege occasional failure of health, or unless he declines on account of interest or affinity. But a voluntary and unpaid Judge may absent himself at pleasure, and without

responsibility—a very serious matter to suitors, and, as we think, inconsistent with the proper administration of justice. For many reasons, therefore, it appears to us that the time has arrived when the supreme appeal court of the realm should be placed upon a footing different from that which has hitherto existed, and that it should be so remodelled as to give it a permanent and responsible character. We have already observed that, as regards the great body of the Peers, their appellate jurisdiction and power is merely a name; and surely it is not worth retaining the shadow when the substance has passed away. There are evidently many deficiencies in the present system. The bulk of appeals are from the Scottish courts; and as the Scotch law differs materially from that of England, being based altogether upon a separate foundation, it is important that at least one Judge, intimately acquainted with the system, and trained to its technicalities, should be a member of the court of last resort. Looking to the present state of the Scottish bar and bench, we must confess that we entertain grave doubts whether any competent lawyer could be found to undertake such a duty for the unsubstantial reward of a life peerage; and we apprehend that no satisfactory or thoroughly efficient arrangement for the determination of appeals from the courts of England, Scotland, and Ireland can be effected, unless based upon the principle of delegating the appellate jurisdiction of the House of Peers to a court, holding its sittings in London, comprising the highest legal talent which can be drawn from the three kingdoms, but not necessarily, in so far as its members are concerned, directly connected with the peerage. Of course, the Judges in such a court of appeal should be, like all other Judges, the paid servants of the State; and we are confident that such a measure, the details of which would be matter of grave consideration, could not fail to be acceptable, and must prove highly beneficial to the country at large. Indeed, it is manifest that some such alteration of the law is now peremptorily required; as it is upon the inconvenience and insecurity of the working of the present system of appellate jurisdiction, as vested nominally in the whole body of the House of Peers, that the main arguments in favour of what we must consider as a dangerous attempt to destroy the hereditary constitution of the Upper House have been founded.

These observations of ours have not been made at random. We know that many of the highest and best legal authorities of our time have regarded the uncertain state of the constitution of the last court of appeal with

considerable misgivings as to the future, and that they have entertained a deep anxiety as to the possible result, if no definite arrangement should be made. The establishment of a responsible tribunal, such as we have hinted at, would, in any case, have deprived the inventors and advocates of the creation of life-peerages of their only plausible plea; because, as we have already remarked, none of them have ventured to express their unqualified approval of the institution of life-peers, as giving new blood to the Legislature—they merely take their stand upon the judicial advantages which might result from the new method of creation. But if the same advantages, or, as it appears to us, advantages much more important and even precious to the public interest, could be derived from the institution of a new court, framed in accordance and consonance with the legal practice of the realm, and calculated to give universal satisfaction and security, we apprehend that the House of Lords would lose nothing if it renounced what, to the great bulk of its members, is a pure fiction of authority. The pretext—for it is nothing more—for the introduction of life-peerages, has been rested upon a very narrow ground; namely, the necessity of providing for the adequate discharge of the appellate jurisdiction of the House. By consent of Queen, Lords, and Commons, to the erection of an independent and responsible tribunal of appeal, of which the Law Lords of Parliament might be members, the difficulty could be obviated at once; and then—if it should still be proposed to make a radical change in the constitution of the Upper House—the question may be argued upon broad and general grounds. If in any quarter—we care not how high it be—it is deemed advisable, or expedient, or creditable, or conducive to the maintenance of the present constitution of the realm, that life-peerages should hereafter be copiously introduced, let the subject be ventilated and discussed with all imaginable freedom and latitude. But this back-blow—this poor attempt, as we must needs think it to be, of endeavouring to gain a precedent and an example by insidious means, without the co-operation of Parliament—strikes us as peculiarly shabby; and is anything but wise, inasmuch as it indicates a desire to push the prerogative of the Crown beyond the point which has been held as constitutional since the union of the three kingdoms. In a matter such as this is, we need hardly repeat the words of Lord Lyndhurst, that we do not speak of the Sovereign personally, but of the advisers of the Sovereign.

All that we have hitherto said relates to the *expediency* of creating life-peerages for the purpose of supplying possible deficiencies in the number of Law Lords who now exercise the whole appellate jurisdiction of the House of Peers. But the greater question is behind; and although we approach the subject with considerable diffidence, we are constrained to express our opinion that, in the case of Lord Wensleydale, the prerogative of the Crown has been stretched beyond its proper limit. We do not mean as to the title. The Crown is the fountain of honour; and there seems to be little doubt that the Crown may create titles at pleasure, without any violation of the constitution. The old orders of Thanes and Vavasors may be resuscitated, or new orders of knighthood, with extraordinary rank of precedence, may be formed. All that, and even more than that, lies within the power of the Sovereign. But the institution of a new estate, or a new order, or a new tenure of nobility, which shall have the effect of augmenting or decreasing the power of either of the two other recognised and established estates of the realm, the Lords or the Commons, is an assumption or exercise of power beyond the prerogative of the Crown; and we, who certainly do not lean to the side of democracy, must oppose any such innovation, as strongly and strenuously as we would do were the true privileges of the Crown assailed. We deny not the right of the Queen to bestow honours and titles, and to give rank and precedence; but the case is very different when we find the Queen—or, to speak more accurately and properly, the Queen's advisers—attempting to alter the recognised hereditary character of one of the legislative chambers.

Let us then consider what is the constitution of the House of Lords. Diligent search has been made for precedents to show that, at an early period of English history, the Crown was in the use of granting peerages for life only; and we are bound to allow that sufficient evidence has been brought to establish the fact that, in the reign of Richard II., at least one peerage of that nature was created. But those who will take the trouble to peruse the elaborate reports upon the dignity of the Peerage, issued in 1820, 1822, and 1825, will find that in those early times the Crown assumed and exercised most arbitrary powers. Peers were summoned or not summoned to Parliament according to the will of the sovereign, and the right to exclude from Parliament a peer who had once taken his seat, was exercised by the Crown in repeated instances. If precedents drawn from the early history of England are to be accepted as rules for interpreting the existing measure of

the prerogative of the Crown, we must necessarily conclude that the Crown has the power, without trial or forfeiture, to suspend or take away the privileges of any peer, and that this can be done simply by withholding a writ at the time when Parliament is summoned. We doubt greatly whether even the strongest stickler for prerogative would maintain that such a course would be justifiable at the present day. But in truth we set very little value upon such precedents, beyond what attaches to them as mere antiquarian inquiries; and for this reason, that the ancient usage of England in regard to peerages is of no value in determining the rights, privileges, or position of members of the present House of Lords. It seems to be forgotten that there is now no English House, nor are there any Peers of England. The unions with Scotland and Ireland entirely altered the character of the existing Peerage. To borrow the language of the Third Report upon the Dignity;—

“When the union of England and Scotland was accomplished in the reign of Queen Anne, all the adult peers of the realm of England were entitled to writs of summons in the characters of temporal Lords of the Parliament of England, as that Parliament was then constituted; *but there are now no longer any peers of the realm of England.* By the union with Scotland, England as well as Scotland ceased to be distinct realms; and all the peers of the realm of England, and all the peers of the realm of Scotland, became, by the terms of the Treaty of Union, *peers of the new kingdom of Great Britain.*”

In like manner the union of Great Britain and Ireland produced a change in the character of the Peerage:—

“All the peers of Ireland, and all the Peers of Great Britain, and all the peers of the United Kingdom since created, form, in some degree, the second estate of the realm of the United Kingdom, qualified by the power given to the peers of Ireland to divest themselves of their privileges as such, under certain circumstances; but twenty-eight only of the peers of Ireland are Lords of Parliament, being elected to represent the rest of the peers of Ireland in Parliament, and their election being for life. A power is also reserved to the Crown to create new peers of Ireland, under certain circumstances; and the peers so created become also part of the whole body of peers of the United Kingdom, though not by their creation Lords of Parliament, and though, by the terms of their creation, made peers of Ireland only.

“It seems manifest, therefore, that not only the peers of the realm of the United Kingdom of Great Britain and Ireland at the present day, but all the members of the legislative assemblies of the United Kingdom, both as bodies, and as individual members of different bodies, and in their several different and respective rights and capacities, bear little resemblance to any of the members of the legislative assemblies of the realm of England from the Conquest, before and to the reign of John; and the peers of the realm of the United Kingdom, both as a body and individually, are very different from the peers of the realm of England, before the Union of England and Scotland in the reign of Queen Anne, *and especially as many of them are not Lords of Parliament;* and such of them as are elected to represent the peers of Scotland, and such of them as are elected to represent the peers of Ireland, are Lords of Parliament by election, and not by virtue of their respective dignities, though the possession of those dignities is a necessary qualification to warrant their election.”—*Third Report on the Dignity of the Peerage*, pp. 34, 35.

It is manifest, therefore, that such a question as this, affecting the status and privileges of the Peerage of the United Kingdom, cannot be settled by reference to early English precedents. There is no longer an English peerage, neither is there an English Sovereign. The Acts of Union have quite altered the character of the Peerage, for they have established a clear and intelligible distinction between Peers of the United Kingdom and Lords of Parliament. The mere possession of the dignity by no means implies the right to sit in the House of Lords. With the exception of sixteen who are elected to serve in each Parliament, the whole body of what were the peers of Scotland, but who now are peers of the United Kingdom, are excluded from the House of Lords, unless qualified to sit in virtue of a new patent; and that portion of the Peerage of the United Kingdom whose ancestors were peers of Ireland, are represented in Parliament by twenty-eight of their number. It is important that this distinction should be borne in mind; the more especially because, by a loose and inaccurate mode of expression, many people are led to think that the descendants of the old Scottish and Irish peers are not peers of the United Kingdom. Yet such unquestionably is their character; but though peers of the United Kingdom, they are not necessarily members of the House of Lords.

If, therefore, precedent is to be regarded as affording any rule for ascertaining the extent of the Sovereign's prerogative, it humbly appears to us that no instance from the history of England previous to the unions with Scotland and Ireland, can be accepted as satisfactory. The laws of England, as a province or component part of the realm, may have remained intact; but the character of the Peerage was entirely altered. The question is not now, What were the powers or extent of the prerogative of the monarchs of England? It is simply this, What are the powers, and what is the prerogative of the Sovereign of the United Kingdom of Great Britain and Ireland? For otherwise, be it observed, the search for precedents must be extended both to Scotland and Ireland, and we apprehend that investigation so directed might lead to some curious results. We know that King James, who succeeded to the throne of England, had such an exalted notion of his prerogative, that in his progress southward he actually tried in person, and condemned to death, an unfortunate footpad, who in all probability would have received a milder sentence from a less august tribunal. As to creations of the peerage in Scotland, take the case of the Barony of Rutherford. That peerage was created by Charles II., in 1661; a much more recent authority

than Richard II.; and the destination was to Andrew Rutherford, and the heirs-male of his body, “quibus deficientibus, quamcumque aliam personam seu personas quas sibi quoad vixerit, quinetiam in articulo mortis, ad ei succedendum, ac fore ejus hæredes talliæ et provisionis in eadem dignitate, nominare et designare placuerit, secundum nominationem et designationem manu ejus subscribendam, subque provisionibus restrictionibus et conditionibus a dicto Andrea, pro ejus arbitrio, in dicta designatione experimendis.” In short, if the first Lord Rutherford had no heirs-male, he was entitled by this patent to assign the dignity, even on death-bed, to any person whom he might choose to name; and there was nothing to prevent him, if so disposed, from having nominated his footman to succeed him in the peerage! Here is a precedent to which we respectfully request the attention of those who are bent upon asserting the unlimited nature of the royal prerogative; and we should like to know whether they are prepared to maintain that such a patent, if granted now, would be regarded as constitutional, and would be held sufficient to entitle *the assignee*, not the heir, of the originally created peer to sit in the House of Lords? Certainly we are entitled to demand, if this case of Lord Wensleydale is to be decided upon precedents, a distinct answer to the foregoing question. For, as we have already shown—we trust distinctly, and we know incontrovertibly—the interest now at stake concerns not the Peerage of England, which has long since ceased to exist, but the interest of the Peerage of the United Kingdom; and therefore precedents drawn from the history of England can have no more weight than precedents drawn from the histories or records of Scotland or of Ireland.

We think that no weight whatever is to be given to such precedents. No sovereign of the United Kingdom of Great Britain and Ireland has, till now, attempted to alter the hereditary character of the Peerage. This is the very first instance of a peerage for life granted in the monarchy under which we live, and it cannot be considered otherwise than as an innovation. We use that term in its most innocuous sense; not meaning thereby to challenge the right of the Crown to confer a new description of dignity, but simply marking the fact that the dignity, as granted, is new. But the creation of such a dignity by no means carries with it the right to a seat in the House of Lords. As we have already shown, many of the Peers of the United Kingdom, all of whom are hereditary, are expressly excluded from that House, not by will of the Sovereign alone, but by express statute, bearing

the authority of the Three Estates of the realm. If there be any meaning whatever in the phrase that this is a “limited monarchy,” it must be held to signify that the Crown cannot, *ex proprio motu*, interfere with the constitution of the other two Estates. It cannot, we know well, interfere arbitrarily with the constitution of the House of Commons; but is it not an interference with the constitution of the House of Lords, when we find a new kind of peerage created, for the purpose of giving the party so created a voice in the Legislature? Is that not directly contrary to constitutional usage—to the “*lex et consuetudo Parliamenti*,” which has been justly held as the great bulwark of our national freedom? On this point we invite consideration; and the more deeply it is considered, the stronger, we are assured, will be the conviction that the present attempt, if successful, would be highly dangerous to the liberties of the country.

All must agree with us that it is of the most vital importance that the independence of the two national chambers should be maintained. The House of Commons cannot be otherwise than independent, because it is strictly electoral. All proposals which have hitherto been made to place a certain number of seats at the disposal of ministers, or rather to allow ministers to sit and vote without representing a constituency, have been scouted; and although very plausible arguments have from time to time been advanced to prove the expediency of such an arrangement, these have failed to convince the people of this country that it would be safe to depart, in any case, from the electoral system of return. The House of Peers hitherto has been independent, because, though the Crown has the right of creating new peers, that right has only been exercised according to the existing and understood conditions; and the hereditary constitution of the House renders it impossible to suppose that any undue or exorbitant exercise of the power of the Crown, in creating new peers, can permanently affect its independence. It by no means follows that the successor of the original peer is to be swayed by the same motives which affected his father, or that he will tread implicitly in his footsteps; and therefore, even in times of great excitement, the power of creation has been exercised within limits by the advisers of the Crown. Lord Brougham, who, in the days of the Reform Bill, was not very scrupulous, intended, as he tells us himself, to advise his sovereign, William IV., to exercise his prerogative to an extent which never had been attempted before, and which, we devoutly trust, will never be attempted again. He says, “When I went to Windsor with Lord Grey, I had a

list of EIGHTY creations, framed upon the principle of making the least possible permanent addition to our House, and to the aristocracy, by calling up peers' eldest sons—by choosing men without families—by taking Scotch and Irish peers.” It is of no avail now to revert to the past, or to enter into any discussion whether or not the proposed measure was justifiable; more especially as Lord Brougham adds, “But such was my deep sense of the dreadful consequences of the act, that I much question whether I should not have preferred running the risk of confusion that attended the loss of the bill as it then stood.” Under the present hereditary system, there is little danger that the House of Peers will lose its independent character; nor could it be so affected, even for a short period, save by some such exorbitant exercise of the power of the Crown, by creating simultaneously an undue and unconstitutional number of peers. But the case would be widely different if life-peerages were to be allowed, and recognised as conferring a right to sit in the House of Lords. Peerages in the ordinary course of succession become rapidly extinct. In 1707, when the Union Roll of Scotland was made up, the number of the Peerage amounted to 154; and since then six, having proved their claims, have been added, thus swelling the number to 160. At present there are only 82 members of that Peerage, showing a diminution of nearly *one-half* in the course of 150 years. If, then, the lapse of hereditary peerages is to be supplied—as no doubt it will be supplied, should the claim of Lord Wensleydale to take his seat in the House of Peers be allowed—by peers created for life only, who can fail to see that, in the course of time, the independence of the Upper House must be entirely extinguished? In the natural course of events, that Chamber must become an appanage of the Crown, very much indeed in the condition of the old English Chamber of Peers, when the Crown exercised its discretion in issuing or withholding writs of summons to Parliament. Therein, we conclude, lies the real danger. We speak of “the constitution of the country,” and men regard the term as vague because so much is implied. But it is different when we consider separately the constitution of each branch of the Legislature. Then we are dealing, not with generalities, but with facts; and we appeal, not only to the antiquarian and the genealogist, but to the understanding of all educated men, whether, until now, they ever conceived the possibility of a non-hereditary House of Lords? Surely, in 1832, when a design for swamping that House was seriously entertained, the legality of creating peerages for life must have occurred to some of the men of acute

and daring intellect who were willing to peril so much for the success of their favourite measure, and yet no proposal of the kind was put forward. It is in the “ennoblement of the blood” which, once bestowed, the sovereign cannot recall, that the essential privilege and pre-eminence of the Peerage lies. Take that away, and the whole character of the dignity is altered.

Some kind of argument has been attempted to be drawn in favour of life-peerages, from the patent fact that bishops have seats in the House of Lords. To that we answer that the “Spiritual Lords,” as they are termed, sit there partly by consuetude, and partly by statute; and Blackstone thus explains the reason of their sitting: “These” (*i.e.* the Spiritual Lords) “hold, or are supposed to hold, certain ancient baronies under the Queen; for William the Conqueror thought proper to change the spiritual tenure of frankalmoign, or free alms, under which the bishops held their lands during the Saxon government, into the feudal or Norman tenure by barony, which subjected their estates to all civil charges and assessments, from which they were before exempt; and in right of succession to those baronies which were unalienable from their respective dignities, the bishops and abbots were allowed their seats in the House of Lords.” And let it be specially remarked, that the Crown has no power to call a newly-created bishop, in virtue of his bishopric, to sit in the House of Lords. This is distinctly asserted by the statute 10 and 11 Vict. cap. 108, which provides that the number of English Lords Spiritual shall not be increased by the creation of any new bishopric. So here is a precedent, if precedents are to be sought for, limiting the power of the Crown as to new dignities, and debarring it from interfering with the constituted rights of another estate of the realm.

In the course of this discussion upon a subject not only interesting, but of the highest importance, we have studiously avoided mixing up the question of the right of the Crown to confer titles of honour at pleasure, with that of the exercise of the prerogative to create, contrary to consuetude, a new kind of nobility to sit in the House of Lords. They are indeed totally separate questions, and must so be considered in order to arrive at a proper understanding of the point at issue. We submit that this much is clear and evident—1st, That the right of sitting in the House of Lords is not the necessary consequence of the possession of a British peerage; 2d, That, with the exception of the Bishops or Lords Spiritual, who sit in the character of holders of ancient baronies under the Queen, all the members of the House of Lords are hereditary peers; 3d, That since the union of

England and Scotland, which merged the two ancient kingdoms into one monarchy under the name of Great Britain, and made all the existing peers, without any exception, peers of Great Britain, there has been no instance of any attempt on the part of the Crown to create peerages without remainder; 4th, That the same observation applies to the United Kingdom of Great Britain and Ireland, which was established by the Act of Union with Ireland, and which made all existing peers, peers of the United Kingdom.

The present is the first instance in which a title of nobility, without remainder, has been conferred by patent, and the mere title, as a personal honour, may be unimpeachable. But it is a very different thing when it is attempted to give the holder of that title a seat in the House of Lords, which, we humbly venture to think, is beyond the power of the Crown, because it is contrary to the acknowledged constitution and hereditary character of the House of Lords. That there must be some limit to the exercise of the prerogative is certain; and we shall put a case for the solution of those who take the opposite view. It is this: Would the Crown be entitled to issue a writ of summons to any peer of the United Kingdom, who is such in virtue of his representing an old Scottish or Irish peerage; and would such peer be entitled, in respect of that writ, to take his seat in the House of Lords? We apprehend that there can be but one answer to that. Such an attempt would be directly contrary to and in violation of the terms of the Acts of Union. No man surely will maintain that Queen Anne could have evaded the express conditions of the Treaty of Union, by creating all the former peers of Scotland who became peers of Great Britain (with the exception of the sixteen representatives), peers for life, without remainder, and so have effected an absolute revolution in the character of the then existing House of Lords. It was not until the year 1782, seventy years after the Union, that a writ of summons was allowed to be issued to Douglas Duke of Hamilton, in the character of Duke of Brandon, a dignity which had been given to his ancestor in 1711. Previous to that decision, it seems to have been maintained that no subsequent patent to a peer, who originally was a peer of Scotland, could entitle him to a writ of summons to sit in the House of Lords; and the point was twice adjudicated upon in the House of Lords: first in the case of the Duke of Hamilton, already mentioned; and, secondly, in that of the Duke of Queensberry, who, 1719, asserted his right to a writ of summons in his character of Duke of Dover. In both instances the decision was hostile to the claim; but the point was finally set at rest by the

admission of the Duke of Hamilton to sit as Duke of Brandon under that patent.

If the Crown can now create a peer for life, so as to entitle him to a seat in Parliament, it must necessarily have possessed that power 150 years ago; and, if so, every one of the Scottish peers might have been called to the Upper House by the simple expedient of giving them new patents for life. Such an attempt would undoubtedly have been considered illegal, unconstitutional, and utterly subversive of the Union; and yet we cannot see wherein such an attempt would have differed in principle from that which is now made to introduce Lord Wensleydale to the House of Lords. It is only by the consent of Queen, Lords, and Commons, that the fundamental character of any of the three great Estates of the realm can be altered; and the attempt to destroy or impair the independence of one of them is ominous for the stability of the others.

Printed by William Blackwood and Sons, Edinburgh.

[1.](#) *A History of Rome from the Earliest Times to the Establishment of the Empire.* By HENRY G. LIDDELL, D.D., Dean of Christchurch, Oxford, late Head Master of Westminster School.

[2.](#) This was a law, passed after the battle of Cannæ, at the instance of the tribune Oppius, “by which it was forbidden that any woman should wear a gay-coloured dress, or have more than half an ounce of gold to ornament her person, and that none should approach within a mile of any city or town in a car drawn by horses.”—Vol. i. p. 363.

[3.](#) He had caused a fugitive and suppliant Gaul to be assassinated in his own tent, where he was feasting with a favourite youth, in order that the dying agonies of the man might afford an amusement to his unworthy minion.—Vol. ii. p. 61.

[4.](#) *Histoire des Français des Divers Etats.* Victor Lecou, Libraire. Paris, 1853.

[5.](#) One curious example of this kind of thing we remember to have seen in the preface to the new edition of a work of some reputation. The devout author, alluding to the success of his performance, offers his grateful thanks to Providence and the Periodical Press.

[6.](#) Like some people nearer home, each of them (and many another besides them) avers that his paper has the largest circulation of any journal not only in America, but *in the world*. Of all statistics, the least credible are those of newspaper proprietors.

[7.](#) We are fully prepared to find Mr Bennett attributing our unfavourable remarks to a great “conspiracy” among the “aristocratic cliques” of England against American institutions in general, and the *New York Herald* in particular. This is an old trick, but the American public is too sensible any longer to be taken in by such nonsense. Mr Bennett’s pretensions to represent the general

sentiments of the United States, have nowhere been more indignantly repudiated than in New York. If we imagined that any American whose opinion is worth considering, would interpret our criticism as implying any unkindly feeling to his country, these pages should never have seen the light. The objects of our criticism are individual men.

8. The *North American Review* thanks Mr Parton warmly for his brave—his noble book. Was the orthodox Grannie dozing when she read it?

9. The meaning of the words “Whig,” “Democrat,” &c., and the combination in the same individuals of Whig and Protectionist, Conservative and Democrat, are somewhat puzzling to those who have not studied the complicated subject of American politics.

10. Of the printing-office and editorial rooms Mr Parton gives a minute account, not failing to give us the names and describe the personal attractions of all the leading officials, including the distinguished foreman, Mr T. Rooker, who warns “*gentlemen* desiring to wash and soak their distributing matter,” to use the “metal galleys” he has cast for that purpose! “It took the world,” says Mr P., “an unknown number of thousand years to arrive at that word GENTLEMEN.” What a pity that some smart man does not write a little book on “The Flunkeyism of Democracy.”

11. On this subject the biography maintains, with one or two exceptions, a prudent reserve. One pathetic description is attempted of the old sinner, “as he stood in his editorial rooms in Nassau Street, *while from his head was washed the blood that incarnadined the snows of fifty winters.*” After the washing of his headpiece, the invincible editor coolly sat down to narrate the “assassination” in his own choice style for the benefit of his readers. The following may pass as a specimen of his manner. “James Watson Webb,” editor of the *Courier and Enquirer*, was an old comrade of the writer’s.

“As I was leisurely pursuing my business yesterday, in Wall Street, collecting the information which is daily disseminated in the *Herald*, James Watson Webb came up to me on the northern side of the street—said something which I could not hear distinctly, then pushed me down the stone steps leading to one of the broker’s offices, and commenced fighting with a species of brutal and demoniac desperation characteristic of a fury.

“My damage is a scratch, about three-quarters of an inch in length, on the third finger of the left hand, which I received from the iron railing I was forced against, and three buttons torn from my vest, which any tailor will reinstate for a sixpence. His loss is a rent from top to bottom of a very beautiful black coat, which cost the ruffian 40 dollars, and a blow in the face, which may have knocked down his throat some of his infernal teeth for anything I know. Balance in my favour, 39 dollars, 94 cents.”

12. Mr Bennett, it would appear, is not indeed utterly free from the human feeling of “love of approbation”—the approbation, however, of “peculiar” characters. Mr O’Connell insulted him at a great Repeal gathering in Dublin, by saying, when his card was presented, “We don’t want him here. He is one of the conductors of one of the vilest Gazettes ever published by infamous publishers.” Poor Bennett was “ill for some days in Scotland”—probably, thinks the tender biographer, in consequence of this unexpected repulse from a brother demagogue.

13. Gibbon.

14. *Report by the Commissioners for the British Fisheries of their Proceedings in the Year ended 31st December 1854; being Fishing 1854.* Edinburgh, 1855.

Article “FISHERIES” in the current edition of the *Encyclopædia Britannica*, vol. ix. Edinburgh, 1855.

[15.](#) This fearful loss, it may be borne in mind, fell not upon fishermen and merchants, but upon the poor fishermen alone—most of the survivors being thereby rendered destitute. “Of those who perished at Wick, 17 left widows and 60 children; at Helmsdale, the 13 drowned have left 9 widows and 25 children; of the 26 men belonging to Port Gordon and Buckie, who perished at Peterhead, 8 have left widows and 22 children; and, including the 13 widows and 54 children of the 19 men lost belonging to Stonehaven and Johnshaven, there will be left 47 widows and 161 children totally unprovided for—a calamity without precedent in the annals of the British fisheries.”—CAPTAIN WASHINGTON’S *Report*, p. xvii.

[16.](#) *Report—Fishing Boats* (Scotland). Ordered by the House of Commons to be printed, 28th July 1849.

[17.](#) The year above referred to was that of 1848. Still larger captures and comparative increase in the quantity cured have since occurred. Thus, in 1849, there were cured at Wick 140,505 barrels.

[18.](#) *Essays on the Trade, Commerce, Manufactures, and Fisheries of Scotland*, vol. iii. p. 197. Edinburgh, 1778.

[19.](#) *Eighth Annual Report of the Board of Supervision for the Relief of the Poor in Scotland*. Edinburgh, 1853.

[20.](#)

Value of boats	employed	in the fisheries,	£225,830
Do. of nets	„	„	303,666
Do. of lines	„	„	57,924
Total (for 1854),			£587,420

[21.](#) The above numbers are exclusive of between *four and five thousand men* engaged in the export fishing trade.

[22.](#) The following is the present constitution of the Board: *Commissioners*—Lord Murray; Earl of Caithness; George Traill, M.P.; James Wilson; Rear-Admiral Henry Dundas; Andrew Coventry; James T. Gibson-Craig; Professor Traill; William Mitchell Innes; Lord Elcho, M.P.; Sir James Matheson, M.P.; John Thomson Gordon; George Loch; with Lord Advocate Moncreiff, and Solicitor-General Maitland, *Ex officiis*.—Secretary, Hon. B. F. Primrose.

[23.](#) *Twentieth Report from the Board of Public Works, Ireland*, p. 236. London, 1852.

[24.](#) *Report of the Commissioners of Fisheries, Ireland, for 1853*. Dublin, 1854.

[25.](#) *Ibid.* 1854. Dublin, 1855.

[26.](#) *Report of the Commissioners of Fisheries, Ireland, for 1854*, p. 12. The above quotation refers to the herring fishery carried on at Howth. We think it right to state that the schedules

appended to the report bear testimony “to the peaceable and orderly habits of the fishermen, and to the total absence of any conflicts or disturbance of any kind.” It is, unfortunately, added, that “it is much to be deplored that nearly all agree in describing an unexampled state of depression as extending to all parts of the coast.”—*Ibid.*, p. 6.

[27.](#) *Ibid.*, p. 6. As the law now stands, there is no regulation in respect to the size of the mesh of nets used in Ireland for the capture of fish other than of the salmon species.

[28.](#) Letter from Mr Methuen to the Lord Advocate; *Edinburgh Evening Courant*, February 6, 1856.

[29.](#) We have recently received the *Commercial Circular* of Messrs Plüddeman and Kirstein of Stettin, of date the 20th January 1856. Referring to the increased consumption of our herrings in the Continental markets during the last season, they attributed it chiefly to the high prices of all descriptions of *meat*, as a consequence of the high value of rye, and all other grains, caused by the blockade of the Russian ports, and the failure of the Continental crops. The following is their summary of the importation of Scotch herrings, into their own and neighbouring districts, during the last four years:—

Years.	Stettin.	Harburg.	Hamburg.	Dantzie.	Königsberg.
	Barrels.	Barrels.	Barrels.	Barrels.	Barrels.
1852	121,290	10,000	44,000	22,146	about 4000
1853	123,537	26,000	22,000	44,272	about 5000
1854	118,800	52,400	25,550	28,009	2758
1855	154,961	59,769	26,500	66,122	15,070

The above transmissions for 1855 give a total of 322,422 barrels of Scotch herrings, of which the price to our curers, for such as were full crown branded, varied from L.1, 1s. to L.1, 4s. each, producing, with such as were of a somewhat inferior quality and price, an enormous aggregate of income from the Prussian ports alone.

We may here add, that there is an immediate prospect of the duty on our herrings being greatly reduced in Belgium. It is at present 13 francs (or about 11s.) per barrel—a tax which quite prohibits importation. When the great cities of Brussels, Ghent, Liège, Louvain, Antwerp, Bruges, Mons, Namur, Malines, &c., are open to our produce, what may we not hope for from the appetites of a Catholic and therefore fish-eating population?

[30.](#) We have reason to believe that petitions to the Treasury for the maintenance of the Board of Fisheries and its official brand, have been presented or are in course of transmission from the following twenty-one ports in this country, viz.:—Wick Town-Council, Wick Chamber of Commerce, Helmsdale, Burghhead, Lossiemouth, Macduff, Banff, Gardenstown, Whitehills, Portsoy, Fraserburgh, Peterhead, Montrose, Anstruther, Leith Chamber of Commerce, Eyemouth, Burnmouth, Coldingham, Berwick-upon-Tweed, &c., Glasgow, Greenock, Bute. The following places on the Continent have sent in corresponding petitions, viz.:—Stettin, Königsberg, Dantzie, Berlin, Breslau, Dresden, Magdeburg, Harburg, Hamburg.

[31.](#) *Memoir of the Rev. Sydney Smith.* By his Daughter, LADY HOLLAND.

TRANSCRIBER'S NOTES

- Typos fixed; non-standard spelling and dialect retained.
- Used numbers for footnotes, placing them all at the end of the last chapter.

*** END OF THE PROJECT GUTENBERG EBOOK BLACKWOOD'S
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